

Public Registry
Searches Unit
Casa Bolino, 116 West Street
Valletta
Tel. No 21248514 / 21239777
Fax 800 72360

INVOICE

NOT ROLAND WADGE
VILLA HARMONY
LUQA ROAD
PAOLA

Invoice Number:
Date:
Our Reference:

163423
26 Jul 2010
RW-SAPIANO GEORG

VAT Reg. Number: 14748305

RE: SEARCHES OF:

227738U
227739U

SAPIANO GEORG
SAPIANO AUDREY W/O GEORG

Number of Searches:	2	7.50
Number of Notes:	0	0.00
Number of GPPs:	0	0.00
Number of D/Ms:	0	0.00
Number of D/Ps:	0	0.00
Number of common notes:	0	0.00
Number of PRCs:	0	0.00
Checking:	0	0.00

Total: € 7.50

Malta and Gozo

SEARCHES OF SAPIANO GEORG OF ALFRED AND ROSE NEE FLYNN B. ATTARD

VIDE COMMON NOTES WITH: SAPIANO AUDREY

Liabilities From: 01/01/1975 to: 18/07/2005

Transfers From: 01/01/1979 to: 18/07/2005

Fidi From: 01/01/1981 to: 18/07/2005

CE	2001	183				
CE	2001	377				
CE	2005	271				
GH	2002	428	Vide			
GH	2002	1319	Vide			
GH	2002	1320	Vide			
GI	2000	1570	Vide			
GI	2000	1989	Vide			
GI	2002	485	Vide			
GI	2002	1953	Vide			
GI	2003	1515	Vide			
GI	2005	24	Vide			
H	1993	10935		R	2507 / 2000 Canc	
H	1994	5579		R	2506 / 2000 Canc	
H	1998	4014		R	748 / 2003	R 8427 / 2003
H	1998	5802	Vide	R	2510 / 2000	R 6017 / 2000 R 6197 / 2000
				R	7353 / 2002	R 746 / 2003
H	1999	3510	Vide	R	6196 / 2000	R 745 / 2003
H	1999	3737	GPP			
H	1999	4796	Vide	R	6199 / 2000	R 745 / 2003
H	2000	3226	Vide			
H	2000	3227	Vide			
H	2000	6763	Vide	R	6200 / 2000	R 745 / 2003
H	2000	6764	Vide	R	6198 / 2000	R 745 / 2003
H	2000	14654	GPP			
H	2000	15705	Vide			
H	2004	4129	Vide	R	1 / 2005 Canc	
H	2004	21419	GPP			
H	2005	158	Vide GPP			

05/08/2005 09:09:43 cpa/emc
Number of Entries: 62 Date Ordered: 25/07/2005

Order Number: 294983N
Date Issued: 05 Aug 2005

Page: 1

Continued
FREE PHONE / FAX: 800 77 2360
e-mail: pubreg.searches@gov.mt
pubreg.messages@gov.mt
www2.mha.gov.mt/pronline

H	2005	159	GPP
I	1993	8587	
I	1995	10473	
I	1997	12091	
I	1998	3631	Vide
I	1998	5673	Vide
I	1999	3390	
I	1999	10040	
I	2000	2784	Vide
I	2000	10681	Vide
I	2000	11680	
I	2004	19748	
I	2004	20790	Vide
I	2005	3	Vide
I	2005	5458	Vide
I	2005	5670	WILL

SEARCHES OF SAPIANO GEORG OF ALFRED AND ROSE NEE FLYNN B. ATTARD

Liabilities From: 18/07/2005 to: 12/10/2008
Transfers From: 18/07/2005 to: 12/10/2008
Fidi From: 18/07/2005 to: 12/10/2008

CE 2005 621

GH 2006 1432

GI 2006 796

GI 2006 917

GI 2008 863

H 2005 13376

H 2006 10253

H 2006 13424

GPP

H 2006 13426

R 2453 / 2008 Canc

H 2007 12689

H 2007 16263

I 2006 10335

I 2006 13471

I 2007 9905

WILL

I 2008 5817

I 2008 14089

WILL

Handwritten signature

Malta and Gozo

SEARCHES OF SAPIANO GEORG OF ALFRED AND ROSE NEE FLYNN B. ATTARD

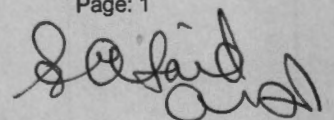
VIDE COMMON NOTES WITH: SAPIANO AUDREY

Liabilities From: 12/10/2008 to: 10/05/2010

Transfers From: 12/10/2008 to: 10/05/2010

Fidi From: 12/10/2008 to: 10/05/2010

CE	2009	299	Vide
H	2008	19963	Vide GPP
H	2009	6046	Vide GPP
I	2008	20114	Vide



Malta and Gozo

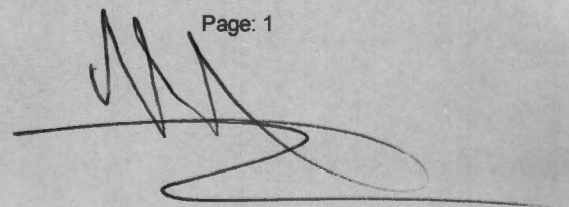
SEARCHES OF SAPIANO GEORG OF ALFRED AND ROSE NEE FLYNN B. ATTARD

Liabilities From: 10/05/2010 to: 20/07/2010

Transfers From: 10/05/2010 to: 20/07/2010

Fidi From: 10/05/2010 to: 20/07/2010

NIL

A handwritten signature in black ink, consisting of several loops and a long horizontal stroke at the bottom.

Malta and Gozo

SEARCHES OF SAPIANO GEORG OF ALFRED AND ROSE NEE FLYNN B. ATTARD

Liabilities From: 20/07/2010 to: 17/11/2011

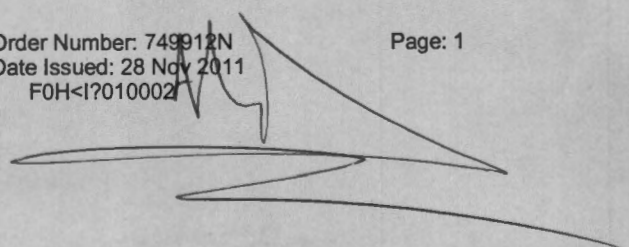
Transfers From: 20/07/2010 to: 17/11/2011

Fidi From: 20/07/2010 to: 17/11/2011

H 2010 11897

Canc 7670/2018

H 2010 11898

A large, stylized handwritten signature in black ink, appearing to be a cursive 'M' or similar, is written over the bottom right portion of the page, partially overlapping the footer information.

Malta and Gozo

SEARCHES OF SAPIANO GEORG OF ALFRED AND ROSE NEE FLYNN B. ATTARD

Liabilities From: 17/11/2011 to: 04/01/2012

Transfers From: 17/01/2011 to: 04/01/2012

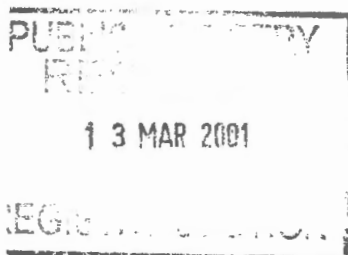
Fidi From: 17/11/2011 to: 04/01/2012

NIL

Salvatore

Fil-Prim' Awla tal-Qorti Civili

183



Angelo Grasso ritirat bin il-mejtin Carmelo u Carmela nee Grech imwieled Valelta u resident Marsa ghan-nom u in rapprezentanza ta' tabib Paolo Grasso bin Carmelo u Carmela nee Grech imwieled Valletta u residenti Londra, Ingliterra.

Vs

Dr. Georg Sapiano, avukat bin Alfred u Rosemary nee Flynn imwieled Attard u joqghod tas-Sliema ID card no. 71568(M)

Cedola ta' depositu u fidi ta' cens ta' Angelo Grasso nomine

Jesponi bir-rispett:

Illi skond kuntratt fl-atti tan-Nutar Rosario Frendo Randon datat 31 ta' Ottubru 1963 (Dok A) Paolo Grasso hu c-censwalist ta' fond numru ghoxrin (20) Father Magri Street, Marsa kif ahjar deskritt fl-istess kuntratt. (Pjanta Dok B).

Illi dan il-fond huwa soggett ghac-cens annwu u perpetwu ta' Lm1.50 (lira u hamsin centezmi) pagabbli lil intimat.

Ghaldaqstant l-esponenti fil-waqt li jaghmel referenza ghall-artikolu 1501 (1) tal-Kodici Civili qieghed jiddepozita taht l-awtorita ta' din il-Qorti favur l-intimati is-somma ta' Lm30 pagabbli lil intimat liema somma tista tigi liberament zbankata mill-intimat wara li jirillaxxa d-debita rcevuta.

~~Av. Philip Manduca~~
Mittent: 60 Triq Marsa, Marsa
Intimat: 145/9 Tower Road, Sliema.
Notifiki: Public Registry - Merchants Street, Valletta
(2 Kopji)

4 ta' Marzu 2001

Rappresentata mill- PL E. Montanaro

Received on the 13th March 2001
304

377

Fil-Prim Awla tal-Qorti Civili.

495/01
u 690

~~IVAN BORG, JOSEPHINE sive JOYCE marit l-~~
~~Avukat Dottor ANTOINE CACHIA, u ROSE~~
~~MARIE sive ta FRANK CACHIA, shwa BORG,~~
u ulied il-mejtin Prim Imhalled Sir
George Borg u Lady Beatrice nee Farrugia,
imwieldin Ivan fil-Belt Valletta, u
Josephine sive Joyce u Rose Marie f'
tas-Sliema, u residenti: Ivan fi Sliema,
Josephine sive Joyce fil-Belt Valletta,
u Rose Marie f'Casal Balzan.

VS

~~JOSEPH RAYMOND SAPIANO bin il-mejtin~~
~~Tabib Dottor Louis Sapiano u Edwige nee'~~
~~Pasila, imwield ir-Rabat u residenti~~
~~f'San Gwann; u Avukat Dottor GEORG~~
~~SAPIANO, bin il-mejjet Alfred u Rose~~
~~Marie nee Flynn, imwield Casal Attard~~
u residenti Sliema.

~~Cedola ta depositu u ta kontestwali fidi ta subcens~~
~~ossia awment ta cens annwu perpetwu tal-fuq imsemmija IVAN, JOSEPHINE~~
~~sive JOYCE CACHIA, u ROSE MARIE CACHIA, shwa BORG.~~

Jesponu bir-rispett;

Illi l-esponenti ihallsu lill intimati flimkien
bejniethom is-somma ta Erba u tletin lira u hamsin centesimu
(£M34-50,0) subcens ossia awment ta cens annwu perpetwu gravanti
is-segwenti fondi posseduti mill-istess esponenti, u cioe:- Il-
Blok ta tlett (3) Flats li igib l-isem "St.Paul", numru disgha
u disghin (99), u Blokk iehor kbir ma genbu ta disgha (9) Flats,
igib l-isem "RAMEL BUILDINGS", Numru Mija (100), il-tnejn f'Nicolo'
Isouard Street, kantuniera ma Tower Road, Sliema; u zewg fondi
ohra sottostanti l-ahhar imsemmi blokk "Ramel Buildings" u cioe'
l-fondi "Lorna" Numru Mitejn u tlieta u erbghin ittra A (243"A"),
u "Peer Gynt", numru Mitejn u tlieta u erbghin ittra B (243"B"),
f'Tower Road, kantuniera ma Isouard Street, Sliema, - liema fondi
ilkoll flimkien jinsabu indikati bil-kulur ahmar fuq is-Survey
Sheet hawn annessa markata Dokument "A".

Illi l-esponenti jixtiequ jipprevalixxu ruhhom
mill-fakolta' lilhom moghtija bl-Artikolu Numru 1501 tal-Kodici
Civili ta Malta u jifuq l-imsemmi subcens ossia awment ta cens
annwu perpetwu gravanti l-proprieta' taghhom fuq imsemmija.

Ghaldagstent l-esponenti jedixxu dina l-Onorabbli
Qorti u taht l-Awtorita' Taghha jiddeposittaw is-somma ta Sitt mija
u disghin lira (£M690) li tirrappresenta l-kapitalizzazzjoni tal-
imsemmi subcens ossia awment ta cens annwu perpetwu ta £M34-50,0
gravanti l-fuq imsemmija fondi flimkien, bir-rata tal-hamsa fil-
mija (5%) stabilita bil-precitat Artikolu Numru 1501 tal-Kodici
Civili ta Malta, - sabiex dina l-istess somma tinghata liberament
lill fuq imsemmija intimati Joseph Raymond Sapiano u l-Avukat
Dottor Georg Sapiano, - u dana taht dawkl il-provvedimenti kollha
kontemplati mil-Ligi in konnessjoni mal-fidi tas-cens annwu perpetwu
fuq imsemmi, u wara li l-istess intimati jirrilaxxjaw id-debita
ricevuta skond il-Ligi.

AVV. DAVID HARDING

J. Privitera, P.L.

RECEIVED

Depositanti: c/o 28, Old Bakery Street, Valletta.

- Notifika:
1. Joseph Raymond Sapiano,
"Lar il-Harruba", 58, Ant. Schembri Street, KAPPARA,
SAN GWANN.
 2. Dttor Georg Sapiano, L.L.D.,
145/9, Tower Road,
SLIEMA.
 3. Direttur tar-Registru Pubbliku , (Zewg kopji),
Public Registry,
Merchants Street,
Valletta.

- - 304
EOE - -

271

Fil-Prim'Awla tal-Qorti Civili

Dr. Georg Sapiano, avukat,
(ID No.71568M), bin Alfred
u Rose nee' Flynn, imwieled Attard.

Vs
R. RICHARD SLADDEN LTD
PL. MARIO MIFSUD BONNICI
Kuraturi Deputati biex jirraprezentaw
lid-Dominus Directum mhux maghruf
tal-garage numru 132, Howard Street,
Sliema.

LM88.80
1112/04

Cedola ta' Fidi' ta' Cens ta' Dr. George Sapiano;

Illi permezz ta' kuntratt ta' bejgh datat 6 ta' Dicembru, 2004 fl-Atti tan-Nutar Dottor
Robert John Muscat, l-esponenti akkwista l-garage numru 132, Howard Street, Sliema;

Illi dan il-bejgh huwa soggett ghall-cens annwu u perpetwu ta' erbgha liri u erbghin
centezmu (LM4.40c);

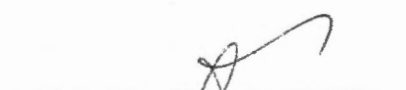
Illi l-esponenti jixtieq jipprevalixxi ruhu mill-fakolta' lil moghti mill-provvedimenti
relattivi fil-Ligi Maltija u specifikament Artikolu 1501 tal-Kodici Civili ta' Malta sabiex
jifdi c-cens hekk dovut lill-intimat;

Illi d-dominus directus tal-garage imsemmi mhumieq maghrufa u ghaldaqstant ikun
opportune illi jinhatru kuraturi deputati sabiex jirraprezentaw l-interess tal-istess;

Illi sabiex jinfeda dan ic-cens ta' LM4.44, l-istess ghandu jigi kkapitalizzat bir-rata ta'
hamsa fil-mija (5%) ai termini tal-ligi, b'dan illi jammonta ghas-somma ta' tmienja u
tmenin lira Maltin u tmenin centezmu (LM88.80c);

Ghaldaqstant l-esponenti in vista tal-fuq premiss, qiegħed jadixxi lil din l-Onorabbli
Qorti u jiddeposita taht l-Awtorita' tagħha s-somma ta' LM88.80c rapprezentanti fidi ta'
cens kif fuq premissi, sabiex din tigi rilaxxata lill-intimat skond il-ligi, wara li jhalli d-
debita ricevuta.


Avv.


P.L. Edgar Montanaro

Notifika: 1. Direttur tar-Registru Pubbliku 2.

7 DEC 2004
P.L. E. MONTANARO
ad
Lid
Cmt
/

103



Received today
24th March 2005
Signed
[Signature]

NOTA GHAL ISKRIZZJONI TA':

Hypothec and Privilege

FUMRU PROGRESSIV

10935

RIMARKI (GHAL
UZU UFFICJALI
BISS)

Vide Cancellation

Vol. R.

KREDITUR:

Lohombus Corporation Limited.

DEBITUR:

Georg Sanjano, a company director, son of Alfred and of Rose Marie nee' Flynn, born at Attard and residing at Pieta'.

KREDITUR:

The sum of twenty-nine thousand Maltese Liri (Lm29000) granted on loan by the hereinmentioned creditor to the hereinmentioned debtor by virtue of a deed in my records of the twenty-eighth (28) day of June of the year one thousand nine hundred ninety-three (1993).

The creditor, as delegated by the debtor, paid part of the said loan, namely the sum of twenty-eight thousand Maltese Liri (Lm28000) to the Vendor Company as part and in settlement of the purchase price of the hereunder-described immovable property situated at Sliema.

The remaining balance of the loan, namely the sum of one thousand Maltese Liri (Lm1000), was granted for the purpose of effecting permanent improvements at the hereunder-

KANZA TA' PREFERENZA:

General Hypothec; Special Hypothec and Special Privilege over the flat internally numbered ten (10), which lies at fourth (4th) floor level on the right hand side of the block when viewed from Howard Street, which flat forms part of a block consisting of a basement, twelve (12) flats and an overlying penthouse.

The said block is externally unnumbered, is named Dingli Court, and is situated in Guze' Howard Street, at Sliema.

The said block is bounded on the North by Guze Howard Street, on the east by St. Adriano Dingli Street, and on the south in part by Saint Margaret Street, in part by property of the Vendor Company, and in part by property of the Company Sirdar Developments Limited.

Illum 1 ta' LULJU 1993

(Direttur)

Firma tal-Persuna li tapplika ghal-Iskrizzjoni

NUTAR DOTT. MARIO L. FELICE

150

NOTA GHAL ISKRIZZJONI TA':

NUMRU PROGRESSIV

10935

RIMARKI (GHAL
UZU UFFICJALI
BISS)

KREDITU:

DEBITU:

KREDITU: described immovable property, and the debtor delegated the creditor to pay the said sum of one thousand Maltese Liri (Lm1000) directly to the contractors, workmen and suppliers in respect of such work, in terms of section two thousand one hundred of the Civil Code.

The said loan was granted under all the terms and conditions which are stipulated and/or referred to in the deed, but the following are overriding conditions, namely:-

(a) The interest rate shall not exceed the maximum rate allowed by law and shall be reckoned on the amount due for balance of loan by the debtor from time to time in accordance with recognised banking practice, the said rate of interest to be fixed by the creditor in its sole discretion from time to time; and

LANZA TA' PREFERENZA:

The said special hypothec and special privilege extend over one-thirteenth (1/13) share, in common with the owners of the other flats and penthouse in the block of flats, of the common areas and common parts of the said block of flats, namely the main entrance door, the entrance, the entrance hall, the stairs, the staircase and landings up to the roof, the stairwell, the lift-shaft and lift, the drains and drainage system and all the other common services of the block of flats; and over one-thirteenth (1/13) share of a divided area of the garage complex, which divided area measures approximately twenty-one square meters (21 s.m.) and is marked on the plan attached to the deed, bounded on the south by Saint Margaret Street, on the North by the remainder of the garage complex, and on east by property of the Malta

Illum

ta'

LULJU

1993

(Direttur)

Firma tal-Persuna li tapplika għall-iskrizzjoni

NUTAR DOTT. MARIO L FELICE

153

NOTA GHAL ISKRIZZJONI TA':

NUMRU PROGRESSIV 10935

RIMARKI (GHAL
UZU UFFICJALI
BISS)

KREDITUR:

DEBITUR:

KREDITU: (b) The loan shall be repayable on demand (a simple request in writing being sufficient for this purpose) in the event of any of the conditions for the loan not being adhered to, provided that the creditor shall grant the Borrower fifteen days from the date of filing of a judicial letter advising default and requesting regularisation of the deficiency.

KANZA TA' PREFERENZA: Government, with the consequential right of access to such divided portion through the garage complex for the purpose of maintaining and repairing the water tanks and the related pumps.

The property is subject to its share of annual and perpetual ground-rent mentioned in the deed, otherwise free and unencumbered, with all its rights and appurtenances.

The said property is subject to all servitudes over the other flats in the block of flats and over the garage complex underlying the block of flats as are usual and inherent to their position in the block of flats, including the right of passage of the necessary services, pipes, drains, and wiring through the block of flats, the garage complex, and the yard, with the right of reasonable access at reasonable times for the repair and maintenance thereof.

The said special hypothec and special privilege do not extend over the roof and airspace of the block of flats. However, it extends over the right to use of part of the roof in order to install and maintain thereon a five hundred litres water tank for the flat, and to affix and maintain thereon a communal radio and television aerial or antenna.

Illum ta' 1993
101 JU 1993

(Direttur)

Firma tal-Persuna li tapplika għall-iskrizzjoni

NUTAR DOTT. MARIO L FELICE

	NOTA TA' RIFERENZA
Riferenza Nru 2507	TITOLU CANCELLATION
VOL.I. 10935/1993	By virtue of a deed in my records of the sixteenth (16) day of February of the year two thousand (2000), the creditor HSBC Home Loans (Malta) Limited gave its consent for the total <u>cancellation</u> this note of hypothec and privilege.

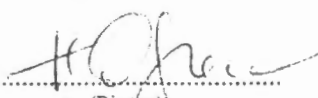
15-2-2000
6-1-2000

RECEIVED

- 2 MAY 2000

TODAY

Illum ta' 2000


.....
(Direttur)


.....
(Firma tal-Persuna li tapplika għall-iskrizzjoni)
Nutar Dott. Mario L Felice

3379

Nru. Progressiv
Nota għall-iskrizzjoni ta' : PRIVILEGE

Rimarki
(Għall-uzu
ufficjali biss)

Vide Cancellation

Vol. R.

2506/2000

KREDITUR:

Lohombus Corporation Limited

DEBITUR: George Sapiano, company director, son
of Alfred and Rose-Marie nee Flynn, born in
Attard and residing in Pieta'.

KREDITU: Twenty nine thousand Maltese liri
(Lm29,000) granted on loan by the creditor to
the debtor, out of which sum the creditor paid
on delegation of the debtor to contractors and
workmen for the purpose of completing the
construction of the hereunder mentioned
immovable property the sum of one thousand
Maltese liri (Lm1,000) said loan being repayable
on demand in the event of any of its conditions
not being adhered to with interest at rates not
exceeding the maximum rate allowed by law, said
interest to be fixed by the creditor in its sole
discretion from time to time and subject to all
the conditions mentioned in the relative deed in
the records of Notary Doctor Mario Felice of the
twenty eighth of June nineteen hundred and
ninety three (1993) as guaranteed by a note of
hypothec or privilege number: ten thousand nine
hundred and thirty five of the year nineteen
hundred and ninety three, whereas the creditor
as above delegated paid out the said sum of in
cost of construction as aforesaid and whereas
the hereunder tenement was completed in all
respects on the second of April nineteen hundred
and ninety four the creditor preserved in its
favour the special legal privilege as per deed
of conservation of privilege in my records of
the twenty first of April nineteen hundred and
ninety four (1994).

KAWZA TA' PREFERENZA: Special privilege over
the flat internally numbered ten, which lies on
the fourth floor level, forming part of a block
of flats without number but named 'Dingli Court'
in Guze Howard Street, Sliema, bounded said block
on the north by said street, east by Sir Adriano
Dingli Street, south in part by Saint Margaret
Street and in part by the company Sirdar
Developments Limited, having in common the
common parts of the said block.

Direttur:

Not. John Spiteri

26 APRIL 1994

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	NOTA TA' RIFERENZA
Riferenza Nru 2500	TITOLU CANCELLATION
VOL.I. 5579/1994	By virtue of a deed in my records of the sixteenth (16) day of February of the year two thousand (2000), the creditor HSBC Home Loans (Malta) Limited gave its consent for the <u>total cancellation</u> this note of hypothec and privilege.

W-2500 20/5/00

RECEIVED

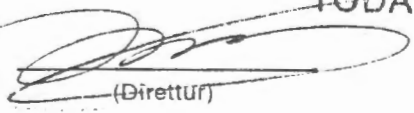
- 2 MAY 2000

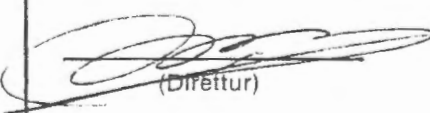
TODAY

Illum ta' 2000


.....
(Direttur)


.....
(Firma tal-Persuna li tapplika għall-iskrizzjoni)
Nutar Dott. Mario L Felice

Nota għal Iskrizzjoni ta' <u>Privilegg Speċjali</u>		Numru Progressiv <u>4014</u>
Rimarki (għall-użu uffiċjali biss)		
Kreditur: <u>Joe Ro Limited</u>		
Debitur: <u>Joseph Sapiano, pensionant, bin il-mejtin Dottor Luigi u Edwidge nee' Paila, imwieled Rabat, Malta, u residenti San Gwann, Karta tal-Identita' Numru 465635(M) u martu Dorothy Sapiano bint il-mejtin Eugenio Bonello u Josephine nee' Crocetta, imwieleda Furjana u residenti San Gwann, Karta tal-Identita' Numru 106134(M) u Avukat Dottor Georg Sapiano, bin Alfred u Rose Marie nee' Flynn, imwieled Attard u residenti Pietra', Karta tal-Id-</u>		
Kreditur: <u>Sebn' u sebghin elf, sitt mija u tnejn u diegħin lira Mal- tija (Lm77,692) rapprezentanti valur ta' xogħlijiet konstruwiti mis-Socjeta' kreditrici appaltatrici fuq il-proprjeta' immobil- jari hawn taht deskritta sal-sebn' u tnejn (24) ta' Marzu tas- sewn elf diegħ mija u tmienja u diegħin (1998), oltre l-interessi, u dan ni termini tal-Artikolu elfoġn u għaxxa (2010) tal-Kodici Civili.</u>		
Kawża ta' Preferenza: <u>Privilegg speċjali fuq:- il-blokk ta' apparta- menti bl-isem "Saint Mary", numru mija u tletin (130) Guze' Howard Street, Sliema.</u>		
RECEIVED		
Illum <u>1</u> ta' <u>APR 1998</u> 19 <u>TODAY</u>  (Direttur)	<u>Av. Philip Sciberras</u> <u>għal Joe Ro Limited.</u> (Firma tal-persuna li tapplika għall-Iskrizzjoni) Aqleb →	

Rimarki (għall-użu uffiċjali biss)	
Kreditur:	
Debitur: <u>entita' Numru 71568(M) li qed jidher għan-nom u in rap- prezentanza ta-Socjeta' Geo Erre Limited.</u>	
Kreditu:	
Kawża ta' Preferenza:	
RECEIVED - 1 APR 1998 ta' 19 TODAY  (Direttur)  (Firma tal-persuna li tapplika għall-Iskrizzjoni)	

NOTA TA' RIFERENZA

Riferenza Nru.

TITOLU

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Riduzzjoni.

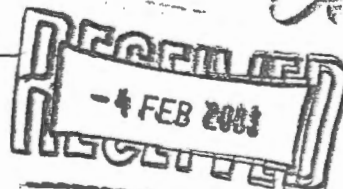
Vol. I. 4,014/1998.

B'Att ta' Riduzzjoni fl-attijiet tiegħi tal-wiehed u tletin ta' Jannar tas-sena elfejn u tlieta (31/01/2003), il-kreditur tan-Nota ta' Privilegg hawn imsemmija, u cioe' l-kumpanija "JoeRo Company Limited", ta' l-kunsens tiegħu għar-riduzzjoni tal-imsemmija nota, liema riduzzjoni saret biss però kwantu illi l-imsemmija Nota Privileggjarja tolqot, tiggrava u tikkolpaxxi s-seguenti proprietajiet hawn taht deskritti u elenkati, u cioe':-

(I) dik il-propjeta' illi kienet giet assenjata lil Joseph Raymond Sapiano, irtirat, gia' Manager Bankarju, bin il-mejtin Dottor Luigi u Edwidge nee Psaila, imwieled ir-Rabat, Malta u joqghod il-Kappara, limiti ta' San Gwann, Karta ta' Identita' tiegħu Numru 465635M, u martu Dorothy Anne Sapiano, bint il-mejtin Eugene Bonello u Josephine nee Crocetta, imwielda il-Floriana u toqghod ukoll il-Kappara, limiti ta' San Gwann, Karta ta' Identita' tagħha Numru 106134M, fuq l-att ta' divizzjoni fl-attijiet tan-Nutar Dottor Robert John Muscat tat-tnejn ta' Awissu tas-sena elf disa' mija disgha u disghin (02/08/1999), u cioe':-

(a) l-erba' (4) car spaces fl-elevated basement level, li jinsabu lokalizzati u indikati fuq il-pjanta annessa ma dan l-att għar-registrazzjoni u markata bl-ittra "A" (liema pjanta tinsab annessa wkoll mal-imsemmi att ta' divizzjoni u hemm markata bħala Dokument 'C') liema car spaces huma indikati bil-kulur ahmar u murija internament bin-numri disgha (9), ghaxra (10), hdx (11), u sittax (16) tal-kejl ta' cirka tlettax punt zero disgha metri kwadri (13.09 m²) kull car space, konfinanti mit-Tramontana u mil-Lvant ma beni ta' GeeErre Limited, u mill-Punent mal-pjan terran ta' "Mount Carmel Flats" propjeta' ta' terzi u għall-liema car spaces il-konjugi Sapiano għandhom dritt ta' access bir-rigel u bil-vettura minn bieb ta' garage li hu enumerat mija u tletin ittra "A" (130A), u li jizbokka gewwa Triq Guze Howard. Sliema, minn hemm l-istess permezz ta' rampa u minn hemm permezz ta' passagg li jagħti għal kull wahda mill-imsemmija erba' (4) car spaces;

(b) is-sehem shih taz-zewg (2) appartamenti fil-hames (5) sular (fourth floor), cioe' mid-disgha u erbghin (49) filata 'l-fuq mis-saqaf ta' l-elevated basement sa l-gholi



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tat-tnejn u sittin (62) filata 'il-fuq mill-imsemmi saqaf, internament immarkati bin-numri disgha (9), u ghaxxa (10), kif lokalizzati u indikati fuq il-pjanti li jinsabu annessa ma dan l-att ghar-registrazzjoni markati bl-ittri "B1" u "B2" (liema pjanti kienu wkoll annessi ma l-att ta' divizzjoni riferit), liema appartamenti huma indikati bil-kulur ahmar, tal-kejl superficiali ta' circa mitejn u sitta u erbghin punt sitta sitta metri kwadri (246.66 m²), liema kejl jinkorpora l-area taz-zewg appartamenti u ma jinkudix l-area tal-btiehi u x-shafis, konfinanti mit-Tramontana ma Triq Guze' Howard, Sliema, mil-Lvant ma "Saint Joseph Flats" numru mija disgha u ghoxrin (129), fl-istess Triq Guze' Howard proprieta' ta' terzi, u mill-Punent ma "Mount Carmel Flats" fl-istess Triq Guze' Howard proprieta' ta' terzi; dawn l-appartamenti jinsabu sottoposti għall-appartamenti li jinsabu fis-sitt (6) sular (*fifth floor*) ta' proprieta' ta' "GeeErre Limited";

(c) is-sehem shih tal-arja 'l-fuq mis-sebgha u disghin (97) filata mis-saqaf ta' l-elevated basement sal-mija u tmien (108) filata 'l-fuq mill-imsemmi saqaf, tal-kejl ta' circa mija u tlieta u ghoxrin punt tlieta tlieta metri kwadri (123.33 m²), konfinanti mit-Tramontana ma Triq Guze' Howard, Sliema, mil-Lvant ma "Saint Joseph Flats" numru mija disgha u ghoxrin (129) proprieta' ta' terzi, u sovrastanti l-arja ta' proprieta' ta' "GeeErre Limited" li tinsab bejn il-hamsa u tmienin (85) filata 'l-fuq mill-imsemmi saqaf u s-sebgha u disghin (97) filata sovrapposta l-penthouse sitwata fis-sitt (6) sular ta' proprieta' ta' Dottor Georg u Audrey konjugi Sapiانو in kwantu ghan-nofs indiviz u ta' Martin Sapiانو in kwantu ghan-nofs indiviz l-iehor. Għall-finijiet ta' kjarezza jigi dikjarat illi l-arja msemmija f'dan il-paragrafu di proprieta' tal-konjugi Sapiانو ipotetikament tinsab fid-disgha (9) sular (*tenth floor*) tal-fond;

(d) is-sehem ta' tnejn minn tlettax (2/13) indivizi tal-entrata, it-tromba tat-tarag, u t-tromba tal-lift u kull parti ohra tal-bini intiza għall-uzu komuni, cioe' dik il-parti mmarkata bil-kulur ahmar fil-pjanta annessa ma dan l-att ghar-registrazzjoni markata bhala Dokument "B" (liema pjanta kienet ukoll annessa mal-att ta' divizzjoni riferit), tal-kejl ta' circa sebgha punt hamsa tnejn metri kwadri (7.52 m²) mill-livell tat-triq sal-livell tat-tmax (12) il-filata mis-saqaf tal-elevated basement, u dik il-parti mmarkata bil-kulur ahmar fuq il-pjanta su-riferita, tal-kejl ta' circa tlettax punt zero hamsa metri kwadri (13.05 m²) mis-saqaf ta' l-elevated basement sa l-gholi ta' hamsa u tmienin (85) filata mis-saqaf imsemmi, imissu mit-Tramontana mat-triq imsemmija, u mill-irjeh l-onra in parti ma beni tal-istess konjugi Sapiانو u

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in parti ma beni ta' "GeeErre Limited" jew l-aventi kawza minnhom;

(II) dik il-proprieta' mibiugha lil Paul Smith, accountant, bin Wilfred u l-mejta Eileen nee Rowan, imwielel York, Inghilterra u martu Gail Smith, bint il-mejjet Michael Leonard Hayes u Maria Concetta nee Bonello, imwielda Nottingham, Inghilterra, jogghodu Oswaldwich Village, York, Inghilterra, permezz ta' kuntratt ta' bejgh datat sitta u ghoxrin ta' Frar tas-sena elfejn (26/02/2000) fl-attijiet tan-Nutar Dottor Mario Felice, u cioe':-

(a) is-sehem shih tal-appartament fit-tielet (3) sular (*second floor*), cioe' mill-hamsa u ghoxrin (25) filata 'l-fuq mis-saqaf tal-*basement level*, sa l-gholi tas-sitta u tletin (36) filata 'l-fuq mill-imsemmi saqaf, internament markat bin-numru hamsa (5), kif lokalizzat u indikat fuq il-pjanta li tinsab *annessa ma* dan l-att ghar-registrazzjoni markata bhala Dokument "B1" u "B2", liema appartament huwa ndikat bil-kulur isfar, ~~tal-kejl superficiali ta'~~ circa mija u hamsa u ghoxrin punt sitta sitta metri kwadri (125.66 m²), liema kejl ma jinkludix l-area tal-btiehi u x-*shafts*, konfinanti mit-Tramontana ma Triq Guze' Howard, Sliema, mil-Lvant ma "Saint Joseph Flats" numru mija u disgha u ghoxrin (129) fl-istess triq proprieta' ta' terzi, u mill-Punent in parti mal-proprietajiet tal-bini intizi ghall-usu komuni u in parti ma proprieta' ta' Martin Sapiano;

(b) is-sehem ta' wiehed minn tlettax (1/13) indivizi tal-entrata, t-tromba tat-tarag u t-tromba tal-*lift* u kull parti ohra tal-bini intiza ghall-uzu komuni, minnbarra s-saqaf, cioe' dik il-parti mmarkata bil-kulur ahmar fil-pjanta *annessa ma* dan l-att u markata bhala Dokument "B" tal-kejl ta' circa sebgha punt hamsa tnejn metri kwadri (7.52 m²) mil-livell tat-triq imsemmija sal-livell ta' tmax (12) il-filata mis-saqaf tal-*elevated basement*, u dik il-parti mmarkata bil-kulur ahmar fuq il-pjanti su riferiti, ~~tal-kejl ta'~~ circa tlettax punt zero hamsa metri kwadri (13.05 m²) mis-saqaf tal-*elevated basement* sal-gholi tal-hamsa u tmenin (85) filata mis-saqaf imsemmi, ~~imissu mit-Tramontana ma Triq Guze' Howard, Sliema, u mill-irjeh l-ohra in parti ma beni tal-konjugi Sapiano u in parti ma beni ta' "GeeErre Limited" jew l-aventi kawza minnhom;~~

(c) il-*car space fl-elevated basement level*, li jinsab lokalizzat u indikat fuq il-pjanta li tinsab *annessa ma* dan l-att u markata bhala Dokument "A", liema *car space* huwa indikat bil-kulur isfar u muri internament bin-numru tlieta (3), konfinanti mit-Tramontana mal-*common-drive way tal-garage*, u mil-Lvant u mill-Punent ma beni ta' "Kefi Limited", u ghal liema *car space* Paul u Gail, konjugi Smith,

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ghandhom dritt ta' access bir-rigel u bil-vettura minn bieb ta' garage enumerat mija u tletin ittra "A" (130A), u li jizbokka gewwa Triq Guze' Howard, Sliema, minn hemm l-isfel permezz ta' rampa, u minn hemm permezz ta' passagg, aktar 'il-fuq imsemmi *common drive way*, li jaghti għall-imsemmi *car space*;

(III) dik il-proprjeta' akkwistata minn Martin Sapiano, broadcaster, bin Joseph Raymond Sapiano u Dorothy nee Bonello, imwieled tas-Sliema u joqghod tas-Sliema, gia' residenti l-Kappara, limiti ta' San Gwann, Karta ta' Identita' Numru 158362M, u cioe':-

(a) il-propjeta' immobiliari akkwistata minn Martin Sapiano mill-poter tal-genituri tieghu Joseph Raymond Sapiano u Dorothy Sapiano, in forza tal-att tal-akkwist fl-attijiet tan-Nutar Dottor Robert John Muscat tat-tlieta u ghoxrin ta' Marzu tas-sena elf disa' mija tmienja u disghin (23/03/1998), u cioe':-

(i) is-sehem ta' nofs (1/2) indiviz tal-penthouse, sitwata fil-fond u li tinsab fis-sitt (6) sular (*fifth floor*), u cioe' fil-livell tat-tlieta u sebghin (73) filata mis-saqaf tal-elevated basement sal-gholi tal-hamsa u tmenin (85) filata 'il-fuq mill-livell tas-saqaf imsemmi, konfinanti mit-Tramontana ma Triq Guze' Howard, Sliema, mill-Punent mal-arja ta' "Mount Carmel Flats", u mil-Lvant mal-arja ta' "Saint Joseph Flats", u sovrastanti l-hames (5) sular tal-fond, kif lokalizzata u indikata bil-kulur isfar fuq il-pjanta annessa ma dan l-att markata bhala Dokument "B1" tal-kejl superficiali ta' circa mitejn disgha u tletin punt sitta sitta metri kwadri (239.66 m²), liema kejl ma jinkludix l-area tal-btiehi u x-shafts;

(ii) is-sehem ta' wiehed minn tlettax (1/13) indiviza tal-entrata, it-tromba tat-tarag, it-tromba tal-lift u kull parti ohra mill-bini intiza għall-uzu komuni, cioe' dik il-parti markata bil-kulur ahmar fil-pjanta annessa ma dan l-att markata bhala Dokument "B" tal-kejl ta' circa sebgha punt hamsa tnejn metri kwadri (7.52 m²), mill-livell tal-triq imsemmija sal-livell tat-tmax (12) il-filata mis-saqaf tal-elevated basement level, u dik il-parti mmarkata bil-kulur viola tal-kejl ta' circa tlettax punt zero hamsa metri kwadri (13.05 m²) mis-saqaf tal-elevated basement level sal-gholi tal-hamsa u tmenin (85) filata mis-saqaf imsemmi imissu mit-Tramontana ma Triq Guze' Howard, Sliema, u mill-irjeh l-ohra in parti ma beni tal-konjugi Sapiano u in parti ma beni ta' "GeeErre Limited" jew l-aventi kawza minnhom;

(b) dik il-proprjeta' akkwista minn Martin Sapiano permezz tal-att ta' divizzjoni u kontestwali donazzjoni datat it-tnejn ta' Awissu tas-sena

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elf disa' mija disgha u disghin (02/08/1999) fl-attijiet tan-Nutar Dottor Robert John Muscat, u cioe':-

(i) is-sehem shih tal-appartament fit-tielet sular (second floor), cioe' mill-hamsa u ghoxrin (25) filata mis-saqaf tal-elevated basement sal-gholi tas-sebgha u tletin (37) filata mill-istess saqaf, internament markat bin-numru sitta (6) tal-kejl ta' circa mija u wiehed u ghoxrin metri kwadri (121 m²) liema kejl ma jinkludix l-area tal-btiehi u x-shafts, kif lokalizzat u indikat fuq il-pjanti li jinsabu annessi ma dan l-att markata bl-ittri "B1" u "B2" fejn hu indikat bil-kulur ahdar, konfinanti mit-Tramontana ma Triq Guze' Howard, Sliema, mill-Punent ma "Mount Carmel Flats" qabel imsemija, u mil-Lvant in parti ma proprjeta' ta' Paul u Gail Smith, u in parti ma partijiet intizi ghall-uzu komuni tal-fond;

(ii) is-sehem shih tal-appartament fir-raba' (4) sular (third floor), u cioe' mis-sebgha u tletin (37) filata 'il-fuq mis-saqaf tal-elevated basement sal-gholi tat-tmienja u erbghin (48) filata 'il-fuq mill-imsemmi saqaf, internament markat bin-numru tmienja (8), kif lokalizzat u indikat fuq il-pjanta li tinsab annessa ma dan l-att markata bhala Dokumenti "B1" u B2", fejn huwa indikat bil-kulur ahdar, tal-kejl superficiali ta' circa mija u hamsa u ghoxrin punt sitta sitta metri kwadri (125.66 m²), liema kejl ma jinkludix l-area tal-btiehi u x-shafts, konfinanti mit-Tramontana ma Triq Guze Howard, Sliema, mil-Lvant in parti ma proprjeta' ta' "GeeErre Limited" u in parti mal-partijiet komuni, u mill-Punent ma "Mount Carmel Flats";

(iii) iz-zewg car spaces fl-elevated basement level li jinstabu lokalizzati u indikati fuq il-pjanta li tinsab annessa ma dan l-att u markata bhala Dokument "A", fejn dawn il-car spaces huma markati bil-kulur ahdar, u murija internament bin-numri tmienja (8) u erbatax (14) tal-kejl ta' circa tlettax punt zero disgha metri kwadri (13.09 m²) kull car space, konfinanti in kwantu ghall-car space numru tmienja (8) mill-Punent ma proprietar tal-konjugi Sapiano, mil-Lvant ma "Saint Joseph Flats", u mill-irjeh l-ohra mal-partijiet komuni tal-fond; u in kwantu ghall-car space numru erbatax (14) mill-Punent u mil-Lvant ma proprjeta' ta' "GeeErre Limited", u minn Nofsinhar ma partijiet komuni tal-fond, u ghal liema car spaces Martin Sapiano ghandu d-dritt ta' servitu' reali konsistenti fid-dritt ta' access, bir-rigel u bil-vettura, minn bieb ta' garage enumerat mija u tletin ittra "A" (130A), u li jisbokka gewwa Triq Guze' Howard, Sliema, minn hemm l-isfel permezz ta' rampa, u minn hemm permezz ta' passagg li jaghti ghal kull wahda mill-imsemija zewg (2) car spaces;

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(iv) is-sehem ta' tnejn minn tlettax (2/13) indiviz tal-entrata, it-tromba tat-tarag, it-tromba tal-lift u kull parti ohra mill-bini intiza ghall-usu komuni, cioe' dik il-parti mmarkata bil-kulur ahmar fil-pjanta annessa ma dan l-att u markata bhala Dokument "B", tal-kejl ta' circa sebgha punt hamsa tnejn metri kwadri (7.52 m²), mill-livell tat-triq imsemmija sal-livell ta' tmax (12) il-filata mis-saqaf tal-elevated basement level, u dik il-parti mmarkata bil-kulur vjola tal-kejl ta' circa tlettax punt zero hamsa metri kwadri (13.05 m²) mis-saqaf tal-elevated basement level sal-gholi ta' hamsa u tmenin (85) filata mis-saqaf imsemmi, jmissu mit-Tramontana ma Triq Guze' Howard, Sliema, u mill-irjeh l-ohra in parti ma beni tal-konjugi Sapiano u in parti ma beni ta' "GeeErre Limited" jew aventi kawza minnhom;

(c) dik il-proprieta' akkwistata minn Martin Sapiano permezz tal-kuntratt ta' akkwist minnghand "Kefi Limited", datat sittax ta' Awissu tas-sena elfejn (16/08/2000) fl-attijiet tan-Nutar Dottor Robert John Muscat, u cioe':-

(i) is-sehem shih tal-appartament fit-tieni (2) sular (first floor), cioe' mil-livell ta' tlettax (13) il-filata 'il-fuq mis-saqaf tal-elevated basement sal-gholi tal-hamsa u ghoxrin (25) filata 'il-fuq mis-saqaf imsemmi, internament immarkat bin-numru erbgha (4), tal-kejl ta' circa mija u wiehed u ghoxrin metru kwadru (121 m²), liema kejl ma jinkludix l-area tal-btiehi u x-shafts, kif lokalizzat u indikat bil-kulur orangjo fuq il-pjanta li tinsab annessa ma dan l-att u markata bhala Dokument "B2", konfinanti mit-Tramontana ma Triq Guze' Howard, Sliema, mill-Punent ma "Mount Carmel Flats" u mil-Lvant in parti ma proprjeta' ta' "GeeErre Limited" u in parti ma partijiet tal-fond ossia blokk li minnu jifforma parti intizi ghall-uzu komuni;

(ii) is-sehem shih tal-car space fl-elevated basement level li jinsab lokalizzat u indikat fuq il-pjanta annessa ma dan l-att u mmarkata bhala Dokument "A", liema car space huwa indikat bil-kulur orangjo u internament immarkat bin-numru erbgha (4), konfinanti mit-Tramontana mal-partijiet komuni tal-fond, mill-Punent ma proprieta' ta' Paul u Gail, konjugi Smith, u mil-Lvant ma beni ta' "GeeErre Limited", u ghal liema car space Martin Sapiano ghandu dritt ta' servitu' reali, konsistenti fid-dritt ta' access bir-rigel u bil-vettura, minn bieb ta' garage enumerat mija u tletin ittra "A" (130A), u li jizbokka għawwa Triq Guze' Howard, Sliema, minn hemm l-isfel permezz ta' rampa, u minn hemm permezz ta' passagg li jaghti ghall-imsemmi car space;

(iii) is-sehem ta' wiehed minn tlettax (1/13) indivizi tal-entrata, it-tromba tat-tarag, u partijiet ohra

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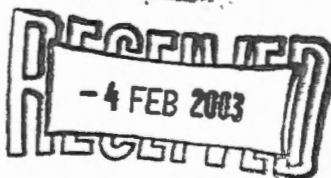
VII

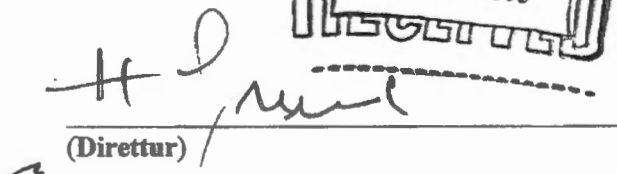
komuni tal-fond, cioe' dik il-parti mmarkata bil-kulur ahmar fil-pjanta annessa ma dan l-att u markata bhala Dokument "B", tal-kejl ta' circa sebgha punt hamsa tnejn metri kwadri (7.52 m²), mill-livell ta' tnax (12) il-filata mis-saqaf tal-elevated basement level, u dik il-parti mmarkata bil-kulur vjola tal-kejl ta' circa tlettax punt zero hamsa metri kwadri (13.05 m²) mis-saqaf tal-elevated basement level sal-gholi tal-hamsa u tmenin (85) filata mis-saqaf imsemmi imissu mit-Tramontana ma Triq Guze' Howard, Sliema, u mill-irjeh l-ohra in parti ma beni tal-konjugi Sapiانو u in parti ma beni ta' "GeeErre Limited" jew l-aventi kawza minnhom.

U salv biss il-premess, il-kumpanija "JoeRo Company Limited" zammet fermi, integri, u shah id-drittijiet taghha privileggjarji kollha kawtelati bil-fuq imsemmija nota ta' privilegg specjali fuq il-propjeta' l-ohra kollha milquta mill-istess nota ta' privilegg specjali.



(Firma tal-persuna li tapplika ghall-iskrizzjoni)
Nutar Dottor Mario Rosario Bonello.




(Direttur)

008427

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Nota ta` Riferenza

Riduzzjoni

Ref Nru;

Vol I. 4014/1998

B` att tieghi tal-hamsa ta` Novembru tas-sena elfejn u tlieta, stante pagament da parti ta` Joseph Sapiano u martu Dorothy Sapiano ta` sehemhom mill-valur tax-xogholijiet kostruiti mis-socjeta kreditrici appaltatrici, l-istess kredi-trici irreduciet il-kreditu kawtelat b` din in-nota ghas-somma ta` tmienja u tletin elf tmien mija sitta u erbghin lira Maltijha (Lm38,846) rappresentanti l-kreditu dovut mid-debitrici Gee Erre Limited, u flimkien ma` l-interessi.

Charles Vella Zarb LL.D.
Nutar Pubbliku

RECEIVED
18 NOV 2003
TODAY



Nota ghal iskrizzjoni ta:

Hypothec

Numru Progressiv

011897

Remarks (for
official use only):

Kreditur: Bank of Valletta p.l.c.

Debitur: **Doctor of Laws Georg Sapiano**, son of the late Alfred Sapiano and of Rose Marie sive Rose nee Flynn, born in Attard and residing at Madliena, limits of Swieqi, holder of identity card number 71568M and his wife **Audrey Sapiano**, daughter of John Baptist Ellul and Angela nee Fenech, born in Attard and residing at Madliena, limits of Swieqi, holder of identity card number 182272M,

Kreditu: The sum of six hundred thousand Euro (€600,000) given on overdraft and general banking facilities to the debtors and interests accrued thereon. Interest at rates not exceeding the maximum rate allowed by law shall be due by the debtors on their daily debit balances, in accordance with recognized Banking practice; the said rate of interest may be varied on the occurrence of any one of the conditions mentioned in the deed. The Bank shall be entitled at any time to call upon the debtors to settle their indebtedness with the Bank, and to pay the balance due in their current account; a simple request in writing to be deemed good and sufficient notice for the debtors to implement their engagements forthwith. The debtors undertook in favour of the Bank not to grant any further hypothecary charges over the above described property, even if these are to rank after the charges registered in favour of the Bank; and not to lease or allow third parties to use the above-mentioned property under any title whatsoever, without the Bank's prior written consent. And this together with other conditions mentioned in a deed in my records of the sixth of August of the year two thousand and ten (6.8.2010)

Kawza ta' Preferenza: General hypothec over all the property of the debtors in general, present and future and a Special Hypothec over:-

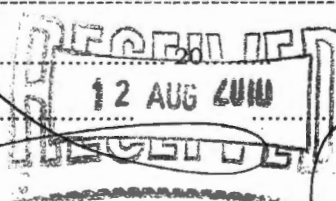
the apartment internally numbered nine (9) forming part of the block in turn forming part of the building named "Forth Mansions" in Ta' Xbiex Seafront, Ta' Xbiex, together with its *pro indiviso* share of the block's common parts, which block is known as Block "C", and has its own independent entrance, and is without official number and unnamed and is bounded on the south by Ta' Xbiex Sea Front, on the north by a projected road that shall be a prolongation of Triq l-Imradd and on the east by property of Seaview Marina Real Estate Limited, or more correct boundaries.

The said common parts of the block include the covered passage, the outside lobby, the main entrance, hall, garbage room, concierge/janitor's room with kitchenette and shower, stairs, landings, two lift shafts, two lifts and stairwell of the block as well as the passages which interconnect the block with the garage complex; the internal shafts of the block, save as otherwise stated in the two deeds in the Records of Notary Doctor Pierre Attard of the twenty first day of March of the year two thousand and five (21. 03. 2005) and of the twelfth day of July of the year two thousand and six (12. 07. 2006) respectively, the external walls of the block and of the commercial premises, provided these shall be considered to constitute part of the block common parts only for the purposes of the Condominium Act, Chapter three hundred and ninety eight (398) of (cont)

Illum

Direttur

Dr Roland John Wadge
(Notary Public, Malta)



Nota għal iskrizzjoni ta:

Numru Progressiv

011037

Remarks (for official use only):

Kreditur:

Debitur:

Kreditu:

Kawza ta' Preferenza: (cont) the Laws of Malta, the sharing of costs and the protection of the décor of the building but shall otherwise be owned *pro diviso* as an integral part of the Apartment or of the Commercial Premises of which they form part; the drainage systems, communal plumbing and electrical systems and all other common parts mentioned in paragraph (c) of article five (5) of the Condominium Act; but does not include the common dividing walls with neighbouring tenements and any part of the property underlying or overlying the block even if such part underlies or overlies the block common parts.

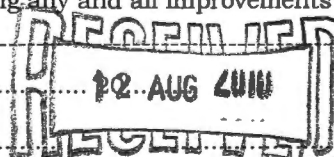
The block common parts are subject to the perpetual servitudes mentioned hereunder in favour of each and every apartment which shall at any time form part of the block (including any future developments which may be added to the block) (the Dominant Tenements) consisting of:

- i. the perpetual right of pedestrian passage and access at all times from Ta' Xbiex Sea Front to all the apartments which may at any time form part of the Block and to the Garage Complex and vice versa;
- ii. the perpetual right to use the block common parts for the purpose they are intended, which right of use is transferable to third parties together with each one of the apartments;
- iii. the right to open doors from the apartments onto the block common parts as is necessitated from their physical position in the block;
- iv. the right to pass any and all common or separate services, pipes, drains and wiring, provided that all services are installed as required by standard building practice and in the locations made available for this purpose;
- v. the right to interconnect the garage complex with the block common parts in the places shown on a plan annexed to a deed of Notary Pierre Attard dated the twelfth day of July of the year two thousand and six (12.7.2006);

which servitude and rights of use mentioned in this Clause shall be enjoyed in common between all the Condomini from time to time in the block as subject to the provisions set out in the abovementioned deed of Notary Pierre Attard and other terms, restrictions and conditions mentioned in the said deed. The said property is otherwise free and unencumbered and free from any ground-rents, burdens, other servitudes, hypothecs, privileges, any other rights of whatever type or nature, whether real or personal, in favour of third parties, law-suits and any litigation whatsoever, and as subject to all those terms and conditions mentioned in the two abovementioned deed of Notary Pierre Attard. The aforementioned apartment belongs jointly to the Customers and is being herein specially hypothecated by the Customers in favour of the Bank, which accepts, with all its rights and appurtenances, including any and all improvements effected thereto.

Illum

Direttur



Dr Roland John Wadge
(Notary Public, Malta)

NOTA TA' REFERENZA

Referenza Nru.

TITOLU

Cancellation

7670

H.11,897/2010

H.16224/2012

H.16225/2012

By a deed in my records of the twelfth (12th.) day of November of the year two thousand and eighteen (2018) the Creditor "**Bank of Valletta p.l.c.**" gave its consent to the total cancellation of the following Notes of Hypothec and/or Privilege inscribed in its favour in the Public Registry, Malta, at Volume I numbers eleven thousand eight hundred and ninety seven of the year two thousand and ten (I.11897/2010), sixteen thousand two hundred and twenty four of the year two thousand and twelve (I.16224/2012), and sixteen thousand two hundred and twenty five (I.16225/2012) against **Doctor of Laws Georg Sapiano**, son of the late Alfred Sapiano and of Rose nee' Flynn, born in Attard on the 20th January 1968 and residing at Ta' Xbiex, holder of Identity Card number 71568(M) and his wife **Audrey Sapiano**, a housewife, daughter of John Baptist Ellul and Angela nee' Fenech, born in Attard on the 21st April 1972 and residing at Ta' Xbiex, holder of Identity Card number 74858(M)

Illum

ta'

2018

27 NOV 2018

Direttur

Firma tal-Persuna li tapplika
ghall-Iskrizzjoni.

Not. Dr. Philip Lanfranco LL.D.

RC / 7670 / 2018

011898

Note for the inscription of: **Ipoteka** Progressive Number

Remarks (for official use only):

Creditor: HSBC Bank Malta p.l.c.

Debtor: **DKS Limited**, (C-40770) bhala Debitur Principali

Georg Sapiano avukat, bin il-mejjet Alfred u Rose nee' Flynn, imwielded Attard u residenti l-Madliena, limiti tas-Swieqi karta tal-identita numru 71568(M) u martu **Audrey Sapiano**, bint John Baptist u Angela nee' Fenech, imwiilda Attard u residenti Madliena limiti tas-Swieqi karta tal-identita numru 182272(M) bhala garanti, in solidum bejniethom, mad-debitur principali

Credit: Is-somma ta' mija u ghoxrin elf euro (€120,000) moghtija b'titlu ta' self, liema somma mishufa debitur principali iddelega lill-kreditur li ghandha tintuza ghal iskopijiet ta negoju tal-kumpannija debitrice. Is-self huwa ghal zmien stipulat. Jekk pero' jkun hemm ksur tal-obbligi, il-kreditur jista jiddikjara billi javza lid-debituri bil-miktub, li s-self huwa dovut u pagabbli minnufih, flimkien mal-imghaxijiet u l-ispejjez relattivi; il-kreditur ikun jista jinforza kull dritt li jappartjeni lilu ghal hlas lura tas-self u kull garanzija a favur tal-Bank tigi fis-sehh. Id-debituri jitolfu il-beneficcu taz-zmien moghti lilhom ghal-hlas tas-self u l-imghax relattiv u dan isehh minghajr ebda proceduri ohra. Ir-rata ta' l-interessi m'ghandix teccedi l-oghla rata li tippermetti l-ligi, l-interessi ghandhom ikunu dovuti fuq il-bilanc ta' kuljum tad-debitu skond il-prattika bankarja, liema rata ta' interessi hi stabbilita fis-sanction letter. Il-kundizzjonijiet l-ohra li jirrigwardaw dan is-self jinsabu fl-att tieghi n-Nutar sottofirmat tas-sitta ta Awwissu tas-sena elfejn u ghaxra (6.8.2010)

Cause of preference: **Ipoteka Generali** fuq il-beni kollha tad-debitur Principali, in generali, prezenti u futuri, kif ukoll **Ipoteka Specjali**, moghti lill-kreditur bil-ligi, fuq il-fond bin-numru erbgha u erbghin (44), Madliena Road, Madliena soggett ghal-piz piju annwu u perpetwu ta' lira u hamsa u ghoxrin centzmu (Lm1.25) altrimenti liberu u frank minn cnus u pizijiet ohra bid-drittijiet u l-pertinenzi kollha tieghu nkluz il-gnien li jinsab imdawwar b'hajt gholi u jikkonfina mill-grigal ma beni tal-Knisja jew l-aventi kawza taghha, minn nofsinhar ma sqaq bla isem u mill-punent ma Madliena Road, u **Ipoteka Generali** fuq il-beni kollha tal-garanti

Illum

Direttur

Dr Roland Wadge
(Nutar Pubbliku, Malta)

8587

Twenty-eighth (28) day of June of the year one thousand nine hundred ninety-three (1993).

The company "C and F Enterprises Limited" sold, transferred and conveyed in consideration of the price of thirty-four thousand Maltese (Lm34000) in favour of Georg Sapiano, a company director, son of Alfred and of ~~Rose Marie nee Flynn~~, born at Attard and residing at Pieta', the flat internally numbered ten (10), which lies at fourth (4th) ~~floor level on the~~ right hand side of the block when viewed from Howard Street, which flat forms part of a block consisting of a basement, twelve (12) flats and an overlying penthouse.

The said block is externally unnumbered, is named Dingli Court, and is situated in Guze' Howard Street at Sliema.

The said block is bounded on the North by Guze Howard Street, on the east by Sir Adriano Dingli Street, and on the South in part by Saint Margaret Street, in part by property of the Vendor Company, and in part by property of the Company Sirdar Developments Limited.

This sale also includes one-thirteenth (1/13) share, in common with the owners of the other flats and penthouse in the block of flats, of the common areas and common parts of the said block of flats, namely the main entrance door, the entrance, the entrance hall, the stairs, the staircase and landings up to the roof, the stairwell, the lift-shaft and lift, the drains and drainage system and all the other common services of the block of flats.

This sale also includes one-thirteenth (1/13) share of a divided area of the garage complex, which divided area measures approximately twenty-one square meters (21 s.m.) and is marked on the plan attached to the deed, bounded on the south by Saint Margaret Street, on the North by the remainder of the garage complex, and on east by property of the Malta Government, with the consequential right of access to such divided portion through the garage complex for the purpose of maintaining and repairing the water tanks and the related pumps.

The property is subject to its share of annual and perpetual ground-rent mentioned in the deed, and it was transferred as otherwise free and unencumbered, with all its rights and appurtenances.

NUTAR DOTT. MARIO L FELICE

II

The said property was sold as ~~subject to~~ all servitudes over the other flats in the block of flats and over the garage complex underlying the block of flats as are usual and inherent to their position in the block of flats, including the right of passage of the necessary services, pipes, drains, and wiring through the block of flats, the garage complex, and the yard, with the right of reasonable access at reasonable times for the repair and maintenance thereof.

This sale does not include the roof and airspace of the block of flats, the ~~ownership of which~~ was retained by the Vendor Company. However, the purchaser has the right to use for himself of that part of the roof as indicated by the Vendor Company in order to install and maintain thereon a five hundred litres water tank for the flat, and to affix and maintain thereon a communal radio and television aerial or antenna in the place to be indicated by the Vendor Company from time to time; and the Purchaser shall further more have the right of reasonable access to the said roof but solely for the purpose of maintaining and/or replacing the said tank and to adjust and/or repair or replace the common aerial.

This sale is also subject to the other terms and conditions stipulated in the deed.

8588

Tmienja u ghoxrin (28) ta' Gunju tas-sena elf disa' miġa tlieta u disghin (1993).

Lucienne Grima, mart David, bint Carmel Galdes u Mary nee' Fino, imwiġda tas-Sliema u toqghod in-Naxxar, biegħet u ttrasferiet favur Carmel maghruf bħala Charles Zammit, port-worker, iben Vincent u Frances nee' Abela, imwiġled il-Pieta u joqghod il-Hamrun, il-garage mingħajr numru uffiċjali ta' internament maghruf bin-numru wieħed u hamsin (51), li jifforma parti mill-korp ta' garages maghruf bl-isem ta' Saint Mary Courts, u liema garage in vendita jinsab fi triq privata mingħajr isem, u accessibbli minn entratura privata mingħajr numru u mingħajr isem, li tishokka fuq Hookham Frere Street, Gwardamangia; u l-imsemmi garage in vendita jikkonfina mill-majda ta' l-imsemmi triq privata, mill-ibic mal-garage numru tnejn u hamsin (52) proprjeta' ta' Roger Micallef u mill-grigal mal-garage numru hamsin (50) proprjeta' tal-kompratur Carmel Zammit; filwaqt li l-korp kollu jikkonfina

NUTAR DOTT. MARIO L FELICE

III

mit-tramuntana ma' gid ta' l-eredi tal-Konti Messina, mill-grigal
in parti ma' gid ta' John Schembri u in parti ma' gid ta' Victor
Portelli, u mill-lbici in parti ma' beni ta' Carmelo Giullano u in
parti ma' gid ta' l-eredi tal-Kurunell Ettle Borg; kif soggett
dan il-garage in vendita ghac-cens annwu u perpetwu indikat
fi-att, mill-bqija huwa liberu u frank, u qiegħed jigi trasferit
bid-drittijiet u l-pertinenzi kollha tieghu, izda eskluza l-arja
ta' l-istess garage.

Dan il-bejgh sar bil-prezz ta' elfejn u hames mitt lira
Maltija (Lm2500) u b'pattijiet u taht kondizzjonijiet ohra
stipulati fi-att.

M. J. Quintini

RICEVUTA LLUM
1 TA' LULJU 1993



10473

Is-seba ta' Lulju elf disa
mija hamsa u disghin.

(07/07/1995).

Lat 150

~~Beigh bil-prezz ta' erbat elef lira Maltija (Lm4000)~~
minn ~~Henry Louis Gatt~~, pensjonant, imwieled il-Belt
Valletta u residenti San Giljan, ~~Gerald E. Gatt~~,
pensjonant, imwieled il-Belt Valletta u residenti
Sliema, ~~James A. Gatt~~, pensjonant, imwieled il-Belt
Valletta u residenti Sliema, ~~Victoria sive Vicky Galea~~,
mart ~~Louis L. Galea~~, imwielda il-Belt Valletta u
residenti San Giljan, ~~Maria Concetta sive Connie Galea~~,
armla ta' ~~Dottor Albert Galea~~, imwielda il-Belt
Valletta u residenti Sliema, ~~Mary Tonna~~, mart ~~Victor~~
~~A. Tonna~~, imwielda il-Belt Valletta u residenti Sliema,
~~Rose Mary Cook~~, armla ta' ~~Herbert Cook~~, imwielda il-Belt
Valletta u residenti Sliema, ~~Margaret Manduca~~, armla
tal-Konti ~~Francis Manduca~~, imwielda il-Belt Valletta u
residenti Haz-Zebbug, ~~Percy Frederick Gatt~~, pensjonant,
imwieled il-Belt Valletta u residenti f' New Zealand,
~~Carmelina Brook~~, armla ta' ~~Ralph Brook~~, imwielda il-
Belt Valletta u residenti f' Portsmouth, 1-Ingilterra,
ilkoll ulied il-mejtin ~~Brigadier Alfred Joseph Gatt~~ u
~~Gertrude nee Turnbull~~, flimkien u "in solidum" ma'
~~Mabel Gatt~~, armla ta' ~~Joseph F. Gatt~~, bint il-mejtin
~~Salvatore Tabone~~ u ~~Concetta nee Mula~~, imwielda il-
Furjana u residenti Sliema u uliedha ~~Anthony Gatt~~,
Manager, bin il-mejjet ~~Joseph F. Gatt~~ u ~~Mabel Gatt nee~~
~~Tabone~~, imwieled Sliema u residenti il-Gharghur u ~~Rita~~
~~Mizzi~~, mart ~~Arthur Mizzi~~, bint il-mejjet ~~Joseph F. Gatt~~
u ~~Mabel Gatt nee Tabone~~, imwielda u toqghod Sliema in
kwantu ghal tlieta u ghoxrin minn erba u ghoxrin parti
(23/24) indiviza bejniethom, flimkien u "in solidum"
ma' ~~James Gatt~~, Manager, bin il-mejtin ~~Frederick Gatt~~ u
~~Florence nee Fairclough~~, imwieled u residenti
Manchester, 1-Ingilterra u ~~Dionne Falt~~, mart ~~Immar~~
~~Falt~~, bint il-mejtin ~~Frederick Gatt~~ u ~~Florence nee~~
~~Fairclough~~, imwielda Manchester, 1-Ingilterra u
residenti f' Durban, 1-Afrika t' Isfel in kwantu ghal
wiehed minn erba u ghoxrin parti (1/24) indiviza
bejniethom a favur ~~Georg Sapiano~~, duttur tal-ligi, bin
~~Alfred u Mary nee Flynn~~, imwieled ~~H'Attard~~ u residenti
~~Pieta' u Christopher Cilia~~, duttur tal-ligi, bin il-
mejjet ~~Angelo u Mary Grace nee Bugeja~~, imwieled u
residenti r-Rabat, Malta, ta' l-appartament internament
markat bin-numru sitta (6), liema appartament huwa
ikkunsidrat f'parti diviza minn flat gia akbar, fi
blokk ta' tmien (8) flats, pero' issa seba (7) flats u
zewg (2) flats zghar, fin-numru hamsa u tletin (35)
~~Frederick street, il-Belt Valletta~~, konsistenti f'zewg
ikkunsidrat u tollet kif ukoll ta' wiehed minn sittax
(1/16) il-parti indiviza tal-entrata, tat-tarag, tat-
tromba u tal-bejt, liberu u frank minn kull piz, bil-
pertinenzi tieghu kollha u bil-vacant possession.

RICEVUTA LLUM

27TA' LULJU 1995

82

Richard Vella
Not. Dr. Richard Vella Laurenti
S.A., L.L.D.

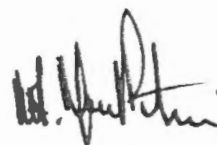
12091

Notice i.t.o. Sec 51 filed
on 12.9.97

f/Comm of Inland Revenue

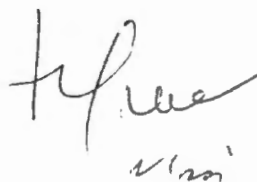
Tlieta (3) ta' Settembru tas-sena elf disa' mija sebgha u disghin (1997)
Il-Gvern ta' Malta biegh u ttrasferixxa favur l-Avukat Dottor George Sapiano
ben Alfred u Rose-Marie nee Flynn, imwieled H'Attard u jogghod il-Pieta', il-piena
propjeta' tad-dar numru mija sebgha u hamsin (157), Marina Street, il-Pieta' kif
sovrapposta in parti fuq garage separat (liema garage huwa eskluż minn dan il-bejgh),
u l-propjeta' in vendita hija libera u franka, u giet trasferita bid-drittijiet u l-pertinenzi
kollha taghha.

Dan il-bejgh sar bil-prezz ta' erbat elef lira Maltin (Lm4000), u bil-pattijiet u
taht il-kondizzjonijiet stipulati fl-att.



Nutar Dott. Mario L Felice

RECEIVED
12 SEP 97
TODAY



3390

The ninth (9th) day of March,
of the year one thousand
nine hundred and ninety nine
(1999).

Georg Sapiano, Advocate, a son of the late Alfred and of Rose Mary nee Flynn, born in Attard and residing at Sliema, holder of identity card number 71568 (M); and Christopher Cilia, an Advocate, a son of the late Angelo and Mary Grace nee Bugeja, born in and residing at Rabat, Malta, sold and transferred to Ivan Gixti, an Accountant, holder of identity card number 93967 (M), a son of Nazzareno, sive Rene Gixti and of Adelaide nee Borg, born in Sliema and residing at Zabbar; and his wife Carmen Gixti, holder of identity card number 314767 (M), daughter of John Debattista and of Concetta nee Ellul, born in Pieta and residing at Zabbar, jointly and severally between themselves the flat internally marked with the number six (6), forming part of a block of flats numbered thirty five (35), in Frederick Street, Valletta, as well as one sixteenth (1/16) undivided share of the common parts of the said block, including the entrance, entrance hall, stairs and stairwell, and the roof, free and unencumbered, free from any real, and/or personal rights, and/or servitudes in favour of third parties, with all its rights and appurtenances, and with free, vacant and immediate possession.

This sale was made and accepted in consideration of the price of fourteen thousand five hundred Malta liri (Lm14,500).

RECEIVED

15 MAR 1999

TODAY

MARCO BURLO
(Notary Public, Malta)

Notice filed
on 15/3/99
f/Comm of Inland Revenue

10040

Sittax (16) ta' Lulju tas-sena elf disa' mija disgha u disghin (1999).

DIKJARAZZJONI dwar devoluzzjoni causa mortis maghmula minn Rose Sapiano, armla minn Alfred, bint il-mejtin Henry Flynn u Mary nee Urry, imwielda Senglea u toqghod tas-Sliema, u binha l-Avukat Dottor Georg Sapiano, iben il-mejjet Alfred u Rose-Marie nee Flynn, imwielda H Attard u joqghod il-Pieta.

Li permezz taghha huma ddikjaraw:

Illi nhar id-dsatax (19) ta' Jannar tas-sena elf disa' mija disgha u disghin (1999) miet il-Pieta' is-Sur Alfred Sapiano, li kien bank general manager, iben il-mejtin Dottor Luigi Sapiano u Edwige nee Psaila, li twielda ir-Rabat Malta u li dan l-ahhar kien joqghod San Giljan.

Illi s-successjoni ta' l-imsemmi Alfred Sapiano hija regolata skond l-ahhar testament li huwa ghamel fl-atti tieghi tal-hmistax (15) ta' Settembru tas-sena elf disa' mija disgha u tmenin (1989).

Illi l-imsemmi Alfred Sapiano halla warajh lill-armla tieghu l-fuq imsemmi Rose Sapiano, u lill-ibnu uniku l-fuq imsemmi Dottor Georg Sapiano.

Illi skond l-imsemmi testament, il-mejjet Alfred Sapiano halla gidu bil-mod kif ser jinghad: (a) in piena proprjeta' kwantu ghal kwart (1/4) indiviz favur martu superstiti l-fuq imsemmi Rose Sapiano, (b) in usufrutt kwantu ghal tliet-kwarti (3/4) indivizi favur l-istess martu superstiti l-fuq imsemmi Rose Sapiano, u (c) in nuda proprjeta' kwantu ghal tliet-kwarti (3/4) indivizi favur ibnu l-fuq imsemmi Dottor Georg Sapiano.

Dan premiss, il-fuq imsemmi Rose Sapiano u Dottor Georg Sapiano iddikjaraw illi l-imsemmi Alfred Sapiano kien jippossjedi l-proprjeta' immobbli kif ser jinghad:

i. In-nofs (1/2) indiviz ta' l-appartament internament bin-numru tnax (12), li jinsab fit-third floor level, u li jiffirma parti minn blokk ta' appartamenti jismu "Preca Court", bin-numru stradali mija u tnejn (107), Old College Street, San Giljan (fl-imghoddi gieli gie riferut li jinsab tas-Sliema), kif soggett ghar-rata tieghu ta' cens annwu u perpetwu ta' ghaxar iiri Maltin (Lm10), liema cens jigi rivedut kull mitt sena b'effett minn nhar it-tnejn u ghoxrin (22) ta' Ottubru tas-sena elf disa' mija wiehed u disghin (1991), u dik ir-revizjoni ssir skond iz-zieda fil-cost of living index ta' dakinhar paragonat ma' dak ta' nhar it-tnejn u ghoxrin (22) ta' Ottubru tas-sena elf disa' mija wiehed u disghin (1991), u kif soggett ghas-servitujiet li jirrizultaw mill-pozizzjoni ta' l-imsemmi appartament; altrimenti liberu u frank, bid-drittijiet u l-pertinenzi kollha tieghu skond ma jirrizulta mill-att ta' l-akkwist pubblikat minni nhar is-sebgha (7) ta' Settembru tas-sena elf disa' mija hamsa u disghin (1995) - tal-valur dan in-nofs indiviz ta' erbatax-il elf lira Maltin (Lm14,000).

ii. In-nofs (1/2) indiviz in piena proprjeta' tad-dar numru wiehed u disghin (91), Triq Idmejda, Hal Balzan, kif soggett dan in-nofs indiviz ghas-cens annwu u perpetwu ta' lira Maltija (Lm1), bid-drittijiet u l-pertinenzi kollha taghha, liema dar hija mikrija lil terzi persuni (Lewis Gauci) ghal skopijiet ta' residenza, tal-valur dan in-nofs indiviz ta' tmenin mitt lira Maltin (Lm800).

RECEIVED

Not. Dr Mario L Felice
86, Triq id-Duluri,
Hamrun.

23 JUL 1999

TODAY

Telephone/Telefax 240398

Notice i.t.o. Sec 51 filed
on 13 4 99

f/Comm of Inland Revenue

11679

Il-wiehed u tletin
(31) ta' Lulju tas-sena
elfejn.

~~Bejgh~~ sar mis-socjeta kummercjali ~~Horant~~
~~Properties Limited, via Grazio Patignott Limited,~~ a
favour ta' ~~Emanuel Spiteri~~, ~~tecnichian~~, bin Alfred u
Maria nee Mifsud, imwielded Zejtun u jogghod Fgura
flimkien ma' ~~martu Maria Theresa Spiteri~~, bint
Joseph Portelli u Mary nee Bonello, imwielda Pieta
togghod Fgura f' ishma indags indivizament bejniethom
il-garage numru tlettax (13) fi Triq Romano
Carapicchia ~~għal kif sogħpost għal beni ta' l-~~
istess venditur li f' kaz ta' bzonn ikollhom dritt
li jghaddu katusi għad-drenagg minn go fih bl-ingas
inkonvenjent possibbli għall-kompraturi u dana biss
sakemm jinbiegh lil terzi u cioe jekk il-kompratur
ma jesercitax dan id-dritt għal ma' jbiegh il-fond
ta' fuqu dan id-dritt jispicca definittivament,
liberu u frank, kif attwalment jinsab u kif digja
għand il-kompraturi versu l-prezz bonarjament konve-
nut bejn il-partijiet ta' elf u hames mitt lira
Maltija liema garage ma jkunx jista' jintuza għal
xogħol jew attivita ta' storbju, irwejjah, hmieg jew
perikolu li jkun ta' inkonvenjent għall-okkupanti
tal-fond ta' fuqu partikolarment spray painting,
mastrudaxxi, panel beating jew għaz-zamma ta' l-
annimali. Il-faccata tieghu għandha tinzamm uniformi
mal-fond ta' fuqu u dawn bhala kondizzjonijiet
għall-bejgh.

LM110

11680

Il-wiehed u ghoxrin ta' Lulju
tas-sena elfejn.

Bejgh sar minn ~~Rose Mary Sapiano~~ armla
minn ~~Alfred~~, bint il-mejtin Henry Flynn u Mary nee
Urry, imwielda Senglea togghod Sliema flimkien u in
solidum ma' binha l-Avukat ~~Dottor Georg Sapiano~~, bin
il-mejjet Alfred, imwielded Attard jogghod Sliema a
favour ta' ~~Rachel Sapiano~~ xebba, bint Andrew u
Melita nee Mallia, imwielda u togghod Paola ta' l-
appartament internament numerat tmax, formanti parti
mill-block appartamenti numru mija u tnejn bl-isem
"Preca Court" fi Triq il-Kulleġġ l-Antik Sliema,
bid-drittijiet u pertinenzi kollha tieghu inkluz id-
dritt ta' l-usu tal-partijiet komuni tal-block,
partikolarment l-entrata komuni, tarag, tromba tat-
tarag u t-tromba tal-lift, il-lift u l-bejt tal-
block, soggett għal cens annwu perpetwu rivedibbli
fl-att imsemmi u għall-kondizzjonijiet tat-titolu
tal-vendituri altrimenti liberu u frank, bil-prezz
ta' tnejn u tletin elf lira Maltija u bil-pattijiet
fl-att imsemmija.

NOTICE IN SEE FILED
23-8-00
Ministry of Internal Revenue

RECEIVED

24 AUG 2000

Nutar Charles Vella Zarb LL.D. →

LM22

[Signature]

8

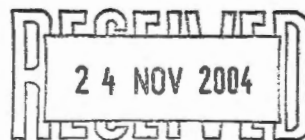
19748

The fifteenth (15th) day of November of the year two thousand and four (2004).

Rose Sapiano, widow of Alfred Sapiano, daughter of the late Henry Flynn and the late Mary nee' Urry, born in Senglea and residing at Sliema, holder of Identity Card number 344738(M) and her son Doctor of Laws Georg Sapiano, Advocate, son also of the said late Alfred Sapiano, born in Attard and residing at Qala Gozo, holder of Identity Card number 71568(M) jointly and severally between them sold to Joseph Gauci, overseas Manager, son of the late Luigi Gauci and the late Josephine nee' Briffa, born in Balzan, holder of Identity Card number 907446(M) and his wife Sonya Leahy Gauci, holder of Identity Card number 20771A daughter of Raymond Leahy and Silvia nee' Mifsud, born in Manchester England and both residing at San Pawl tat-Targa, Naxxar one half (1/2) undivided share in full ownership of premises number ninety one (91) in Idmejda Street, at Balzan as subject the one half (1/2) undivided share to one Malta lira (Lm1) annual perpetual groundrent, with all its rights and appurtenances, and as subject to the existing lease in favour of Nathalie Holmes for the price of eight thousand three hundred Malta liri (Lm8,300) and subject to the terms and conditions specified in the Deed amongst them that the said premises was sold "tale quale", that is to say in its present state and condition and without any warranty as to latent defects.

Purchasers further declared that after having been duly warned by me of the importance of the truthfulness of this declaration that they have lived continuously in Malta for over five (5) years and as Citizens of the European Union they do not need any Permit for the Acquisition of the property above described.

Notary Public



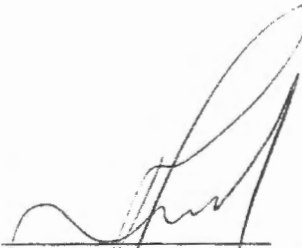
Alfred
al or.

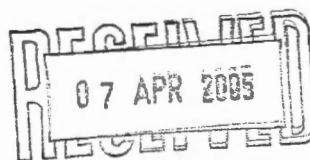
NOT. FRANCIS MICALLEF B.A., LL.D.
NOTARY PUBLIC

5670

It-tmienja u ghoxrin ta' Marzu
tas-sena elfejn u hamsa (28.03.2005)

Testment maghmul minn Dottor Georg Sapiano, avukat, bin Alfred u
Rose nee Flynn, mwieled Attard u residenti l-Qala, Ghawdex, bin-
numru tal-karta ta' l-identita' 71568(M).


Dr Roland John Wadge
(Nutar Pubbliku, Malta)





L-9.529

621

Fil-Prim'Awla tal-Qorti Civili

LM340.00
No 1104/2004.

Dr. Georg Sapiano, avukat,
(ID No.71568M), bin Alfred
u Rose nee' Flynn, imwieled Attard.

Vs
DR PATRICK VALENTINO LLD
u P.L. VERONICA ROSSIGNAUD
Kuraturi Deputati biex jirraprezentaw
lid-Dominus Directum mhux maghruf
tal-fond numru 10, Dingli Court,
Howard Street, Sliema.

Cedola ta' Fidi' ta' Cens ta' Dr. George Sapiano;

Illi permezz ta' kuntratt ta' bejgh datat 28 ta' Gunju, 1993 fl-Atti tan-Nutar Dottor Mario Felice, l-esponenti akkwista l-fond numru 10, f'Dingli Court, Howard Street, Sliema;

Illi dan il-bejgh huwa soggett ghall-cens annwu u perpetwu ta' sbatax-il lira Maltin (LM17);

Illi l-esponenti jixtieq jipprevalixxi ruhu mill-fakolta' lilu moghti mill-provvedimenti relattivi fil-Ligi Maltija u specifikament Artikolu 1501 tal-Kodici Civili ta' Malta sabiex jifdi c-cens hekk dovut lill-intimat;

Illi sabiex jinfeda dan ic-cens ta' LM17, l-istess ghandu jigi kkapitalizzat bir-rata ta' hamsa fil-mija (5%) ai termini tal-ligi, b'dan illi jammonta ghas-somma ta' tlett mija u erbghin lira Maltin (LM340);

Ghaldaqstant l-esponenti in vista tal-fuq premess, qiegħed jadixxi lil din l-Onorabbli Qorti u jiddeposita taht l-Awtorita' tagħha s-somma ta' LM340 rapprezentanti fidi ta' cens kif fuq premessi, sabiex din tigi rilaxxata lill-intimat skond il-ligi, wara li jhalli d-debita ricevuta.

Avv.

(Dr. A. Debe)

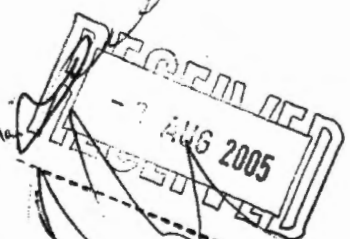
P.L. Edgar Montanaro

Notifika: 1. Direttur tar-Registru Pubbliku
Triq il-Merkanti
Valletta

2.

P.L. Edgar Montanaro

ddl



Remarks for office use only.	Note of inscription of a PRIVILEGE	Progressive No: 001432
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CREDITOR:
'HSBC Bank Malta plc'

DEBTOR:
Advocate Doctor Georg Sapiano, son of the late Alfred and Rosemarie nee' Flynn, born in Attard, identity card number: 71568(M) and his wife **Audrey Sapiano**, daughter of Giovanni Ellul and Angela nee' Fenech, born in Attard, identity card number: 182272(M) and both residing at Gala, Gozo, in solidum between them.

CREDIT:

LM 38

Thirty-seven thousand six hundred and three Maltese liri sixty eight cents (LM37,603.68c) being part of a larger loan granted by the creditor to the debtors, which sum the creditor paid on delegation of the debtors to contractors and workmen for the purpose of completing the construction of the hereunder mentioned immovable property. Said loan being repayable on demand in the event of any of its conditions not being adhered to with interest at rates not exceeding the maximum rate allowed by law, said interest to be fixed by the creditor in its sole discretion from time to time and subject to all the conditions mentioned in the relative deed in the records of Notary Doctor Paul George Pisani of the twenty-seventh (27th) September of the year two thousand and two (2002) as guaranteed by a note of privilege number; one thousand three hundred and nineteen of the year two thousand and two (1319/02) and whereas the creditor as above delegated paid out the said sum of Lm37,603.68c in cost of construction as aforesaid and whereas the hereunder tenement was completed in all respect on the twenty-first (21st) July of the year two thousand and six (2006) the creditor preserved in its favour the special legal privilege as per deed of conservation of privilege in my records of the seventh (7th) September of the year two thousand and six (2006).

CAUSE OF PREFERENCE:

Special privilege on the house numbered fourteen (14) in an unnumbered Alley which abuts onto Triq ta' Cini, Gala, Gozo, free and unencumbered with all its rights and appurtenances.

RICEVUTA LLUM

Date:

[Signature] 08 SEP 2006
NOT. JOHN SPITERI LL.D.

(I)

000796

The twentieth day of March, of the year two thousand and six (2006).

Sale made by the Limited Liability Company "Easysell Caterers (Gozo) Limited" [commercial partnerships registration number C. 12050]; hereinafter referred to as the 'Vendor Company';

In favour of Phillip Spiteri [holder of identity card number 30665G], restaurateur, husband of Notary Doctor Josette Spiteri Cauchi, son of Francis and of the late Carmen nee Zammit, born in Victoria, Gozo and residing at Xaghra, Gozo [Flats two stroke four (2/4), 'Ta' Kelina', Marsalforn Road].

The community of acquests between the said Philip Spiteri and his wife Notary Josette Spiteri Cauchi [holder of identity card number 16980G] has been excluded in virtue of a deed in my records, dated the twelfth day of January, of the year two thousand and six (12th January, 2006) Ins.1,416/2006; hereinafter referred to as the 'Purchaser';

Of:

[A] The tenement, namely the restaurant, presently named 'Il-Barumbara', without its relative airspace, but with its underlying land, having official number twenty-eight (28) [sometimes also referred to as number twenty-seven (27)], forming part of a development, which development amongst other properties, consists of the unnumbered hotel complex known as 'The Mgarr Bay Hotel', situated in Saint Anthony Street, Mgarr, limits of Ghajnsielem, Gozo.

The said restaurant underlies third party property and does not overlie third party property and is bounded on the West by Saint Anthony Street (from where it is accessible), on the East by the said 'The Mgarr Bay Hotel', property of the successors in title of the Vendor Company and on the North by property of family Rapa, and which restaurant is better outlined in red on the plan attached to the deed and marked as document letter 'C'. The said restaurant is also better outlined on the plans attached to the deed and marked as documents letters 'D', 'E', and 'F'.

The said property was transferred as subject to the servitude of the drains and drainage system, part of which underlies the said property and which drains and drainage system presently serve the said development above-mentioned.

The said property enjoys active rights and is subject to passive servitudes arising out of its relative position, otherwise free and unencumbered and with all its rights and appurtenances.

The development above-mentioned presently consisting of 'The Mgarr Bay Hotel' and several lands/properties accessory to it, is to be demolished and converted into a new project to be undertaken by the Limited Liability Company 'Mgarr Developments Limited' which is in the process of acquiring the said hotel and accessory properties.

RICEVUTA LLUM

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The said development in its entirety is bounded on the West by the said Saint Anthony Street, on the North by Triq iz-Zewwieqa, and on the East by Government property.

- [B] The divided portion of airspace, intended to serve as the 'outside area' in connection to the restaurant mentioned in paragraph [A] above, situated at the same building level of the said restaurant, excluding its relative subterrain, and which divided portion of airspace in turn is to be developed at same building level and together with a larger part of airspace intended to serve as the "internal piazza" of the new development above-mentioned. The divided portion of airspace transferred is better outlined in red and marked with the words 'Outside Area Transferred' on the plan attached to the deed and marked as document letter 'C'; whilst the said larger part of airspace referred to above is better outlined in green on the said plan document 'C'.

The airspace transferred and intended to serve as the outside area of the restaurant transferred, shall have a floor area of approximately not less than sixty-two square metres (62 sq.m.) and shall be developed at the same building level of the said restaurant up to a height of ten (10) courses from said street level.

The said outside area is bounded on the West by the said restaurant being transferred from where it is accessible on the East and on the North by the hotel complex 'The Mgarr Bay Hotel' above-mentioned, or other varying boundaries.

The said area enjoys active rights and is subject to passive servitudes arising out of its relative position, otherwise free and unencumbered and with all its rights and appurtenances.

The properties transferred and described in paragraphs [A] and [B] above-mentioned were transferred as subject to the hereunder mentioned terms and conditions in second part of the deed as well as subject to the terms and conditions laid down in the third part of this deed.

This sale was also made and accepted under all the terms and conditions as indicated in the deed, including the following:-

- For the total agreed price of one hundred and ten thousand Maltese Liri (Lm110,000).
- The property was transferred with free and vacant possession, which was granted on this deed.
- The property was transferred as free from any burdens, groundrents, servitudes (save as otherwise provided in this deed), hypothecs, privileges, cautions and charges and free from any rights of whatever type or nature, whether real or personal (save as otherwise indicated in this deed), free from any law-suits and from any litigation whatsoever and free from any expropriation or requisition orders.

RICEVUTA Lm110,000

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04 APR 2006 -25-

[Signature]

[Signature]

- As regards party walls (*appoggi*), no payments are due by or to the Purchaser, for what is built to-date.
- The Vendor Company hereby declared that the property was transferred as structurally sound, and as built and/or to be built in accordance with the Malta Environment Planning Authority permits.
- All bills relating to the property up to the date of the deed shall remain the sole responsibility of the Vendor Company. These include any bills relating to license and permit fees, charges and consumption of the electricity service, water, telephone and any other bills in connection with the running of the restaurant prior to the date of the deed.

There also appeared on this deed, the Limited Liability Company 'Mgarr Developments Limited' [company registration number C 38168], as the prospective successor in title of the Vendor Company.

There also appeared on this deed and hereinafter referred to as the 'Assignors':

- The Limited Liability Company 'Island Developments Limited' [company registration number C 18772]; and
- Doctor of Laws and Advocate Georg Sapiano [holder of identity card number 71568M], son of the late Alfred and of Rose nee Flynn, and his Audrey Sapiano [holder of identity card number 182272M], daughter of John Baptist Ellul and of Angela nee Fenech, both born in Attard and both residing at Sliema; and
- Doctor of Laws and Advocate Adrian Delia [holder of identity card number 299369M], son of Andrew, born in Sliema and his wife Doctor of Laws and Advocate Nicole Vella de Fremeaux [holder of identity card number 431472M], daughter of Peter Vella de Fremeaux and of Magdalene nee Miller, born in Saint Julians and both residing in Siggiewi.

The said Assignors, namely the Limited Liability Company 'Island Developments Limited', spouses Sapiano and spouses Delia afore-mentioned, declared that originally they had signed a promise of sale agreement with the Vendor Company, on several properties, one of which is the property transferred in the second part of this deed. The said promise of sale is dated the eighteenth day of November, of the year two thousand and five (18th November, 2005) and is duly registered with the Department of Inland Revenue bearing reference letters 'PS', numbers two zero zero five zero eight seven one four (PS200508714).

Due to other obligations and developments which have arisen, the Assignors had chosen to cede their rights on the property transferred in virtue of the second part of this deed, in favour of the Purchaser on this deed, namely, Philip Spiteri.

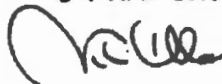
And thus the Assignors ceded with immediate effect all their rights and obligations in favour of the Purchaser Philip Spiteri who accepted, which rights and obligations are those arising from the said promise of sale

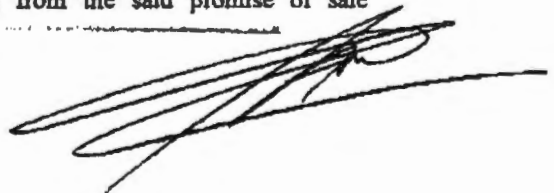
RICEVUTA LLUM

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04 APR 2006

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796 (2)

agreement, and solely relate to the said property transferred in favour of the Purchaser in the second part of this deed.

This cessation of rights by the Assignors in favour of the Purchaser, was made and accepted for the nominal value of one Maltese Lira (Lm1).

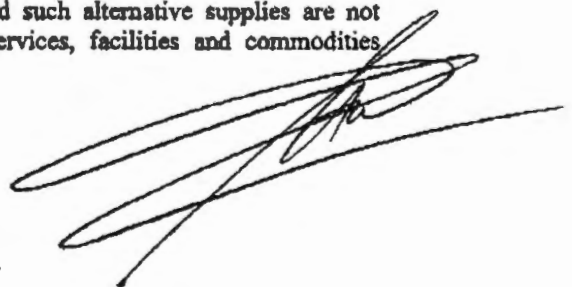
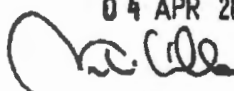
This assignment of rights was also made and accepted under the following terms and conditions:

- The Purchaser hereby acknowledged the Company 'Mgarr Developments Limited' as the prospective successor in title of the Vendor Company with regards to the new project to be developed in lieu of the 'Mgarr Bay Hotel' and accessory properties referred to in the second part of this deed, except for the property transferred in virtue of this deed.
- The Purchaser and the said Company 'Mgarr Developments Limited' agreed that included with the transfer of the said restaurant, as described in paragraph [A] in the second part of this deed, is the right of use in favour of the property transferred in virtue of the second part of this deed, of the upper-most roof of overlying property/properties, which right of use is limited to the right to install and the right of access in case of maintenance and repair after due notice is given to the owner of the said roof within reasonable time, and exclusively within an area and in the manner and subject to such specifications which shall be determined and indicated by the owner of the said roof or successors in title and eventually by an architect appointed for this purpose by the owner of said roof or successors in title, which area may be scaled off from the remainder of the roof, of (a) three (3) water-tanks of not less than one thousand litres (1,000l.) each in capacity; (b) a VRV-type air-conditioning unit; (c) the outlet of a chimney (of at least two and a half feet (2.5ft.) equivalent to 0.762 metres [zero point seven six two metres] in diameter), and its accessories including silencers, leading from the roof through overlying properties down to the hood/extractor situated in the kitchen of the said property transferred; (d) two (2) solar heater panels; (e) a satellite-dish (not exceeding one point five metres (1.5m) in diameter); (f) a silent generator of not less than one hundred kilowatts (100KW).
- Should the owner/developer of the roof of overlying properties build/erect further storeys, then the following conditions shall apply:
 - The owner/developer and/or successors in title shall be entitled to remove the above-mentioned services, facilities and commodities which the said property enjoys upon the then existing roof of overlying properties, provided twenty (20) days notice in writing is given to the owner of the property herein transferred. In such a case, the owner/developer and/or successors in title are to provide alternative supplies of said services, facilities and commodities in such a way as not to disrupt the running of the business of the said property as a restaurant. Should such alternative supplies are not made available, all the said services, facilities and commodities

RICEVUTA LLUM

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04 APR 2006



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above-mentioned, shall in no case be suspended for a period longer than forty-eight (48) hours;

- The owner/developer and/or successors in title shall be obliged to take every reasonable measure possible to cause the least inconvenience to the owner of the said property transferred.
- Upon completion of the aforesaid additional storeys, the owner/developer and/or successors in title, shall at their expense repair any damage which may have been caused to any part of the property transferred, and re-install and re-connect anew, all the services, facilities and commodities which the property transferred enjoys as explained above, upon the new roof.
- The rights of use of the uppermost roof together with the accessory conditions mentioned above and the conditions relating to the building of further storeys above-mentioned shall constitute an integral part of the ownership of the said restaurant, and are transferable together with the ownership of the said restaurant.
- With regards to the divided portion of airspace intended to serve as the 'outside area' of the restaurant, described and transferred in paragraph [B] in the second part of this deed, the measurement of not less than 62 square metres of the said outside area transferred shall enable the Purchaser to place tables accessory to the restaurant being transferred in virtue of this deed and also to erect (at the Purchaser's expense) at least three (3) toilets (two of which shall be large enough for wheel-chair access) according to the design provided by the architect of the said new development, and which toilets are to be erected on the said outside area in such a way as to be connected to the restaurant. It was clarified that the airspace of the said toilets shall remain the property of the prospective successor of the Vendor Company, namely the Limited Liability Company 'Mgarr Developments Limited'.
- The said Company 'Mgarr Developments Limited' as the prospective successor in title of the Vendor Company shall be responsible for damages which may be caused to the structure of the property herein transferred as a result of or during the development of the new project referred to in the second part of this deed, which development will be covered by ordinary insurance cover applicable in such cases.
- The Purchaser acknowledged for all intents and purposes at Law that the Vendor Company 'Easysell Caterers (Gozo) Limited' is in no way responsible for the construction, formation, administration and regulation of the new development referred to in the second part of this deed and that this responsibility shall rest with the Company 'Mgarr Developments Limited' which is in the process of purchasing and acquiring the 'Mgarr Bay Hotel', together with its accessory properties as explained above. The Vendor Company is only responsible for the proper title of the immovable sold hereon and shall in no way be party to any disputes which may arise with regards to the administration and/or formation of the said new development in relation to the property herein

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Mc. Call

[Signature]

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transferred or with regards to any other matter which is not the title of the property sold hereon.

- The Purchaser also acknowledged that the responsibility of the issuance and observance of all necessary building permits lies with the Company 'Mgarr Developments Limited' and not with the Vendor Company 'Easysell Caterers (Gozo) Limited' and any disputes arising in this regard are to be settled between the said parties only, that is, between the Purchaser and the Company 'Mgarr Developments Limited'.
- Since the property transferred in virtue paragraph 'A' of the second part of this deed, was transferred with its underlying land, it is the option of the Purchaser to excavate the said restaurant below ground-floor level, and to this effect, the Limited Liability Company 'Mgarr Developments Limited' as the prospective successor in title of the Vendor Company, hereby declares to find no objection regarding same. The Purchaser and the said Limited Liability Company 'Mgarr Developments Limited' agreed that should the excavation to be done by the Purchaser reach the same level as that of the complex of garages to be built underlying the new development, the Purchaser shall have access from underneath the restaurant being herein acquired from the drive-way leading to the garage complex and this under the same conditions and obligations imposed upon other users of the said drive-way. This shall however only apply should the said 'Mgarr Developments Limited' actually build garages/car spaces under the site of the said 'outside area' transferred in virtue of this deed.
- The Limited Liability Company 'Mgarr Developments Limited' as the prospective successor in title of the Vendor Company, guaranteed that the proposed development of which the said outside area transferred, is to form part, is to be built according to the measurements indicated in the plans attached to the (Malta Environment Planning Authority) MEPA Permit.
- The Limited Liability Company 'Mgarr Developments Limited' as the prospective successor in title of the Vendor Company, guaranteed in favour of the Purchaser, that the property was transferred in accordance with the rules established by the Malta Tourism Authority, in such a way that the said property is to operate as a restaurant categorically rated not less than third class and this according to the rules, regulations and sanitary laws, normally applicable in the catering business. To this effect, should the property described in the second part of this deed in paragraph [A], in its present state, not be fit as to be treated as a restaurant rated not less than third class, any added expense incurred by the Purchaser in converting the said property into at least a third class restaurant, shall be at the expense of the Limited Liability Company 'Mgarr Developments Limited'.
- The terms and conditions stipulated in this deed and relative to the property transferred, bind both the said Limited Liability Company 'Mgarr Developments Limited' as the prospective successor of the RICEVUTA LLUM

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04 APR 2006.

Mc. Cee

[Signature]

790(71)

Vendor Company, and the Purchaser on this deed, as well as respective successors in title.

- The water and electricity services and licenses and permits in connection to the property are to be applied for by the Purchaser at his expense by means of an application independent from the rest of the development above-described.

RICEVUTA DELL'

04 APR 2006

Notary Joseph Abela

(I)

000917

Twentieth (20th) March two thousand and six (2006).

Of the first part:

Sale made by the Limited Liability Company "Easysell Caterers (Gozo) Limited" Company Registration number C12050 in favour of the limited liability Company "Mgarr Developments Limited" Company Registration number C 38168 of the following premises:

- i. The unnumbered Hotel Complex, known as the "Mgarr Bay Hotel" or "Mgarr Hotel" in Saint Anthony Street, Mgarr limits of Ghajnsielem, Gozo. The hotel complex has another independent access unto Zewwieqa Street, which is twenty five feet (25') or seven point six one metres (7.61m) wide at its widest point. The said property was purchased by Vendor Company by virtue of a deed received by Notary Doctor Mario Bugeja on the twenty first (21st) December, one thousand nine hundred and ninety (1990).
- ii. The mezzanine and terrace number twenty nine (29) in Saint Anthony Street also referred to as Ghajnsielem Road, Mgarr limits of Ghajnsielem, Gozo, together with its airspace, purchased by Vendor Company by virtue of a deed received by Notary Doctor Mario Bugeja on the twenty first (21st) January, one thousand nine hundred and ninety one (1991). The said mezzanine overlies tenement number twenty eight (28) on other occasions referred to as number twenty seven (27) also known as "Barumbara Restaurant" in Saint Anthony Street, which together with a divided portion of airspace annexed to the restaurant from the east, measuring approximately six two square metres (62sqm) starting from this particular floor level up to the height of ten (10) courses and excluding the

RIO...

20 APR 2006

NOT. KRISTEN DIMECH LL.D.

9.2 (D)

subterrain, was sold by Vendor Company to third parties. The said divided portion of airspace excluded from this sale is bounded on the west by the said restaurant, on the east and on the north by the hotel complex.

- iii. The premises number twenty six (26) in Saint Anthony Street, Ghajnsielem, Gozo, together with the adjoining garage which forms an integral part of the said premises. This property was purchased by Vendor Company by virtue of a deed received by Notary Doctor Paul George Pisani on the fourteenth (14th) April, one thousand nine hundred and ninety two (1992).
- iv. The plot of land situated in Ghajnsielem, Gozo, measuring approximately six hundred and sixty one square metres (661sqm), bounded, north, south and west by Government property or by property of its successors in title. This property was purchased by Vendor Company by virtue of a deed received by Notary Doctor Vincent Miceli on the twenty second (22nd) January, one thousand nine hundred and ninety two (1992).
- v. The airspace having a floor area of approximately seven point two square metres (7.2sqm), which spans from ground level downwards to the depth of seven metres (7m) with a width of three point zero four metres (3.04m), bounded, north, west and south by Government property. This space is intended only for the excavation of a tunnel access up to land level. This property was purchased by Vendor Company by virtue of the aforementioned deed received by Notary Vincent Miceli.

RICEVUTA LLQW

20 APR 2006

NOT. KRISTEN DIMECH LL.D.

917 (11)

vi. The underground cave which has an area of approximately fifty five square metres (55sqm) and spans from ground level to the depth of approximately six metres (6m), bounded, north, west and south east by Government property, This property was purchased by Vendor Company by virtue of the aforementioned deed received by Notary Vincent Miceli.

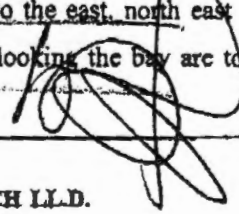
The properties described in the last three paragraphs, were sold subject to the conditions mentioned in the deed of purchase received by the aforementioned deed of Notary Vincent Miceli, otherwise all properties were sold as free and unencumbered, with vacant possession and with all their rights and appurtenances.

The above-described properties today form the Mgarr Hotel Complex. The entire complex, excluding tenement twenty six (26) in Saint Anthony Street, is bounded, on the east by Government property, on the north in part by Triq iz-Zewwieqa, in part by property of Anthony and Salvu brothers Grech, in part by the accessway mentioned in paragraph one (i), and in part by the cliff edge, and on the west in part by Saint Anthony Street, in part by property of the Rapa family and in part by property of third parties.

Parties agreed for all intents and purposes at Law that the properties Vendor Company sold and the Purchasing Company acquired are all those properties acquired by Vendor Company by virtue of all the deeds mentioned above, excluding the "Barumbura Restaurant" situated at number twenty eight (28) Saint Anthony Street, and the annexed portion of airspace of approximately sixty two square metres (62sqm) described above. Nevertheless, parties agreed that any interpretation of the property's boundaries to the east, north east and south east, and namely unto the ridge overlooking the bay are to be

20 APR 2006

NOT. KRISTEN DIMECH LL.D.

917 (20)

determined in terms of the plan annexed to the above mentioned deed of Notary Vincent Miceli.

For clarity's sake parties declared that excluded from this sale is that property forming part of the Complex which was sold by the Vendor Company to Philip Spiteri on the same day by virtue of a deed received by Notary Doctor Joseph Abela.

Vendor Company also sold to Purchasing Company which accepted all the contents, furniture, furnishings, utensils, machinery, and appliances situated in the said Hotel Complex, which contents have been listed in an inventory drawn up by the Parties to their satisfaction. These contents were sold in their present state and condition and for the price of seven hundred thousand Maltese liri (Lm700,000).

This sale was made for the global price of three million five hundred and ninety thousand Maltese liri (Lm3,590,000), two million eight hundred and ninety thousand Maltese liri (Lm2,890,000) of which represented the price of the immovable property, whereas the outstanding seven hundred thousand Maltese liri (Lm700,000) represented the price of the contents and movables situated in the same property and sold hereon.

Of the second part:

The Limited Liability Company "Easysell Caterers (Gozo) Limited" refunded the Company "Island Developments Limited" company registration number C 18772, Doctor of Laws Georg Sapiano, a lawyer, son of the late Alfred and of Rose nee' Flynn, born in Attard and residing in Sliema, holder of identity card number 71568M and his wife Audrey Sapiano, daughter of John Baptist Ellul and of Angela nee' Fenech, born in Attard and residing in Sliema, holder of identity

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NOT. KRISTEN DIMECH LL.D.

917 (I)

card number 182272M, Doctor of Laws Adrian Delia, a lawyer, son of Andrew and of Alice nee' Anastasi, born in Sliema and residing in Siggiewi, holder of identity card number 299369M and his wife Doctor of Laws Nicole Vella de Fremeaux, a lawyer, daughter of Peter Vella de Fremeaux and of Magdalene nee' Miller, born in Saint Julians and residing in Siggiewi, holder of identity card number 431472M, the sum of eight hundred and fifty thousand Maltese liri (Lm850,000) paid by them as purchasers on the promise of sale agreement for the purchase and acquisition of the property sold by virtue of this deed to "Mgarr Developments Limited" signed by the parties on the eighteenth (18th) November, two thousand and five (2005).

Moreover, "Island Developments Limited", spouses Sapiano and spouses Delia together and in solidum between them ceded and assigned in favour of the purchasing Company "Mgarr Developments Limited" all their rights emanating from the aforementioned promise of sale agreement for the acquisition of the full ownership of the property described above except for their rights over the Barumbara Restaurant situated at number twenty seven (27) or twenty eight (28), in Saint Anthony Street, Ghajnsielem, Gozo and the portion of air space measuring approximately sixty two square metres (62 sqm) annexed thereto and better described above, and this against no payment whatsoever. The said Company "Island Developments Limited", spouses Sapiano and spouses Delia also granted consent that the sum of thirty thousand Maltese liri (Lm30,000) paid in tax on the said preliminary agreement be accredited to the amount of tax due by the Purchasing Company "Mgarr Developments Limited" on this deed.

20 APR 2006

NOT. KRISTEN DIMECH LL.D.

000863

L-owwel ta' Frar
tas-sena elfejn u
tmienja (1.2.2008)

Bejgh magħmul minn Paul Curmi, pensjonant, bin il-mejtin Salvatore u Angela nee Spiteri, mwieled Korċem, Ghawdex u residenti Victoria, Ghawdex, bin-numru tal-karta ta' l-identita' 4373(G), u uliedu Anne Blanche Camilleri, mart Pierre, mwielda Attard, Malta u residenti Victoria, Ghawdex, bin-numru tal-karta ta' l-identita' 458172(M), Valerie Zammit mart Patrick, imwielda Pieta u residenti Kirkop, bin-numru tal-karta ta' l-identita' 358867(M), ulied l-imsemmi Paul Curmi u l-mejta Mary Jane Curmi nee Attard; Maria Antonia mart Joseph Cordina, u Carmelo Bugeja, bla okkupazzjoni, ahwa ulied il-mejtin Joseph Bugeja u Maria nee Gauci, imwildin u joqghodu it-tnejn Victoria, Ghawdex, karti tal-identita' numri 36751(G) u 11150(G) rispettivament; Maria Saveria Meylak, armla ta' Tarcisio, u Francesca Bugeja, xebba, ahwa Bugeja, ahwa ulied il-mejtin Anthony Bugeja u Carmela nee Cassar, imwildin u joqghodu it-tnejn Sannat bin-numri tal-karti ta' l-identita 68615(G) u 69829(G) rispettivament; Suor Consolata Bugeja, bint l-istess Anthony Bugeja u Carmela nee Cassar, imwielda Sannat u residenti Victoria, Ghawdex, bin-numru tal-karta ta' l-identita' 12328(G), Carmela Attard mart Emanuel, u Francis Bugeja, bil-barriera, ahwa Bugeja, ulied il-mejtin Joseph Bugeja u Margaret nee Zahra, imwildin Munxar u joqghodu rispettivament Munxar, Ghawdex, karti tal-identita' numri 47549(G) u 15946(G) rispettivament, Filomena Muscat mart Anthony, Giorgia Borg mart Peter, Frances Vella mart Joseph, Pawla Borg mart George, u Maria Bugeja xebba, ulied il-mejtin Joseph Bugeja u Margaret nee Zahra, ilkoll imwildin u joqghodu Munxar, barra Filomena illi toqghod Sannat - karti tal-identita' numri 24847(G), 70150(G), 17656(G), 1059(G), 46641(G) rispettivament, Josephine Cassar mart Joseph, imwielda Munxar u toqghod New South Wales, Australia, Saviour Bugeja, irtirat, imwield Munxar u joqghod New South Wales, Australia, bin-numri tal-income tax Malti 886858035 u 886858134, Carmel Anthony, u John, ahwa Bugeja, ilkoll bil-barriera, ulied il-mejtin Joseph Bugeja u Margaret nee Zahra, imwildin u joqghodu ilkoll Munxar, barra Carmel li joqghod Nadur, Ghawdex, karti tal-identita' numri 32548(G), 32853(G), u 19552(G) rispettivament; Joseph Bonnici, pensjonant, bin il-mejtin Paul u Giuseppa nee Bugeja, imwield u joqghod Xewkija, ID61533G, Philip siye Flau Bonnici, pensjonant, bin il-mejtin Paul u Giuseppa nee Bugeja, imwield u joqghod Xewkija, bin-numru tal-karta ta' l-identita 75230(G); Maria Assunta Spiteri, mart Raymond u Filomena Bugeja, xebba, ahwa Bugeja, ulied il-mejtin Carmelo u Maria nee Vella, imwildin u joqghodu it-tnejn Munxar, Ghawdex - karti tal-identita' numru 36762(G), u 44457(G) rispettivament, Carmela mart Lawrence Rapa, bint il-mejtin John Mary Bugeja u Filomena nee Cassar, imwielda Sannat u toqghod Victoria, Australia, bin-numru tal-income tax Malti 886857928; Filomena mart Edward Spiteri, imwielda Sannat u toqghod Sannat, Ghawdex; bin-numru tal-karta ta' l-identita 52353(G), Michael Xiberras, bidwi, mwieled Sannat u residenti Sannat bin-numru tal-karta ta l-identita 4852(G), Francis Xiberras, bidwi, imwield Sannat u joqghod Sannat bin-numru tal-karta ta l-identita 48150(G), ilkoll ulied il-mejtin Felic Xiberras u Maryanne nee Bugeja; Joseph Xiberras, farmer, bin il-mejtin Felic Xiberras u Maryanne nee Bugeja,

RICEVUTA LLUM

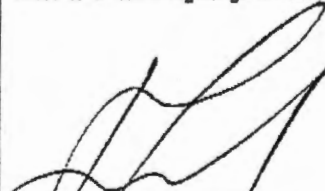
30 APR 2008

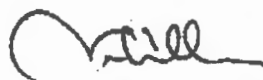
mwieled is-Sannat u residenti Victoria, Australia, bin-numru tal-income tax Malti 886869029, Felix, farmer, Pauline Tabone mart Johan, u JosMarie Agius mart Frank, ahwa Sciberras, ulied il-mejjet Saviour Sciberras u Luigia nee' Vella, imwiela l-koll Victoria, Ghawdex u joqghodu l-koll Sannat, Ghawdex, bin-numri tal-karta ta' l-identita' 27775(G), 26881(G) u 13980(G), Francis Farrugia, supervisor, Mary Muscat, mart Lawrence, u Filomena sive Phyllis Mizzi, mart Saviour, dawn ta' l-ahhar bin-numri tal-income tax 886271609, 886271708, 886271807 rispettivament, l-koll tfal ta' Emanuel Farrugia u Marianne Bugeja, kollha mwieldin Victoria, Ghawdex u residenti kollha New York, Stati Uniti tal-Amerka, Michael Farrugia, fin-negozju, bin-numru tal-karta ta' l-identita' 53348(G), Anthony Farrugia, fin-negozju, bin-numru tal-karta ta' l-identita' 53248(G), u Joseph Farrugia, irtirat, bin-numru tal-karta ta' l-identita' 62139(G), l-koll ahwa Farrugia, l-koll tfal ta' Emanuel Farrugia u Marianne nee Bugeja, kollha mwieldin Victoria, Ghawdex u residenti kollha Victoria, Ghawdex; Maria Rosa Tabone, armia ta' Dionisju Tabone, bint il-mejtin John Mary Bugeja u Filomena nee Cassar, imwiela Sannat, Ghawdex u residenti, Victoria, Ghawdex, bin-numru tal-karta ta' l-identita' 14423(G), solidament bejniethom a favur ta' Dottor Georg Sapiano, bin il-mejjet Alfred u Rose nee' Flynn, imwield Attard u joqghod Qala, Ghawdex, karta ta' l-identita' numru 71568(M) u l-martu Audrey Sapiano, bint John Baptist Ellul u Angela nee' Fenech, imwiela Attard, Malta u toqghod Qala, Ghawdex, karta ta' l-identita' numru 182272(M) ta' :-

Porzjon art fil-limiti tal-Qala, Ghawdex, fl-inhawi ta' Trio Ta' Cini, minn fejn hija accessibbli, kif ukoll hija accessibbli mill-propieta tal-istess kumpraturi tal-kejl ta' madwar elfejn hames mija u hamsa u erbghin metri kwadri (2545m.k.) konfinanti mil-Lvant ma beni tal-konjugi Sapiano u giel indikati li kienet konfinanti ma beni ta' Marcel Muscat u Tramuntana ma' beni tal-istess konjugi Sapiano u giel indikata li konfinanti ma beni ta' Antonio Camilleri, u Nofsinhar ma propjeta ta' l-aventi kawza ta' Giuseppe Cassar, bil-pussess vakanti, u libera u franka u kif tidher fuq pjanta immarkata dokument "X" annessa mal-kuntratt. L-imsemmija propjeta hija libera u franka bid-drittijiet u l-pertinenzi kollha taghha versu l-prezz ta' mija erbgha u erbghin elf erba mija u wiened u erbghin euro u hamsa u disghin centezmu (€144441.95) pari ghal tnejn u sittin elf u tmin liri u tlieta u disghin centezmu (Lm 62008.93) u taht il-kundizzjonijiet imsemmija fl-att.

RICEVUTA LLUM

30 APR 2008


Dr. Roland J. Wadge
(Nutar Pubbliku, Malta)



Note for the inscription of: **Hypothec** Progressive Number

13376

Remarks (for official use only):

Leandru 5421/2010

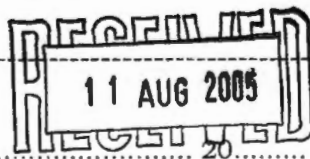
Creditor: HSBC Bank Malta p.l.c.

Debtor: Dottor Georg Sapiano, avukat, bin Alfred u Rose-Marie nee Flynn, mwieled Attard u residneti Sliema bin-numru tal-karta ta' l-identita 71568(M) li qieghed jidher fismu proprio u fisem martu Audrey Sapiano, bint John Baptist Ellul u Angela nee Fenech, mwielda Attard u residenti Sliema, bin-numru tal-karta ta' l-identita 182272(M)

Credit: Is-somma ta' mija sitta u ghoxrin elf lira Maltin (Lm126,000) liema somma ghandha tintuza ghal iskopijiet personali tad-debituri liema somma mislufa ghandha tithallas fi zmien indikat fl-att. Ir-rata ta' l-interessi m'ghandiex teccedi l-oghla rata li tippermetti l-ligi, l-interessi ghandhom ikunu dovuti fuq il-bilanc ta' kuljum tad-debitu skond il-prattika bankarja, liema rata ta' interessi ghandha tigi ffixsata mill-Bank fid-diskrezzjoni assoluta tieghu minn zmien ghal zmien. Il-kundizzjonijiet l-ohra li jirrigwardaw dan is-self jinsabu fl-att tieghi n-Nutar sottofirmat tal-erbgha ta Awwissu tas-sena elfejn u hamsa (4.8.2005)

Cause of preference: **Ipoteka Generali u Ipoteka Specjali** fuq :- id-dar bin-numru erbatax (14) fi sqaq bla numru ufficjali li jaghti ghal Triq Cini, fil-Qala, Ghawdex, , liema propjeta tinsab f'Land Registration Area taht certifikat tat-titolu erba tmienja zero zero wiehed tlieta sebgha sebgha (48001377), kif ukoll fuq porzjon art imsejha "Tat-Tork", fil-limiti tal-qala, Ghawdex, tal-kejl ta cirka elf mija hamsa u tletin metri kwadri (1135m.k.) tal-kejl kollu li fiha li tmiss Lvant in parti ma passagg privat li minnha l-istess art hija accessibbli u jisbokka fi Triq Ta' Cini u in parti ma beni tal-imsemmija konjugi Sapiano, Punent u Tramuntana ma beni ta David Muscat u ohrajn, libera u franka, bid-drittijiet u l-pertinenzi kollha taghha, bil-pussess vakanti, inkluza l-ispiera ezistenti f'din l-art u kamra zghira rurali bal numru.

Illum

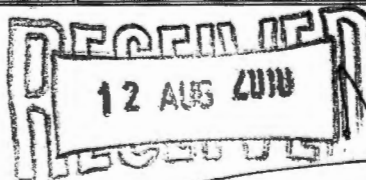


Director

Dr Roland Wadge
(Nutar Pubbliku, Malta)

Nota ta'Riferenza

Riferenza Nru: 005421	Title Reduction
15705/2000 13376/2005 10253/2006 12689/2007 16263/2007	By a deed in my records of the fifth of August of the year two thousand and ten (5.8.2010) the creditor HSBC Bank Malta p.l.c. gave its consent for the reduction of its hypothecary and privileged rights arising out of the hereinmentioned credit insofar as these affect:- an apartment internally numbered nine (9) forming part of an block named "Forth Mansions" in Ta' Xbiex Seafront, Ta' Xbiex, together with a as a <i>pro indiviso</i> share of the Block's Common Parts, which block has its own independent entrance, and is without official number and unnamed, and is bounded on the south by Ta' Xbiex Sea Front, on the north by a projected road that shall be a prolongation of Triq l-Imradd and on the east by property of Seaview Marina, or more correct boundaries The said common parts of the block include the covered passage, the outside lobby, the main entrance, hall, garbage room, concierge/janitor's room with kitchenette and shower, stairs, landings, two lift shafts, two lifts and stairwell of the Block as well as the passages which interconnect the Block with the Garage Complex; the internal shafts of the Block, save as otherwise stated, the external walls of the Block and of the Commercial Premises, provided these shall be considered to constitute part of the Block Common Parts only for the purposes of the Condominium Act, the sharing of costs and the protection of the décor of the Building but shall otherwise be owned <i>pro indiviso</i> as an integral part of an Apartment or of the Commercial Premises of which they form part; the drainage systems, communal plumbing and electrical systems and all other common parts mentioned in paragraph (c) of article five (5) of the Condominium Act; but does not include the common dividing walls with neighbouring tenements and any part of the property underlying or overlying the Block even if such part underlies or overlies the Block Common Parts. The Block Common Parts are subject to the perpetual servitudes mentioned hereunder in favour of each and every Apartment which shall at any time form part of the Block (including any future developments which may be added to the Block) (the Dominant Tenements) consisting of: i. the perpetual right of pedestrian passage and access at all times from Ta' Xbiex Sea Front to all the Apartments which may at any time form part of the Block and to the Garage Complex and vice versa; ii. the perpetual right to use the Block Common Parts for the purpose they are intended, which right of use is transferable to third parties together with each one of the Apartments; iii. the right to open doors from the Apartments onto the Block Common Parts as is necessitated from their physical position in the Block; iv. the right to pass any and all common or separate services, pipes, drains and wiring, provided that all services are installed as required by standard building practice and in the locations made available for this purpose; v. the right to interconnect the Garage



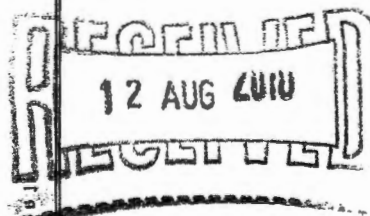
005421

Complex with the Block Common Parts in the places shown on a plan annexed to a deed of Notary Pierre Attard dated the twelfth of July of the year two thousand and six (12.7.2006);

which servitude and rights of use mentioned in this Clause shall be enjoyed in common between all the Condomini from time to time in the Block as subject to the provisions set out in the abovementioned deed of Notary Pierre Attard and other terms, restrictions and conditions mentioned in the said deed.

The said property is otherwise free and unencumbered and free from any ground-rents, burdens, other servitudes, hypothecs, privileges, any other rights of whatever type or nature, whether real or personal, in favour of third parties, law-suits and any litigation whatsoever, and with free and vacant possession and as subject to all those terms and conditions mentioned in the abovementioned deed of Notary Pierre Attard.

The bank retained firm and unimpaired all its other rights arising out of the said note saving the abovementioned waiver of rights.



Today..... 20.....

Director

Dr Roland John Wadge
(Notary Public, Malta)

10253

Note for the inscription of: **Hypothec & Privilege** Progressive Number

Remarks (for official use only):

Creditor: HSBC Bank Malta p.l.c.

R 5421/2010

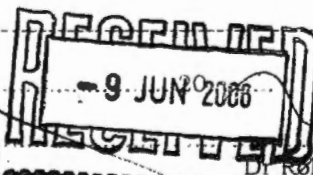
Debtor: Dottor Georg Sapiano, avukat, bin Alfred u Rose-Marie nee Flynn, mwieded Attard u residenti Sliema bin-numru tal-karta ta' l-identita 71568(M) u Audrey Sapiano, bint John Baptist Ellul u Angela nee Fenech, mwielda Attard u residenti Sliema, bin-numru tal-karta ta' l-identita 182272(M) **Audrey & Mart Georg Sapiano**

Credit: Is-somma ta' hamsa u tmenin elf lira Maltin (Lm85,000) moghtija b'titlu ta' self, li d-debitur iddelegaw lill-Bank li accetta, li jhallasha lill-vendituri bhala parti mill-prezz tal-propjeta hawn taht deskritta. Ir-rata ta' l-interessi m'ghandiex teccedi l-oghla rata li tippermetti l-ligi, l-interessi ghandhom ikunu dovuti fuq il-bilanc ta' kuljum tad-debitu skond il-prattika bankarja, liema rata ta' interessi ghandha tigi ffixxata mill-Bank fid-diskrezzjoni assoluta tieghu minn zmien ghal zmien. Li kundizzjonijiet l-oħra li jirrigwardaw dan is-self jinsabu fl-att tiegħi n-Nutar sottofirmat tat-tletin ta' Mejju tas-sena elfejn u sitta (30.05.2006)

Cause of preference: **Ipoteka Generali** fuq il-beni kollha tagħhom, in generali, prezenti u futuri, kif ukoll **Ipoteka Specjali u Privilegg Specjali**, mogħti lill-kreditur bil-ligi, fuq porzjon ta' art diviza fi Triq ta' Cini, fil-Qala, f'Għawdex, tal-kejl ta' tlett mija sebgha u sebghin metru kwadri (377 m.k.). Liema porzjon ta' art tikkonfina Nofsinhar mal-propjeta tal-kompraturi, Punent ma propjeta ta' certu Cini, Tramuntana ma propjeta ta' Dottor Robert u Patricia Sciberras, u Grigal ma propjeta tal-istess vendituri, liema porzjon ta' art ghandha access minn porzjoni oħra mill-istess art, propjeta tal-istess vendituri li tagħti għal Triq Ta' Cini u liema porzjon ha tigi zviluppata fi pjazza komuni, liema access qed jigi kostitwit bhala servitu perpetwu a favur tal-propjeta li qed tinxtara b'dan l-art u l-propjeta fuq imsemmija, liema access huwa bir-rigel, bl-ingenji u b'karozzi u liema propjeta li fuqha hemm l-access ghandha kejl ta' cirka mitejn u ghaxar metri kwadri (210 m.k.) u tikkonfina mill-irjeh kollha ma propjeta tal-vendituri jew l-aventi kawza tagħhom hlief għal Lvant fejn tagħti għat-triq ta' Cini, liema porzjon ta' art komuni hija mberfla bl-orangio fuq l-annessa pjanta. L-entrata għall-din l-art għadha tkun mhux anqas minn sitt metri faċċata għall-fuq it-triq. L-art li qed tinxtara ser tiffirma parti mir-residenza ordinarja tal-kumpraturi. Mill-bqija l-imsemmija propjeta qed tinbiegh soggetta għal u tgawdi mis-servituijiet rizzultanti mill-posizzjoni tagħha, bil-pussess battal, u bhala mill-bqija libera u franka bid-drittijiet u l-pertinenzi kollha tagħha. Kif ukoll **Ipoteka Specjali** fuq il-bqija tal-istess propjeta fil-Qala Għawdex, kontigwa mal-propjeta hawn fuq deskritta, ossia fuq id-dar bin-numru erbatax (14) fi sqaq bla numru ufficjali li jagħti għal Triq Cini, fil-Qala, Għawdex, liema propjeta tinsab f'Land Registration Area taht certifikat tat-titolu erba tmienja zero zero wiehed tlieta sebgha sebgha (48001377), kif ukoll fuq porzjon art imsejha "Tat-Tork", fil-limiti tal-qala, Għawdex, tal-kejl ta' cirka elf mija hamsa u tletin metri kwadri (1135m.k.) tal-kejl kollu li fiha li tmiss Lvant in parti ma passagg privat li minnha l-istess art hija accessibbli u jisbokka fi Triq Ta' Cini u in parti ma beni tal-imsemmija konjugi Sapiano, Punent u Tramuntana ma beni ta' David Muscat u oħrajn, libera u franka, bid-drittijiet u l-pertinenzi kollha tagħha, bil-pussess vakanti, inkluza l-ispiera ezistenti f'din l-art u kamra zghira rurali bal numru.

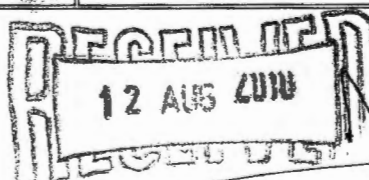
Illum

Direttur

Dr Roland Wadge
(Nutar Pubbliku, Malta)

Nota ta'Riferenza

Riferenza Nru: 005421	Title Reduction
15705/2000 13376/2005 10253/2006 12689/2007 16263/2007	By a deed in my records of the fifth of August of the year two thousand and ten (5.8.2010) the creditor HSBC Bank Malta p.l.c. gave its consent for the reduction of its hypothecary and privileged rights arising out of the hereinmentioned credit insofar as these affect:- an apartment internally numbered nine (9) forming part of an block named "Forth Mansions" in Ta' Xbiex Seafront, Ta' Xbiex, together with a as a <i>pro indiviso</i> share of the Block's Common Parts, which block has its own independent entrance, and is without official number and unnamed, and is bounded on the south by Ta' Xbiex Sea Front, on the north by a projected road that shall be a prolongation of Triq l-Imradd and on the east by property of Seaview Marina, or more correct boundaries. The said common parts of the block include the covered passage, the outside lobby, the main entrance, hall, garbage room, concierge/janitor's room with kitchenette and shower, stairs, landings, two lift shafts, two lifts and stairwell of the Block as well as the passages which interconnect the Block with the Garage Complex; the internal shafts of the Block, save as otherwise stated, the external walls of the Block and of the Commercial Premises, provided these shall be considered to constitute part of the Block Common Parts only for the purposes of the Condominium Act, the sharing of costs and the protection of the décor of the Building but shall otherwise be owned <i>pro indiviso</i> as an integral part of an Apartment or of the Commercial Premises of which they form part; the drainage systems, communal plumbing and electrical systems and all other common parts mentioned in paragraph (c) of article five (5) of the Condominium Act; but does not include the common dividing walls with neighbouring tenements and any part of the property underlying or overlying the Block even if such part underlies or overlies the Block Common Parts. The Block Common Parts are subject to the perpetual servitudes mentioned hereunder in favour of each and every Apartment which shall at any time form part of the Block (including any future developments which may be added to the Block) (the Dominant Tenements) consisting of: i. the perpetual right of pedestrian passage and access at all times from Ta' Xbiex Sea Front to all the Apartments which may at any time form part of the Block and to the Garage Complex and vice versa; ii. the perpetual right to use the Block Common Parts for the purpose they are intended, which right of use is transferable to third parties together with each one of the Apartments; iii. the right to open doors from the Apartments onto the Block Common Parts as is necessitated from their physical position in the Block; iv. the right to pass any and all common or separate services, pipes, drains and wiring, provided that all services are installed as required by standard building practice and in the locations made available for this purpose; v. the right to interconnect the Garage



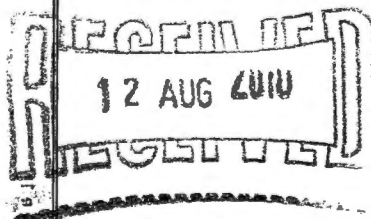
005421

Complex with the Block Common Parts in the places shown on a plan annexed to a deed of Notary Pierre Attard dated the twelfth of July of the year two thousand and six (12.7.2006);

which servitude and rights of use mentioned in this Clause shall be enjoyed in common between all the Condomini from time to time in the Block as subject to the provisions set out in the abovementioned deed of Notary Pierre Attard and other terms, restrictions and conditions mentioned in the said deed.

The said property is otherwise free and unencumbered and free from any ground-rents, burdens, other servitudes, hypothecs, privileges, any other rights of whatever type or nature, whether real or personal, in favour of third parties, law-suits and any litigation whatsoever, and with free and vacant possession and as subject to all those terms and conditions mentioned in the abovementioned deed of Notary Pierre Attard.

The bank retained firm and unimpaired all its other rights arising out of the said note saving the abovementioned waiver of rights.



Today..... 20.....

Director

Dr Roland John Wadge
(Notary Public, Malta)

Nota ghal iskrizzjoni ta' Privilege NUMRU PROGRESSIV:

13426

RIMARKI:-

(ghall-uzu
ufficjali biss)

KREDITUR:- "Brittania Property Developments Limited", registration number letter C three one eight three zero (C31830).

DEBITUR:- "Marina Wharf Limited", registration number letter "C" three three zero three seven (C33037) - hereinafter referred to as "Marina"; Doctor of Laws Georg Sapiano, son of the late Alfred Sapiano and of Rose nee Flynn, born in Attard and residing at Qala, Gozo (I.D.71568M) and his wife Audrey Sapiano, daughter of John Baptist Ellul and Angela nee Fenech, born in Attard and residing at Qala Gozo (I.D.182272M) - hereinafter referred to as "Spouses Sapiano"; and Doctor of Laws Adrian Delia, an advocate, son of Andrew Delia and of Alice née Anastasi, born in Saint Julians and residing at Siggiewi (I.D.299369M) and his wife Doctor of Laws Nicole Vella De Fremeaux, daughter of Peter Vella De Fremeaux and of Madleine née Miller, born in Saint Julians and residing at Siggiewi (I.D.431472M) - hereinafter referred to "Spouses Delia".

KREDITU:- Thirty five thousand Maltese Liri (Lm35,000) being the balance of the price of the property described hereunder sold by the Creditor to Marina as to six eights (6/8) undivided share, to the Spouses Sapiano as to one eight (1/8) undivided share and to the Spouses Delia as to one eight (1/8) undivided share; which sum is to be paid by the Debtors to the Creditor without interest, within fifteen (15) days from when the shell structure of Building (hereunder defined) is constructed and the Architect (hereunder defined) confirms in writing that it has been so constructed and is compliant with the Building Permits (hereunder defined); - and this in virtue of a deed in my Records of the twelfth day of July of the year two thousand and six.

KAWZA TA' PREFERENZA:- Special privilege on:

a) the one half (1/2) undivided share of the Block Common Parts (hereunder defined) in shell form which are being constructed on Portion A and Portion B (hereunder defined), with all their rights and appurtenances, which common parts shall be for the common use of all the Apartments in the Block (hereunder defined) under the terms and conditions set out in the deed, Annex One, the Condominium Rules and the Regulations (defined in detail in the deed) and shall be subject to the servitudes mentioned in the deed and are otherwise free and unencumbered, under the terms and conditions set out in the deed; and

b) the divided portion of the Brittania Site (hereunder defined) measuring point four seven metres (.47m) by one point one three metres (1.3m) approximately point five three square metres (.53sq.m.), shown shaded in brown on the plan annexed to the deed as Document B4, bounded on the south by the remainder of the Brittania Site, on the north by the Marina Site, and on the west and east in part by the remainder of the

Ilkum ta' 2006.

31 JUL 2006

Direttur

Not. Pierre Attard
(Firma tal-persuna
li tapplika għall-
iskrizzjoni).AQLEB

KAWZA TA' PREFERENZA:- (cont.)

13426

Marina Site and in part by the remainder of the Britannia Site, which divided portion commences from the level of the Second Floor or Level 2 of the Building and extends upwards *ad infinitum usque ad coelum* as subject to the condition that the dividing wall between the said divided portion and the remainder of the Britannia Site shall be constructed in stone or brick as a solid dividing wall between the two properties according to law and without any apertures therein and otherwise as free and unencumbered, under the terms and conditions set out in the deed.

"Marina Site" means the "L" shaped portion of land measuring approximately four hundred and thirty one square metres (431sq.m.) with frontage on Ta' Xbiex Sea Front, Ta' Xbiex, bounded on the south in part by Ta' Xbiex Sea Front and in part by the Britannia Site property of Britannia, on the north by a projected road that shall be a prolongation of Triq l-Imradd and on the east in part by the Britannia Site property of Britannia and in part by property of Seaview Marina, or more correct boundaries, shown outlined in red on the plan annexed to the deed as Document B2.

"Britannia Site" means the portion of land measuring approximately two hundred sixty four square metres (264sq.m.) with frontage on Ta' Xbiex Sea Front, Ta' Xbiex, bounded on the south by Ta' Xbiex Sea Front, on the north by part of the Marina Site and on the west by part of the Marina Site or more correct boundaries, shown outlined in blue on the site plan annexed to the deed as Document B2.

"Building" means the building without number and as yet unnamed in Ta' Xbiex Sea Front, Ta' Xbiex which the Parties are constructing on the Marina Site and on the Britannia Site, bounded on the south by Ta' Xbiex Sea Front, on the north by a projected road that shall be a prolongation of Triq l-Imradd and on the east by property of Seaview Marina, or more correct boundaries consisting of: i. the Block of Apartments; ii. the Commercial Premises; and iii. for the purposes of the deed, the part of the Garage Complex which shall be constructed on parts of the Marina Site and the Britannia Site.

"Block of Apartments" or "Block" means the block of apartments forming part of the Building with its own independent entrance, without official number and unnamed, in Ta' Xbiex Sea Front, Ta' Xbiex, which the Parties are constructing on parts of the Marina Site and the Britannia Site substantially as shown on the elevation plan annexed to the deed as Document B1 but ultimately in accordance with the Building Permits, and which, when constructed, shall have an entrance and lobby on the Ground Floor abutting onto Ta' Xbiex Sea Front substantially as shown on the plan annexed to the deed as Document B3, and shall overlie the Commercial Premises and part of the Garage Complex and shall be bounded on the south by Ta' Xbiex Sea Front, on the north by a projected road that shall be a prolongation of Triq l-Imradd and on the east by property of Seaview Marina, or more correct boundaries and save for any future development,

31 JUL 2006

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Not. Pierre Attard
(Firma tal persuna
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KAWZA TA' PREFERENZA:- (cont.)

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shall consist of: (a) the apartments which shall be constructed on the Marina Site (the Marina Apartments), (b) the apartments which shall be constructed on the Britannia Site (the Britannia Apartments), (c) the Block Common Parts which shall be constructed in part on the Marina Site and in part on the Britannia Site; and (d) the roofs and airspace overlying the Block Common Parts, the Marina Apartments and the Britannia Apartments.

"Garage Complex" means the complex of car parking spaces/ garages with two entrances on Ta' Xbiex Sea Front, Ta' Xbiex, one which shall be the entrance to the Lower Level of the Garage Complex shown marked with the letter A on the plan annexed to the deed as Document B2 and the other which shall be the entrance to the Upper Level of the Garage Complex shown marked with the letter B on the above-mentioned plan Document B2, which complex is being constructed on part of the Marina Site, on part of the Britannia Site and on adjacent land property of Seaview Marina, in accordance with the Building Permits, and shall consist of two levels namely the Lower Level and the Upper Level, shall underlie part of the Block of Apartments and part of the adjacent blocks of apartments property of Seaview Marina, and shall be bounded on the south in part by Ta' Xbiex Sea Front, in part by the Commercial Premises, in part by the Block of Apartments and in part by property of Seaview Marina, on the north by the road that shall be a prolongation of Triq L-Imradd and on the west by property of Cold Stores Developments Limited.

"Commercial Premises" means the tenement without official door number, situated on the Ground Floor underlying the Block of Apartments on the left hand side of the entrance to the Block of Apartments when one faces the Block from Ta' Xbiex Sea Front, with its own independent entrance and front terrace in Ta' Xbiex Sea Front, Ta' Xbiex, which Marina is constructing on part of the Marina Site, substantially as shown outlined in blue on the plan annexed to the deed as Document B3, but ultimately in accordance with the Building Permit, and which, when constructed, shall be bounded on the south by Ta' Xbiex Sea Front, on the north by part of the Garage Complex and on the east by the common entrance of the Block, or more correct boundaries.

"Apartment" means an apartment or penthouse in the Block of Apartments and "Apartments" shall be construed accordingly.

"Garage" means a lock-up garage or parking space in the Garage Complex and "Garages" shall be construed accordingly.

"Block Common Parts" means:

- i. the areas shown shaded in red and blue and with green transversal lines on the plan annexed to the deed as Document B3 and include the covered passage, the outside lobby, the main entrance, hall, garbage room, concierge/janitor's room with kitchenette and shower, stairs, landings,

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Not. Pierre Attard
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KAWZA TA' PREFERENZA:- (cont.)

13426

two lift shafts, two lifts and stairwell of the Block as well as the passages which interconnect the Block with the Garage Complex;

ii. the internal shafts of the Block, save as otherwise stated in the deed,

iii. the external walls of the Block and of the Commercial Premises, provided these shall be considered to constitute part of the Block Common Parts only for the purposes of the Condominium Act, the sharing of costs and the protection of the décor of the Building but shall otherwise be owned *pro diviso* as an integral part of an Apartment or of the Commercial Premises of which they form part;

iv. the drainage systems, communal plumbing and electrical systems and all other common parts mentioned in paragraph (c) of article five (5) of the Condominium Act;

whether such common parts are constructed on part of the Marina Site or on part of the Britannia Site or are owned by the Parties, whether in common or separately, but does not include the common dividing walls with neighbouring tenements and any part of the property underlying or overlying the Block even if such part underlies or overlies the Block Common Parts.

"Garage Common Parts" means the common areas in the Garage Complex, whether such common areas are situated on the Marina Site or on the adjacent land property of Seaview Marina or are owned by Marina or by Seaview Marina, which common parts consist of the main entrances of the Garage Complex which abut onto Ta' Xbiex Sea Front, the internal common ramps and drive ways, the communal drains, plumbing and electrical systems, and all services, installations and objects in the common areas of the Garage Complex intended for the common use or benefit of owners of divided units in the Garage Complex but does not include any of the above mentioned common parts which constitute part of the Block Common Parts, the land on which the Garage Complex is built, the property overlying the Garage Complex or any part which is not intended for common use.

"Ground Floor" means the floor at the level of Ta' Xbiex Sea Front shown on some of the Plans as Level 0, directly underlying the First Floor, comprising the entrance and lobby of the Block of Apartments, the Commercial Premises and the Lower Level of that part of the Garage Complex constructed on the Marina Site and the Britannia Site; the overlying floors are sequentially numbered First Floor, Second Floor, Third Floor, Fourth Floor and so on, and are respectively shown on some of the Plans as Level 1 up to Level 8 where Level 1 is the First Floor and Level 8 is the Eighth Floor.

"Portion A" means the divided portion of the Britannia Site shown with green transversal lines on the plan annexed to the deed marked B3 which extends from half the thickness of the roof slab which shall be constructed in Level 0 namely from the level of eleven and one half courses above the street level measured from Ta' Xbiex Sea Front downwards ad infinitum

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31 JUL 2006
Not. Pierre Attard
(Firma tal-persuna
li ta' applika għall-
iskrizzjoni).AQLEB

KAWZA TA' PREFERENZA:- (cont.)

measuring approximately one hundred and eighty one point eight five square metres (181.85sq.m.) bounded on the south by Ta' Xbiex Sea Front on the north by the remainder of the Britannia Site property of Britannia and on the west by the Marina Site.

"Portion B" means the divided portions of the Britannia Site shown shaded in blue on the plan annexed to the deed marked B3 consisting of:

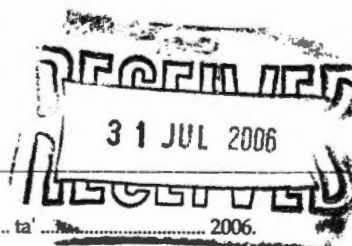
(a) the divided portion measuring approximately twelve point seven nine square metres (12.79sq.m) situated on the First Floor or Level 1, namely from eleven and one half courses above the street level measured from Ta' Xbiex Sea Front up to twenty three and one half courses above the said street level, bounded on the south, east and north by the remainder of the Britannia Site property of Britannia and on the west by part of Portion C hereunder described;

(b) the divided portion measuring approximately twelve point seven nine square metres (12.79sq.m) which extends from and including the Second Floor or Level 2 up to and including the Sixth Floor or Level 6, namely from twenty three and one half courses above the street level measured from Ta' Xbiex Sea Front up to eighty three and one half courses above the said street level, bounded on the south, east and north by the remainder of the Britannia Site property of Britannia and on the west by part of Portion C hereunder described; and

(c) the divided portion measuring approximately ten square metres (10sq.m) which extends from and including the Seventh Floor Level 7 up to and including the Eighth Floor or Level 8, namely from eighty three and one half courses above the street level measured from Ta' Xbiex Sea Front up to one hundred and seven and one half courses above the said street level, bounded on the south, east and north by the remainder of the Britannia Site property of Britannia and on the west by part of Portion C hereunder described.

"Building Permits" means the Full Development Permits issued by the Malta Environment and Planning Authority (MEPA) and all other permits which shall be issued by the relevant competent authorities and which are required for the construction of the Building.

"Architect" means Architect Paul Camilleri or such other architect appointed from time to time by Marina and Britannia for the construction and/or development of the Building.



Villun ta' 2006.

Direttur

Not. Pierre Attard
(Firma tal-persuna
li tappika għall-
iskrizzjoni).AQLEB

NOTA TA' RIFERENZA

RIFERENZA NRU.

TITOLU

2453

CANCELLATION

I. 13,426/2006

By virtue of a deed of Cancellation in my records of the twenty fifth day of March of the year two thousand and eight, the Creditor, "Brittania Property Developments Limited", registration number letter C three one eight three zero (C31830), gave its consent to the total cancellation of the herein mentioned Note of Privilege registered in its favour and against "Marina Wharf Limited", Doctor of Laws Georg Sapiano and his wife Audrey Sapiano, and Doctor of Laws Adrian Delia and his wife Doctor of Laws Nicole Vella De Fremaeux.

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Diettur

Firma tal-persuna li tapplika
ghall-iskrizzjoni
Not. Pierre Attard LL.D.

12689

Note for the inscription of: **Ipoteka u Privilegg** Progressive Number

Remarks (for official use only):

Creditor: HSBC Bank Malta p.l.c. *Ref. L. 5421/2010*Debtor: **DKS Limited**, (C-40770) bhala Debitur Principali
Gee Erre Limited, (C-14199) - msejha "is-socjeta' garanti".**Georg Sapiano** avukat, bin il-mejjet Alfred u Rose nee' Flynn, imwield Attard u residenti l-Qala, Ghawdex karta tal-identita numru 71568(M) u martu **Audrey Sapiano**, bint John Baptist u Angela nee' Fenech, imwielda Attard u residenti l-Qala, Ghawdex karta tal-identita numru 182272(M) bhala garanti, in solidum bejniethom, mad-debitur principali u mas-socjeta' garanti.

Credit: Is-somma ta' miljun, mitejn u ghoxrin elf lira Maltin (LM1,220,000) moghtija b'titlu ta' self, liema somma mislufa debitur principali iddelega lill-kreditur li accetta, li jhallasha bhala l-prezz tal-fond hawn taht deskritt, lill-vendituri. Is-self huwa ghal zmien stipulat. Jekk pero' jkun hemm ksur tal-obbligi, il-kreditur jista jiddikjara billi javza lid-debituri bil-miktub, li s-self huwa dovut u pagabbli minnufih, flimkien mal-imghaxijiet u l-ispejjez relattivi; il-kreditur ikun jista jinforza kull dritt li jappartjeni lilu ghal hlas lura tas-self u kull garanzija a favur tal-Bank tigi fis-sehh. Id-debituri jitolfu il-beneficciu taz-zmien moghti lilhom ghal-hlas tas-self u l-imghax relattiv u dan isehh minghajr ebda proceduri ohra. Ir-rata ta' l-interessi m'ghandix teccedi l-oghla rata li tippermetti l-ligi, l-interessi ghandhom ikunu dovuti fuq il-bilanc ta' kuljum tad-debitu skond il-prattika bankarja, liema rata ta' interessi hi stabbilita fis-sanction letter. Il-kundizzjonijiet l-ohra li jirrigwardaw dan is-self jinsabu fl-att tieghi n-Nutar sottofirmat ta' l-erbatax ta' Gunju tas-sena elfejn u sebgha (14.06.2007)

Cause of preference: **Ipoteka Generali** fuq il-beni kollha tad-debitur Principali, in generali, prezenti u futuri, kif ukoll **Ipoteka Specjali u Privilegg Specjali**, moghti lill-kreditur bil-ligi, fuq il-fond bin-numru erbgha u erbghin (44), Madliena Road, Madliena soggett ghal-piz piju annwu u perpetwu ta' lira u hamsa u ghoxrin centzmu (Lm1.25) altrimenti liberu u frank minn cnus u pizijiet ohra bid-drittijiet u l-pertinenzi kollha tieghu nkluz il-gnien li jinsab imdawwar b'hajt gholi u jikkonfina mill-grigal ma beni tal-Knisja jew l-aventi kawza taghha, minn nofsinhar ma sqaq bla isem u mill-punent ma Madliena Road, u **Ipoteka Generali** fuq il-beni kollha tal-garanti u s-socjeta garanti, filwaqt li Gee Erre Limited tat **Ipoteka Specjali** fuq l-appartamenti nternament immarkati bin-numri wiehed (1), sebgha (7), hdax (11), u tnax (12) formanti parti minn blokk bini bin-numru estern ghoxrin (20) gia mija u tletin (130), msemmi "Saint Mary" fi Triq Guze Howard, tas-Sliema, u inkluz ma dawn l-appartamenti hemm is-sehem taghhom indiviz tal-partijiet komuni tal-blokk, soggetti flimkien ghas-sehem taghhom ta' cens annwu u perpetwu ta' erbatax-il lira Maltin u hamsa u ghoxrin centezmu (Lm14.25), liema cens huwa gravanti ukoll is-sitt car spaces li jinsabu f'"elevated basement level" fl-istess blokk, u eskluż minn din l-ipoteka hemm l-arja sovrastanti l-blokk, filwaqt li l-garanti Audrey u Georg Sapiano taw **Ipoteka Specjali** fuq l-appartament internament immarkat bin-numru tnax (12) i-Dolmen Court, fil-Qawra, fil-limiti ta' San Pawl il-Bahar, fi blokk bla numru fi Triq Ghawdex, liema blokk flats jikkonfina mill-Punent ma l-imsemmija triq li twassal ghal Qawra road, u Tramuntana u Nofsinhar mas-successuri fit-titolu ta' Melita Properties Limited, u inkluz ma dan il-flat hemm is-sehem indiviz relattiv tal-partijiet komuni tal-blokk u li-izvilupp kollu kif jirrisulta mill-atti li jirregolaw it-titlu ta' din (CONT)

Illum

- 4 JUL 2007

Direttur

Dr Roland Wadjet
(Nutar Pubbliku, Malta)

12689

Note for the inscription of: Progressive Number

Remarks (for official use only):

Creditor:

Debtor:

Credit:

Cause of preference: (CONT) il-propjeta komprendenti il-bejt, it-tarag, l-access u l-gnien tal-madwar, il-partijiet komuni tal-ispazji miftuha madwar il-flat tal-kumpless, l-iswimming pool, soggett kollox ghas-subcens annwu, perpetwu u rivedibbli ta' hamsin lira Maltin (LM50), pagabbli lill-Edrichton Development Company Limited, liema cens hu rivedibbli skond kif indikat fl-att tan-Nutar Mario Felice datat it-tletin ta' April tas-sena elf disa mija tmienja udisghin (30.4.1998), kif ukoll l-istess Georg u Audrey Sapiano taw **Ipoteka Speċjali** fuq il-dar bin-numru erbatax (14) drabi ohra indikata li kienet bla numru fi Sqaq bla numru li jisbokka fi Triq Ta' Cini, l-Qala, Ghawdex, bil-giardina annessa tal-kejl ta' circa mitejn u ghaxar metri kwadri (210 m.k.), u li fuq parti minn din il-giardina illum hemm mibnija estensjoni tal-istess dar, liema sqaq li jaghti access ghal dan il-fond huwa komuni ma diversi nies ohra, kif ukoll fuq porzjon art kontigwa imsejha "Tat-Tork", fil-limiti tal-Qala, Ghawdex, tal-kejl ta' circa elf mija hamsa u tletin metri kwadri (1135m.k.), tal-kejl kollu li fiha li tmiss Lvant in parti ma passagg privat li minnhu l-istess art hija accessibbli u jisbokka fi Triq Ta' Cini u in parti ma beni tal-imsemmija konjugi Sapiano, Punent u Tramuntana ma beni ta' David Muscat u ohrajn, inkluza l-ispiera ezistenti f'din l-art u kamra zghira rurali bla numru, kif ukoll fuq tlett porzjonijiet ta' art kontigwi tal-kejl, l-ewwel wahda ta' circa tlieta u ghoxrin punt sitta metri kwadri (23.6m.k.) konfinanti lvant ma Triq Ta' Cini, Nofsinhar ma beni ta' Francesca Buttigieg u Tramuntana ma beni ta' Pawlu Buttigieg, l-ohra tal-kejl ta' circa mija erbgha u tletin punt wiehed metri kwadri, konfinanti Nofsinhar mal-fond numru hmistax (15) Triq Ta' Cini, Tramuntana ma Sqaq u Lvant ma beni ta' Vincent Muscat u l-ohra tal-kejl ta' circa wiehed u ghoxrin punt erbgha metri kwadri (21.4m.k.) tmiss Tramuntana ma l-isqaq imsemmi, Nofsinhar ma beni ta' Raymond Camilleri u Punent ma beni ta' Vincent Muscat, soggett flimkien dawn il-tlett porzjonijiet zghar ta' art ghall tlett quddiesiet letti fis-sena li jithallsu fl-Knisja Kollegjali tan-Nadur, kif ukoll fuq porzjoni zghira ta' art fi Triq Ta' Cini, kontigwa mal-propjeta fuq imsemmija, tal-kejl ta' circa sittin metri kwadri li tmiss min-Nofsinhar ma beni tal-familja Bugeja, Lvant u Tramuntana mal-propjeta fuq imsemmija, propjeta tal-konjugi Sapiano, kif ukoll fuq porzjoni ta' art ukoll kontigwa, tal-kejl ta' circa tlett mitt metri kwadri, konfinanti Tramuntana Lvant u Punent mal-propjeta tal-imsemmija konjugi Sapiano, kif ukoll fuq porzjon ta' art diviza fi Triq ta' Cini, fil-Qala, f'Ghawdex, tal-kejl ta' tlett mija sebgha u sebghin metri kwadri (377 m.k.), liema porzjon ta' art tikkonfina Nofsinhar mal-propjeta tal-kompraturi, Punent ma propjeta ta' certu Cini, Tramuntana ma propjeta ta' Dottor Robert u Patricia Sciberras, u Grigal ma propjeta tal-istess vendituri, liema porzjon ta' art ghandha access minn porzjoni ohra mill-istess art, propjeta tal-istess vendituri li taghti ghal Triq Ta' Cini u liema porzjon ha tigi zviluppata fi pjazza komuni, liema access gie kostitwit bhala servitu perpetwu a favur tal-propjeta liema access huwa bir-rigel, bl-ingenji u b'karozzi u liema propjeta li fuqha hemm l-access ghandha kejl ta' circa mitejn u ghaxar metri kwadri (210 m.k.) u tikkonfina mill-irjeh kollha ma propjeta tal-vendituri jew l-aventi kawza taghhom hlief ghal Lvant fejn taghti ghat-triq ta' Cini. L-entratura ghall-din l-art mhux anqas minn sitt metri faccata ghall-fuq it-triq. Mill-bqija l-imsemmija propjeta hija soggetta ghal u tgawdi mis-servituijiet rizultanti mill-posizzjoni taghha, bil-pussess battal, u bhala mill-bqija libera u franka bid-drittijiet u l-pertinenzi kollha taghha.

Illum 20

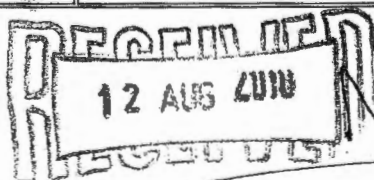
Direttur

Dr Roland Wadja

(Nutar Pubbliku, Malta)

Nota ta'Riferenza

Riferenza Nru: 005421	Title Reduction
15705/2000 13376/2005 10253/2006 12689/2007 16263/2007	By a deed in my records of the fifth of August of the year two thousand and ten (5.8.2010) the creditor HSBC Bank Malta p.l.c. gave its consent for the reduction of its hypothecary and privileged rights arising out of the hereinmentioned credit insofar as these affect:- an apartment internally numbered nine (9) forming part of an block named "Forth Mansions" in Ta' Xbiex Seafront, Ta' Xbiex, together with a as a <i>pro indiviso</i> share of the Block's Common Parts, which block has its own independent entrance, and is without official number and unnamed, and is bounded on the south by Ta' Xbiex Sea Front, on the north by a projected road that shall be a prolongation of Triq l-Imradd and on the east by property of Seaview Marina, or more correct boundaries. The said common parts of the block include the covered passage, the outside lobby, the main entrance, hall, garbage room, concierge/janitor's room with kitchenette and shower, stairs, landings, two lift shafts, two lifts and stairwell of the Block as well as the passages which interconnect the Block with the Garage Complex; the internal shafts of the Block, save as otherwise stated, the external walls of the Block and of the Commercial Premises, provided these shall be considered to constitute part of the Block Common Parts only for the purposes of the Condominium Act, the sharing of costs and the protection of the décor of the Building but shall otherwise be owned <i>pro indiviso</i> as an integral part of an Apartment or of the Commercial Premises of which they form part; the drainage systems, communal plumbing and electrical systems and all other common parts mentioned in paragraph (c) of article five (5) of the Condominium Act; but does not include the common dividing walls with neighbouring tenements and any part of the property underlying or overlying the Block even if such part underlies or overlies the Block Common Parts. The Block Common Parts are subject to the perpetual servitudes mentioned hereunder in favour of each and every Apartment which shall at any time form part of the Block (including any future developments which may be added to the Block) (the Dominant Tenements) consisting of: i. the perpetual right of pedestrian passage and access at all times from Ta' Xbiex Sea Front to all the Apartments which may at any time form part of the Block and to the Garage Complex and vice versa; ii. the perpetual right to use the Block Common Parts for the purpose they are intended, which right of use is transferable to third parties together with each one of the Apartments; iii. the right to open doors from the Apartments onto the Block Common Parts as is necessitated from their physical position in the Block; iv. the right to pass any and all common or separate services, pipes, drains and wiring, provided that all services are installed as required by standard building practice and in the locations made available for this purpose; v. the right to interconnect the Garage



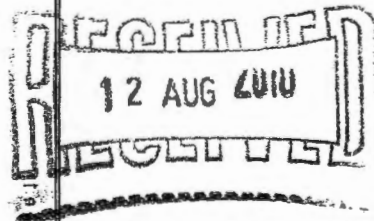
005421

Complex with the Block Common Parts in the places shown on a plan annexed to a deed of Notary Pierre Attard dated the twelfth of July of the year two thousand and six (12.7.2006);

which servitude and rights of use mentioned in this Clause shall be enjoyed in common between all the Condomini from time to time in the Block as subject to the provisions set out in the abovementioned deed of Notary Pierre Attard and other terms, restrictions and conditions mentioned in the said deed.

The said property is otherwise free and unencumbered and free from any ground-rents, burdens, other servitudes, hypothecs, privileges, any other rights of whatever type or nature, whether real or personal, in favour of third parties, law-suits and any litigation whatsoever, and with free and vacant possession and as subject to all those terms and conditions mentioned in the abovementioned deed of Notary Pierre Attard.

The bank retained firm and unimpaired all its other rights arising out of the said note saving the abovementioned waiver of rights.



Today..... 20.....

Director

Dr Roland John Wadge
(Notary Public, Malta)

16263

Note for the inscription of: **Ipoteka**

Progressive Number

Remarks (for official use only):

Creditor: HSBC Bank Malta p.l.c.

Ref. 5421/2010

Debtor: **Georg Sapiano** avukat, bin il-mejjet Alfred u Rose nee Flynn, imwieled Attard u residenti l-Qala, Ghawdex karta tal-identita numru 71568(M) u martu **Audrey Sapiano**, bint John Baptist u Angela nee Fenech, imwiela Attard u residenti l-Qala, Ghawdex karta tal-identita numru 182272(M)

Credit: Is-somma ta' sittin elf lira Maltin (Lm60,000) moghtija b'titu ta' self, liema somma mislufa ghandha tintuza mid-debituri bhala parti mill-prezz tal-fond li se jinxtara mid-debituri b'att separat fil-Qala, Ghawdex. Is-self huwa ghal zmien stipulat. Jekk pero' jkun hemm ksar tal-obbligi, il-kreditur jista jiddikjara billi javza lid-debituri bil-miktub, li s-self huwa dovut u pagabbli minnufih, flimkien mal-imghaxxijiet u l-ispejjez relattivi; il-kreditur ikun jista jinforza kull dritt li jappartjeni lilu ghal hlas lura tas-self u kull garanzija a favur tal-Bank tigi fis-sehh. Id-debituri jitlefu il-beneficju taz-zmien moghti lilhom ghal-hlas tas-self u l-imghax relattiv u dan isehh minghajr ebda proceduri ohra. Ir-rata ta' l-interessi m'ghandiex teccedi l-oghla rata li tippermetti l-ligi, l-interessi ghandhom ikunu dovuti fuq il-bilanc ta' kuljum tad-debitu skond il-prattika bankarja, liema rata ta' interessi hi stabbilita fis-sanction letter. Il-kundizzjonijiet l-ohra li jirrigwardaw dan is-self jinsabu fl-att tiegħi n-Nutar sottofirmat ta' l-erbgha ta' Lulju tas-sena elfejn u sebgha (4.07.2007)

Cause of preference: **Ipoteka Generali** fuq il-beni kollha tad-debituri, in generali, prezenti u futuri, **Ipoteka Specjali** fuq **Ipoteka Specjali** fuq il-dar bin-numru erbatax (14) u hmistax (15) drabi ohra indikata li kienet bla numru fi Sqaq bla numru li jisbokka fi Triq Ta' Cini, l-Qala, Ghawdex, liema sqaq li jaghti access ghal dan il-fond huwa komuni ma diversi nies ohra, kif ukoll fuq diversi porzjonijiet ta art li huma kontigwi mal-istess farmhouse imsejha "Tat-Tork", tal-kejl kollox flimkien inkluz l-istess farmhouse ta' circa elfejn mitejn u tnejn u ghoxrin metri kwadri (2222 m.k.) konfinanti din il-propjeta kollha Lvant in parti ma passagg privat li minnhu l-istess art hija accessibbli u jisbokka fi Triq Ta' Cini, Tramuntana ma beni ta Dottor Robert u Patricia Sciberras, u Nofsinhar ma propjeta tal-familja Bugeja, inkluz l-ispiera ezistenti f'din l-art, soggetta in parti din l-art, għall tlett quddiesiet letti fis-sena li jithallsu fl-Knisja Kollegjali tan-Nadur, liema propjeta ghandha ukoll access minn porzjoni ohra mill-istess art, propjeta ta Karkanja Developments Limited li taghti għall Triq Ta' Cini u liema porzjon ha tigi zviluppata fi pjazza komuni, liema access gie konstitwit bhala servitu perpetwu a favur tal-propjeta liema access huwa bir-rigel, bl-ingenji u b'karozzi u liema propjeta li fuqha hemm l-access ghandha kejl ta' cirka mitejn u ghaxar metri kwadri (210 m.k.) u tikkonfina mill-irjeh kollha ma propjeta ta' Karkanja Developments Limited jew l-aventi kawza tagħha hlief għall Lvant fejn taghti għat-triq ta' Cini. L-entratura għall-din l-art mhux anqas minn sitt metri faccata għall-fuq it-triq. Mill-bqija l-imsemmija propjeta hija soggetta għal u tgawdi mis-servituijiet rizzultanti mill-posizzjoni tagħha, bil-pussess battal, u bhala mill-bqija libera u franka bid-drittijiet u l-pertinenzi kollha tagħha, kif ukoll zewg porzjonijiet ta' art tal-kejl, l-ewwel wahda ta' cirka tlieta u ghoxrin punt sitta metri kwadri (23.6m.k.) konfinanti lvant ma Triq Ta' Cini, Nofsinhar ma beni ta' Francesca Buttigieg u Tramuntana ma beni ta' Pawlu Buttigieg u l-ohra ta' cirka wiehed u ghoxrin punt erbgha metri kwadri (21.4 m.k.) tmiss Tramuntana ma l-isqaq imsemmi, Nofsinhar ma beni ta' Raymond Camilleri u Punent ma beni ta' Vincent Muscat. Din il-propjeta kollha ipotekata taqa f' "Land Registration Area".

Illum 20.....

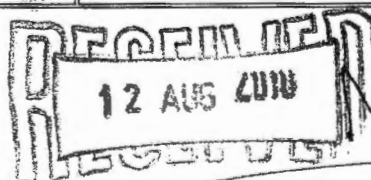
Direttur

Dr Roland Wadge
(Nutar Pubbliku, Malta)

Dr. A. Dingli

Nota ta'Riferenza

Riferenza Nru: 005421	Title Reduction
15705/2000 13376/2005 10253/2006 12689/2007 16263/2007	By a deed in my records of the fifth of August of the year two thousand and ten (5.8.2010) the creditor HSBC Bank Malta p.l.c. gave its consent for the reduction of its hypothecary and privileged rights arising out of the hereinmentioned credit insofar as these affect:- an apartment internally numbered nine (9) forming part of an block named "Forth Mansions" in Ta' Xbiex Seafront, Ta' Xbiex, together with a as a <i>pro indiviso</i> share of the Block's Common Parts, which block has its own independent entrance, and is without official number and unnamed, and is bounded on the south by Ta' Xbiex Sea Front, on the north by a projected road that shall be a prolongation of Triq l-Imradd and on the east by property of Seaview Marina, or more correct boundaries The said common parts of the block include the covered passage, the outside lobby, the main entrance, hall, garbage room, concierge/janitor's room with kitchenette and shower, stairs, landings, two lift shafts, two lifts and stairwell of the Block as well as the passages which interconnect the Block with the Garage Complex; the internal shafts of the Block, save as otherwise stated, the external walls of the Block and of the Commercial Premises, provided these shall be considered to constitute part of the Block Common Parts only for the purposes of the Condominium Act, the sharing of costs and the protection of the décor of the Building but shall otherwise be owned <i>pro indiviso</i> as an integral part of an Apartment or of the Commercial Premises of which they form part; the drainage systems, communal plumbing and electrical systems and all other common parts mentioned in paragraph (c) of article five (5) of the Condominium Act; but does not include the common dividing walls with neighbouring tenements and any part of the property underlying or overlying the Block even if such part underlies or overlies the Block Common Parts. The Block Common Parts are subject to the perpetual servitudes mentioned hereunder in favour of each and every Apartment which shall at any time form part of the Block (including any future developments which may be added to the Block) (the Dominant Tenements) consisting of: i. the perpetual right of pedestrian passage and access at all times from Ta' Xbiex Sea Front to all the Apartments which may at any time form part of the Block and to the Garage Complex and vice versa; ii. the perpetual right to use the Block Common Parts for the purpose they are intended, which right of use is transferable to third parties together with each one of the Apartments; iii. the right to open doors from the Apartments onto the Block Common Parts as is necessitated from their physical position in the Block; iv. the right to pass any and all common or separate services, pipes, drains and wiring, provided that all services are installed as required by standard building practice and in the locations made available for this purpose; v. the right to interconnect the Garage



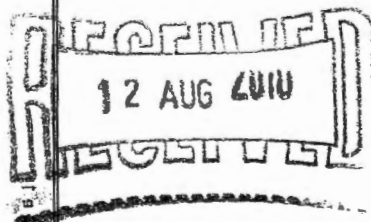
805421

Complex with the Block Common Parts in the places shown on a plan annexed to a deed of Notary Pierre Attard dated the twelfth of July of the year two thousand and six (12.7.2006);

which servitude and rights of use mentioned in this Clause shall be enjoyed in common between all the Condomini from time to time in the Block as subject to the provisions set out in the abovementioned deed of Notary Pierre Attard and other terms, restrictions and conditions mentioned in the said deed.

The said property is otherwise free and unencumbered and free from any ground-rents, burdens, other servitudes, hypothecs, privileges, any other rights of whatever type or nature, whether real or personal, in favour of third parties, law-suits and any litigation whatsoever, and with free and vacant possession and as subject to all those terms and conditions mentioned in the abovementioned deed of Notary Pierre Attard.

The bank retained firm and unimpaired all its other rights arising out of the said note saving the abovementioned waiver of rights.



Today..... 20.....

Director

Dr Roland John Wadge
(Notary Public, Malta)

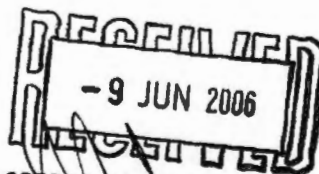
tletin ta' Mejjun tas-sena
elfejn u sitta (30.05.2006)

10335

Karkanja Developments Limited (C34155) u Mary Ann Cauchi mart Anthony, bint Coronato Ellul u Pia nee Zammit, mwielda Rabat, Ghawdex u residenti Nadur, Ghawdex, bin-numru tal-karta ta' l-identita 5767(G) u Anthony Cauchi, self employed, bin il-mejjet Mariano Cauchi u Pauline nee Buttigieg, mwield u residenti Nadur Ghawdex bin-numru tal-karta ta' l-identita 17362(G) in solidum bejniethom bieghu u trasferew lil Dottor Georg Sapiano, avukat, bin Alfred u Rose-Marie nee Flynn, mwield Attard u residneti Sliema bin-numru tal-karta ta' l-identita 71568(M) u Audrey Sapiano, bint John Baptist Ellul u Angela nee Fenech, mwielda Attard u residenti Sliema, bin-numru tal-karta ta' l-identita 182272(M) in solidum bejniethom, porzjon ta' art diviza fi Triq ta' Cini, fil-Qala, f'Ghawdex, tal-kejl ta' tlett mija sebgha u sebghin metri kwadri (377 m.k.) liema porzjon ta' art tikkonfina Nofsinhar mal-propjeta tal-kompraturi, Punent ma propjeta ta' certu Cini, Tramuntana ma propjeta ta' Dottor Robert u Patricia Sciberras, u Grigal ma propjeta tal-istess vendituri, liema porzjon ta' art ghandha access minn porzjoni ohra mill-istess art, propjeta tal-istess vendituri li taghti ghal Triq Ta' Cini u liema porzjon ha tigi zviluppata fi pjazza komuni, liema access qed jigi kostitwit bhala servitu perpetwu a favur tal-propjeta li qed tinx tara b'dan l-att u l-propjeta fuq imsemmija, liema access huwa bir-rigel, bl-ingenji u b'karozzi u liema propjeta li fuqha hemm l-access ghandha kejl ta' cirka mitejn u ghaxar metri kwadri (210 m.k.) u tikkonfina mill-irjeh kollha ma propjeta tal-vendituri jew l-aventi kawza taghhom hlief ghal Lvant fejn taghti ghat-triq ta' Cini, liema porzjon ta' art komuni hija mberfla bl-orangio fuq l-annessa pjanta. L-entrata ghall-din l-art ghadha tkun mhux anqas minn sitt metri faccata ghall-fuq it-triq. L-art li qed tinx tara ser tiffirma parti mir-residenza ordinarja tal-kompraturi. Mill-bqija l-imsemmija propjeta qed tinbiegh soggetta ghal u tgawdi mis-servituijiet rizultanti mill-posizzjoni taghha, bil-pussess battal, u bhala mill-bqija libera u franka bid-drittijiet u l-pertinenzi kollha taghha, versu l-prezz ta' mija u erbat'elef lira Maltin (Lm104,000) u taht il-kundizzjonijiet msemmija fl-att.

~~L-imbroglija Anarey u Mart Georg Sapiano~~

Dr Roland Wadge
Nutar Pubbliku, Malta



Dr. A. Dingli

13471

The twelfth day of July of the
year two thousand and six.

The following capitalised terms have the following meanings respectively assigned to them:

"Marina" means "Marina Wharf Limited", registration number letter "C" three three zero three seven (C33037).

"Brittania" means "Brittania Property Developments Limited", registration number letter C three one eight three zero (C31830).

"Spouses Sapiano" means Doctor of Laws Georg Sapiano, son of the late Alfred Sapiano and of Rose nee Flynn, born in Attard and residing at Qala, Gozo (I.D.71568M) and his wife Audrey Sapiano, daughter of John Baptist Ellul and Angela nee Fenech, born in Attard and residing at Qala Gozo (I.D.182272M).

"Spouses Delia" means Doctor of Laws Adrian Delia, an advocate, son of Andrew Delia and of Alice née Anastasi, born in Saint Julians and residing at Siggiewi (I.D.299369M) and his wife Doctor of Laws Nicole Vella De Fremeaux, daughter of Peter Vella De Fremeaux and of Madleine née Miller, born in Saint Julians and residing at Siggiewi, (I.D.431472M).

"Parties" means Marina, Spouses Sapiano, Spouses Delia and Brittania, collectively.

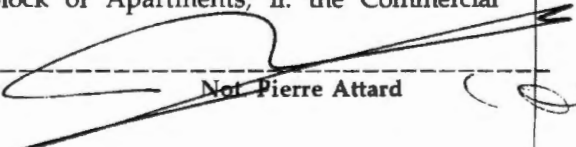
"Seaview Marina" means "Seaview Marina Real Estate Limited", registration number letter "C" three one six two two (C31622).

"Plans" means the plans annexed to the deed and marked as documents B1, B2, B3, B4 and B5 respectively.

"Marina Site" means the "L" shaped portion of land measuring approximately four hundred and thirty one square metres (431sq.m.) with frontage on Ta' Xbiex Sea Front, Ta' Xbiex, bounded on the south in part by Ta' Xbiex Sea Front and in part by the Brittania Site property of Brittania, on the north by a projected road that shall be a prolongation of Triq l-Imradd and on the east in part by the Brittania Site property of Brittania and in part by property of Seaview Marina, or more correct boundaries, shown outlined in red on the plan annexed to the deed as Document B2.

"Brittania Site" means the portion of land measuring approximately two hundred sixty four square metres (264sq.m.) with frontage on Ta' Xbiex Sea Front, Ta' Xbiex, bounded on the south by Ta' Xbiex Sea Front, on the north by part of the Marina Site and on the west by part of the Marina Site or more correct boundaries, shown outlined in blue on the site plan annexed to the deed as Document B2.

"Building" means the building without number and as yet unnamed in Ta' Xbiex Sea Front, Ta' Xbiex which the Parties are constructing on the Marina Site and on the Brittania Site, bounded on the south by Ta' Xbiex Sea Front, on the north by a projected road that shall be a prolongation of Triq l-Imradd and on the east by property of Seaview Marina, or more correct boundaries consisting of: i. the Block of Apartments; ii. the Commercial


Not Pierre Attard

13471

Premises; and iii. for the purposes of the deed, the part of the Garage Complex which shall be constructed on parts of the Marina Site and the Britannia Site.

"Block of Apartments" or "Block" means the block of apartments forming part of the Building with its own independent entrance, without official number and unnamed, in Ta' Xbiex Sea Front, Ta' Xbiex, which the Parties are constructing on parts of the Marina Site and the Britannia Site substantially as shown on the elevation plan annexed to the deed as Document B1 but ultimately in accordance with the Building Permits, and which, when constructed, shall have an entrance and lobby on the Ground Floor abutting onto Ta' Xbiex Sea Front substantially as shown on the plan annexed to the deed as Document B3, and shall overlie the Commercial Premises and part of the Garage Complex and shall be bounded on the south by Ta' Xbiex Sea Front, on the north by a projected road that shall be a prolongation of Triq l-Imradd and on the east by property of Seaview Marina, or more correct boundaries and save for any future development, shall consist of: (a) the apartments which shall be constructed on the Marina Site (the Marina Apartments), (b) the apartments which shall be constructed on the Britannia Site (the Britannia Apartments), (c) the Block Common Parts which shall be constructed in part on the Marina Site and in part on the Britannia Site; and (d) the roofs and airspace overlying the Block Common Parts, the Marina Apartments and the Britannia Apartments.

"Garage Complex" means the complex of car parking spaces/ garages with two entrances on Ta' Xbiex Sea Front, Ta' Xbiex, one which shall be the entrance to the Lower Level of the Garage Complex shown marked with the letter A on the plan annexed to the deed as Document B2 and the other which shall be the entrance to the Upper Level of the Garage Complex shown marked with the letter B on the above-mentioned plan Document B2, which complex is being constructed on part of the Marina Site, on part of the Britannia Site and on adjacent land property of Seaview Marina, in accordance with the Building Permits, and shall consist of two levels namely the Lower Level and the Upper Level, shall underlie part of the Block of Apartments and part of the adjacent blocks of apartments property of Seaview Marina, and shall be bounded on the south in part by Ta' Xbiex Sea Front, in part by the Commercial Premises, in part by the Block of Apartments and in part by property of Seaview Marina, on the north by the road that shall be a prolongation of Triq L-Imradd and on the west by property of Cold Stores Developments Limited.

"Commercial Premises" means the tenement without official door number, situated on the Ground Floor underlying the Block of Apartments on the left hand side of the entrance to the Block of Apartments when one faces the Block from Ta' Xbiex Sea Front, with its own independent entrance and front terrace in Ta' Xbiex Sea Front, Ta' Xbiex, which Marina is constructing on part of the Marina Site, substantially as shown outlined in blue on the plan annexed to the deed as Document B3, but ultimately in accordance with the Building Permit, and which, when constructed, shall be bounded on the south by Ta' Xbiex Sea Front, on the north by part of the Garage Complex and on the east by the common entrance of the Block, or more correct boundaries.

Not. Pierre Attard

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"Sapiano Property" means the divided portion of the Marina Site namely the airspace intended for the construction therein of the apartment formerly referred to as number six (6) but which shall be re-numbered nine (9) and of the airspace intended for the construction therein of two parking spaces as better described in the deed in the Records of Notary Pierre Attard of the twenty first day of March of the year two thousand and five (21/3/2005) as well as a *pro indiviso* share of the Block Common Parts which will be constructed on the Marina Site.

"Delia Property" means the divided portion of the Marina Site namely the airspace intended for the construction therein of the apartment on the Second Floor which shall be internally numbered three (3) and of the airspace intended for the construction therein of one parking space as better described in the deed in the Records of Notary Pierre Attard of the first day of September of the year two thousand and four (1/9/2004) as well as a *pro indiviso* share of the Block Common Parts which will be constructed on the Marina Site.

"Apartment" means an apartment or penthouse in the Block of Apartments and "Apartments" shall be construed accordingly.

"Garage" means a lock-up garage or parking space in the Garage Complex and "Garages" shall be construed accordingly.

"Block Common Parts" means:

- i. the areas shown shaded in red and blue and with green transversal lines on the plan annexed to the deed as Document B3 and include the covered passage, the outside lobby, the main entrance, hall, garbage room, concierge/janitor's room with kitchenette and shower, stairs, landings, two lift shafts, two lifts and stairwell of the Block as well as the passages which interconnect the Block with the Garage Complex;
- ii. the internal shafts of the Block, save as otherwise stated in the deed,
- iii. the external walls of the Block and of the Commercial Premises, provided these shall be considered to constitute part of the Block Common Parts only for the purposes of the Condominium Act, the sharing of costs and the protection of the décor of the Building but shall otherwise be owned *pro diviso* as an integral part of an Apartment or of the Commercial Premises of which they form part;
- iv. the drainage systems, communal plumbing and electrical systems and all other common parts mentioned in paragraph (c) of article five (5) of the Condominium Act;

whether such common parts are constructed on part of the Marina Site or on part of the Britannia Site or are owned by the Parties, whether in common or separately, but does not include the common dividing walls with neighbouring tenements and any part of the property underlying or overlying the Block even if such part underlies or overlies the Block Common Parts.

"Garage Common Parts" means the common areas in the Garage Complex, whether such common areas are situated on the Marina

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Site or on the adjacent land property of Seaview Marina or are owned by Marina or by Seaview Marina, which common parts consist of the main entrances of the Garage Complex which abut onto Ta' Xbiex Sea Front, the internal common ramps and drive ways, the communal drains, plumbing and electrical systems, and all services, installations and objects in the common areas of the Garage Complex intended for the common use or benefit of owners of divided units in the Garage Complex but does not include any of the above mentioned common parts which constitute part of the Block Common Parts, the land on which the Garage Complex is built, the property overlying the Garage Complex or any part which is not intended for common use.

"Ground Floor" means the floor at the level of Ta' Xbiex Sea Front shown on some of the Plans as Level 0, directly underlying the First Floor, comprising the entrance and lobby of the Block of Apartments, the Commercial Premises and the Lower Level of that part of the Garage Complex constructed on the Marina Site and the Britannia Site; the overlying floors are sequentially numbered First Floor, Second Floor, Third Floor, Fourth Floor and so on, and are respectively shown on some of the Plans as Level 1 up to Level 8 where Level 1 is the First Floor and Level 8 is the Eighth Floor.

"Portion A" means the divided portion of the Britannia Site shown with green transversal lines on the plan annexed to the deed marked B3 which extends from half the thickness of the roof slab which shall be constructed in Level 0 namely from the level of eleven and one half courses above the street level measured from Ta' Xbiex Sea Front downwards ad infinitum measuring approximately one hundred and eighty one point eight five square metres (181.85sq.m.) bounded on the south by Ta' Xbiex Sea Front on the north by the remainder of the Britannia Site property of Britannia and on the west by the Marina Site.

"Portion B" means the divided portions of the Britannia Site shown shaded in blue on the plan annexed to the deed marked B3 consisting of:

(a) the divided portion measuring approximately twelve point seven nine square metres (12.79sq.m) situated on the First Floor or Level 1, namely from eleven and one half courses above the street level measured from Ta' Xbiex Sea Front up to twenty three and one half courses above the said street level, bounded on the south, east and north by the remainder of the Britannia Site property of Britannia and on the west by part of Portion C hereunder described;

(b) the divided portion measuring approximately twelve point seven nine square metres (12.79sq.m) which extends from and including the Second Floor or Level 2 up to and including the Sixth Floor or Level 6, namely from twenty three and one half courses above the street level measured from Ta' Xbiex Sea Front up to eighty three and one half courses above the said street level, bounded on the south, east and north by the remainder of the Britannia Site property of Britannia and on the west by part of Portion C hereunder described; and

(c) the divided portion measuring approximately ten square metres (10sq.m) which extends from and including the Seventh

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Floor Level 7 up to and including the Eighth Floor or Level 8, namely from eighty three and one half courses above the street level measured from Ta' Xbiex Sea Front up to one hundred and seven and one half courses above the said street level, bounded on the south, east and north by the remainder of the Britannia Site property of Britannia and on the west by part of Portion C hereunder described.

"Portion C" means the divided portions of the Marina Site shown shaded in red on the plan annexed to the deed marked B3 consisting of:

(a) the divided portion measuring approximately thirty nine point eight four square metres (39.84sq.m) situated on the Ground Floor or Level 0, namely from the street level of Ta' Xbiex Sea Front up to eleven and one half courses above the said street level, bounded on the south by Ta' Xbiex Sea Front, west and north by the remainder of the Marina Site and on the east in part by Portion A above described and in part by the remainder of the Britannia Site.

(b) the divided portion measuring approximately twenty one point seven square metres (21.7sq.m) situated on the First Floor or Level 1, namely from eleven and one half courses above the street level measured from Ta' Xbiex Sea Front up to twenty three and one half courses above the said street level, bounded on the south, west and north by the remainder of the Marina Site and on the east by part of Portion B above described;

(c) the divided portion measuring approximately twelve point five six square metres (12.56sq.m) which extends from and including the Second Floor or Level 2 up to and including the Sixth Floor or Level 6, namely from twenty three and one half courses above the street level measured from Ta' Xbiex Sea Front up to eighty three and one half courses above the said street level, bounded on the south, west and north by the remainder of the Marina Site and on the east by part of Portion B above described; and

(d) the divided portion measuring approximately eight point seven nine square metres (8.79sq.m) which extends from and including the Seventh Floor or Level 7 up to and including the Eighth Floor or Level 8, namely from eighty three and one half courses above the street level measured from Ta' Xbiex Sea Front up to one hundred and seven and one half courses above the said street level, bounded on the south, west and north by the remainder of the Marina Site and on the east by part of Portion B above described.

"Pro Rata" means: a) when it refers to the Block Common Parts the division of one by the number of Apartments which at any time shall exist in the Block of Apartments irrespective of the superficial area of an Apartment; and b) when it refers to the Garage Common Parts the division of one by the number of Garages which at any time shall exist in the Garage Complex irrespective of the superficial area of a Garage.

"Condominium Act" means the Condominium Act, Chapter three hundred and ninety eight (398) of the Laws of Malta and a

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"Condominium" and a "Condominus" have the same meaning specified in the said Act.

"Administrator" means the person appointed as such in accordance with article fifteen (15) of the Condominium Act.

"Building Permits" means the Full Development Permits issued by the Malta Environment and Planning Authority (MEPA) and all other permits which shall be issued by the relevant competent authorities and which are required for the construction of the Building.

"Architect" means Architect Paul Camilleri or such other architect appointed from time to time by Marina and Britannia for the construction and/or development of the Building.

"Contractor" means the building or other works contractors which may be appointed from time to time with the common accord of both Marina and Britannia, in respect of any part of the development of the Building.

"Annex One" means Document C annexed to the deed which sets out the terms and conditions which must be included by the Parties and Seaview Marina in any future transfer of the Apartments or the Garages and include the Regulations annexed thereto as Document C1 and the Condominium Rules annexed thereto as Document C2.

"Regulations" means the regulations, terms and conditions relating to the preservation of the Block of Apartments and the Commercial Premises and décor and the use of the Common Parts of the Block and of the properties within the Block set out in Document C1 annexed to Annex One as may be amended from time to time in accordance with the provisions of the Regulations.

"Condominium Rules" means the rules relating to the administration of the Block of Apartments and the apportionment of expenses relating to the Block Common Parts set out in Document C2 annexed to Annex One as may be approved, changed or modified by the Condomini at a meeting of the Condomini in accordance with the provisions of the Act.

Whereas:

(A) Marina owns the Marina Site excluding the Sapiano Property and the Delia Property.

(B) Spouses Sapiano own the Sapiano Property.

(D) Spouses Delia own the Delia Property.

(E) Britannia owns the Britannia Site.

(F) The Parties and Seaview Marina each own land on which the Garage Complex will be constructed.

(G) The Parties and Seaview Marina have agreed to construct on their respective portions of land one Garage Complex in accordance with the Building Permits so that on completion Seaview Marina will be the pro diviso owner of the Garages

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constructed on its land, Marina will be the *pro diviso* owner of the Garages constructed on its land, Spouses Sapiano shall be the *pro diviso* owners of the Garages constructed on their land, Spouses Delia shall be the *pro diviso* owners of a Garage constructed on their land and Brittania will be the *pro diviso* owner of the Garages constructed on its land, the Garage Common Parts constructed on the land owned by Seaview Marina will be owned by Seaview Marina and the Garage Common Parts constructed on the land owned by Marina will be owned by Marina, provided that the Garage Common Parts shall be for the common use of all the Garages under the terms and conditions set out in the deed, the Condominium Rules and the Regulations and subject to the servitudes mentioned herein.

(H) The Parties have agreed to construct on their respective sites the Building in accordance with the Building Permits and have also agreed to sell to each other undivided shares of Portion A, Portion B and Portion C as set out in the deed, so that on completion:

i. Marina shall be the *pro diviso* owner of the Marina Apartments (excluding the Sapiano Property and the Delia Property), of the Commercial Premises and of the underlying land and overlying roofs and airspace of all the property built on the Marina Site;

ii. Spouses Sapiano shall be the *pro diviso* owners of the apartment constructed on the Sapiano Property;

iii. Spouses Delia shall be the *pro diviso* owners of the apartment constructed on the Delia Property;

iv. Brittania shall be the *pro diviso* owners of the Brittania Apartments and of the roofs and airspace overlying parts of the Building built on the Brittania Site;

v. the Block Common Parts constructed in Portion A, Portion B and Portion C shall be owned *pro indiviso* as to one half (1/2) undivided share by Brittania and as to one half (1/2) undivided share by Marina, the Spouses Sapiano and the Spouses Delia *pro rata* between them in relation to the number of Marina Apartments which shall exist from time to time in the Block, and shall be for the common use of all the Apartments in the Block under the terms and conditions set out in the deed, Annex One, the Condominium Rules and the Regulations and shall be subject to the servitudes mentioned in the deed;

vi. Marina and Brittania shall own in equal shares between them the roof and airspace overlying the stairhood of the Block;

vii. the Building shall, save as otherwise expressly reserved in the deed, have one common uniform façade substantially as shown on the drawing of the elevations annexed to the deed marked B1 or as shall otherwise be mutually agreed between the Parties but ultimately in accordance with the Building Permits.

By virtue of the deed:

Brittania:

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1.1 sold and transferred to Marina six eights (6/8) undivided share, to the Spouses Sapiano one eight (1/8) undivided share, and to the Spouses Delia one eight (1/8) undivided share, and Marina, the Spouses Sapiano and the Spouses Delia in the proportions above mentioned purchased and acquired:

a) the one half (1/2) undivided share of the Block Common Parts in shell form which are being constructed on Portion A and Portion B, with all their rights and appurtenances, which common parts shall be for the common use of all the Apartments in the Block under the terms and conditions set out in the deed, Annex One, the Condominium Rules and the Regulations and shall be subject to the servitudes mentioned in the deed and are otherwise free and unencumbered and free from any ground-rents, burdens, other servitudes, hypothecs, privileges, any other rights of whatever type or nature, whether real or personal, in favour of third parties, law-suits and any litigation whatsoever, and with free and vacant possession, under the terms and conditions set out in the deed; and

b) the divided portion of the Britannia Site measuring point four seven metres (.47m) by one point one three metres (1.3m) approximately point five three square metres (.53sq.m.), shown shaded in brown on the plan annexed to the deed as Document B4, bounded on the south by the remainder of the Britannia Site, on the north by the Marina Site, and on the west and east in part by the remainder of the Marina Site and in part by the remainder of the Britannia Site, which divided portion commences from the level of the Second Floor or Level 2 of the Building and extends upwards *ad infinitum usque ad coelum* as subject to the condition that the dividing wall between the said divided portion and the remainder of the Britannia Site shall be constructed in stone or brick as a solid dividing wall between the two properties according to law and without any apertures therein and otherwise as free and unencumbered and free from any ground-rents, burdens, servitudes, hypothecs, privileges, any other rights of whatever type or nature, whether real or personal, in favour of third parties, law-suits and any litigation whatsoever, and with free and vacant possession, under the terms and conditions set out in the deed;

1.2 constituted in favour of Marina, the Spouses Sapiano and the Spouses Delia who in respect of their respective properties on the Marina Site accepted and acquired a perpetual servitude on the Britannia Site in favour of the Marina Site consisting of the right of each and every apartment in the Block which may exist at any time on the Marina Site to construct in the dividing walls between the Britannia Site and the Marina Site at every level (whether shown on the said plan or otherwise) of the Block constructed on the Marina Site:

(a) a glass wall of opaque double glass bricks between the points shown A - B on the plan annexed to the deed as Document B4 starting from the level of seven courses above the finished floor level, measuring two point six four metres (2.64m) wide and point seven three metres (.73m) high;

(b) a glass wall of opaque double glass bricks between the points shown C - D on the plan annexed to the deed as Document B4 starting from the level of seven courses above the finished floor

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level, measuring point nine six metres (.96m) wide and point seven three metres (.73m) high;

under the terms and conditions mentioned in the deed. With regards to the servitudes mentioned in clause two point one point two (2.1.2) of the deed, the Parties agreed that it shall be the exclusive responsibility of Marina, the Spouses Sapiano and the Spouses Delia to obtain at their sole risk and expense any building permits required for the glass walls contemplated therein to be constructed and that Marina, the Spouses Sapiano and the Spouses Delia may not make use of or utilise the aforesaid servitudes unless and until the necessary permits are issued. It being understood that if the aforesaid permits are not issued this shall not be considered just cause for Marina, the Spouses Sapiano and the Spouses Delia not to fulfil their obligations arising from the deed or to claim any reduction in the price stipulated in sub-clause two point two point one (2.2.1) of the deed.

The parties agreed that the above mentioned Block Common Parts and divided portion of the Britannia Site were sold and purchased and the above mentioned servitudes were granted and accepted in consideration of the global price of eighty thousand Maltese Liri (Lm80,000). The said price is apportioned between Marina, the Spouses Sapiano and the Spouses Delia pro rata between them.

2. Marina, the Spouses Sapiano and the Spouses Delia each for their respective shares sold and transferred to Britannia, which accepted, purchased and acquired the one half (1/2) undivided share of the Block Common Parts in shell form which are being constructed on Portion C, with all their rights and appurtenances, which common parts shall be for the common use of all the Apartments in the Block under the terms and conditions set out in the deed, Annex One, the Condominium Rules and the Regulations and shall be subject to the servitudes mentioned in the deed the Agreement and are otherwise free and unencumbered and free from any ground-rents, burdens, other servitudes, hypothecs, privileges, any other rights of whatever type or nature, whether real or personal, in favour of third parties, law-suits and any litigation whatsoever, and with free and vacant possession, under the terms and conditions set out hereunder; in consideration of the global price of ten thousand Maltese Liri (Lm10,000). The said price is apportioned between Marina, the Spouses Sapiano and the Spouses Delia pro rata between them.

3.1 Britannia transferred by title of exchange to Marina which accepted and acquired by the same title of exchange the one half (1/2) undivided share of the roof and airspace of the stairhood of the Block constructed on the Britannia Site namely the divided portion of the Britannia Site measuring approximately ten square metres (10sq.m) which extends from one hundred and seven and one half courses above the street level measured from Ta' Xbiex Sea Front upwards ad infinitum, usque ad coelum, bounded on the south, east and north by the remainder of the Britannia Site property of Britannia and on the west by the remainder of the roof of the said stairhood hereunder described.

3.2 In exchange Marina transferred by title of exchange to Britannia which accepted and acquired by the same title of exchange the one half (1/2) undivided share of the roof and

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airspace of the stairhood of the Block constructed on the Marina Site, namely the divided portion of the Marina Site measuring approximately eight point seven nine square metres (8.79sq.m) which extends from one hundred and seven and one half courses above the street level measured from Ta' Xbiex Sea Front upwards ad infinitum, usque ad coelum, bounded on the south, west and north by the remainder of the Marina Site and on the east by the remainder of the roof of the said stairhood above described;

under the terms and conditions mentioned in the deed. Marina and Britannia agreed that they shall co-own the roof and airspace overlying the stair-hood of the Building as subject to their respective right to utilise the said roof and airspace for the construction of common parts therein to serve any additional development which any one of them may construct on its respective airspace of the Block as set out in Clause five point six (5.6) of the deed. Marina and Britannia agreed that the respective one half undivided shares of the roof and airspace overlying the stairhood are each valued at three thousand Maltese Liri (Lm3000) and that consequently no owelty was due by any one of them to the other.

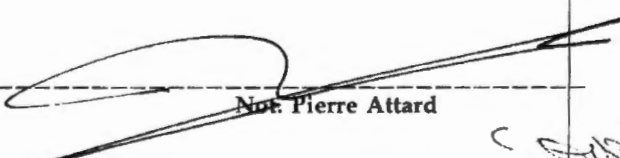
The Parties acknowledged that pursuant to the sales contemplated above they have become *pro indiviso* owners of the Block Common Parts and that when the Building is constructed the Block of Apartments shall, for the purposes of the Act, constitute one condominium separate and distinct from the Garage Complex and the Commercial Premises and that the Block Common Parts shall constitute the common parts of the said condominium for the purposes of the Act for the common use and benefit of all Apartments which may at any time form part of the Block (including any future developments which may be added to the Block) and for this purpose the Parties agreed as follows:

a. The Parties reciprocally promised and bound themselves in favour of each other to expressly include on any deed of transfer of any of their respective *pro diviso* properties in the Building, as an integral part of every such transfer, the terms and conditions set out in Annex One.

b. The Parties agreed that the terms and conditions set out in the deed and in Annex One shall also apply to themselves as owners of the *pro diviso* units in the Building until such time when they sell or otherwise transfer their respective Apartments, the Commercial Premises or the Garages.

c. The Parties as co-owners of the Block Common Parts shall subject the Block Common Parts (the Servient Tenement) to the perpetual servitudes mentioned hereunder in favour of each and every Apartment which shall at any time form part of the Block (including any future developments which may be added to the Block) (the Dominant Tenements) consisting of:

i. the perpetual right of pedestrian passage and access at all times from Ta' Xbiex Sea Front to all the Apartments which may at any time form part of the Block and to the Garage Complex and vice versa;


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ii. the perpetual right to use the Block Common Parts for the purpose they are intended, which right of use is transferable to third parties together with each one of the Apartments;

iii. the right to open doors from the Apartments onto the Block Common Parts as is necessitated from their physical position in the Block;

iv. the right to pass any and all common or separate services, pipes, drains and wiring, provided that all services are installed as required by standard building practice and in the locations made available for this purpose;

v. the right to interconnect the Garage Complex with the Block Common Parts in the places shown on the plan annexed to the deed as Document B3;

which servitude and rights of use mentioned in this Clause shall be enjoyed in common between all the Condomini from time to time in the Block as subject to the provisions set out in the deed, Annex One, the Condominium Rules and the Regulations, the consideration for which has been included in the above-mentioned price of the sales.

d. The servitudes mentioned above shall not be construed in any way to limit the rights of Marina and Britannia to grant similar servitudes and / or other similar personal or real rights over any part of the Block Common Parts owned by them in favour of any other part of the Building (including any future developments which may be added to the Building) or in favour of any owner or occupier of such properties.

e. The Block Common Parts and the rights of the Condomini thereto shall be subject to the rights enjoyed by Marina and Britannia and their respective successors as provided in the deed in relation to their respective roofs and airspace of the Building and the additional units each one of them may construct thereon.

f. Either Marina or Britannia ("the Developing Party") and its successor in title, qua owner of its respective *pro diviso* roof and airspace, shall be entitled, with the irrevocable consent of the other non-Developing Party, which consent was granted on the deed for itself and its successors in title, to construct additional storey/s on its *pro diviso* roof and airspace of the Building as an integral part of the Building, provided the Developing Party obtains the relative permits from the competent authorities and provided further that no additions may be made which shall in any way adversely affect or impede either the construction and completion of the Building (as will be contemplated in the Building Permits and/or the deed). In the exercise of such right, the Developing Party will be entitled to such rights and be equally bound by such obligations as arising from the provisions set out in Document C3 annexed to the deed, including without limitation the Developing Party's entitlement to construct common parts on the roof and airspace overlying the stair-hood of the Block and to extend the entire Block Common Parts to serve such additional storey/s, without the requirement of any prior consent or authorisation by the non-Developing Party or its successors in title, provided that the non-Developing Party's obligation to pay or otherwise reimburse the Developing Party for any costs relative

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to the extension of such Common Parts of the Block shall only come into effect at the moment that the non-Developing Party shall decide and actually commence the development of its *pro diviso* roof and airspace of the Building and shall be due on a pro rata basis to the extent of the development by the non-Developing Party. This right to construct and develop additional storey/s may be exercised by Marina or Brittania or assigned to third parties together with their respective roof and airspace of the Block. Any one of Marina or Brittania who shall impede the other party from exercising the rights granted to each other by virtue of this sub-clause shall be liable to pay a penalty of fifteen thousand Maltese Liri (Lm15,000) per day of default until the default is remedied.

4. Seaview Marina and Marina (to the extent that it owns Garage Common Parts which shall be constructed on the Marina Site), jointly and severally between them, constituted in favour of Brittania, which accepted, on the entrances, ramps and passages of the Garage Complex shown shaded in yellow on the plans annexed to the deed marked B2 and B5 (the Servient Tenement), which entrances, ramps and passages at Ground Floor measures approximately five hundred and seventy square metres (570sq.m.) and are bounded on all sides by the remainder of the Garage Complex and at First Floor measures approximately four hundred and thirty two square metres (432sq.m.) and are bounded on all sides by the remainder of the Garage Complex, a perpetual servitude in favour of the Garages of Brittania which shall be constructed on the Brittania Site (the Dominant Tenement) consisting of the perpetual right of uninterrupted passage and of access, both vehicular and pedestrian, to and from Ta' Xbiex Sea Front as well as the perpetual right in favour of the Condomini from time to time of the Garages to use the Garage Common Parts for the purpose they are intended, which right of use is transferable *ad infinitum* to third parties together with a Garage. The servitude and rights of use mentioned in this Clause shall be enjoyed in common between all the Condomini from time to time in the Garage Complex as subject to the provisions set out in the deed, Annex One, the Condominium Rules and the Regulations, under the terms and conditions mentioned in the deed, in consideration of the price of five hundred Maltese Liri (Lm500).

The Parties and Seaview Marina acknowledged that when the Garage Complex is constructed, for the purposes of the Act, it shall constitute one condominium separate and distinct from the remainder of the Building and that the Garage Common Parts shall constitute the common parts of the said condominium for the purposes of the Act for the common use of all Garages which may at any time form part of the Garage Complex (including any future developments which may be interconnected with the Garage Complex) and for this purpose the Parties and Seaview Marina agreed as follows:

- i. The Parties and Seaview reciprocally promised and bound themselves in favour of each other to expressly include on any deed of transfer of any of their respective *pro diviso* properties in the Garage Complex, as an integral part of every such transfer, the terms and conditions set out in Annex One.
- ii. The Parties and Seaview agreed that the terms and conditions set out in the deed and in Annex One shall also apply

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to themselves as owners of the *pro diviso* units in the Garage Complex until such time when they sell or otherwise transfer their respective Garages.

The Parties and Seaview Marina further agreed that the terms and conditions of the deed shall likewise apply to themselves and to their successors in title. Provided that if any part of the Building or of the Marina Site, the Britannia Site, the Sapiano Property, the Delia Property or the Garage Complex is transferred by either one of the parties (the Transferring Party) before the Building is constructed as agreed or the common finishing works in the Block Common Parts are completed as agreed, or the Garage Common Parts are constructed and completed, the Transferring Party shall remain personally and jointly and severally liable with the transferee, in favour of the other parties, for the proper and punctual fulfilment of all obligations incumbent upon such Transferring Party in terms of the deed and relating to the construction of the Building, the completion of the Block Common Parts and the construction and completion of the Garage Common Parts.

And this under all the other terms and conditions stipulated in the deed.

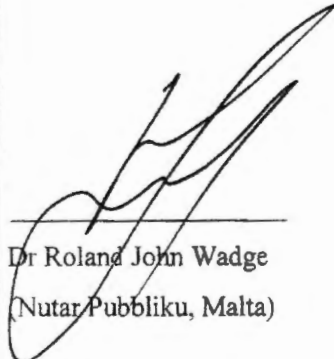


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9905

It-tletin ta' Mejju tas-sena elfejn
u sebgha (30.05.2007)

Testment magħmul minn Dottor Georg Sapiano, avukat, bin Alfred u
Rose nee Flynn, mwieled Attard u residenti l-Qala, Ghawdex, bin-
numru tal-karta ta' l-identita' 71568(M).


Dr Roland John Wadge
(Nutar Pubbliku, Malta)

31 MAY 2007


Dr. A. Dingli

5817

L-ewwel ta' Frar
tas-sena elfejn u
tmienja (1.2.2008)

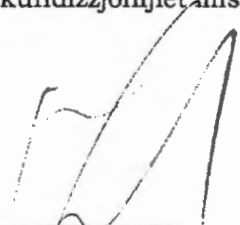
Bejgh magħmul minn **Paul Curmi**, pensjonant, bin il-mejtin Salvatore u Angela nee Spiteri, mwieled Kercem, Ghawdex u residenti Victoria, Ghawdex, bin-numru tal-karta ta' l-identita' 4373(G), u uliedu **Anne Blanche Camilleri**, mart Pierre, mwielda Attard, Malta u residenti Victoria, Ghawdex, bin-numru tal-karta ta' l-identita' 458172(M), **Valerie Zammit** mart Patrick, imwielda Pieta u residenti Kirkop, bin-numru tal-karta ta' l-identita' 358867(M), ulied l-imsemmi Paul Curmi u l-mejta Mary Jane Curmi nee Attard; **Maria Antonia mart Joseph Cordina**, u **Carmelo Bugeja**, bla okkupazzjoni, ahwa ulied il-mejtin Joseph Bugeja u Maria nee' Gauci, imwildin u joqghodu it-tnejn Victoria, Ghawdex, karti tal-identita' numri 36751(G) u 11150(G) rispettivament; **Maria Saveria Meylak**, armla ta' Tarcisio, u **Francesca Bugeja**, xebba, ahwa Bugeja, ahwa ulied il-mejtin Anthony Bugeja u Carmela nee' Cassar, imwildin u joqghodu it-tnejn Sannat bin-numri tal-karti ta' l-identita' 68615(G) u 69829(G) rispettivament; **Suor Consolata Bugeja**, bint l-istess Anthony Bugeja u Carmela nee' Cassar, imwielda Sannat u residenti Victoria, Ghawdex, bin-numru tal-karta ta' l-identita' 12328(G), **Carmela Attard** mart Emanuel, u **Francis Bugeja**, bil-barriera, ahwa Bugeja, ulied il-mejtin Joseph Bugeja u Margaret nee' Zahra, imwildin Munxar u joqghodu rispettivament Munxar, Ghawdex, karti tal-identita' numri 47549(G) u 15946(G) rispettivament, **Filomena Muscat** mart Anthony, **Giorgia Borg** mart Peter, **Frances Vella** mart Joseph, **Pawla Borg** mart George, u **Maria Bugeja** xebba, ulied il-mejtin Joseph Bugeja u Margaret nee' Zahra, ilkoll imwildin u joqghodu Munxar, barra Filomena illi toqghod Sannat - karti tal-identita' numri 24847(G), 70150(G), 17656(G), 1059(G), 46641(G) rispettivament, **Josephine Cassar** mart Joseph, imwielda Munxar u toqghod New South Wales, Australia, **Saviour Bugeja**, irtirat, imwielel Munxar u joqghod New South Wales, Australia, bin-numri tal-income tax Malti 886858035 u 886858134, **Carmel, Anthony, u John, ahwa Bugeja**, ilkoll bil-barriera, ulied il-mejtin Joseph Bugeja u Margaret nee' Zahra, imwildin u joqoghdu ilkoll Munxar, barra Carmel li joqghod Nadur, Ghawdex, karti tal-identita' numri 32548(G), 32853(G), u 19552(G) rispettivament; **Joseph Bonnici**, pensjonant, bin il-mejtin Paul u Giuseppa nee' Bugeja, imwielel u joqghod Xewkija, ID61533G, **Philip sive Pinu Bonnici**, pensjonant, bin il-mejtin Paul u Giuseppa nee' Bugeja, imwielel u joqghod Xewkija, bin-numru tal-karta ta' l-identita' 75230(G); **Maria Assunta Spiteri**, mart Raymond u **Filomena Bugeja**, xebba, ahwa Bugeja, ulied il-mejtin Carmelo u Maria nee' Vella, imwieldin u joqoghdu it-tnejn Munxar, Ghawdex - karti tal-identita' numru 36762(G), u 44457(G) rispettivament, **Carmela mart Lawrence Rapa**, bint il-mejtin John Mary Bugeja u Filomena nee' Cassar, imwielda Sannat u toqghod Victoria, Australia, bin-numru tal-income tax Malti 886857928; **Filomena mart Edward Spiteri**, imwielda Sannat u toqghod Sannat, Ghawdex; bin-numru tal-karta ta' l-identita' 52353(G), **Michael Xiberras**, bidwi, mwieled Sannat u residenti Sannat bin-numru tal-karta ta' l-identita' 4852(G), **Francis Xiberras**, bidwi, imwielel Sannat u joqghod Sannat bin-numru tal-karta ta' l-identita' 48150(G), ilkoll ulied il-mejtin Felic Xiberras u Maryanne nee' Bugeja; **Joseph Xiberras**, farmer, bin il-mejtin Felic Xiberras u Maryanne nee' Bugeja,

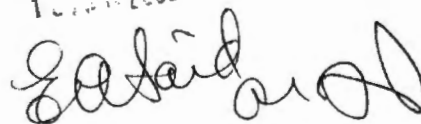
5817

2

mwieled is-Sannat u residenti Victoria, Australia, bin-numru tal-income tax Malti 886869029, **Felix**, farmer, **Pauline Tabone** mart Johan, u **JosMarie Agius** mart Frank, ahwa Sciberras, ulied il-mejjet Saviour Sciberras u Luigia nee' Vella, imwielda lkoll Victoria, Ghawdex u joqghodu lkoll Sannat, Ghawdex, bin-numri tal-karti ta' l-identita' 27775(G), 26881(G) u 13980(G), **Francis Farrugia**, supervisor, **Mary Muscat**, mart Lawrence, u **Filomena sive Phyllis Mizzi**, mart Saviour, dawn ta' l-ahhar bin-numri tal-income tax 886271609, 886271708, 886271807 rispettivament, lkoll tfal ta' Emanuel Farrugia u Marianne Bugeja, kollha mwieldin Victoria, Ghawdex u residenti kollha New York, Stati Uniti tal-Amerka, **Michael Farrugia**, fin-negoju, bin-numru tal-karta ta' l-identita' 53348G), **Anthony Farrugia**, fin-negoju, bin-numru tal-karta ta' l-identita' 53248(G), u **Joseph Farrugia**, irtirat, bin-numru tal-karta ta' l-identita' 62139G), lkoll ahwa Farrugia, lkoll tfal ta' Emanuel Farrugia u Marianne nee Bugeja, kollha mwieldin Victoria, Ghawdex u residenti kollha Victoria, Ghawdex; **Maria Rosa Tabone**, armla ta' Dionisju Tabone, bint il-mejtin John Mary Bugeja u Filomena nee Cassar, imwielda Sannat, Ghawdex u residenti, Victoria, Ghawdex, bin-numru tal-karta ta' l-identita' 14423(G), solidament bejniethom a favur ta' **Dottor Georg Sapiano**, bin il-mejjet Alfred u Rose nee' Flynn, imwieled Attard u joqghod Qala, Ghawdex, karta ta' l-Identita numru 71568(M) u l-martu **Audrey Sapiano**, bint John Baptist Ellul u Angela nee' Fenech, imwielda Attard, Malta u toqghod Qala, Ghawdex, karta ta' l-Identita numru 182272(M) ta' :-

Porzjon art fil-limiti tal-Qala, Ghawdex, fl-inhawi ta' Triq Ta' Cini, minn fejn hija accessibbli, kif ukoll hija accessibbli mill-propjeta tal-istess kumpraturi tal-kejl ta' madwar elfejn hames mija u hamsa u erbghin metri kwadri (2545m.k.) konfinanti mil-Lvant ma beni tal-konjugi Sapiano u gieli indikati li kienet konfinanti ma beni ta' Marcel Muscat u Tramuntana ma' beni tal-istess konjugi Sapiano u gieli indikata li konfinanti ma beni ta' Antonio Camilleri, u Nofsinhar ma propjeta ta' l-aventi kawza ta' Giuseppe Cassar, bil-pussess vakanti, u libera u franka u kif tidher fuq pjanta immarkata dokument "X" annessa mal-kuntratt. L-imsemmija propjeta hija libera u franka bid-drittijiet u l-pertinenzi kollha taghha versu l-prezz ta' mija erbgha u erbghin elf erba mija u wiehed u erbghin euro u hamsa u disghin centezmu (€144441.95) pari ghal tnejn u sittin elf u tmin liri u tlieta u disghin centezmu (Lm 62008.93) u taht il-kundizzjonijiet imsemmija fl-att. L-imsemmi Georg Sapiano hu avu kat.


Dr Roland J. Wadge
(Nutar Pubbliku, Malta)

10/11/2008


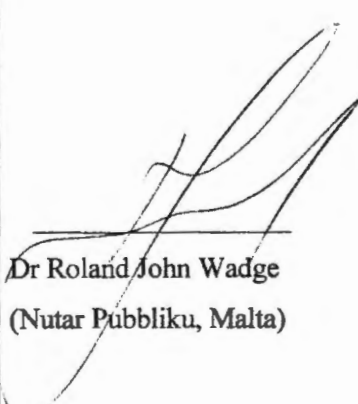
NOT. Dr. E.A. SAID

€ 193,48⁹
✓

14089

Is-sebgha u ghoxrin
ta' Awissu tas-sena elfejn
u tmienja (27.8.2008)

Testment maghmul minn Dottor Georg Sapiano, avukat, bin Alfred u Rose
nee Flynn, mwieled Attard u residenti l-Madliena, bin-numru tal-karta ta' l-
identita' 71568(M)



Dr Roland John Wadge
(Nutar Pubbliku, Malta)

11 SEP 2008



Malta and Gozo

SEARCHES OF SAPIANO AUDREY W/O GEORG OF JOHN BAPTIST ELLUL AND ANGELA NEE FENECH B. ATTARD

SEARCHED ONLY AS ALWAYS MARRIED TO: GEORG

Liabilities From: 01/01/1975 to: 18/07/2005

Transfers From: 01/01/1979 to: 18/07/2005

Fidi From: 01/01/1981 to: 18/07/2005

GH 2002 428

GH 2002 1319

GH 2002 1320

GI 2000 1570

GI 2000 1989

GI 2002 485

GI 2002 1953

GI 2003 1515

GI 2005 24

H 1998 5802

R 2510 / 2000

R 6017 / 2000

R 6197 / 2000

R 7353 / 2002

R 746 / 2003

Canc 5957/2007

H 1999 3510

R 6196 / 2000

R 745 / 2003

Canc 5420/1999

H 1999 4796

R 6199 / 2000

R 745 / 2003

Canc 5420/1999

H 2000 3226

Canc 5420/1999

H 2000 3227

H 2000 6763

R 6200 / 2000

R 745 / 2003

Canc 6763/ 2000

H 2000 6764

R 6198 / 2000

R 745 / 2003

Canc 6764/ 2000

H 2000 15705

H 2004 4129

R 1 / 2005 Canc

H 2005 158

GPP

I 1998 3631

I 1998 5673

I 2000 2784

I 2000 10681

I 2004 20790

I 2005 3

I 2005 5458

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Number of Entries: 40 Date Ordered: 25/07/2005

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SEARCHED ONLY AS ALWAYS MARRIED TO: GEORG

VIDE COMMON NOTES WITH: SAPIANO GEORG

Liabilities From: 18/07/2005 to: 12/10/2008

Transfers From: 18/07/2005 to: 12/10/2008

Fidi From: 18/07/2005 to: 12/10/2008

GH	2006	1432	Vide	
GI	2006	796	Vide	
GI	2006	917	Vide	
GI	2008	863	Vide	
H	2005	13376	Vide	
H	2006	10253	Vide	
H	2006	13424	Vide GPP	
H	2006	13426	Vide	R 2453 / 2008 Canc
H	2007	12689	Vide	
H	2007	16263	Vide	
I	2006	10335	Vide	
I	2006	13471	Vide	
I	2008	5817	Vide	
I	2008	14090	WILL	

Salvatore

Malta and Gozo

**SEARCHES OF SAPIANO AUDREY W/O GEORG OF JOHN BAPTIST ELLUL AND
ANGELA NEE FENECH B. ATTARD**

SEARCHED ONLY AS ALWAYS MARRIED TO: GEORG

Liabilities From: 12/10/2008 to: 10/05/2010

Transfers From: 12/10/2008 to: 10/05/2010

Fidi From: 12/10/2008 to: 10/05/2010

CE 2009 299

H 2008 19963 **GPP**

H 2009 6046 **GPP**

I 2008 20114

Sapiano
aud

Malta and Gozo

**SEARCHES OF SAPIANO AUDREY W/O GEORG OF JOHN BAPTIST ELLUL AND
ANGELA NEE FENECH B. ATTARD**

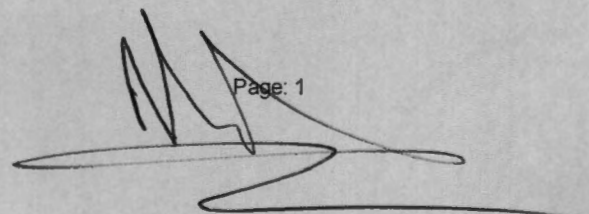
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Liabilities From: 10/05/2010 to: 20/07/2010

Transfers From: 10/05/2010 to: 20/07/2010

Fidi From: 10/05/2010 to: 20/07/2010

NIL

A handwritten signature in dark ink, consisting of several loops and a long horizontal stroke at the bottom.

Malta and Gozo

**SEARCHES OF SAPIANO AUDREY W/O GEORG OF JOHN BAPTIST ELLUL AND
ANGELA NEE FENECH B. ATTARD**

SEARCHED ONLY AS ALWAYS MARRIED TO: GEORG

VIDE COMMON NOTES WITH: SAPIANO GEORG

Liabilities From: 20/07/2010 to: 17/11/2011

Transfers From: 20/07/2010 to: 17/11/2011

Fidi From: 20/07/2010 to: 17/11/2011

H 2010 11897 **Vide**

H 2010 11898 **Vide**

Malta and Gozo

**SEARCHES OF SAPIANO AUDREY W/O GEORG OF JOHN BAPTIST ELLUL AND
ANGELA NEE FENECH B. ATTARD**

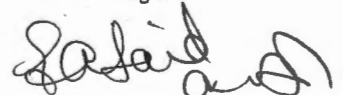
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Liabilities From: 17/11/2011 to: 04/01/2012

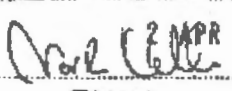
Transfers From: 17/01/2011 to: 04/01/2012

Fidi From: 17/11/2011 to: 04/01/2012

NIL

A handwritten signature in black ink, appearing to be 'Salaid' followed by a stylized flourish.

000428

Nota għal Iskrizzjoni ta' <u>Ipoteka Speċjali</u>		Numru Progressiv _____
Rimarki (għall-uzu uffiċjali biss)		
Kreditur: <u>Irving & Co. Limited.</u>		
Debitur: <u>L-Avukat Dottor Georg Sapiano</u> , bin il-mejjet Alfred u Rosmarie nee' Flynn, u martu <u>Audrey Sapiano</u> , bint Giovanni Ellul u Angela nee' Fenech, imweldin it-tnejn Attard, Malta u residenti t-tnejn il-Qala, Għawdex.		
Kreditu: Is-somma ta' <u>leġittimitt elf lira Maltin (Lm300,000)</u> dovuta mid- debituri lill-kumpanija kredittrici fl-eventwalita' li fi kwalunkwe zmien jsew xi zvilupp li għalih kemm bżonn il-permess ta' l-Awtorita' ta' l- Ippjanar, skond l-Att numru wieħed tal-elf disa' mija u tnejn u disghin (1992) fuq l-art hawn taht deskritta, liema somma tkun dovuta pro rata bir-rata ta' <u>hamsin elf lira Maltin (Lm50,000)</u> għal kull mija u sebgħa u tmenin metru kwadru (187m.k.) li fuqu jsew l-izvilupp imsemmi. Dana japplika pro rata għal kull zvilupp li jkun akbar jew anqas minn dan il- kejl u bil-pattijiet, kondizzjonijiet u limitazzjonijiet u esklużjonijiet indikati fl-att tiegħi tat-tlieta u ghoxrin (23) ta' Erar tas-sena elfejn u tnejn (2002).		
Kawza ta' Preferenza: <u>Ipoteka Speċjali</u> fuq porzjon art imsejha <u>Tat-</u> <u>Tort</u> fil-limiti tal-Qala, Għawdex, tal-kejl ta' cirka elf mija u hamsa u tletin metri kwadri (1135m.k.) u bil-kejl kollu li fiha, u tmiss mil-lvant in parti ma' passagg privat li minnha l-istess art hija accessibbli u li jisporgi fi Triq ta' Cini, u in parti ma' beni tal-imsemmija konjugi Sapiano, pument u tramuntana ma' beni ta' David Muscat u oħrajn, libera u franka, bid-drittijiet u l-urtenenzi kollha tagħha u bil-pussess vakant, inkluża spiera esistenti f'din l-art u kamra zghira rurali bla numru.		
RICEVUTA ILLUM 20 APR 2002  (Direttur)  (Firma tal-persuna li tapplika għall-Iskrizzjoni)		
Not. Paul George Pisani L.L.D.		
Aqleb →		

001319

Note għal Iskrizzjoni ta' Ipoteka u Privileġġ		Numru Progressiv
Rimarki (għall-użu uffiċjali biss)	Vol. K. 381/2010	
Kreditur: <u>HSBC Bank Malta p.l.c.</u>		
Debitur: L-Avukat Dottor <u>Georg Sapiano</u> , bin il-mejjet Alfred u Rosemarie nee' Flynn, u martu <u>Andrey Sapiano</u> , bint Giovanni Ellul u Angela nee' Fenech, imweldin it-tnejn Attard, Malta u residenti t-tnejn il-Qala, Ghawdex - debituri in solidum.		
Kreditu: Tmienja u tletin elf lira Maltin (Lm38,000) mogħtja b'self mill-Bank kreditur li d-debituri, liema somma d-debituri iddelegaw lill-bank sabiex iħallasha lill-haddiema u kuntratturi impegati fit-tkomplija tal-konstruzzjoni tal-immobili hawn taħt deskritt, liema somma għandha tithallas lura flimkien ma' l-interessi fuq domanda tal-bank, talba bil-miktub għandha tkun sufficjenti għal dan il-ghan, <u>bl-ingħax bl-ogħla rata permessa mil-Ligi u li għandha tigi kalkolata fuq il-bilanc tad-debitu skond il-prattika bankarja</u> - liema rata tal-interessi għandha tigi iffissata mill-Bank fid-diskrezzjoni assoluta tiegħu minn zmien għal zmien u b'kondizzjonijiet oħra indikati fl-att tiegħi tas-sebgha u ghoxrin (27) ta' Settembru tas-sena elfejn u tnejn (2002).		
Kawza ta' Preferenza: Ipoteka Generali, Ipoteka Speċjali u Privileġġ Speċjali fuq fuq il-lok ta' djar numru erbatax (14) fi <u>sqan li jinfed għal Triq ta' Cini, Qala, Ghawdex</u>, kif ukoll <u>porzjon art adjacenti imsejha, Tat-Tork, fil-limiti tal-Qala, Ghawdex</u>, tal-kejl ta' cirka elf mija u hamsa u tletin metri kwadri (1135m.k.) u bil-kejl kollu li fiha, u tmiss mil-lvant in parti ma' passagg privat li minnhu l-stess art hija accessibbli u li jisporgi fi Triq ta' Cini, u in parti ma' beni tal-imsemmija konjugi Sapiano, punent u tramuntana ma' beni ta' David Muscat u oħrajn, libera u franka.		
RICEVUTA ILLUM Illum ta' 20 8 OCT 2002 <i>(Signature)</i> (Direttur) <i>(Signature)</i> (Firma tal-persuna li tapplika għall-Iskrizzjoni) Not. Paul George Pisanì LL.D. Aqleq →		

Lm 28

Lm 28.

001320

Nota għal Iskrizzjoni ta'	Ipoteka	Numru Progressiv
Rimarki (għall-użu ufficjali biss)	<i>Can. 345/207</i>	
Kreditur: <u>HSBC Bank Malta p.l.c.</u>		
Debitur: L-Avukat Dottor <u>Georg Sapiano</u> , bin il-mejjet Alfred u Rosemarie nee Flynn, u martu <u>Audrey Sapiano</u> , bint Giovanni Ellul u Angela nee Fenech, imweldin it-mejn Alfred, Malta u residenti t-tnejn il-Qala, Ghawdex - debituri in solidum.		
Kreditur: Tnejn u ghoxrin elf lira Maltin (Lm22,000) mogħtija b'self mill-Bank kreditur lid-debituri, għall-bżonnijiet personali taqblom, liema somma għandha tithallas lura flimkien ma' l-interessi fuq domanda tal-bank, talba bil-miktub għandha tkun sufficjenti għal dan il-ghan, bl-imghax bl-ogħla rata permessa mill-Ligi u li għandha tigi kalkolata fuq il-bilanc tad-debitu skond il-prattika bankarja - liema rata tal-interessi għandha tigi iffissata mill-Bank fid-diskrezzjoni assoluta tiegħu minn zmien għal zmien u b'kondizzjonijiet oħra indikati fl-atti tiegħi tas-sebgha u ghoxrin (27) ta' Settembru tas-sena elfejn u mejn (2002).		
Kawza ta' Preferenza: <u>Ipoteka Generali u Ipoteka Speċjali</u> fuq il-lok ta' djar numru erbatax (14) fi sqag li jinsab għal Triq ta' Cini, Qala, Ghawdex, kif ukoll porzjon art adiacenti innejha <u>Tat-Tork</u> fil-limiti tal-Qala, Ghawdex, tal-kejl ta' cirka elf mija u hamsa u tletin metri kwadri (1135m.k.) u bil-kejl kollu li fiha, u tmiss mill-lvant in parti ma' passagg privat li minnha l-stess art hija accessibbli u li jisporgi fi Triq ta' Cini, u in parti ma' beni tal-imsemmija konjugi Sapiano, punent u tramuntana ma' beni ta' David Muscat u oħrajn, libera u franka.		
RICEVUTA ILLUM		
8 OCT 2002		
<i>[Signature]</i> (Direttur)		<i>[Signature]</i> (Firma tal-persuna li tapplika għall-lekkrizzjoni)
Not. Paul George Pinaai LL.D.		Aqlebo →

001570 Wiehed u ghoxrin (21) ta' Lulju tas-sena elfejn (2000).

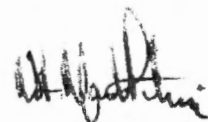
Bejgh maghmul mill-kumpanija kummercjali "Irving and Company Limited", l-isem certi drabi miktub bhala "Irving & Co Ltd", kumpanija registrata taht l-ittra "C" numru hamsa wiehed sitta sitta (C 5166), favur l-Avukat Dottor Georg Sapiano, iben il-mejjet Alfred u Rose-Marie nee' Flynn, imwieled H'Attard u joqghod tas-Sliema, u martu Audrey Sapiano, bint John-Baptist Ellul u Angela nee' Fenech, imwielda H'Attard u toqghod tas-Sliema, tad-dar numru erbatax (14), drabi ohra maghrufa bhala bla numru, fi Sqaq bla numru li jizbokka fi Triq Cini, il-Qala, Ghawdex, li tikkonsisti f'kamra mdaqqa u tlett ikmamar zghar fi stat dilapidat fil-livell tal-pjan terren, u zewgt ikmamar imdaqqa u kamra zghira fl-ewwel sular li huma sovrastanti beni ta' terzi, bil-gardina annessa, tal-kejl din il-gardina ta' cirka mitejn u ghaxar metri kwadri (210 m.k.) jew kejl iehor verjuri; liema sqaq (li jaghti l-access ghal dan il-fond) huwa komuni ma' diversi nies ohra; u l-imsemmija proprjeta' in vendita tmiss mil-lvant ma' l-imsemmi sqaq, mill-puntuna' beni ta' Grazio Debono; u mit-tramuntana ma' beni ta' l-ahwa Camilleri; u l-istess proprjeta' in vendita hija libera u franka, u giet trasferita bid-drittijiet u l-pertinenzi kollha taghha, bil-pussess vakanti, u bl-arja libera; bil-prezz ta' tletin elf lira Maltin (Lm30,000), u bil-pattijiet u l-kondizzjonijiet stipulati fl-att, fosthom illi d-dar in vendita hawn fuq deskritta tgawdi servitu ta' tieqa u mizieb fuq in-naha tat-tramuntana, ghal fuq proprjeta' ta' terzi; u l-istess fond in vendita jgawdi d-dritt ta' gbid ta' l-ilma in komun ma' persuni ohra mill-bir ezistenti.

25-9-00

25-9-00



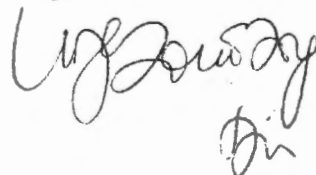
Revenue



Nutar Dott. Mario Felice

RICEVUTA ILLUM

28 SETTEMBRE 2000



001989

It-tmintax (18) ta'
Novembru tas-sena elfejn
(2000).

Rosa Mizzi mart Toni Mizzi, u **Tarcisio**, pensjonant, ahwa **Buttigieg**, ulied il-mejtin Joseph Buttigieg u Carmela nee' Mizzi, imweldin u residenti t-tnejn il-Qala, Ghawdex; **Anne sive Maryanne**, xebba; **Miriam**, xebba; **Doris Scicluna** mart Emanuel Scicluna; **Agatha**, xebba; **Vivienne**, xebba; **Joseph** u **Frank**, haddiema; **Carmelina Farrugia** mart Victor Farrugia u **Rita Sant** mart Joseph Sant, ahwa **Buttigieg**, wlied il-mejtin Gamri Buttigieg u Carmela nee' Dimech, imweldin: Miriam, Tarxien, Malta; Joseph, Carmelina u Doris, Valletta, Malta; Frank, Victoria, Ghawdex; Maryanne, Rita, Agatha u Vivienne, Paola, Malta, u residenti: Maryanne u Miriam, Fgura, Malta; Doris, Tarxien, Malta; u l-ohrajn lkoll Ontario, il-Kanada; **Coronata Mallia** mart Mario Mallia minnu legalment separata; **Joseph** u **John**, haddiema; u **Maryanne Gatt** mart John Gatt, ahwa **Buttigieg**, wlied il-mejjet Peter Paul u Josephine nee' Freeman, imweldin ilkoll il-Marsa, Malta u residenti: Coronata u John, il-Marsa, Malta; Joseph, il-Mellieha, Malta u Maryanne, Derby, ir-Renju Unit; **Joseph**, videographer u **Peter Paul**, haddiem, ahwa **Buttigieg**, wlied il-mejtin Rafel u Francesca nee' Scicluna, imweldin it-tnejn in-Nadur, Ghawdex u residenti t-tnejn Melbourne, Victoria, l-Awstralja; **Anthony**, pustier u **Rosemarie Lloyd** armla ta' James Lloyd, ahwa **Buttigieg**, wlied il-mejtin Carmelo u Hilda nee' Priday, imweldin u residenti Cardiff, South Wales, ir-Renju Unit, bieghu u ttrasferew bil-prezz ta' erbatax-il elf lira Maltin (Lm14,000) lill-**Avukat Dottor Georg Sapiano**, bin il-mejjet Alfred u Rosemarie nee' Flynn, u martu **Audrey Sapiano**, bint Giovanni Ellul u Angela nee' Fenech, it-tnejn imweldin Attard, Malta u residenti Sliema, Malta:-

(a) it-tlett porzjonijiet art li jinsabu fil-limiti tal-Qala, Ghawdex, markati bhala plot "A", "B" u "C" fuq il-pjanta annessa ma' l-att u cioe: il-plot "A" hija tal-kejl ta' cirka tlieta u ghoxrin punt decimali sitta metri kwadri (23.6m.k.) u tmiss mil-lvant ma' Triq Cini, nofsinhar ma' beni ta' Francesca Buttigieg u tramuntana ma' beni ta' Pawlu Buttigieg jew aventi kawza; l-plot "B" hija tal-kejl ta' cirka mija u erbgħa u tletin punt decimali wiehed metri kwadri (134.1m.k.) u tmiss min-nofs sinhar mal-fond numru hmistax (15) Triq ta' Cini, tramuntana ma' sqaq u lvant ma' beni

Notice (i.o. Sec 51 filed
on 24/11/00

f/Comm of inland Revenue

Not. Paul George Pisani LL.D.

ta' Vincent Muscat u l-plot "C" hija tal-kejl ta' cirka wiehed u ghoxrin punt decimali erbgha metri kwadri (21.4m.k.) u tmiss mit-tramuntana mas-sqaq, nofsinhar ma' beni ta' Raymond Camilleri u punent ma' beni ta' Vincent Muscat, soggetti lkoll flimkien mad-dar hawn taht deskritta ghall-piz piju annwu u perpetwu ta' zewg quddisiet letti fis-sena li jithallsu fil-Knisja Kolleggiata tan-Nadur, Ghawdex, mill-bqija liberi u franki, bid-drittijiet u l-pertinenzi kollha taghhom u bil-pussess vakant,

(b) kif ukoll id-dar konsistenti fi pjann terren li jgib in-numru hmistax (15) fi sqaq li jinfed ghal Triq ta' Cini, Qala, Ghawdex, okkupanti area ta' cirka tmenin punt decimali erbgha metri kwadri (80.4m.k.), sottostanti beni ohra tal-imsemmija konjugi Sapiano, soggetta flimkien mar-raba' fuq deskritt ghall-imsemmi piz piju:

001990

It-tlieta u ghoxrin (23) ta' Novembru tas-sena elfejn (2000).

Dikjarazzjoni ta' trasferiment "causa mortis" maghmula minn Carmel, surgent fil-korp tal-Pulizija; Joseph, irtirat; Anthony, haddiem; Michael, haddiem; Maria Dolores Kay mart Kevin Kay, George, impjegat mal-Gvern u Loreto, self employed, ahwa Xerri, wlied il-mejjet John u Maria nee Camilleri, imweldin ilkoll Victoria, Ghawdex u residenti: Carmel, X-Xaghra, Ghawdex; Joseph, Saint Andrews, Malta; Michael u Anthony, Melbourne, Victoria, l-Awstralja; Maria Dolores, Bolton, ir-Renju Unit; u George u Loreto, Victoria, Ghawdex; fejn iddikjaraw u ippremettew li John Xerri gia pensjonant, bin il-mejtin Joseph Xerri u Antonia nee Frendo, imwield u li kien residenti Victoria, Ghawdex, miet Victoria, Ghawdex fil-hmistax (15) ta' Settembru tas-sena elfejn (2000); fejn iddikjaraw li l-imsemmi John Xerri miet intestat u ghalhekk il-wirt tieghu ghadda fuq is-seba' wliedu fi kwoti ugwali u indivizi bejniethom skond il-Ligi;

Illu l-beni immobili li kien jippossjedi d-de cuius jikkonsistu f'nofs (1/2) indiviz mil-lok ta' djar tar-residenza tad-de cuius bla numru mibni fuq il-plot numru hamsa (5) mill-Home Ownership Scheme Ta' Forn il-Gir, fi Triq Forn il-Gir, Victoria, Ghawdex, konfinanti mit-tramuntana mat-triq, punent ma' beni ta' Tarcisio Cefai u l-vant ma' beni ta' Joseph Grech - tal-valur dana n-nofs indiviz attribwit mid-dikjaranti ta' tnax-il elf u hames mitt lira Maltin (Lm12,500).

Notice i.t.o. Sec 51 filed

on 24/11/00

f/Comm of Inland Revenue

Lm2.500

Handwritten signature

RICEVUTA ILLUM
28 NOVEMBRE 2000

Handwritten signature

Not. Paul George Pisani L.L.D.

It-tlieta u ghoxrin (23) ta'
Frar tas-sena elfejn u tnejn
(2002).

030485

Il-kumpanija Irving & Co. Limited bieghet u ttrasferiet bil-prezz ta' ghoxrin elf lira Maltin (Lm20,000) lill-Aynkat Dottor Georg Sapiano, bin il-mejjet Alfred u Rosemarie nee' Flynn, u martu Andrey Sapiano, bint Giovanni Ellul u Angela nee' Fenech, t-tnejn imweldin Attard, Malta u residenti Qala, Ghawdex, porzjon art imsejha Tot-Tork fil-limiti tal-Qala, Ghawdex, tal-keji ta' cirka elf għira u hamsa u tletin metri kwadri (1135m.k.) u bil-keji kollu li fiha u tmiss mil-kwant in parti ma' passagg privat li minnha l-stess art hija accessibbli u li jisporgi fi Triq ta' Cini, u in parti ma' beni tal-imsemmija konjugi Sapiano, punent u tramuntana ma' beni ta' David Muscat u oħrajn, libera u franka bid-drittijiet u l-pertinenzi kollha tagħha u bil-pussess vakant inkluza spjera esistenti f'din l-art u kappara zghira rurali bla numri. Il-porzjon art hawn trasferita hija murija fuq il-pjanta annessa ma' l-art.

Paul George Pisani

NOTARJAT TAL-VALLE

1 MAY 2002

Paul Gella

Not. Paul George Pisani LL.D.

Antonietta Cini armla ta' Joseph Cini, bint il-mejtin Joseph Dimech u Maria nee' Cini, imwielda u residenti Victoria, Ghawdex, bieghet u trasferiet bil-prezz ta' hamest cief lura Malta (Lm5,000) lill-Avukat Dottor Kevin Mompalao, bin John u Margaret nee' Cauchi u martu Marcelline Mompalao bint Francis sive Frank Mercieca u Mary nee' Xerri imwieldin it-tnejn Victoria, Ghawdex u t-tnejn residenti Xewkija, Ghawdex, il-fond numru iliet u ghoxrin (23) Triq il-Kanuccini, Victoria, Ghawdex, sottopost ghal propjeta oħra ta' l-imsemmija konjugi Mompalao, liberu u frank, bil-pussess vakant u bid-drittijiet u pertinenzi kollha tiegħu.

001953

Is-sebgha u ghoxrin (27)
ta' Settembru tas-sena
elfejn u tnejn (2002).

Joseph Muscat, pensjonant, bin il-mejtin Mikieli u Rosa nee' Mizza, imwielda Victoria, Ghawdex u residenti n-Nadur, Ghawdex biegh u trasferiet bil-prezz ta' elfejn lura Malta (Lm2,000) lill-Avukat Dottor Georg Sapiano, bin il-mejjet Alfred u Rosemarie nee' Flyn, u martu Audrey Sapiano, bint Giovanni Ellul u Angela nee' Fenech, imwieldin it-tnejn Aitard, Malta u residenti t-tnejn il-Qala, Ghawdex, porzjon art imsejha Ta' Cini fil-limiti tal-Qala, Ghawdex tal-kejl ta' cirka sittin metru kwadri (60m.k) jew kejl verjuri bli fiha, u tmiss min-nofsinhar ma' beni tal-familja Bugeja, u l-vant u tramuntana ma' beni tal-imsemmija konjugi Sapiano, libera u franka, bid-drittijiet u l-pertinenzi kollha tagħha u bil-pussess vakant u kif ahjar murija fuq il-pjanta annessa ma' l-att.

RICEVUTA ILLUMI

8 OCT 2002

Paul George Pisani

Notary Signature

Not. Paul George Pisani LL.D.

001515

Is-sitta u ghoxrin (26) ta' Luliu
tas-sena elfejn u tlieta (2003).

Beigh maghmul minn Vincent Muscat, impjegat, bin il-mejtin John u Mary nee' Mizzi, imwielel Qala, Ghawdex u joqghod New York, Stati Uniti tal-Amerika, a favur tal-Avukat Dottor Georg Sapiano, bin il-mejjet Alfred u Rose nee' Flynn, imwielel Attard, Malta u joqghod Sliema, Malta u martu Audrey Sapiano, bint John Ellul u Angele nee' Fenech, imwielda Attard, Malta u toqghod Sliema, Malta ta' porzjon art maghrufa bhala "ta' Cini" limiti Qala, Ghawdex, tal-kejl ta' cirka tlett mitt metru kwadru (300m.k.) u konfinanti tramuntana, lvant u punent ma' beni tal-kompraturi u nofsinhar ma' beni tal-familja Bugeja, libera u franka, bid-drittijiet u l-pertinenzi kollha taghha, u bil-pussess vakant, kif ahjar murija fuq il-pjanta u site-plan annessa mal-att, u dan bil-prezz ta' hamest'elef lira Maltin (Lm5,000).

29 JUL 2003

Notary Joanne Cauchi LL.D.

000024

Erbgha u ghoxrin (24) ta' Marzu, elfejn u erbgha (2004).

Kuntratt ta' flehim maghmul bejn il-kumpannija "Aperturi Limited" numru ta' registrazzjoni C16526 u Raymond Apap, security gurard, bin John Mary u Mary Jane nee' Haber, imwieled Xewkija, Ghawdex u joqghod Victoria, Ghawdex u martu Maria apap, bint John Pisani u Victoria, nee' Gauci, imwiielda Victoria, Ghawdex u toqghod Xewkija, Ghawdex, karti tal-identita' numri 53562(G) u 37165(G), min-naha u l-Avukat Dottor Georg Sapiano, bin il-mejjet Alfred u Rose nee' Flynn, imwieled Attard u joqghod Qala, Ghawdex, karta tal-identita' numru 71568(M) u martu Audrey Sapiano, bint John Baptist Ellul u Angela nee' Fenech, imwiielda Attard u toqghod Qala, karta tal-identita' numru 182272(M), min-naha l-ohra:

Bis-sahha ta' dana l-att, il-partijiet iddikjaraw u ippermettew illi:

- (i) il-konjugi Apap u l-kumpannija huma proprietarji tal-parti diviza mind-dar numru disgha (9) b'mandra annessa maghha li tinsab fi sqaq li jaghti ghal Triq ta' Cini, Qala, Ghawdex, konfinanti, punent ma' beni tal-konjugi sapiano, nofsinhar mal-isqaq u l'vant in parti ma' beni ta' Kevin u Jacqueline konjugi Grech u in parti ma' beni tal-familja Buttigieg, deskritta ahajr fl-att tal-akkwist maghmul fl-atti tan-Nutar Kristen Dimech tat-tmienja (8) ta' Awissu, elfejn u tlieta (2003).
- (ii) Il-konjugi Sapiano huma inter alia proprietarji ta' tliet bicciet raba' fl-istess inhawj, fil-limiti ta' Qala, Ghawdex, wahda tal-kejl ta' cirka tlieta u ghoxrin punt sitta metri kwadri (23.6mk), tmiss l'vant ma' Triq ta' Cini, nofsinhar ma' beni ta' Francesca Buttigieg u tramuntana ma' beni ta' Pawlu Buttigieg, jew l-aventi kawza, l-ohra tal-kejl ta' cirka mija u erbgha u tletin punt wiehed metri kwadri (134.1mk) tmiss nofsinhar mal-fond numru hmistax (15) Triq ta' Cini, tramuntana ma' sqaq u l'vant ma' beni ta' vincent Muscat jew tal-aventi kawza tieghu u l-ohra tal-kejl ta' cirka wiehed u ghoxrin punt erbgha metri kwadri (21.4mk), tmiss tramuntana ma' sqaq, nofsinhar ma'

RICEVUTA ILLUM

7 JAN 2005

NOT. KRISTEN DIMECH L.L.D.

24 (D)

beni ta' Raymond Camilleri u punent ma' beni ta' Vincent Muscat jew tal-aventi kawza tieghu; kif ukoll tad-dar numru hmistax (15) fi sqaq li jaghti ghal Triq ta' Cini Qala, Ghawdex, liema immobbli gew akkwistati mill-konjugi Sapiano b'att tan-Nutar Paul George Pisani tat-tmintax (18) ta' Novembru, elfejn (2000).

Peress illi qamu xi vertenzi bejn il-partijiet u peress illi huma riedu jitransigu bonarjament il-pendenzi ta' bejniethom, il-partijiet qablu u ftehm u għall-fini u effetti kollha tal-ligi illi:

- a. il-linja divizjorja bejn il-proprietajiet rispettivi hija dik indikata bl-ahmar u bl-ittri "a" u "b" fuq il-pjanta annessa mal-att bħala dokument "A".
- b. it-tieqa li thares lejn it-tramuntana u li mill-proprietarja tal-konjugi Sapiano hija miftuha għal gol-mandra fromanti parti mill-proprietarja tal-kumpannija u konjugi Apap jew mill-aventi kawza tagħhom hekk kif jibdw jivviluppaw il-proprietarja tagħhom.
- c. Illi dik il-parti diviza tal-kejl ta' cirka sebgha u erghin metru kwadru (47mk) jew kejl verjuri, bi ftuh ta' diet metri (3m) wiesgha mat-triq li jidijieq għal appssagg liberu wiesgha tnejn punt sebgha hamsa (2.75m) konfinanti, lvant ma' triq ta' Cini, nofsinhar ma' bei tal-kumpannija u tal-konjugi Apap u valnt ma' beni tal-konjugi Sapiaona, indiakta ahjar bl-isfar fuq il-pjanta annessa mal-att, għandha tintuza mill-partijiet fuq l-att bħala access kemm bil-vettura kif ukoll bif-riegel bil-patt u kondizzjoni illi din tinzamm zgombra f'kull hi u li ingenji u karrozzi ma jigux ipparkjati f'dan l-access anke għal zmien qasir. Il-partijiet ftehm u illi dan id-dritt huwa wiehed reali inerenti fil-proprietajiet rispettivi.

Fl-ahharnett il-partijiet iddikjaraw u qablu illi ma baqagħlhom l-ebda pendnezi jew preensjonijiet bejniethom ta' kwalunkwe xorta u natura u illi huma pjenament sodisfatti bil-ftehim.

RICEVUTA ILLUM

24 JAN 2005

NOT. KRISTEN DIMECH LL.D.

NOTA GHAL ISKRIZZJONI TA':

Hypothec and Privilege

5802

NUMRU PROGRESSIV

RIMARKI (GHAL
UZU UFFICIALI
BISS)

Can. 5957/2007

KREDITUR: Bank of Valletta p.l.c.DEBITUR: Doctor of Laws Georg Sapiano, an Advocate, son of Alfred and of Rose-Marie nee' Flynn, born in Attard and residing at Pietà, and his wife Audrey Sapiano, daughter of John-Baptist Ellul and of Angela nee' Fenech, born in Attard and residing at Pietà, jointly and severally between them.KREDITU: The sum of twelve thousand Maltese Liri (Lm12,000) granted on loan by the hereinmentioned creditor Bank to the hereinmentioned debtors by virtue of a deed in my records of the thirtieth (30) day of April of the year one thousand nine hundred ninety-eight (1998).

The creditor Bank, as delegated by the hereinmentioned debtors, paid on the same deed the said loan of Lm12000 directly to the vendors of the hereunder-described immovable property which was purchased on the same deed by the debtors, which payment was effected in settlement of the relative price.

The said loan bears interest at rates not exceeding the maximum rate allowed by law, which interest is reckoned on the amount due for balance of loan by the debtors from time to time in accordance with recognised banking practice, the said rate of interest to be fixed by the creditor Bank in its sole discretion from time to time.

The said loan was granted subject to the overriding condition that the outstanding balance of the loan and interest are repayable on demand, a simple request in writing to be deemed good and sufficient notice for the purpose, if any one or more of the conditions referred to in deed occur/s.

KAWZA TA' PREFERENZA: General Hypothec; and a Special Hypothec and Special Privilege over the flat internally numbered twelve (12), in Dolmen Court, at Qawra, in the limits of Saint Paul's Bay, in an unnumbered block in Triq Ghawdex, which block of flats is bounded on the west by the said street leading to Qawra Road, and on the north and south by property of the successors in title of Melita Properties Limited, inclusive of the common parts which the flat enjoys with the other flats in the block and in the development as result from the previous deeds regulating the title to this property (comprising the roof of the block, the staircase, access, and the surrounding garden together with the other flats in the same block, as well as the remaining surrounding garden, other common parts and the swimming-pool in the development known as Dolmen Court Development), as subject to an annual, perpetual and revisable subgroundrent mentioned in the deed, otherwise free and unencumbered, with all the relative rights and appurtenances.

RECEIVED

- 8 MAY 1998

TODAY

Illum

ta'

1998

(Director)

Firma tal-Persuna li tapplika
Nutar Dott. Mario L Felice

2519	NOTA TA' RIFERENZA
Riferenza Nru	TITOLU - REFERENCE
VOL.I. 5802/1998	By virtue of a deed in my records of the sixteenth (16) day of February of the year two thousand (2000), the creditor namely Bank of Valletta p.l.c. referred to the general hypothec which is inscribed in the Public Registry in the Volume of Hypothecs under progressive number five thousand eight hundred and two of the year one thousand nine hundred ninety-eight (5802/1998), and which is registered in favour of the creditor the Bank of Valletta p.l.c. and against Doctor of Laws Georg Sapiano, an Advocate, son of Alfred and of Rose-Marie nee' Flynn, born in Attard and residing at Sliema, and his wife Audrey Sapiano, daughter of John-Baptist Ellul and of Angela nee' Fenech, born in Attard and residing at Sliema; and the creditor the Bank of Valletta p.l.c. postponed in favour of HSBC Home Loans (Malta) Limited the said general hypothec to the hypothecs which arose from the same deed of the sixteenth (16) day of February of the year two thousand (2000) and which are inscribed in the Public Registry in the Volume of Hypothecs by a note bearing progressive number three thousand two hundred twenty-six of the year two thousand (3226/2000), but limitedly insofar as concerns the following immovable property namely (a) the flat internally numbered one (1), situate at elevated ground-floor level (overlying the basement), forming part of a block of apartments having access through entrance known as number one hundred and sixty-four (164), Tower Road, Sliema; and the said block forms part of a building overlying a block of land previously occupied by the block of building at one hundred sixty-three (163), one hundred sixty-four (164), one hundred sixty-four letter "A" (164A), and one hundred sixty-four letter "B" (164B), Tower Road, Sliema, and one, two and three (1, 2 and 3), Sir Luigi Camilleri Street (formerly Parallel Street), Sliema - hereinafter referred to as the Complex, now having two unnumbered entrances in Sir Luigi Camilleri Street, one leading to the basement, and is altogether bounded on the north by Tower Road, on the east by property of Gasan Properties Limited and on the west by Sir Luigi Camilleri Street (where there are another two secondary unnumbered entrances to this Complex); and the said apartment number one has the right of use of the common areas of the Complex being the main doors, entrance halls, stairwells, staircases, landings, shafts, lift shafts, lifts and drains; and (b) the garage internally unofficially numbered sixteen (16), as shown on the plan annexed to the deed marked as Document "C", situate at basement level, and forming part of the aforementioned Complex, which garage has a superficial area of approximately thirteen decimal point sero five (13.05) square metres, and is bounded on all sides by property of Marina Estates Limited or its successors in title; which garage enjoys the right of passage and access over the common areas of the said basement; free and unencumbered, with all the relative rights and appurtenances. And at the same time the Bank of Valletta p.l.c. retained its prior ranking insofar as concerns all other immovable property belonging to the said debtors Doctor Georg Sapiano and his wife the said Audrey Sapiano.

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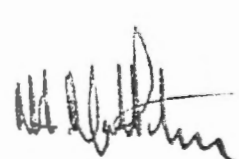
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(Direttur)

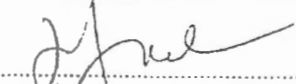
(Firma tal-Persuna li tapplika għall-iskrizzjoni)
Nutar Dott. Mario L Felice

	NOTA TA' RIFERENZA
Riferenza Nru 6017	TITOLU Reference
VOL.I. 5802/1998	By virtue of a deed in my records of the tenth (10) day of May of the year two thousand (2000), the hereinmentioned creditor the Bank of Valletta p.l.c. referred to the general hypothec which is inscribed in the Public Registry in the Volume of Hypothecs under progressive number five thousand eight hundred and two of the year one thousand nine hundred ninety-eight (5802/1998), and which is registered against Doctor of Laws Georg Sapiano, an Advocate, son of Alfred and of Rose-Marie nee' Flynn, born in Attard and residing at Sliema, and against Audrey Sapiano, wife of the said Doctor Georg Sapiano, daughter of John-Baptist Ellul and of Angela nee' Fenech, born in Attard and residing at Sliema; and the Bank of Valletta p.l.c. agreed to postpone in favour of HSBC Bank Malta p.l.c., the said general hypothec to the hypothecs which were constituted on the same deed of the tenth (10) May of the year two thousand (2000) by the same debtors, as entered in the Volume of Hypothecs by means of two consecutive notes bearing numbers six thousand seven hundred sixty-three, and six thousand seven hundred sixty-four, both of the year two thousand (6763/2000, and 6764/2000), but limitedly insofar as concerns the house at number one hundred fifty-seven (157), Marina Street, Pieta', which house partly overlies the property of third parties, free and unencumbered, with all its rights and appurtenances; and at the same time the Bank of Valletta p.l.c. retained its prior ranking insofar as concerns all other immovable property belonging to the hereinmentioned debtors.

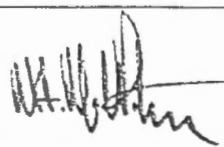

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 17 OCT 2000
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 Illum ta'
 (Direttur)
 (Firma tal-Persuna li tapplika għall-iskrizzjoni)
 Nutar Dott. Mario L Felice

	NOTA TA' RIFERENZA
Riferenza Nru 6197	TITOLU Reference
VOL.I. 5802/1998	In virtue of a deed in my records of the nineteenth (19) day of October of the year two thousand (2000), the creditor namely the "Bank of Valletta p.l.c." referred to the general hypothec which arises from this note and which is registered against Doctor of Laws Georg Sapiano, an Advocate, son of Alfred and of Rose-Marie nee' Flynn, born in Attard and residing at Sliema, and his wife Audrey Sapiano, daughter of John-Baptist Ellul and of Angela nee' Fenech, born in Attard and residing at Sliema; and the Bank of Valletta p.l.c. agreed to postpone in favour of HSBC Home Loans (Malta) Limited, the said general hypothec to the hypothecs registered against the said debtors Doctor Georg Sapiano and Audrey Sapiano in the volume of hypothecs by note bearing progressive number fifteen thousand seven hundred and five of the year two thousand (15705/2000), but limitedly insofar as concerns the house at number fourteen (14), in an unnumbered Alley which abuts onto Triq Cini, at Qala, Gozo, which house consists of a large room and three smaller rooms at ground-floor level, and another two large rooms and a smaller room at first-floor level, which property partly overlies the property of third parties, together with the annexed garden which occupies an area of approximately two hundred and ten square meters (210 sq.m.), or more accurate area, altogether bounded on the east by the said Alley, on the west by property belonging to Grazio Debono, and on the north by property belonging to the Camilleri brothers; free and unencumbered - which property is registered at the Land Registry, Gozo, with a certificate of title bearing number four eight zero zero one three seven seven (48001377) - and at the same time the Bank of Valletta p.l.c. retained its prior ranking insofar as concerns all other property belonging to the said Doctor Georg Sapiano and Audrey Sapiano.
RECEIVED 25 OCT 2000	

Illum ta' 2000



 (Direttur)



 (Firma tal-Persuna li tapplika għall-iskrizzjoni)
 Nutar Dott. Mario L Felice

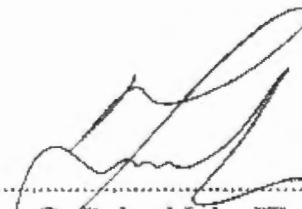
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Nota ta' Riferenza

Riferenza Nru:	Title (Waiver)
I.5802/1998	B'att tiegħi tal-erbogħa u għoxrin ta' Settembru tas-sena elfin u tnejn (24.9.2002) il-kreditur Bank of Valletta p.l.c. ta' l-kunsens tiegħu għar-riduzzjoni tad-drittijiet tiegħu naxxenti mid-dekontru nota registrata kontra Georg Sapiano, in kwantu jidher li l-Ipoteka Generali naxxenti mill-insemmija nota, filwaqt li l-Bank jzomm iermi u saldi id-drittijiet l-oħra kollha naxxenti mid-dekontru nota. RECEIVED - 8 OCT 2002 RECEIVED

Today..... 19.....


.....
Director


.....
Dr Roland John Wadge
(Notary Public, Malta)

	NOTA TA' RIFERENZA
Riferenza Nru 746	TITOLU Reference
VOL.I. 5802/1998	In virtue of a deed in my records of the nineteenth (19) day of October of the year two thousand (2000), the Bank of Valletta p.l.c. postponed the general hypothec which arises from this note of hypothec, and which is registered against Doctor of Laws Georg Sapiano, an Advocate, son of Alfred and of Rose-Marie nee' Flynn, born in Attard and residing at Sliema, and his wife Audrey Sapiano, daughter of John-Baptist Ellul and of Angela nee' Fenech, born in Attard and residing at Sliema, but limitedly insofar as concerns the following immovable property, namely the house at number fourteen (14), in an unnumbered Alley which abuts onto Triq Cini, at Qala, Gozo, which house consists of a large room and three smaller rooms at ground-floor level, and another two large rooms and a smaller room at first-floor level, which property partly overlies the property of third parties, together with the annexed garden which occupies an area of approximately two hundred and ten square meters (210 sq.m.), or more accurate area, altogether bounded on the east by the said Alley, on the west by property belonging to Grazio Debono, and on the north by property belonging to the Camilleri brothers; free and unencumbered - which property is registered at the Land Registry, Gozo, with a certificate of title bearing number four eight zero zero one three seven seven (48001377); and the postponement as aforesaid was made to the hypothec fifteen thousand seven hundred and five of the year two thousand (15705/2000), which is registered in favour of HSBC Home Loans (Malta) Limited; and at the same time the creditor Bank of Valletta p.l.c. retained its prior ranking insofar as concerns all other property belonging to the debtors.

Illum ta'

RECEIVED**- 4 FEB 2003****TODAY**

(Direttur)

(Firma tal-Persuna li tapplika għall-iskrizzjoni)
Nutar Dott. Mario L Felice

Note for the inscription of a hypothec

Progressive number:

3510

Remarks:

(For office use only)

Creditor:

Mid-Med Bank p.l.c.

Can. 5420 / 2010
Can. 6007 / 2010

Debtor:

Advocate Doctor Georg Sapiano, son of the late Alfred and Rose Marie nee Flynn born at Attard holder of identity card number 71568(M), as the principal debtor and Audrey Sapiano, wife of Georg, daughter of John Baptist Ellul and Angela nee Fenech, born at Attard holder of identity card number 182272(M) and both residing at Pieta', as the joint and several surety

Credit:

Fifteen thousand Maltese Liri granted on loan by the creditor to the principal debtor for the purpose of effecting improvements and alterations to the hereunder mentioned immovable property, which loan and the interests accruing thereon are repayable on demand a simple request in writing being sufficient for this purpose, with interest at rates not exceeding the maximum rate allowed by law, the said rate of interest to be fixed by the creditor in its sole discretion from time to time and subject to all the other conditions mentioned in the deed of loan in my records of the twenty fifth day of February of the year nineteen hundred and ninety nine.

Cause of preference:

General hypothec over the principal debtor and over the surety, and a special hypothec on the house numbered one hundred and fifty seven in Marina Street, Pieta', partly overlying a garage being third party property, free and unencumbered, with all its rights and appurtenances, as property of the debtor, being also the matrimonial home of the spouses Sapiano.

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Today

10 MAR 1999

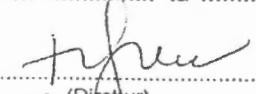
TODAY

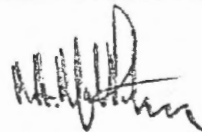
Director

Notary Dr Robert John Muscat LL.D.

	NOTA TA' RIFERENZA
Riferenza Nru 6196	TITOLU Reference
VOL.I. 3510/1999	In virtue of a deed in my records of the nineteenth (19) day of October of the year two thousand (2000), the creditor namely "HSBC Bank Malta p.l.c." referred to the general hypothec which arises from this note and which is registered against Doctor of Laws Georg Sapiano, an Advocate, son of Alfred and of Rose-Marie nee' Flynn, born in Attard and residing at Sliema, and his wife Audrey Sapiano, daughter of John-Baptist Ellul and of Angela nee' Fenech, born in Attard and residing at Sliema; and the Bank of Valletta p.l.c. agreed to postpone in favour of HSBC Home Loans (Malta) Limited, the said general hypothec to the hypothecs registered against the said debtors Doctor Georg Sapiano and Audrey Sapiano in the volume of hypothecs by note bearing progressive number fifteen thousand seven hundred and five of the year two thousand (15705/2000), but limitedly insofar as concerns the house at number fourteen (14), in an unnumbered Alley which abuts onto Triq Cini, at Qala, Gozo, which house consists of a large room and three smaller rooms at ground-floor level, and another two large rooms and a smaller room at first-floor level, which property partly overlies the property of third parties, together with the annexed garden which occupies an area of approximately two hundred and ten square meters (210 sq.m.), or more accurate area, altogether bounded on the east by the said Alley, on the west by property belonging to Grazio Debono, and on the north by property belonging to the Camilleri brothers; free and unencumbered – which property is registered at the Land Registry, Gozo, with a certificate of title bearing number four eight zero zero one three seven seven (48001377) - and at the same time HSBC Bank Malta p.l.c. retained its prior ranking insofar as concerns all other property belonging to the said Doctor Georg Sapiano and Audrey Sapiano.
RECEIVED 25 OCT 2000	

Illum ta' 2000


(Direttur)



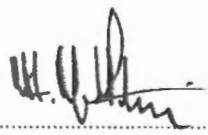
(Firma tal-Persuna li tapplika għall-iskrizzjoni)
Nutar Dott. Mario L Felice

	NOTA TA' RIFERENZA
Riferenza Nru	TITOLU
745	Reference
VOL.I. 6763/2000 6764/2000 3510/1999 4796/1999	In virtue of a deed in my records of the nineteenth (19) day of October of the year two thousand (2000), the HSBC Bank Malta p.l.c. postponed the <u>general</u> hypothecs which arise from these notes of hypothec, and which are registered against Doctor of Laws Georg Sapiano, an Advocate, son of Alfred and of Rose-Marie nee' Flynn, born in Attard and residing at Sliema, and his wife Audrey Sapiano, daughter of John-Baptist Ellul and of Angela nee' Fenech, born in Attard and residing at Sliema, but limitedly insofar as concern the following immovable property, namely the house at number fourteen (14), in an unnumbered Alley which abuts onto Triq Cini, at Qala, Gozo, which house consists of a large room and three smaller rooms at ground-floor level, and another two large rooms and a smaller room at first-floor level, which property partly overlies the property of third parties, together with the annexed garden which occupies an area of approximately two hundred and ten square meters (210 sq.m.), or more accurate area, altogether bounded on the east by the said Alley, on the west by property belonging to Grazio Debono, and on the north by property belonging to the Camilleri brothers; free and unencumbered - which property is registered at the Land Registry, Gozo, with a certificate of title bearing number four eight zero zero one three seven seven (48001377); and the postponement as aforesaid was made to the hypothec fifteen thousand seven hundred and five of the year two thousand (15705/2000), which is registered in favour of HSBC Home Loans (Malta) Limited; and at the same time the creditor HSBC Bank Malta p.l.c. retained its prior ranking insofar as concerns all other property belonging to the debtors.

Illum ta'

- 4 FEB 2003
TODAY

 (Direttur)


 (Firma tal-Persuna li tapplika għall-iskrizzjoni)
 Nutar Dott. Mario L. Felice

Note for the inscription of a hypothec
and a privilege

Progressive number:

4796

Remarks: (For office use only)	
Creditor:	Cauc 5420/2000
Mid-Med Bank p.l.c.	Cauc 6007/2000
Debtor:	
<u>Advocate Doctor Georg Sapiano</u>, son of the late Alfred and Rose Marie nee' Flynn born at Attard holder of identity card number 71568(M), as the principal debtor and <u>Audrey Sapiano</u>, wife of Georg, daughter of John Baptist Ellul and Angela nee' Fenech, born at Attard holder of identity card number 182272(M) and both residing at Pieta', as the joint and several surety.	
Credit:	
Fifteen thousand Maltese Liri granted on loan by the creditor to the principal debtor for the purpose of effecting improvements and alterations to the hereunder mentioned immovable property, which loan and the interests accruing thereon are repayable on demand a simple request in writing being sufficient for this purpose, with interest at rates not exceeding the maximum rate allowed by law, the said rate of interest to be fixed by the creditor in its sole discretion from time to time and subject to all the other conditions mentioned in the deed of loan in my records of the twenty fifth day of February of the year nineteen hundred and ninety nine.	
Cause of preference:	
General hypothec over the principal debtor and over the surety, and a special hypothec and special legal privilege on the house numbered one hundred and fifty seven in Marina Street, Pieta', partly overlying a garage being third party property, free and unencumbered, with all its rights and appurtenances, as property of the debtor, being also the matrimonial home of the spouses Sapiano.	

Lm 1.000

This note has already been registered under hypothec number three thousand five hundred and ten of the year nineteen hundred and ninety nine where the special legal privilege against the principal debtor over the house abovementioned was erroneously omitted.

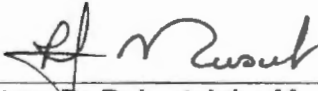
Today **RECEIVED**

/ 6 APR 1999

TODAY

at Director

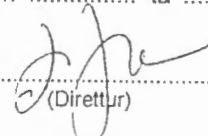
D. Bog Gecoda



Notary Dr Robert John Muscat LL.B.

	NOTA TA' RIFERENZA
Riferenza Nru 6199	TITOLU Reference
VOL.I. 4796/1999	In virtue of a deed in my records of the nineteenth (19) day of October of the year two thousand (2000), the creditor namely "HSBC Bank Malta p.l.c." referred to the general hypothec which arises from this note and which is registered against Doctor of Laws Georg Sapiano, an Advocate, son of Alfred and of Rose-Marie nee' Flynn, born in Attard and residing at Sliema, and his wife Audrey Sapiano, daughter of John-Baptist Ellul and of Angela nee' Fenech, born in Attard and residing at Sliema; and the Bank of Valletta p.l.c. agreed to postpone in favour of HSBC Home Loans (Malta) Limited, the said general hypothec to the hypothecs registered against the said debtors Doctor Georg Sapiano and Audrey Sapiano in the volume of hypothecs by note bearing progressive number fifteen thousand seven hundred and five of the year two thousand (15705/2000), but limitedly insofar as concerns the house at number fourteen (14), in an unnumbered Alley which abuts onto Triq Cini, at Qala, Gozo, which house consists of a large room and three smaller rooms at ground-floor level, and another two large rooms and a smaller room at first-floor level, which property partly overlies the property of third parties, together with the annexed garden which occupies an area of approximately two hundred and ten square meters (210 sq.m.), or more accurate area, altogether bounded on the east by the said Alley, on the west by property belonging to Grazio Debono, and on the north by property belonging to the Camilleri brothers; free and unencumbered - which property is registered at the Land Registry, Gozo, with a certificate of title bearing number four eight zero zero one three seven seven (48001377) - and at the same time HSBC Bank Malta p.l.c. retained its prior ranking insofar as concerns all other property belonging to the said Doctor Georg Sapiano and Audrey Sapiano.

Illum ta' 2000



 (Direttur)

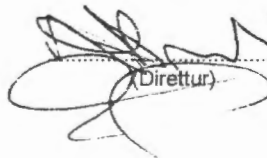


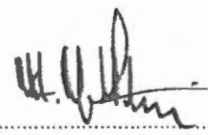
 (Firma tal-Persuna li tapplika għall-iskrizzjoni)
 Notar Dott. Mario L Felice

	NOTA TA' RIFERENZA
Riferenza Nru	TITOLU
745	Reference
VOL.I. 6763/2000 6764/2000 3510/1999 4796/1999	In virtue of a deed in my records of the nineteenth (19) day of October of the year two thousand (2000), the HSBC Bank Malta p.l.c. postponed the general hypothecs which arise from these notes of hypothec, and which are registered against Doctor of Laws Georg Sapiano, an Advocate, son of Alfred and of Rose-Marie nee' Flynn, born in Attard and residing at Sliema, and his wife Audrey Sapiano, daughter of John-Baptist Ellul and of Angela nee' Fenech, born in Attard and residing at Sliema, but limitedly insofar as concern the following immovable property, namely the house at number fourteen (14), in an unnumbered Alley which abuts onto Triq Cini, at Qala, Gozo, which house consists of a large room and three smaller rooms at ground-floor level, and another two large rooms and a smaller room at first-floor level, which property partly overlies the property of third parties, together with the annexed garden which occupies an area of approximately two hundred and ten square meters (210 sq.m.), or more accurate area, altogether bounded on the east by the said Alley, on the west by property belonging to Grazio Debono, and on the north by property belonging to the Camilleri brothers; free and unencumbered - which property is registered at the Land Registry, Gozo, with a certificate of title bearing number four eight zero zero one three seven seven (48001377); and the postponement as aforesaid was made to the hypothec fifteen thousand seven hundred and five of the year two thousand (15705/2000), which is registered in favour of HSBC Home Loans (Malta) Limited; and at the same time the creditor HSBC Bank Malta p.l.c. retained its prior ranking insofar as concerns all other property belonging to the debtors.

Illum ta'

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- 4 FEB 2003
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(Direttur)


(Firma tal-Persuna li tapplika għall-iskrizzjoni)
Nutar Dott. Mario L Felice

NOTA GHAL ISKRIZZJONI TA'

Hypothec and Privilege

NUMRU PROGRESSIV

3226

RIMARKI (GHAL
UZU UFFICJALI
BISS)

Case 5420/2010

KREDITUR: "HSBC Home Loans (Malta) Limited".

DEBITUR: Doctor of Laws Georg Sapiano, an Advocate, son of Alfred and of Rose-Marie nee' Flynn, born in Attard and residing at Sliema, and his wife Audrey Sapiano, daughter of John-Baptist Ellul and of Angela nee' Fenech, born in Attard and residing at Sliema; jointly and severally between them.

KREDITU: The sum of eighty thousand Maltese Liri (Lm80,000) granted on loan by the hereinmentioned creditor Bank to the hereinmentioned debtors, by virtue of a deed in my records of the sixteenth (16) day of February of the year two thousand (2000).

Part of the said loan, namely the sum of forty thousand Maltese liri (Lm40,000) was granted in order to enable the Borrowers to finance part of the purchase price of the hereunder-described immovable property; and the creditor Bank, as delegated by the said debtors, paid the said sum of forty thousand Maltese liri (Lm40,000) on the same deed directly to the vendor of the same immovable property which was purchased by the said debtors, which said payment was effected as part and in settlement of the relative price.

KAWZA TA' PREFERENZA: General Hypothec;

A Special Hypothec over the following immovable property, namely:

(a) the flat internally numbered one (1), situate at elevated ground-floor level (overlying the basement), forming part of a block of apartments having access through entrance known as number one hundred and sixty-four (164), Tower Road, Sliema; and the said block forms part of a building overlying a block of land previously occupied by the block of building at one hundred sixty-three (163), one hundred sixty-four (164), one hundred sixty-four letter "A" (164A), and one hundred sixty-four letter "B" (164B), Tower Road, Sliema, and one, two and three (1, 2 and 3), Sir Luigi Camilleri Street (formerly Parallel Street), Sliema - hereinafter referred to as the Complex, now having two unnumbered entrances in Sir Luigi Camilleri Street, one leading to the basement, and is altogether bounded on the north by Tower Road, on the east by property of Gasan Properties Limited and on the west by Sir Luigi Camilleri Street (where there are another two secondary unnumbered entrances to this Complex);

(TURN OVER)

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- 7 MAR 2000

(Direttur)

TODAY

Firma tal-Persuna li tapplika
Nutar Dott. Mario L Felice

11

NOTA GHAL ISKRIZZJONI TA'

NUMRU PROGRESSIV

3226

RIMARKI (GHAL
UZU UFFICJALI
BISS)

KREDITUR:

DEBITUR:

KREDITU: The said loan was granted under conditions, including repayments, as stipulated and/or referred to in the deed, but the following are overriding conditions, namely:-

(a) The interest rate shall not exceed the maximum rate allowed by law and shall be reckoned on the amount due for balance of loan by the debtors from time to time in accordance with recognised banking practice, the said rate of interest to be fixed by the creditor Bank in its sole discretion from time to time; and

(b) The loan shall be repayable on demand (a simple request in writing being sufficient for this purpose) in the event of any of the present or future conditions for the loan not being adhered to, provided that the creditor Bank shall grant the Borrowers fifteen days from the date of filing of a judicial letter advising default and requesting regularisation of the deficiency.

KAWZA TA' PREFERENZA: and the said apartment number one has the right of use of the common areas of the Complex being the main doors, entrance halls, stairwells, staircases, landings, shafts, lift shafts, lifts and drains; and (b) the garage internally unofficially numbered sixteen (16), as shown on the plan annexed to the deed marked as Document "C", situate at basement level, and forming part of the aforementioned Complex, which garage has a superficial area of approximately thirteen decimal point sero five (13.05) square metres, and is bounded on all sides by property of Marina Estates Limited or its successors in title; which garage enjoys the right of passage and access over the common areas of the said basement; free and unencumbered, with all the relative rights and appurtenances.

A Special Privilege over the same above-described immovable property, although the said special privilege is limited to the sum of forty thousand Maltese liri (Lm40,000) and the relative interests thereon.

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[Signature]

(Direttur)

- 7 MAR 2000

Firma tal-Persuna li tapplika
Nutar Dott. Mario L Felice

TODAY

NOTA GHAL ISKRIZZJONI TA'

Privilege

NUMRU PROGRESSIV

3227

RIMARKI (GHAL
UZU UFFICJALI
BISS)

KREDITUR: Marina Estates Limited

DEBITUR: Doctor of Laws Georg Sapiano, an Advocate, son of Alfred and of Rose-Marie nee Flynn, born in Attard and residing at Sliema, and his wife Audrey Sapiano, daughter of John-Baptist Ellul and of Angela nee Fenech, born in Attard and residing at Sliema.

KREDITU: One hundred Maltese liri (Lm100) annual and perpetual ground-rent which the creditor, with the consent of the debtors, constituted in its favour over the hereunder-described immovable property by virtue of a deed in my records of the sixteenth (16) day of February of the year two thousand (2000), which ground-rent commenced from the date of the deed, and it is payable annually in advance.

The said ground-rent is revisable fifty years after the date of the deed, and thereafter every fifty years in perpetuity; and on each revision the said ground-rent will be increased by seventy-five per centum (75%) of the previous amount.

In the event of each and every future transfer of the property the creditor company shall have the right to the payment of a laudemium (recognition-fee) equivalent to one year ground-rent.

KAWZA TA' PREFERENZA: A Special Privilege over (a) the flat internally numbered one (1), situate at elevated ground-floor level (overlying the basement), forming part of a block of apartments having access through entrance known as number one hundred and sixty-four (164), Tower Road, Sliema; and the said block forms part of a building overlying a block of land previously occupied by the block of building at one hundred sixty-three (163), one hundred sixty-four (164), one hundred sixty-four letter "A" (164A), and one hundred sixty-four letter "B" (164B), Tower Road, Sliema, and one, two and three (1, 2 and 3), Sir Luigi Camilleri Street (formerly Parallel Street), Sliema - hereinafter referred to as the Complex, now having two unnumbered entrances in Sir Luigi Camilleri Street, one leading to the basement, and is altogether bounded on the north by Tower Road, on the east by property of Gasan Properties Limited and on the west by Sir Luigi Camilleri Street (where there are another two secondary unnumbered entrances to this Complex); -----

(PLEASE TURN OVER)

Illum

RECEIVED

(Direttur)

- 7 MAR 2000

TODAY

Firma tal-Persuna li tapplika
Nutar Dott. Mario L Felice

NOTA GHAL ISKRIZZJONI TA':

NUMRU PROGRESSIV

3927

RIMARKI (GHAL
UZU UFFICJALI
BISS)

KREDITUR:

DEBITUR:

KREDITU:

KAWZA TA' PREFERENZA: and the said apartment number one has the right of use of the common areas of the Complex being the main doors, entrance halls, stairwells, staircases, landings, shafts, lift shafts, lifts and drains; and (b) the garage, internally unofficially numbered sixteen (16), as shown on the plan annexed to the deed marked as Document "C", situate at basement level, and forming part of the aforementioned Complex, which garage has a superficial area of approximately thirteen decimal point sero five (13.05) square metres, and is bounded on all sides by property of the creditor company or its successors in title; which garage enjoys the right of passage and access over the common areas of the said basement; free and unencumbered, with all the relative rights and appurtenances.

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- 7 MAR 2000

TODAY

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2000

(Direttur)

Firma tal-Persuna li tapplika
Nutar Dott. Mario L Felice

NOTA GHAL ISKRIZZJONI TA':

Hypothec

NUMRU PROGRESSIV

6763

RIMARKI (GHAL
UZU UFFICJALI
BISS)

R 6200 / 2000
R 745 / 03

Cauc: 5420 / 2010
6007 / 2010

KREDITUR: HSBC Bank Malta p.l.c.

DEBITUR: Doctor of Laws Georg Sapiano, an Advocate, son of Alfred and of Rose-Marie nee Flynn, born in Attard and residing at Sliema, and his wife Audrey Sapiano, daughter of John-Baptist Ellul and of Angela nee Fenech, born in Attard and residing at Sliema, jointly and severally between them.

KREDITU: The sum of twenty thousand Maltese liri (Lm20,000) granted on loan by the creditor Bank to the hereinmentioned debtors by virtue of a deed in my records of the tenth (10) day of May of the year two thousand (2000).

The said loan bears interest at rates not exceeding the maximum rate allowed by law, which interest is reckoned on the amount due for balance of loan by the debtors from time to time in accordance with recognised banking practice, the said rate of interest to be fixed by the creditor Bank in its sole discretion from time to time.

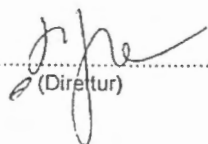
The said loan was granted subject to the overriding condition that the outstanding balance of the loan and interest are repayable on demand, a simple request in writing to be deemed good and sufficient notice for the purpose.

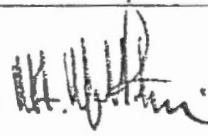
KAWZA TA' PREFERENZA: A general hypothec against the two debtors; and a special hypothec over the following immovable property belonging to the debtor Georg Sapiano, namely the house at number one hundred fifty-seven (157), Marina Street, Pieta', which house partly overlies the property of third parties, free and unencumbered, with all its rights and appurtenances. The said immovable property is registered at the Land Registry, and the relative certificate of title bears number four seven zero zero zero one six eight (47000168).

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(Direttur)
Firma tal-Persuna li tapplika
Nutar Dott. Mario L Felice

	NOTA TA' RIFERENZA
Riferenza Nru 6200	TITOLU Reference
VOL.I. 6763/2000	In virtue of a deed in my records of the nineteenth (19) day of October of the year two thousand (2000), the creditor namely the "HSBC Bank Malta p.l.c." referred to the general hypothec which arises from this note and which is registered against Doctor of Laws Georg Sapiano, an Advocate, son of Alfred and of Rose-Marie nee' Flynn, born in Attard and residing at Sliema, and his wife Audrey Sapiano, daughter of John-Baptist Ellul and of Angela nee' Fenech, born in Attard and residing at Sliema; and the Bank of Valletta p.l.c. agreed to postpone in favour of HSBC Home Loans (Malta) Limited, the said general hypothec to the hypothecs registered against the said debtors Doctor Georg Sapiano and Audrey Sapiano in the volume of hypothecs by note bearing progressive number fifteen thousand seven hundred and five of the year two thousand (15705/2000), but limitedly insofar as concerns the house at number fourteen (14), in an unnumbered Alley which abuts onto Triq Cini, at Qala, Gozo, which house consists of a large room and three smaller rooms at ground-floor level, and another two large rooms and a smaller room at first-floor level, which property partly overlies the property of third parties, together with the annexed garden which occupies an area of approximately two hundred and ten square meters (210 sq.m.), or more accurate area, altogether bounded on the east by the said Alley, on the west by property belonging to Grazio Debono, and on the north by property belonging to the Camilleri brothers; free and unencumbered - which property is registered at the Land Registry, Gozo, with a certificate of title bearing number four eight zero zero one three seven seven (48001377) - and at the same time the Bank of Valletta p.l.c. retained its prior ranking insofar as concerns all other property belonging to the said Doctor Georg Sapiano and Audrey Sapiano.
RECEIVED 25 OCT 2000	

Illum ta' 2000


(Direttur)


(Firma tal-Persuna li tapplika għall-iskrizzjoni)
Nutar Dott. Mario L Felice

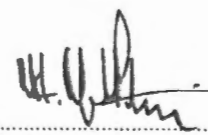
	NOTA TA' RIFERENZA
Riferenza Nru 745	TITOLU Reference
VOL.I. 6763/2000 6764/2000 3510/1999 4796/1999	In virtue of a deed in my records of the nineteenth (19) day of October of the year two thousand (2000), the HSBC Bank Malta p.l.c. postponed the general hypothecs which arise from these notes of hypothec, and which are registered against Doctor of Laws Georg Sapiano, an Advocate, son of Alfred and of Rose-Marie nee' Flynn, born in Attard and residing at Sliema, and his wife Audrey Sapiano, daughter of John-Baptist Ellul and of Angela nee' Fenech, born in Attard and residing at Sliema, but limitedly insofar as concern the following immovable property, namely the house at number fourteen (14), in an unnumbered Alley which abuts onto Triq Cini, at Qala, Gozo, which house consists of a large room and three smaller rooms at ground-floor level, and another two large rooms and a smaller room at first-floor level, which property partly overlies the property of third parties, together with the annexed garden which occupies an area of approximately two hundred and ten square meters (210 sq.m.), or more accurate area, altogether bounded on the east by the said Alley, on the west by property belonging to Grazio Debono, and on the north by property belonging to the Camilleri brothers; free and unencumbered - which property is registered at the Land Registry, Gozo, with a certificate of title bearing number four eight zero zero one three seven seven (48001377); and the postponement as aforesaid was made to the hypothec fifteen thousand seven hundred and five of the year two thousand (15705/2000), which is registered in favour of HSBC Home Loans (Malta) Limited; and at the same time the creditor HSBC Bank Malta p.l.c. retained its prior ranking insofar as concerns all other property belonging to the debtors.

Illum ta' - 4 FEB 2003

TODAY



(Direttur)



(Firma tal-Persuna li tapplika għall-iskrizzjoni)
Nutar Dott. Mario L Felice

NOTA GHAL ISKRIZZJONI TA':

Hypothec

NUMRU PROGRESSIV

0464

RIMARKI (GHAL
UZU UFFICJALI
BISS)

R 6198/2000
R 745/03

Can. 5420/2010
6007/2010

KREDITUR: HSBC Bank Malta p.l.c.

DEBITUR: ~~Doctor of Laws~~ Georg Sapiano, an Advocate, son of Alfred and of Rose-Marie nee' Flynn, born in Attard and residing at Sliema, and his wife Audrey Sapiano, daughter of John-Baptist Ellul and of Angela nee' Fenech, born in Attard and residing at Sliema, jointly and severally between them.

KREDITU: The sum of ten thousand Maltese Liri (Lm10,000) granted on overdraft and other banking facilities by the creditor Bank to the hereinmentioned debtors, by virtue of a deed in my records of the tenth (10) day of May of the year two thousand (2000).

The said overdraft and other banking facilities were granted with interest at rates not exceeding the maximum rate allowed by law, which are due by the debtors on daily debit balances in accordance with recognised banking practice, the said rate of interest to be fixed by the creditor Bank in its sole discretion from time to time.

In addition the said overdraft and other banking facilities were granted subject to the overriding condition that the creditor Bank is entitled at any time to call upon the debtors to settle their indebtedness to the creditor Bank and to pay the balance due in their current account, a simple request in writing to be deemed good and sufficient notice for the debtors to implement their engagements forthwith.

KAWZA TA' PREFERENZA: A general hypothec against the two debtors; and a special hypothec over the following immovable property belonging to the debtor Georg Sapiano, namely the house at number one hundred fifty-seven (157), Marina Street, Pieta', which house partly overlies the property of third parties, free and unencumbered, with all its rights and appurtenances. The said immovable property is registered at the Land Registry, and the relative certificate of title bears number four seven zero zero zero one six eight (47000168).

Illum

ta'

2000

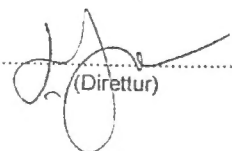
2000

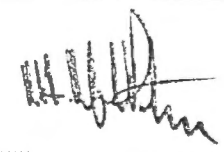
(Direttur)

Firma tal-Persuna li tapplika
Notar Dott. Mario L Felice

	NOTA TA' RIFERENZA
Riferenza Nru 6198	TITOLU Reference
VOL.I. 6764/2000	In virtue of a deed in my records of the nineteenth (19) day of October of the year two thousand (2000), the creditor namely "HSBC Bank Malta p.l.c." referred to the general hypothec which arises from this note and which is registered against Doctor of Laws Georg Sapiano, an Advocate, son of Alfred and of Rose-Marie nee' Flynn, born in Attard and residing at Sliema, and his wife Audrey Sapiano, daughter of John-Baptist Ellul and of Angela nee' Fenech, born in Attard and residing at Sliema; and the Bank of Valletta p.l.c. agreed to postpone in favour of HSBC Home Loans (Malta) Limited, the said general hypothec to the hypothecs registered against the said debtors Doctor Georg Sapiano and Audrey Sapiano in the volume of hypothecs by note bearing progressive number fifteen thousand seven hundred and five of the year two thousand (15705/2000), but limitedly insofar as concerns the house at number fourteen (14), in an unnumbered Alley which abuts onto Triq Cini, at Qala, Gozo, which house consists of a large room and three smaller rooms at ground-floor level, and another two large rooms and a smaller room at first-floor level, which property partly overlies the property of third parties, together with the annexed garden which occupies an area of approximately two hundred and ten square meters (210 sq.m.), or more accurate area, altogether bounded on the east by the said Alley, on the west by property belonging to Grazio Debono, and on the north by property belonging to the Camilleri brothers; free and unencumbered – which property is registered at the Land Registry, Gozo, with a certificate of title bearing number four eight zero zero one three seven seven (48001377) - and at the same time HSBC Bank Malta p.l.c. retained its prior ranking insofar as concerns all other property belonging to the said Doctor Georg Sapiano and Audrey Sapiano. RECEIVED 25 OCT 2000

Illum ta' 2000


 (Direttur)


 (Firma tal-Persuna li tapplika għall-iskrizzjoni)
 Notar Dott. Mario L Felice

	NOTA TA' RIFERENZA
Riferenza Nru 745	TITOLU Reference
VOL.I. 6763/2000 6764/2000 3510/1999 4796/1999	In virtue of a deed in my records of the nineteenth (19) day of October of the year two thousand (2000), the HSBC Bank Malta p.l.c. postponed the general hypothecs which arise from these notes of hypothec, and which are registered against Doctor of Laws Georg Sapiano, an Advocate, son of Alfred and of Rose-Marie nee' Flynn, born in Attard and residing at Sliema, and his wife Audrey Sapiano, daughter of John-Baptist Ellul and of Angela nee' Fenech, born in Attard and residing at Sliema, but limitedly insofar as concern the following immovable property, namely the house at number fourteen (14), in an unnumbered Alley which abuts onto Triq Cini, at Qala, Gozo, which house consists of a large room and three smaller rooms at ground-floor level, and another two large rooms and a smaller room at first-floor level, which property partly overlies the property of third parties, together with the annexed garden which occupies an area of approximately two hundred and ten square meters (210 sq.m.), or more accurate area, altogether bounded on the east by the said Alley, on the west by property belonging to Grazio Debono, and on the north by property belonging to the Camilleri brothers; free and unencumbered - which property is registered at the Land Registry, Gozo, with a certificate of title bearing number four eight zero zero one three seven seven (48001377); and the postponement as aforesaid was made to the hypothec fifteen thousand seven hundred and five of the year two thousand (15705/2000), which is registered in favour of HSBC Home Loans (Malta) Limited; and at the same time the creditor HSBC Bank Malta p.l.c. retained its prior ranking insofar as concerns all other property belonging to the debtors.

Illum ta'

RECEIVED
- 4 FEB 2003
TODAY

[Signature]
(Direttur)

[Signature]
(Firma tal-Persuna li tapplika għall-iskrizzjoni)
Nutar Dott. Mario L Felice

NOTA GHAL ISKRIZZJONI TA':

Hypothec and Privilege

15705

NUMRU PROGRESSIV

RIMARKI (GHAL
UZU UFFICJALI
BISS)

Rs. Val. 5421/2010

KREDITUR: "HSBC Home Loans (Malta) Limited".

DEBITUR: Doctor of Laws Georg Sapiano, an Advocate, son of Alfred and of Rose-Marie nee' Flynn, born in Attard and residing at Sliema, and his wife Audrey Sapiano, daughter of John-Baptist Ellul and of Angela nee' Fenech, born in Attard and residing at Sliema; jointly and severally between them.

KREDITU: The sum of forty-two thousand Maltese liri (Lm42,000) granted on loan by the creditor Bank to the hereinmentioned debtors by virtue of a deed in my records of the nineteenth (19) day of October of the year two thousand (2000).

The debtors delegated the creditor Bank to pay the said loan directly to the architect, contractors, masons and other workmen, in respect of their work and in respect of materials used in connection with structural works and other permanent improvements being carried out at the hereunder-described immovable property, and this in terms of section two thousand and ten (2010) of the Civil Code.

The said loan was granted under the terms and conditions stipulated and/or referred to in the deed, but subject to the following overriding conditions, namely:-

(a) The interest rate shall not exceed the maximum rate allowed by law and shall be reckoned on the amount due for balance of loan by the debtors from time to time in accordance with recognised banking practice, the said rate of interest to be fixed by the creditor Bank in its sole discretion from time to time; and

(b) The loan shall be repayable on demand (a simple request in writing being sufficient for this purpose) in the event of any of the conditions for the loan not being adhered to.

KAWZA TA' PREFERENZA: General hypothec; and a special hypothec and a special privilege over the house at number fourteen (14), in an unnumbered Alley which abuts onto Triq Cini, at Qala, Gozo, which house consists of a large room and three smaller rooms at ground-floor level, and another two large rooms and a smaller room at first-floor level, which property partly overlies the property of third parties, together with the annexed garden which occupies an area of approximately two hundred and ten square meters (210 sq.m.), or more accurate area, altogether bounded on the east by the said Alley, on the west by property belonging to Grazio Debono, and on the north by property belonging to the Camilleri brothers; free and unencumbered – which property is registered at the Land Registry, Gozo, with a certificate of title bearing number four eight zero zero one three seven seven (48001377).

RECEIVED

Ilum 24 OCT 2000

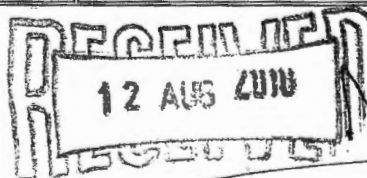
2000

[Signature]
a (Direttur)

[Signature]
Firma tal-Persuna li tapplika
Nutar Dott. Mario L Felice

Nota ta'Riferenza

Riferenza Nru: 005421	Title Reduction
15705/2000 13376/2005 10253/2006 12689/2007 16263/2007	By a deed in my records of the fifth of August of the year two thousand and ten (5.8.2010) the creditor HSBC Bank Malta p.l.c. gave its consent for the reduction of its hypothecary and privileged rights arising out of the hereinmentioned credit insofar as these affect:- an apartment internally numbered nine (9) forming part of an block named "Forth Mansions" in Ta' Xbiex Seafront, Ta' Xbiex, together with a as a <i>pro indiviso</i> share of the Block's Common Parts, which block has its own independent entrance, and is without official number and unnamed, and is bounded on the south by Ta' Xbiex Sea Front, on the north by a projected road that shall be a prolongation of Triq l-Imradd and on the east by property of Seaview Marina, or more correct boundaries The said common parts of the block include the covered passage, the outside lobby, the main entrance, hall, garbage room, concierge/janitor's room with kitchenette and shower, stairs, landings, two lift shafts, two lifts and stairwell of the Block as well as the passages which interconnect the Block with the Garage Complex; the internal shafts of the Block, save as otherwise stated, the external walls of the Block and of the Commercial Premises, provided these shall be considered to constitute part of the Block Common Parts only for the purposes of the Condominium Act, the sharing of costs and the protection of the décor of the Building but shall otherwise be owned <i>pro indiviso</i> as an integral part of an Apartment or of the Commercial Premises of which they form part; the drainage systems, communal plumbing and electrical systems and all other common parts mentioned in paragraph (c) of article five (5) of the Condominium Act; but does not include the common dividing walls with neighbouring tenements and any part of the property underlying or overlying the Block even if such part underlies or overlies the Block Common Parts. The Block Common Parts are subject to the perpetual servitudes mentioned hereunder in favour of each and every Apartment which shall at any time form part of the Block (including any future developments which may be added to the Block) (the Dominant Tenements) consisting of: i. the perpetual right of pedestrian passage and access at all times from Ta' Xbiex Sea Front to all the Apartments which may at any time form part of the Block and to the Garage Complex and vice versa; ii. the perpetual right to use the Block Common Parts for the purpose they are intended, which right of use is transferable to third parties together with each one of the Apartments; iii. the right to open doors from the Apartments onto the Block Common Parts as is necessitated from their physical position in the Block; iv. the right to pass any and all common or separate services, pipes, drains and wiring, provided that all services are installed as required by standard building practice and in the locations made available for this purpose; v. the right to interconnect the Garage



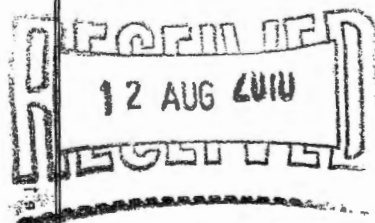
005421

Complex with the Block Common Parts in the places shown on a plan annexed to a deed of Notary Pierre Attard dated the twelfth of July of the year two thousand and six (12.7.2006);

which servitude and rights of use mentioned in this Clause shall be enjoyed in common between all the Condomini from time to time in the Block as subject to the provisions set out in the abovementioned deed of Notary Pierre Attard and other terms, restrictions and conditions mentioned in the said deed.

The said property is otherwise free and unencumbered and free from any ground-rents, burdens, other servitudes, hypothecs, privileges, any other rights of whatever type or nature, whether real or personal, in favour of third parties, law-suits and any litigation whatsoever, and with free and vacant possession and as subject to all those terms and conditions mentioned in the abovementioned deed of Notary Pierre Attard.

The bank retained firm and unimpaired all its other rights arising out of the said note saving the abovementioned waiver of rights.



Today..... 20.....

Director

Dr Roland John Wadge
(Notary Public, Malta)

Note for the inscription of: **Hypothec**

Progressive Number

00 4129

Remarks (for
official use only):

Canc. 1/2005

Creditor: HSBC Bank Malta p.l.c.

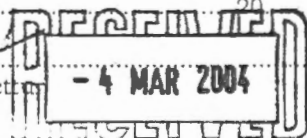
Debtor: Georg Sapiano, advocate son of the late Alfred and Rose nee Flynn, born in Attard and residing at Sliema, with identity card numbered 71568(M) and his wife Audrey Sapiano, daughter of John Baptist Ellul and Angela nee Fenech, born in Attard and residing at Sliema, with identity card numbered 182272(M)

Credit: The sum of sixty seven thousand five hundred Maltese liri (LM67,500) given by way of ~~loan~~. The loan shall bear interest at rates not exceeding the maximum rate allowed by law; said interest to be reckoned on the amount due for balance of loan by the debtor, from time to time, in accordance with recognised banking practice; said rate of interest to be fixed by the Bank in its sole discretion from time to time. The Bank reserved unto itself the right to lay down such conditions as it considers necessary for the repayment of the loan over a period, which conditions shall be or have been notified in writing to the ~~customers and/or~~ the surety subject to the overriding condition that the outstanding balance of loan and interest accruing thereon, shall be repayable on demand, a simple request in writing to be deemed good and sufficient notice for the debtors to implement their engagements forthwith and other conditions mentioned in a deed in my records of twenty sixth of February of the year two thousand and four (26.2.2004)

Cause of preference: A General Hypothec over all the property of the debtors as well as a special hypothec over the the flat numbered ten (10) which lies at fourth floor level on the right hand side of the block when viewed from Howard street, which flat forms part of a block consisting of a basement, twelve flats and an overlying penthouse. The said block is externally unnumbered and is named Dingli Court, and is situated in Guze Howard street. Sliema bounded said block on the North by Guze Howard street, East by Sir Adrian Dingli street, and South in part by Saint Margaret street and in part by property of C and F Enterprises or its successors in title including the one thirteenth undivided share together with the other flat owners in the block of the common parts of the block and the one thirteenth divided share of the garage complex measuring approximately twenty one square metres, bounded the said area on the South by Saint Margaret street, North by the remainder of the garage complex and on the East by the Malta Government, subject this property to its annual and perpetual groundrent mentioned in the deed of Notary Mario Felice dated the twenty eighth of June of the year nineteen ninety three (28.6.1993).

Today

Director



Not. Dr. Roland John Wadge
(Notary Public, Malta)

00001

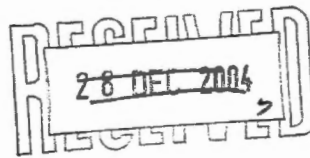
NOTA TA' REFERENZA

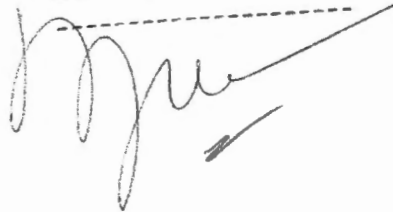
TITOLU - KANCELLAMENT

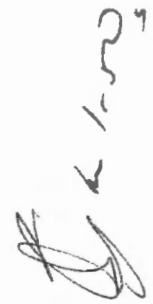
Vol. I 4129/2004

By virtue of a deed in my records of the Sixth December two thousand and four (6.12.2004) the Creditor gave its consent for the total cancellation of the hereby-mentioned note of hypothec.


Not. Romina Bartolo







3631

Tlieta u ghoxrin (23) ta' Marzu tas-sena elf disa' mija tmienja u disghin (1998).

Fl-ewwel lok, bejgh magħmul minn Joseph Raymond (magħruf bħala Joseph) Sapiano, bank manager irtirat, iben il-mejtin Doctor Luigi u Edwidge nee' Psaila, imwield ir-Rabat, Malta, u joqghod il-Kappara, fil-limiti ta' San Gwann, u martu Dorothy Anne (magħrufa bħala Dorothy) Sapiano, bint il-mejtin Eugene Bonello u Josephine nee' Crocetta, imwielda l-Furjana u toqghod il-Kappara, fil-limiti ta' San Gwann, kwantu għan-nofs indiviz, u l-kumpanija kummerċjali "Occerre Limited", kwantu għan-nofs indiviz l-iehor, izda fil-konfront tal-akkwirenti in solidum bejniethom, bieghu u ittrasferew favur il-kumpanija "Kefi Limited", is-segventi partijiet divizi mill-fond riċentement imwaqqa' fejn sa fitt ta' zmien ilu kien hemm il-blokk ta' appartamenti bin-numru stradali mija u tletin (130), jismu "Saint Mary", fi Triq Guze' Howard, tas-Sliema, u llum s'issa hemm mibni elevated basement, u cioe' ~~u cioe' ta' Saint Mary~~.

(a) it-tliet (3) car spaces ~~fil-elevated basement level~~, li jinsabu lokalizzati u indikati fuq il-Pjanta annessa ma' l-att markata, fejn dawn il-car spaces huma murija bl-ittra "G" numri wiehed, tnejn u tlieta (G1, G2 u G3), it-tlieta komprizi, tal-kejl superficjali kumplessiv ta' cirka disa' u tletin punt tnejn disa' metri kwadri (39.29m.k.), konfinanti tramuntana u l-avant ma' beni tal-vendituri u punent ma' l-pjan terran ta' Mount Carmel Flats, propjeta ta' terzi u għal licenza car spaces il-kumpanija akkwirenti Kefi Limited għandha dritt ta' servitu' reali, konsistenti fid-dritt ta' access, bir-rigel u bil-vettura, minn bieb ta' garage se jkun numerat mija u tletin ittra A (130A) (u li se jkun jizbokka għat-triq imsemmija), minn hemm 'l isfel permezz ta' rampa, u minn hemm permezz ta' passagg li jagħti għal kull wahda mill-imsemmija tliet car spaces;

(b) is-schem shih ta' l-arja li eventwalment se tigi zviluppata bħala appartament fil-elevated ground-floor level tal-kejl ta' cirka mija u tlieta punt seba' tmienja metri kwadri (103.78m.k.) mill-gholi tas-saqaf tal-elevated basement ezistenti sa tmax il-filata 'l fuq mill-imsemmi saqaf, u l-arja ntiza għal appartament iehor fil-first-floor level tal-kejl ta' cirka mija u wiehed u ghoxrin metru kwadru (121 m.k.) mit-tlettax il-filata mis-saqaf tal-elevated basement ezistenti sa 'l għoli tal-hamsa w ghoxrin filata mill-istess saqaf, kif lokalizzata u indikata fuq il-Pjanta annessi ma' l-att. Il-kejl indikat ma jinkludix l-arej intizi bħala btiehi u shafts u deskritti hawn taht fil-paragrafi (d), (e) u (f). ~~konfinanti tramuntana mat-triq imsemmija~~, punent ma' Mount Carmel Flats qabel imsemmija u l-avant in parti ma' propjeta ta' l-vendituri u in parti ma' partijiet komuni ahjar deskritti f'paragrafu ittra 'g' hawn aktar 'l isfel;

(c) is-schem shih ta' l-arja li eventwalment se tigi zviluppata bħala appartament fis-second floor level, kif lokalizzata u indikata fuq il-Pjanta annessa ma' l-att, tal-kejl superficjali ta' cirka mija u hamsa w ghoxrin punt sitta sitta metri kwadri (125.66m.k.), (liema kejl ma jinkludix l-arej intizi bħala btiehi u shafts) mill-livell ta' hamsa w ghoxrin filata ~~il fuq mis-saqaf tal-elevated basement~~ ezistenti sa l-gholi ta' sitta u tletin filata 'il fuq mis-saqaf imsemmi, konfinanti tramuntana mat-triq imsemmija, l-avant ma' Saint Joseph Flats, numru mija u disa' u ghoxrin (129) propjeta

Notice i.t.o. Sec 51 filed
on 24/3/98
M.J.K.
f/Comm of Inland Revenue

A.D.
Cont.

ta' terzi u punent in parti ma' l-arja deskritta f'paragrafu ittra 'G' u in parti ma' propjeta tal-vendituri;

(d) is-sehem shih ta' l-arja intiza sabiex isservi bhala bitha interna, kif lokalizzata u indikata fuq il-Pjanta annessa ma' l-att, ~~kulurita bil-kulur kanneffa tal-kejl~~ superficjali ta' cirka hamsa punt hamsa metri kwadri (5.5 m.k.), mil-livell tas-saqaf ta' l-elevated basement u minn hemm 'il fuq minghajr limitu, konfinanti punent ma' Mount Carmel Flats u mill-irjiegħ l-oħra in parti ma' beni ta' l-akkwirenti u in parti ma' beni tal-vendituri;

(e) is-sehem shih ta' l-arja intiza sabiex isservi bhala bitha interna, kif lokalizzata u indikata ~~bil-kulur andar fuq il-Pjanta annessa ma' l-att, tal-kejl~~ superficjali ta' cirka disa u tletin punt zero tlieta metri kwadri (29.03m.k.), mil-livell tas-saqaf ta' l-elevated basement u minn hemm 'il fuq minghajr limitu, konfinanti punent ma' Mount Carmel Flats, tramuntana u l-avanti in parti ma' beni ta' l-akkwirenti u in parti ma' beni tal-vendituri;

(f) is-sehem shih ta' l-arja intiza sabiex isservi bhala shaft intern, kif lokalizzata u indikata bil-kulur iswed fuq il-Pjanta li tinsab annessa ma' l-att, tal-kejl superficjali ta' cirka wiehed punt tnejn wiehed metri kwadri (1.21m.k.), mil-livell tas-saqaf ta' l-elevated basement u minn hemm 'il fuq minghajr limitu, tmiss mill-irjiegħ kollha in parti ma' beni ta' l-akkwirenti u in parti ma' beni tal-vendituri;

(g) is-sehem ta' tlieta minn tlettax (3/13) indiviz ta' l-arja li eventwalment sejra sservi bhala entrata, tromba tal-tarag, u tromba tal-lift, għall-blokk ta' appartamenti li ser jigi żvilupp ta' fis-sit hawn fuq imsemmi u kull parti oħra mill-bini li se tkun ntiza għall-uzu komuni, cioe dik il-parti mmarkata bil-kulur ahmar fil-pjanta annessa dokument 'B' tal-kejl ta' cirka seba punt hamsa tnejn metru kwadru, mil-livell tas-saqaf ta' l-elevated basement, u dik il-parti mmarkata bil-kulur vjola tal-kejl ta' cirka tlettax punt zero hamsa metri kwadri (13.05m.k.) mis-saqaf tal-elevated basement sal'għoli ta' hamsa w tmenin filata mis-saqaf imsemmi, imsemmi tramuntana mat-triq u mill-irjiegħ l-oħra in parti ma' beni ta' l-akkwirenti u in parti ma' beni tal-vendituri.

Il-proprietajiet deskritti fis-seba' paragrafi precedenti (a), (b), (c), (d), (e), (f), u (g) gew trasferiti bhala soggetti, il-koll flimkien, għar-rata tagħhom ta' cens annwu u perpetwu ta' tmien iiri u sittin centeżu Maltin (Lm8.60), altrimenti liberi u franki, bid-drittijiet u l-pertinenzi kollha relattivi.

Dan il-bejgħ sar bil-prezz ta' għoxrin elf lira Maltin (Lm20,000).

Fit-tieni lok, il-fuq imsemmija Joseph u Dorothy niżżewgin Sapiano kwantu għan-nofs indiviz, u l-kumpanija "Gee Erre Limited" kwantu għan-nofs indiviz l-iehor, iżda fil-konfront tal-akkwirenti in solidum bejnithom, bieghu u trasferew favur L-Avukat Dottor Georg Sapiano, iben Alfred u Rose Marie nee Flynn, imwieled H'Attard u joqghod il-Pieta', u martu Audrey Sapiano, bint John-Baptist Ellul u Angela nee Fenech, imwieleda H'Attard u joqghod il-Pieta', kwantu għan-nofs indiviz, u favur Martin Sapiano, Martin Sapiano, xandâr, guvni, iben Joseph-Raymond u Dorothy nee Bonello, imwieled Sliema u joqghod il-Kappara, fil-limiti

Notice i.t.o. Sec 51 filed
on 24.11.98
M8
f/Comm of Inland Revenue

LM10

Copy

ta' San Gwann, kwantu ghan-nofs l-iehor indiviz, partijiet divizi mill-fond ridentement imwaqqa' fejn sa ftit ta' zmien ilu kien hemm il-blokk ta' appartamenti bin-numru stradali mija u tletin (130), jismu "Saint Mary", -fi Triq Guze' Howard, tas-Sliema, u llum s'issa hemm mibni elevated basement, u cioe' :

(h) is-sehem shih ta' l-arja li eventwalment se tigi zviluppata bhala penthouse, kif lokalizzata u indikata fuq il-Pjanta annessa ma' l-att, tal-kejl superficjali ta' cirka mitejn disa u tletin punt sitta u sittin metri kwadri (239.66m.k.), (liema kejl ma jinkludix l-arei intizi bhala btiehi u shafts) mil-livell ta' tlieta u sebghin filata mis-saqaf tal-elevated basement ezistenti sa l-gholi ta' hamsa w tmenin filata 'il fuq mil-livell tas-saqaf imsemmi, konfinanti tramuntana inat-triq imsemmija punent ma' Mount Carmel Flats u l-avanti ma' Saint Joseph Flats u l-istess triq.

(i) is-sehem indiviz ta' parti wahda minn tlettax (1/13) indiviz ta' l-arja li eventwalment se jkollha s-servi bhala entrata, tromba tat-taqq, u tromba tal-lift, għall-blokk ta' appartamenti li ser jigi zviluppata fis-sit hawn fuq imsemmi u kull parti ohra mill-bini li se tkun tlieta għall-uzu komuni, cioe dik il-parti mmarkata bil-kulur ahmar fil-pjanta annessa ma' l-att, tal-kejl ta' cirka seba punt hamsa tnejn metru kwadru, mil-livell tat-triq sal-livell ta' tnaq il-filata mis-saqaf ta' l-elevated basement, u dik il-parti mmarkata bil-kulur vjola tal-kejl ta' cirka tlettax punt zero hamsa metri kwadri (13.05m.k.), mis-saqaf tal-elevated basement sal-gholi ta' hamsa w tmenin filata mis-saqaf imsemmi, imissu tramuntana mat-triq u mill-irjeh l ohra in parti ma' beni ta' l-akkwirenti u in parti ma' beni tal-vendituri.

Il-proprietajiet deskritti fiz-zewg paragrafi precedenti (h) u (i) gew trasferiti bhala soggetti għar-rata tagħhom ta' cens annwu u perpetwu ta' hames liri u sebghin centezmu (Lm5.70), altrimenti liberi u franki, bid-drittijiet u l-pertinenzi kollha relattivi.

Il-bejgh magħmul permezz tat-tieni parti ta' l-att sar bil-prezz ta' sebat elef u hames mija lira (Lm7,500).

Dawn iz-zewg venditi saru bil-pattijiet u taht il-kondizzjonijiet stipulati fil-att, fosthom is-segwenti:

1. Il-faccata tal-blokk issir u tibqa' uniformi, bil-gebel tal-franka bil-fili imkahlhin bojod; bil-konkrit miksi kulur il-gebla; u bil-blokk li l-aperturi tal-faccata isiru u jibqghu electro-black, ta' l-istess disinn għall-faccata kollha. Biex isir tibdil fil-faccata ta' l-appartamenti (inter alia fil-qoxra tal-faccata, il-kulur, materjal, tip ta' kisi, dizinn u kulur ta' l-aperturi u tal-galleriji), jinhtieg li tinzamm l-uniformita', u jrid anki jinkiseb minn qabel il-kunsens bil-miktub tas-sidien ta' kull apartment fil-blokk li jhars għal fuq il-faccata. Is-sidien attwali jew min minnhom jakkwista is-sitt sular, mhuwix marbut ma' din il-kundizzjoni filwaqt illi l-istess din il-koncessjoni mhix trasferibbli lill-avanti kawza tas-sidien jew min minnhom jakkwista is-sitt sular, b'dan illi jekk jittellghu sulari ohra 'l fuq, bid tinzamm l-estetika u l-uniformita' tas-sitt sular anki fir-rigward tas-sulari addizzjonali.

2. Kull apartment ikollu d-dritt juza waħda li jhallas id-debita parti mill-ispejjez ta' l-istallazzjoni, l-accial għat-television u jew satellite dish komunal, fuq il-bejt tal-penthouse. Hadd, għajr is-sidien tal-penthouse, ma' jista' jutilizza l-bejt

Notice i.t.o. Sec 51 filed
on 24/3/98
f/Gemm of Inland Revenue

ghal ebda skop iehor ghajr fl-eventwalita li t-tankijiet ta' l-ilma ma jkunux jistghu isiru x'imkien iehor. L-eventwalita li l-istess bejt jinbeni din il-kundizzjoni taggrava l-bejt gdid sovrappost.

3. Kull appartement ghandu jintuza biss ghal skopijiet ta' abitazzjoni u ghal ebda uzu iehor, bl-eccezzjoni biss għall-appartamenti tal-pjan terren li jistghu jintuzaw bhala ufficini wkoll.

4. Il-car spaces ta' taht il-blokk jintuzaw biss għall-parkegg tal-karozzi privati, eskluzi karozzi kummerċjali fosthom trakkijiet, minibus jew vetturi ohra simili. F'ebda parti minn dan il-car spaces ma ghandu jsir tiswijiet fl-istess karozzi, dment li t-tiswijiet ma jkunux ta' natura zgħira. Ebda spazju minn dawn il-car spaces ma ghandu jigi trasferit (b'titolu reali jew personali) għall-uzu favur xi hadd li ma jkollux ukoll appartement fl-imsemmi blokk. Il-bieb tal-garage ghandu jinzamm magħluq meta ma jkunx qed jintuza.

5. Beja id-diversi proprjetajiet li gew trasferiti permezz ta' l-att u l-kumplament tal-proprjeta' li giet rezervata mill-fuq imsemmija Joseph u Dorothy mizzewgin Sapiano kwantu ghan-nofs indiviz, u l-kumpanija "Gee Erre Limited" ghan-nofs l-indviz l-iehor, il-persuni u kumpaniji kollha hawn fuq imsemmija stipulaw ghal bejnithom il-komproprjeta' tas-servizzi komuni ta' drains u drainage; u huma stipulaw is-servitujiet reali reciproci minhabba l-posizzjoni tad-diversi partijiet divizi, konsistenti f'aperturi, mogħdija tas-servizzi ta' l-ilma u ta' l-elettriku, u ta' katusi, kif mahsuba fil-pjan tal-binja tal-blokk ta' appartamenti li se jittella' fis-sit numru mija u tletin (130) Triq Guze' Howard, tas-Sliema; u b'mod partikolari, it-tliet proprjetajiet deskritti hawn fuq fil-paragrafi (d), (e) u (f) ma jistghux jissaqqu, u huma soggetti għas-servitu' passiv favur il-proprjetajiet kollha li jikkonfinaw ma' dawn l-arei, għall-fluh ta' twieqi u aperturi li jgawdu l-dawl u l-arja minnhom kif għad jigu zviluppati bhala btiehi jew shafts, skond il-kaz, u huma soggetti għas-servitu' passiv tal-mogħdija u komunikazzjonijiet tas-servizzi kollha intizi biex iservu lill-appartamenti li għad jigu zviluppati, fosthom il-mogħdija tal-kanen ta' l-ilma, katusi tad-drains u drainage, servizzi ta' l-elettriku, telephone, television aerals, airconditioning, basta li dan isir b'mod professjonali u pulit, u li ma jinholoqx inkonvenjent serju lill-okkupanti/sidien ta' l-appartament l-ohra fl-istess blokk. Inoltre, il-proprjeta' akkwistata mill-kumpanija Kefi Limited u deskritta hawn fuq fil-paragrafu (c) tgawdi l-istess servitujiet simili u ta' l-istess xorta fuq bitha interna tal-kejl ta' cirka sitta punt zero, disa metri kwadri tmiss l-vant ma' Saint Joseph Flats, u mill-irjeh l-ohra in parti ma' beni ta' l-akkwirenti u in parti ma' beni tal-vendituri, u bitha fuq wara tal-kejl ta' cirka disa u tletin punt tnejn disa' metri kwadri, tmiss mill-lvant ma' Saint Joseph Flats u mill-irjeh l-ohra in parti ma' beni tal-vendituri u in parti ma' beni ta' l-akkwirenti, u mmarkati bil-kulur roża fil-pjanta.

6. Is-sidien ta' l-appartamenti li għad iridu jigu zviluppati f'dan il-blokk jkollhom dritt ta' access ragonevoli fl-imsemmija btiehi u shafts għall-istallazzjoni, manutenzjoni u riparazzjoni tal-wires, pipes, jew ogġetti ohra għaddejjin minn mal-hajt tal-btiehi u shafts, basta li jingħata pre-avviz ragonevoli lis-sidien ta' dawk l-appartamenti li jkunu b'xi mod affettwati b'dan.

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on 24/3/98
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7. Ebda inxir ta' hwejjeg ma hu permess 'il barra ghal gol-btiehi ta' taht jew mal-faccata tal-blokk b' mod li dawn ikunu jidhru mit-triq.

8. Ebda air-conditioners ma jistghu jitwahnlu mal-hitan tal-blokk li jaghtu ghall-btiehi u x-shafts-interni (jigifieri dawk li jigu f'nofs il-blokk). Dawn ghandhom jitwahnlu biss jew ghall-bitha ta' wara, jew mal-faccata, izda f'dan it-tieni kaz ikunu jridu jitwahnlu b'tali mod li ma jkunux jidhru.

9. M'huwix permess li jsiru tibdiliet fil-partijiet komuni sakemm ma jkunx hemm il-ftehim "unanimu" bil-miktub tas-sidien kollha li se jkollhom appartament f'dan il-blokk.

10. Fl-eventwalita' li l-arja tal-penthouse, cioe' l-propjeta' 'l fuq minn sitta u tmenin (86) filata mil-livell tas-saqaf ta' l-elevated basement ezistenti, ghad tigi zviluppata mill-fuq imsemmija Joseph u Dorothy mizzewgin Sapiano kwantu ghan-nofs indiviz, u mill-kumpanija "Gee Erre Limited" bhala l-propjetarju tan-nofs indiviz, dan ikun esklussivament a spejjez taghhom u:

(i) l-istess sidien ta' din l-arja jkunu jgawdu servitu' reali ta' access lejn il-benefikati li jinbnew f'din l-arja, permezz ta' dritt ta' passagg mill-partijiet komuni li ser jigu zviluppati bhala entratura, tromba tat-tarag u lift f'dan il-blokk (li allura jkunu jistghu jittellghu iktar 'il fuq a spejjez tas-sidien tas-sulari addizzjonali; u dawn is-sidien tas-sulari addizzjonali jkollhom dritt jifthu twieqi u aperturi li igawdu d-dawl u l-arja mill-arei hawn fuq deskritti taht il-paragrafi (d), (e) u (f) u intizi biex jigu zviluppati bhala btiehi u shafts;

(ii) is-sidien ta' l-arja 'l fuq mis-sitta u tmenin (86) filata mil-livell tas-saqaf tal-elevated basement ghandhom jitransferixxu, spejjez ghalihom, it-tankijiet ta' l-ilma u l-aerials tat-television ghal fuq il-bejt il-gdid li jigi konstruwit iktar 'il fuq, dejjem jekk it-tankijiet ma jkunux saru x'imkien iehor;

(iii) is-sidien ta' l-arja 'l fuq mis-sitta u tmenin (86) filata mil-livell tas-saqaf tal-elevated basement ikollhom dritt ghal tank ta' l-ilma bil-pompa ghalih, fil-car spaces li ghad jigi zviluppat fil-basement; u;

(iv) l-istess sidien ta' l-arja 'l fuq mit-tlieta u sebghin (73) filata mil-livell tal-elevated basement ghandhom jikkontribwixxu pro rata ghall-ispejjez tal-manutenzjoni tal-partijiet komuni minn fejn ikun hemm l-access.

Notice i.t.o. Sec 51 filed
on 24 3 98.

f/Comm of Inland Revenue

Nutar Dott. Robert J Muscat

RECEIVED

24 MAR 1998

TODAY

5673

Thirtieth (30) day of April of the year one thousand nine hundred ninety-eight (1998).

Henry Charles Brownrigg, a retired squadron leader with the Royal Air Force, son of the late Charles and of the late Lillian nee Leone, born in Sliema and residing at Qawra, in the limits of Saint Paul's Bay, and his wife Elizabeth Brownrigg, daughter of the late Joseph Urry and of the late Carmela nee Darmanin, born in Senglea and residing at Qawra in the limits of Saint Paul's Bay, sold, transferred and conveyed in favour of Doctor of Laws Georg Sapiano, an Advocate, son of Alfred and of Rose-Marie nee Flynn, born in Attard and residing at Pieta, and his wife Audrey Sapiano, daughter of John-Baptist Ellul and of Angela nee Fenech, born in Attard and residing at Pieta, the flat internally numbered twelve (12), in Dolmen Court, at Qawra, in the limits of Saint Paul's Bay, in an unnumbered block in Triq Ghawdex, which block of flats is bounded on the west by the said street leading to Qawra Road, and on the north and south by property of the successors in title of Menta Properties Limited, inclusive of the common parts which the flat enjoys with the other flats in the block and in the development as result from the previous deeds regulating the title to this property (comprising the roof of the block, the staircase, access, and the surrounding garden together with the other flats in the same block, as well as the remaining surrounding garden, other common parts and the swimming-pool in the development known as Dolmen Court Development), as subject to an annual, perpetual and revisable subgroundrent mentioned in the deed, otherwise free and unencumbered, with all the relative rights and appurtenances; and this in consideration of the price of twelve thousand Maltese liri (Lm12,000).

Notice i.t.o. Sec 51 filed
on 8.5.98
f/Comm of Inland Revenue

5674

LM 10

Tletin (30) ta' April tas-sena elf disa' mija tmienja u disghin (1998).

TESTMENT PUBBLIKU unica charta magħmul minn George Vella, ufficjal pubbliku, iben il-mejtin Francis u Carmela nee Caruana, imwieled iz-Zurrieq u joqghod H'Attard, u martu Rose Vella, bint il-mejtin Carmelo Borg u Angela nee Fenech, imwielda z-Zejtun u toqghod H'Attard.

Nutar Dott. Mario L. Police

RECEIVED

8 MAY 1998

TODAY

2784

Sixteenth (16) day of February of the year two thousand (2000).

The company **Marina Estates Limited** sold, transferred and conveyed in favour of Doctor of Laws **Georg Sapiano**, an Advocate, son of Alfred and of Rose-Marie nee Flynn, born in Attard and residing at Sliema, and his wife **Audrey Sapiano**, daughter of John-Baptist Ellul and of Angela nee Fenech, born in Attard and residing at Sliema, in equal and undivided shares between them, (a) the flat internally numbered one (1), situate at elevated ground-floor level (overlying the basement), forming part of a block of apartments having access through entrance known as number one hundred and sixty-four (164), Tower Road, Sliema; and the said block forms part of a building overlying a block of land previously occupied by the block of building at one hundred sixty-three (163), one hundred sixty-four (164), one hundred sixty-four letter "A" (164A), and one hundred sixty-four letter "B" (164B), Tower Road, Sliema, and one, two and three (1, 2 and 3), Sir Luigi Camilleri Street (formerly Parallel Street), Sliema - hereinafter referred to as the Complex, now having two unnumbered entrances in Sir Luigi Camilleri Street, one leading to the basement, and is altogether bounded on the north by Tower Road, on the east by property of Gasan Properties Limited and on the west by Sir Luigi Camilleri Street (where there are another two secondary unnumbered entrances to this Complex); and the said apartment number one has the right of use of the common areas of the Complex being the main doors, entrance halls, stairwells, staircases, landings, shafts, lift shafts, lifts and drains; and (b) the garage internally unofficially numbered sixteen (16), as shown on the plan annexed to the deed marked as Document "C", situate at basement level, and forming part of the aforementioned Complex, which garage has a superficial area of approximately thirteen decimal point zero five (13.05) square metres, and is bounded on all sides by property of the vendor company or its successors in title; which garage enjoys the right of passage and access over the common areas of the said basement; free and unencumbered, with all the relative rights and appurtenances.

This sale was made and accepted in consideration of the agreed price of eighty thousand hundred Maltese liri (Lm80,000).

Moreover, this sale was made and accepted under and subject to terms and conditions stipulated in the deed, including the following:

1. The vendor company, with the consent of the purchasers, constituted in its favour and imposed on the above-described immovable property an annual and perpetual ground-rent of one hundred Maltese liri (Lm100), which ground-rent commenced from the date of the deed, and it is payable annually in advance.

2. The said ground-rent is revisable fifty years after the date of the deed, and thereafter every fifty years in perpetuity; and on each revision the said ground-rent will be increased by seventy-five per centum (75%) of the previous amount.

3. The Vendor Company retained the right to build additional apartments on the airspace of the Complex of which the property forms part. The Vendor Company may open windows and doors for these apartments on the shafts and open spaces in the Complex as well as communicate drains, drainage and water pipes to those already existing in the Complex. The Vendor Company may extend the lift shafts and utilise lifts to serve the new storeys of the Complex.

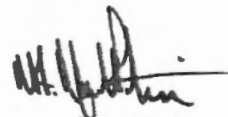
Notice i.t.o. Sec 51 filed

on 13.00

/Comm of Inland Revenue

4. The Purchasers bind themselves to use the above-described property for residential purposes only. No sign or placards shall be exhibited in or on the above-described apartment or the common parts of the Complex.

5. The right to use the roof shall be restricted only to area allocated from time to time for this purpose by the Vendor Company at its sole discretion, as well as the right to have a water tank, air-condition, chiller and pressurisation unit (where installed thereon in the area allocated by the Vendor Company for this purpose, and to service such equipment when necessary.



Notary Dr Mario L Felice

Notice i.t.o. Sec 51 filed
on 1 3 00

Comm of Inland Revenue

REC-7

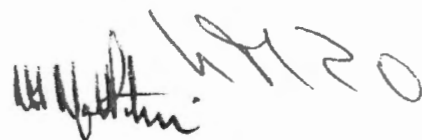
- 1 MAR 2000

TODAY

10081

Wiehed u ghoxrin (21) ta' Lulju tas-sena elfejn (2000).

Bejgh maghmul mill-kumpanija kummercjali "Irving and Company Limited".
~~I-isem certi drabi miktub bhala "Irving & Co Ltd", kumpanija registrata taht l-ittra~~
 "C" numru ~~hamisa wiehed sitta sitta (C 5166), favur l-Avukat Dottor Georg Sapiano;~~
 iben il-mejjiet Alfred u Rose-Marie nee' Flynn, imwieled H' Attard u joqghod tas-Sliema, u martu Audrey Sapiano, bint John-Baptist Ellul u Angela nee' Fenech, imwielda H' Attard u toqghod tas-Sliema, tad-dar numru erbatax (14), drabi ohra maghrufa bhala bla numru, fi Sqaq bla numru li jizbokka fi Triq Cini, il-Qala. Ghawdex, li tikkonsisti f'kamra mdaqqa u tlett ikmamar zghar fi stat dilapidat fil-livell tal-pjan terren, u zewgt ikmamar imdaqqa u kamra zghira fl-ewwel sular li huma sovrastanti beni ta' terzi, bil-gardina annessa, tal-kejl din il-gardina ta' cirka mitejn u ghaxar metri kwadri (210 m.k.) jew kejl iehor verjuri; liema sqaq (li jaghti l-access ghal dan il-fond) huwa komuni ma' diversi nies ohra; u l-imsemmija proprjeta' in vendita tmiss mil-lvant ma' l-imsemmi sqaq, mill-punt ma' beni ta' Grazio Debono; u mit-tramuntana ma' beni ta' l-ahwa Camilleri; u l-istess proprjeta' in vendita hija libera u franka, u giet trasferita bid-drittijiet u l-pertinenzi kollha taghha, bil-pussess vakanti, u bl-arja libera; bil-prezz ta' tletin elf lira Maltin (Lm30,000), u bil-pattijiet u l-kondizzjonijiet stipulati fl-att, fosthom illi d-dar in vendita hawn fuq deskritta tgawdi servitu ta' tieqa u mizieb fuq in-naha tat-tramuntana, ghal fuq proprjeta' ta' terzi; u l-istess fond in vendita jgawdi d-dritt ta' gbid ta' l-ilma in komun ma' persuni ohra mill-bir ezistenti.



Nutar Dott. Mario Felice

Notice of Sec 51 filed

2-8-2000

Ministry of Inland Revenue

2 AUG 2000

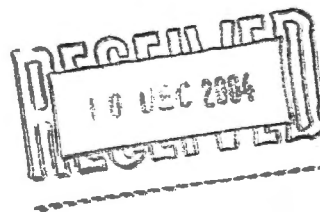
TODAY

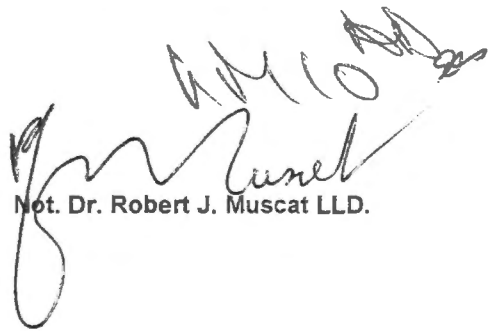
80

Sitta ta' Dicembru, tas-
sena elfejn u erbgha.

- 20790

Bejgh maghmul minn **Mizzi Brothers Limited**, numru tar-registrazzjoni C 416, lill-Avukat Dottor **Georg Sapiano**, bin il-mejjet Alfred u Rose Marie nee Flynn, imwieled H'Attard, u martu **Audrey Sapiano**, bint John Baptist Ellul u Angela nee Fenech, imwielda H'Attard, u t-tnejn joqghodu tas-Sliema, karti ta' l-identita numri 71568M u 182272M, rispettivament, in solidum bejniethom, tal-garage numru mija tnejn u tletin (132), gia bla numru, f'Guze' Howard Street, tas-Sliema, kif suggett ghac-cens annwu u perpetwu ta' erba' liri tlieta u erbghin centezmu u tmien millezmi (Lm4.43,8), cioe nofs ic-cens annwu perpetwu ta' tmien liri, sbatax-il xelin u sitt soldi (£8.17s 6d) ekwivalenti ghal tmien liri sebgha u tmenin centezmu u hames millezmi (Lm8.87,5) li jagrava l-garage hawn fuq imsemmi u garage iehor ma genbu, altrimenti liberu u frank, bid-drittijiet u l-pertinenzi tieghu kollha. Dan il-bejgh sar bil-prezz ta' hamest elef lira maltija (Lm5,000), u bil-kundizzjonijiet indikati fl-att.



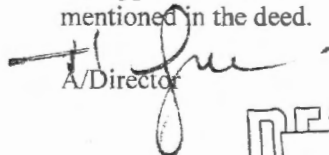

Not. Dr. Robert J. Muscat LLD.



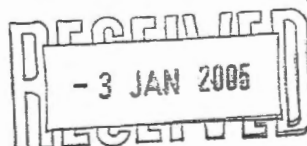
Sixth December two thousand and four
(6.12.2004)

0003

Sale by Doctor of Laws Georg Sapiano, advocate, son of the late Alfred and of Rose-Marie nee' Flynn, born at Attard and residing at Sliema, holder of identity card number 71568(M) and his wife Audrey, daughter of John Baptist Ellul and Angela nee Fenech, born in Attard and residing at Sliema, holder of identity card number 182272(M), of the the lock up garage at number one hundred and thirty-two (132), Howard Street, Sliema and by Doctor of Laws Georg Sapiano, advocate, son of the late Alfred and of Rose-Marie nee' Flynn, born at Attard and residing at Sliema, holder of identity card number 71568(M) of the flat internally numbered ten (10), which lies at fourth (4th) floor level on the right hand side of the block when viewed from Howard Street, which flat forms part of a block consisting of a basement, twelve (12) flats and an overlying penthouse. The said block is externally unnumbered, is named Dingli Court, and is situated in Guze' Howard Street, at Sliema. The said block is bounded on the North by Guze Howard Street, on the east by Sir Adriano Dingli Street, and on the south in part by Saint Margaret Street, in part by property of the C & F Enterprises Ltd, and in part by property of the Company Sirdar Developments Limited. This sale also includes one-thirteenth (1/13) share, in common with the owners of the other flats and penthouse in the block of flats, of the common areas and common parts of the said block of flats, namely the main entrance door, the entrance, the entrance hall, the stairs, the staircase and landings up to the roof, the stairwell, the lift-shaft and lift, the drains and drainage system and all the other common services of the block of flats. This sale also includes one thirteenth (1/13) share of a divided area of the garage complex underlying the block of flats, which garage complex is unnumbered, which divided area measures approximately twenty-one square meters (21 s.m.) and is bounded South by Saint Margaret Street, North by the remainder of the garage complex, and East by property of the Malta Government or their successors in title, with the consequential right of access to such divided portion through the garage complex for the purpose of maintaining and repairing the water tanks and the related pumps. Sale was made to Marie Theresa Busuttil widow of Louis Busuttil, daughter of Paul Borg and Hilda nee Bartolo, born in Sliema and residing at Madliena, holder of identity card number 97335(M), for the price of one hundred thousand Maltese liri (Lm100,000) for the apartment and ten thousand Maltese liri (Lm10,000) for the garage. The property was transferred as free and unencumbered, with all its rights and appurtenances and with vacant possession and subject to conditions mentioned in the deed.


A/Director


Not. Romina Bartolo



5458

The twenty first day of March of
the year two thousand and five.

The following capitalised terms shall have the following meanings respectively assigned to them:

"Vendor" shall mean "Marina Wharf Limited" registration number letter "C" three three zero three seven (C-33037).

"Purchasers" shall mean Doctor of Laws Georg Sapiano, son of the late Alfred Sapiano and of Rose nee Flynn, born in Attard and residing at Qala, Gozo (I.D.71568M), and his wife Audrey Sapiano, daughter of John Baptist Ellul and Angela nee Fenech, born in Attard and residing at Qala Gozo (I.D.182272M).

"Parties" shall mean the Vendor and the Purchasers.

"Seaview Marina" shall mean "Seaview Marina Real Estate Limited" registration number letter "C" three one six two two (C-31622).

"Site" shall mean the "L" shaped portion of land measuring approximately four hundred and thirty one square metres (431sq.m.) with frontage on Ta' Xbiex Sea Front, Ta' Xbiex, bounded on the south in part by Ta' Xbiex Seafront and in part by property of Big Ben Properties or the Gauci Family and of the Migneco family, on the north by a projected road that shall be a prolongation of Triq l-Imradd and on the east in part by property of Big Ben Properties or the Gauci Family and of the Migneco family and in part by property of Seaview Marina, or more correct boundaries, shown outlined in red on the plan annexed to the deed as Document B; which site comprises the site currently occupied by the store numbered eighty six (86) Ta' Xbiex Wharf, Ta' Xbiex, formerly in the limits of Msida, including the yard at the back of the said store, and the undeveloped land consisting of (i) a divided portion measuring approximately forty square metres (40sq.m.) bounded on the south by the yard of the aforesaid warehouse number eighty six (86), on the north by the aforesaid projected road that shall be a prolongation of Triq l-Imradd and on the east by the divided portion of land hereunder described and (ii) a divided portion measuring approximately seventy nine square metres (79 sq.m.), known as Plot F, bounded on the north by the aforesaid projected road that shall be a prolongation of Triq l-Imradd, on the south by property of Big Ben Properties or the Gauci Family and of the Migneco family and on the west in part by the aforesaid warehouse number eighty six (86) and in part by the divided portion of land described above.

"Plans" shall mean the sectional drawing of the Building and Second Floor Plan and Front Elevation annexed to the deed marked letter "C" and the plan of the ground-floor, first floor and typical floors of the Building annexed to the deed as document letter "D".

"Building" shall mean the "L" shaped building without official number and unnamed, with its main entrance on Ta' Xbiex Sea Front, Ta' Xbiex and a back elevation on the road that shall be a

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prolongation of Triq l-Imradd, consisting of part of the Garage Complex, the Commercial Premises and the Block of Apartments, which are planned to be constructed on the Site, in accordance with the Building Permit, substantially as shown on the Plans and which when constructed shall have the same boundaries given above for the Site.

"Garage Complex" shall mean the complex of car parking spaces/ garages on two levels namely the Lower Level and the Upper Level, which is planned to be constructed in part on the Site as part of the Building and in part on adjacent land property of Seaview Marina, in accordance with the Building Permit, substantially as shown on the Plans and which, when completed, shall in part underlie the Block of Apartments and in part the adjacent blocks of apartments property of Seaview Marina, and shall be accessible by pedestrian and vehicular passage from ramps and drive ways which abut onto Ta' Xbiex Sea Front, Ta' Xbiex and shall be bounded on the south in part by Ta' Xbiex Sea Front, in part by the Commercial Premises and in part by the property of Big Ben Properties or the Gauci Family and of Migneco, on the north by the road that shall be a prolongation of Triq L-Imradd and on the west by Cold Stores Developments Limited.

"Commercial Premises" shall mean the tenement without official door number occupying part of the Ground Floor of the Building, with its own independent entrance in the front terrace of the Block of Apartments, in Ta' Xbiex Sea Front, Ta' Xbiex, which is planned to be constructed on the Site as part of the Building, in accordance with the Building Permit, substantially as shown on the Plans, and which, when completed, shall underlie part of the Block of Apartments and shall be bounded on the South by Ta' Xbiex Seafront, on the north by the Garage Complex, and on the east by the Common Parts of the Block, or more correct boundaries.

"Block of Apartments" or "Block" shall mean the block of apartments with its own independent entrance, as yet without official number and unnamed, in Ta' Xbiex Sea Front, Ta' Xbiex, which is planned to be constructed on the Site as part of the Building, in accordance with the Building Permit, substantially as shown on the Plans, and which, when completed, shall overlie the Commercial Premises and part of the Garage Complex and shall have the same boundaries give above for the Site, and save for any future development, shall consist of: i. the apartment internally numbered two (2) occupying the First Floor; ii. the apartment internally numbered three (3) occupying the Second Floor; iii. the apartment internally numbered four (4) occupying the Third Floor; iv. the apartment internally numbered five (5) occupying the Fourth Floor; v. the apartment internally numbered six (6) occupying the Fifth Floor; vi. the penthouse internally numbered seven (7) occupying the Sixth Floor; vii. the Common Parts of the Block; and viii. the roof and airspace overlying the Block.

"Ground Floor" shall mean the floor, directly underlying the First Floor, comprising the entrance and lobby of the Block of Apartments, the Commercial Premises and the Lower Level and Upper Level of that part of the Garage Complex constructed on the Site; the overlying floors are sequentially numbered First Floor, Second Floor, Third Floor, Fourth Floor and so on.

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"the Apartment" shall mean the apartment internally numbered six (6) occupying the Fifth Floor of the Block of Apartments shown outlined in red on the plan annexed to the deed as Document C and on the floor plan annexed to the deed as Document D and which when constructed shall be bounded on the south in part by Ta' Xbiex Seafront and in part by property of Big Ben Properties or the Gauci Family and of the Migneco family, on the north by a projected road that shall be a prolongation of Triq l-Imradd and on the east in part by property of Big Ben Properties or the Gauci Family and of the Migneco family, in part by property of Seaview Marina and in part by the Common Parts of the Block.

"the Parking Space" shall mean the two adjacent parking spaces situated on the Lower Level of the Garage Complex shown outlined in blue on the plan annexed to the deed as Document D, together measuring approximately sixteen square metres (16sq.m.), together bounded on the north by the common drive way in the Garage Complex, on the south by the foundations underlying the Commercial Premises and on the east by another parking space property of the Vendor.

"Common Parts of the Block" shall mean: i. the outside terrace, the main entrance door and the main entrance of the Block; ii. the stairs, landings, lift shaft and lift in the common stairwell of the Block which extends from the Garage Complex up to the Penthouse Level in the Block; iii. the door which communicates the Block of Apartments and the Garage Complex; iv. the internal shafts (save as otherwise stated in the deed); v. the lift room; vi. the drainage system, communal plumbing and electrical systems and all other common parts mentioned in paragraph (c) of article five (5) of the Condominium Act; but does not include the land on which the Building is constructed, the common dividing walls with neighbouring tenements and the roof and airspace of the Building.

"Common Parts of the Garage Complex" shall mean the common areas in the Garage Complex, whether such common areas are situated on the Site or on the adjacent land property of Seaview Marina or are owned by the Vendor or by Seaview Marina, which common parts consist of the main entrance of the Garage Complex which abuts onto Ta' Xbiex Sea Front, the internal common ramps and drive ways, the communal drains, plumbing and electrical systems, and all services, installations and objects in the common areas of the Garage Complex intended for the common use or benefit of owners of units in the Garage Complex but does not include the land on which the Garage Complex is constructed and the common dividing walls with neighbouring tenements.

"Pro Rata" shall mean: a) when it refers to the Common Parts of the Block the division of one by the number of apartments and penthouses (Units) which at any time shall exist in the Block of Apartments irrespective of the superficial area of the respective Units; and b) when it refers to the Common Parts of the Garage Complex the division of one by the number of parking spaces /garages (Units) which at any time shall exist in the Garage Complex irrespective of the superficial area of the individual parking-spaces/garages.

"Condominium Act" shall mean the Condominium Act, Chapter three hundred and ninety eight (398) of the Laws of Malta and a

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"Condominium" and a "Condominus" have the same meaning specified in the said Act.

"Administrator" shall mean the person appointed as such in accordance with article fifteen (15) of the Condominium Act.

"Building Permit" shall mean the Full Development Permit which shall be issued by the Malta Environment and Planning Authority (MEPA) and all other permits which shall be issued by the relevant competent authorities and which are required for the construction of the Building.

"Architect" shall mean Architect Paul Camilleri or such other architect appointed from time to time by the Vendor for the construction and/or development of the Building.

By virtue of the deed, the Vendor sold and transferred to the Purchasers who in equal shares purchased and acquired the following divided portions of the Site, namely:

(a) the divided portion of the Site shown outlined in red on the plan annexed to the deed as Document C as well as on Document D, consisting of the airspace, intended for the construction of the Apartment, which airspace is the level which shall be occupied by the Fifth Floor of the Building (excluding the area which shall be occupied by the stairwell and lift shaft of the Block and the internal shafts) and extends approximately from fifty nine and a half courses from street level measured from Ta' Xbiex Seafront up to seventy one and a half courses from street level also measured from Ta' Xbiex Seafront leaving a clear headroom of eleven courses, having a superficial area of approximately three hundred and eighty seven square metres (387sq.m.) which area includes the superficial area of the terraces of the Apartment but does not include the superficial area of Common Parts of the Block which are situated on the Fifth Floor, having the same boundaries given for the Apartment - hereinafter referred to as "the Airspace (Apartment)"; and

(b) the divided portion of the Site shown outlined in blue on the plan annexed to the deed as Document D, consisting of the airspace, intended for the construction the Parking Space, which extends from three courses below street level measured from Ta' Xbiex Seafront up to five courses above street level also measured from Ta' Xbiex Seafront, leaving a clear headroom of two metres, having a floor area of approximately sixteen square metres (16sq.m.) and having the same boundaries given for the Parking Space - hereinafter referred to as "the Airspace (Parking Space)";

under the terms and subject to the conditions set out hereunder:

1. The Parties agreed that the actual levels of the Airspace (Apartment) and of the Airspace (Parking Space) may vary in accordance with the plans approved together with the Building Permit and for the avoidance of doubt the Parties agreed that the Airspace (Apartment) shall include half the thickness of the ceiling of the Apartment and half the thickness of the ceiling of the apartment underlying the Apartment and the Airspace (Parking Space) shall include half the thickness of the floor (the concrete slab) of the Lower Level in the Garage Complex and half the thickness of the ceiling of the Parking Space.

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2. The Parties agreed that in the deed, unless the context otherwise implies, the terms and conditions applicable to the Airspace (Apartment) shall also apply to the Apartment when constructed and the terms and conditions applicable to the Airspace (Parking Space) shall also apply to the Parking Space when constructed.

3. The Parties agreed that when constructed the Block of Apartments and the Garage Complex shall each constitute a separate and distinct condominium in terms of the Act and the Common Parts of the Block and the Common Parts of the Garage Complex shall constitute the respective common parts of the said condominiums in terms of the Act and the Purchasers shall become condomini of the Block, as owners of the Apartment, and of the Garage Complex, as owners of the Parking Space.

4. The Airspace (Apartment) was sold by the Vendor and purchased by the Purchasers together with a Pro Rata pro indiviso share of the Common Parts of the Block, which Common Parts shall be enjoyed in co-ownership with the owners of the other Units which may exist at any time in the Block and may not be transferred separately from the property owned pro diviso in the Block.

5. The Airspace (Parking Space) was sold by the Vendor and purchased by the Purchasers together with the right to use the Common Parts of the Garage Complex, which right of use was granted on the deed jointly by the Vendor and Seaview Marina to be enjoyed by the owner from time to time of the Parking Space in common with the owners of the other Units which may exist at any time in the Garage Complex, in perpetuity and transferable *ad infinitum* with the Parking Space.

6. Each apartment in the Block of Apartments and each parking space / garage in the Garage Complex shall constitute a unit of the respective condominium for all intents and purposes of the Act and the deed.

7. The Airspace (Apartment) and the Airspace (Parking Space) were sold and purchased on the deed with all their respective rights and appurtenances but the sale did not include the ownership of or the condominium rights to the roof and airspace overlying the Block or the land underlying the Building. The Apartment shall have only limited rights of use of and access to the roof as specified in the deed.

8. The dividing walls between the Apartment and neighbouring tenements shall appertain to the Purchasers and not to the Vendor and the Purchasers shall have the right to receive or the obligation to pay compensation for such walls as the case may be.

9. Each airspace intended for an apartment/penthouse in the Block and the airspace intended for the Commercial Premises as well as each apartment/penthouse and Commercial Premises constructed therein shall enjoy the active servitudes and shall be subject to the passive servitudes, in relation to the remainder of the Building, which shall result from its physical position in the Building in relation to the remainder of the Building including, but not limited to, the active or passive servitudes of overlooking windows and balconies as shall be shown drawn on the final plans

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approved by the Malta Environment and Planning Authority (MEPA) together with the Building Permit.

10. Each of the apartments/penthouse which shall be constructed in the Block and their respective airspaces (the dominant tenements) shall enjoy the perpetual praedial servitude on the Common Parts of the Block (the servient tenement) consisting of the right of passage and of access to and from Ta' Xbiex Sea Front through the outside terrace, main entrance and hallway, the stairwell, the stairs, the landings, the lift shaft and the lift of the Block, which servitude shall be perpetual and without limitation and shall extend from Ta' Xbiex Sea Front up to the floor below the roof of the Block. The Commercial Premises shall enjoy a similar servitude which however shall be limited to the right of access from Ta' Xbiex Sea Front up to the entrance of the Commercial Premises and vice versa.

11. The divided portions of the Site which are intended for the construction of the Common Parts of the Block as well as the constructions which shall be made therein (the servient tenement) shall be subject to the perpetual passive servitudes in favour of the remainder of the Building (including any future developments which may be added to the Block) (the dominant tenement) consisting of (i) the opening of apertures from the apartments/penthouses onto the Common Parts as is necessitated from their physical position in the Building in relation to the remainder of the Building for the proper enjoyment of the properties in the Building (ii) the opening of the entrance, substantially as shown on the Plans, from the Commercial Premises and the Garage Complex onto the Common Parts (iii) the right of passage at all times and without limitation from Ta' Xbiex Sea Front to the apartments/penthouses in the Block, the Commercial Premises and the Garage Complex and vice versa, and (iv) the right of passage of any and all common or separate services, pipes, drains and wiring to service the remainder of the Building, provided that all services are installed as required by standard building practice.

12. The divided portion of the Site which is intended for the construction of the Garage Complex including the Parking Space (the servient tenement) shall be subject to the perpetual passive servitudes in favour of the remainder of the Building (the dominant tenement) which may result from its physical position in the Building, including the servitude consisting of the passage of drains and drainage pipes and other services which may be required for the benefit of the Building or any part thereof, provided that all services are installed as required by standard building practice and do not effect the full use and enjoyment by the Parties and their successors in title of their respective parking-spaces.

13. The Parking Space shall enjoy over the Common Parts of the Garage Complex a perpetual right of uninterrupted vehicular and pedestrian passage at all times and without limitation to and from Ta' Xbiex Sea Front, and the Vendor as owner of the Site on which part of the Garage Complex is planned to be constructed and Seaview Marina as owner of the adjacent land on which the remainder of the Garage Complex is planned to be constructed, together constituted in favour of the Parking Space a perpetual praedial servitude on the Common Parts of the Garage Complex (the servient tenement) consisting of the right of passage and of

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access, both vehicular and pedestrian to and from Ta' Xbiex Sea Front, which servitude was constituted as an integral part of the sale and for no further consideration.

14. Whereas it is intended that services will be installed at various points within the Garage Complex, those parking-spaces / garages which are in the vicinity of such points shall be subject to the passive servitude of the right of way in favour of the remainder of the Building for the purposes of access to such services.

15. The divided portion of the Site which is intended for the construction of the Commercial Premises (the servient tenement) shall be subject to the perpetual passive servitudes in favour of the remainder of the Building (the dominant tenement) which may result from its physical position in the Building, consisting of the passage of drains and drainage pipes and other services which may be required for the benefit of the Building or any part thereof, provided that all services are installed below floor level, as required by standard building practice and do not affect the full use and enjoyment of the Commercial Premises.

16. The servitudes above mentioned were constituted as such on the deed by the Parties and where applicable also by Seaview Marina and the value thereof has been taken into consideration in the Price and no additional consideration is due to Seaview Marina.

17. The servitudes above mentioned shall not be construed in any way to limit the rights of the Vendor and where applicable of Seaview Marina to grant similar servitudes and / or other similar personal or real rights over any part of the Common Parts of the Block and / or any part of the Common Parts of the Garage Complex in favour of any other part of the Building (including any future developments which may be added to the Building) and where applicable in favour of the property of Seaview Marina in or overlying the Garage Complex, or in favour of any owner or occupier of such properties.

18. The Common Parts of the Block and the rights of the Purchasers and of their successors in title thereto shall be subject to the rights enjoyed by the Vendor and its successors as provided in the deed in relation to the roof and airspace of the Building and the additional units which may be constructed thereon.

19. The Vendor and Seaview Marina shall enjoy the right and are entitled to install additional services within the Garage Complex as may prove necessary from time to time to service the properties overlying the Garage Complex.

20. The Vendor undertook and bound itself to provide the Apartment adequate and appropriate space for one water tank of a maximum capacity of one thousand litres (1000lts) and for an electrical pressure pump to pump water from the tank to the Apartment.

21. The Airspace (Apartment) and the Airspace (Parking-Space) were sold by the Vendor to the Purchasers as subject to the servitudes, terms and conditions mentioned in the deed and on the schedules annexed thereto but otherwise as free and unencumbered from any ground-rents, burdens, servitudes, hypothecs, and

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privileges, and free from any rights in favour of third parties of whatever type or nature, whether real or personal, free from law-suits and from any litigation whatsoever.

22. The Parties acknowledged that when the Building is constructed the Block of Apartments and the Garage Complex shall constitute separate and distinct condomini in terms of the Act and the Common Parts of the Block and the Common Parts of the Garage Complex respectively constitute the common parts of the said condomini in terms of the Act and that the Commercial Premises shall not form part of any one of the condomini and for this purpose the Parties agree as follows:

1 The Purchasers accepted, and to the extent that their consent is required by law, gave their consent to the performance of the right, reserved on the deed by the Vendor and / or Seaview Marina for themselves and their successors in title, subject to the necessary permits by the competent authorities, to interconnect the Garage Complex with a garage complex or garage complexes adjacent to the Garage Complex and to utilise the Common Parts of the Garage Complex for additional garages or parking spaces which as a result of such interconnection shall form part of the Garage Complex and shall be accessible from the Common Parts of the Garage Complex. The aforesaid rights reserved by the Vendor and Seaview Marina shall survive and may exercised by both or either one of them even in the case of the sale of all the parking spaces in the Garage Complex.

2.1. The Purchasers qua owners of the Apartment shall have the right which shall be enjoyed in common with the owners of the other Units in the Block to install and maintain on the uppermost roof which may exist from time to time of the Building a communal television reception facilities not exceeding one point two (1.2) metres in diameter, exclusively within an area and in the manner and subject to such specifications which shall be determined and indicated by the Architect, which area may be sealed off from the remainder of the roof and shall enjoy a right of access to such roof, which right shall be exclusively for the purpose of carrying out maintenance and /or repairs to the said services; these rights were constituted on the deed as an integral part of the ownership of the Apartment, by way of perpetual servitude transferable to third parties together with the Apartment the consideration for which was taken into account in the price hereunder stipulated.

2.2 This right of access shall be regulated in accordance with an agreement to be reached between the owner of the penthouse in the Block and the Administrator. Access to the roof shall be considered to have been adequately provided even if such access shall be through a hatch at the top of the stairwell in the Block or through the top most apartment in the Block and may be granted subject to prior notice and to reasonable times, provided that the arrangements to access the roof shall be such that in the case of an emergency access to the roof shall be instantly available.

3.1 Without prejudice to the enjoyment of the rights mentioned in the deed by the Apartment or the owner/s thereof, the Vendor retains the exclusive ownership of the roofs and airspace of the Building and shall be entitled to construct and develop additional storey/s on the roof of the Building as an

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integral part of the Building provided such additional construction shall only be allowed if the relative permits from the competent authorities would have been issued. The right to construct and develop additional storey/s on the roof of the Building may be exercised by the Vendor or assigned to third parties together with the roof and airspace of the Building.

3.2 The Purchasers shall be prohibited from obstructing such development in any manner whatsoever, and the Purchasers accepted, and to the extent that their consent is required by law, gave their consent to the performance of the rights reserved on the deed by the Vendor for itself and its successors in title in the immediately preceding paragraph. The aforesaid rights reserved by the Vendor shall survive and may be exercised even in the case of the sale of all the Units in the Block.

3.3 Should the Vendor or its successors in title (in this clause and in the schedule attached to the deed as Document E referred to as "the Developers") actually determine to construct and develop additional storey/s as aforesaid the provisions set out in the schedule attached to the deed as Document E shall apply. For the avoidance of doubt the Parties declared to have read and are fully cognisant with the provisions set out in Document E and that Document E shall form an integral part of the deed as if it were written in the body thereof.

3.4 In the event of the transfer of the roofs and airspaces of the Building or any part thereof to third parties, all rights and obligations of the Developers arising from Clause three point three (3.3) (*Clause five point three point three (5.3.3) of the deed*) whether real or personal, shall be enjoyed or assumed by the transferee of such roof or airspace.

3.5 Notwithstanding the other provisions of the deed and without prejudice to the rights of the Vendor to the roof, all expenses necessary for the maintenance and repair of the roof of the Building shall be borne by the owners of the penthouse in the Block.

4. The costs necessary for the preservation, maintenance, replacement, ordinary and extraordinary repairs, for the enjoyment of the Common Parts of the Block and the Common Parts of the Garage Complex, for the rendering of services in the common interest and for the alterations agreed upon by the owners of units therein shall be borne Pro Rata between the owners, from time to time, of the Units in the Block and the Units in the Garage Complex, accordingly.

5. The mandatory provisions of the Condominium Act which by virtue of the said Act must be observed in all cases of condominium shall apply to the Building, the other provisions of the Act shall apply to the Building only to the extent that they are not in conflict with the contractual terms and conditions applicable to the Building.

6. The external walls of the Block, including the exposed dividing walls with neighbouring tenements shall, only for the purpose of maintenance and repairs, be deemed common parts of the Block which fall under the jurisdiction of the Administrator or until such time as the Administrator is appointed under the

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jurisdiction of the Vendor, provided each apartment owner shall pay a Pro Rata share of the expenses disbursed for the maintenance and repair thereof.

7. The Vendor and the Purchasers, and for the purposes of the Garage Complex also Seaview Marina, agreed that the terms, conditions and regulations set out in the deed and those in documents letter E, letter F and letter G, annexed to the deed:- (i) are for their own benefit and for the benefit of all the eventual Condomini in the Building including the Garage Complex, and shall be binding on all the Condomini of the Building including the Parties; (ii) shall apply to themselves as owners of the pro diviso units in the Building including the Garage Complex until such time when they sell or otherwise transfer their units in the Building and thereafter shall apply to their successors in title; (iii) shall, apart from the owners and their successors in title, also bind tenants/possessors of units in the Building including the Garage Complex and the owner of such unit shall be bound in solidum with such tenants/possessors for any breach of such terms, conditions and regulations; (iv) are servitudes or restrictions of ownership burdening the individual units in the Building in favour of the remainder of the Building and shall follow the title to the said units *ad infinitum* and shall be incorporated in all future transfers *ad infinitum*. For this purpose a Condominus, on the acquisition of any unit in the Building, shall on the deed of acquisition be required to promise and undertake to observe the said terms, conditions and regulations at all times and to impose them on his successors in title; and all Condomini in the Building including the Garage Complex as well as the Administrator, who have an interest to ensure that these terms, conditions and regulations are observed shall have the right to take all lawful action against any person who is in breach of such terms, conditions and regulations or any of them.

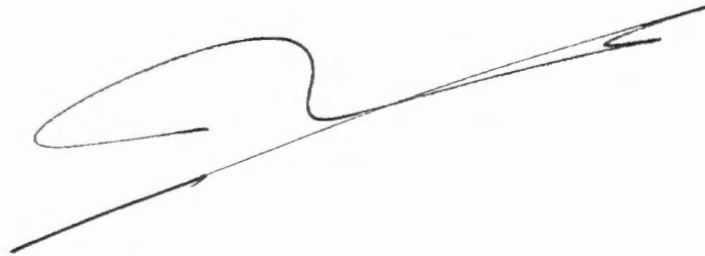
7.2. The Vendor and the Purchasers and in so far as the Garage Complex is concerned Seaview Marina as well, reciprocally bound themselves to impose all terms and conditions set out in the deed, insofar as applicable, upon any future transfer of their properties in the Building.

23. For the avoidance of doubt it was declared that Seaview Marina, as owner of the land on which part of the Garage Complex and part of the Common Parts of the Garage Complex are planned to be constructed, has granted its consent, and in any case wherever such consent has been omitted granted such consent, to the rights granted on the deed to the Purchasers in relation to the Common Parts of the Garage Complex and this for no additional consideration due by the Purchasers.

24. The Parties promised and bound themselves in favour of each other to utilise their respective parts of the Site solely and exclusively for the construction and completion thereon of the Building in accordance with the Building Permit. The Vendor shall be entitled to make changes to the Plans at its own choice and in its sole discretion, provided that the habitable area of the Airspace (Apartment) shall not be reduced to below three hundred and eighty seven square metres (387 sq.m.) and all changes are made in accordance with the proper and necessary permits and agreed that the Vendor shall take charge to organise the construction of the Building.

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; - and this for the price of forty five thousand Maltese Liri
(Lm45,000) and under all the other terms and conditions stipulated
in the deed.



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Fil - Prim Awla tal-Qorti Civili

Dottor Georg Sapiano, bin il-mejjet Alfred u Rose nee Flynn, imwieled Attard u joqghod Madliena, karta ta' l-Identita numru 71568(M), u martu **Audrey Sapiano**, mart Dottor Georg, bint John Baptist Ellul u Angela nee Fenech, mwielda Attard u residenti l-Madliena, bin-numru tal-karta ta' l-identita' 182272(M) L-istess Dottor Georg Sapiano qiegħed jidher ukoll għan-nom u in rappresentanza tal-kumpannija **Gee Erre Limited (C-14199)**, **Martin Sapiano**, marketing and events manager, bin Joseph Raymond Sapiano u Dorothy Anne nee Bonello, mwieled Sliema u residenti Sliema, bin-numru tal-karta ta' l-identita' 158362(M), **Joseph Sapiano**, pensjonant, bin il-mejtin Dottor Luigi u Edwige nee Psaila, mwieled Rabat, Malta u residenti Kappara, limits of San Gwann, bin-numru tal-karta ta' l-identita' 465635(M) u martu **Dorothy Sapiano**, bint il-mejtin Eugenio Bonello u Josephine nee Crocetta, mwielda l-Furjana u residenti Kappara, limits of San Gwann bin-numru tal-karta ta' l-identita' 106134(M) **Peter Jones**, systems manager bin il-mejjet Henry u Edith nee Harris, mwieled Whitechapel, Londra, Inghilterra u residenti Essex, Inghilterra u martu **Lynn Janice Jones**, bint David Wilsher u Edna nee Jollands, mwielda Romford, Inghilterra u residenti Essex, Inghilterra, bin-numri tal-passaporti Ingliżi 037283626 u 037283575 rispettivament, **Kevin Alfred Perrett**, direttur, bin Donald James Perrett u Maria Lina nee Spiteri, mwieled Plymouth Inghilterra u residenti Flitton, Inghilterra, bin-numru tal-passaport ingliż 037769137; **Paul Smith**, accountant, bin Wilfred u Eileen nee Rowan, mwieled u residenti York, Inghilterra u **Gail Smith**, bint Michael Leonard Hayes u Maria Concetta nee Bonello, mwielda Nottingham, Inghilterra u residenti York Inghilterra, Passaporti Ingliżi 002265329 u 014811365 rispettivament, **Dottor Alfred Azzopardi**, consultant pathologist, bin il-mejjet Joseph u Maria Stella nee Camilleri, mwieled Valletta u residenti Kappara, limiti ta' San Gwann bin-numru tal-karta ta' l-identita' 685839(M) u martu **Monica Azzopardi**, bint Hugh Lapira u Matilde nee Spiteri, mwielda Dingli u residenti Kappara, limiti ta' San Gwann, bin-numru tal-karta ta' l-identita' 564543(M), **Graham Butt**, bin Fred u Ethel nee Walker, mwieled Chesterfield, York, Inghilterra u martu **Anne Pauline Butt**, bint Ronald Robb u Margaret nee Dew, mwielda u residenti York, Inghilterra, Passaporti Ingliżi 100981946 u 100979846 rispettivament, **Austin Psaila**, irtirat, bin il-mejjet Aristide u Marianne nee Cirigottis, mwieled Sliema u residenti Saint Julians, bin-numru tal-karta ta' l-identita' 780747M, **Anna Psaila**, mart Austin, bint Laurence Ellul Sullivan u Yvonne nee Grima, mwielda Sliema u residenti Saint Julians bin-numru tal-karta ta' l-identita' 106448M, **Alexander Psaila**, manager, bin il-mejjet Aristide u Marianne nee Cirigottis, mwieled u residenti Sliema, bin-numru tal-karta ta' l-identita' 200651M, **Philip sive Pippo Psaila**, company director, bin il-mejjet Aristide u Marianne nee Cirigottis, mwieled Saint Julians u residenti Sliema, bin-numru tal-karta ta' l-identita' 458357M, **Anthony Psaila**, company director, bin Aristide u Marianne nee Cirigottis, mwieled Sliema u residenti Kappara, bin-numru tal-karta ta' l-identita' 79853M, **Anna Rossi**, mart Stephen, bint Aristide u Marianne nee Cirigottis, mwielda Saint Julians u residenti San Pawl tat-Targa, bin-numru tal-karta ta' l-identita' 517954M, **Marion Busuttil**, armla minn Edwin Busuttil, bint Peter Farrugia u Elvia nee Psaila, mwielda Valletta u residenti Sliema, bin-numru tal-karta ta' l-identita' 0818830M, **Antonia sive Nanette Grech**, armla minn Benjamin Grech, bint Peter Farrugia u Elvia nee Psaila, mwielda Valletta u residenti Sliema, bin-numru tal-karta ta' l-identita' 0486132M, **Carmela sive Lina Busuttil**, mart Vincent Busuttil, bint Peter Farrugia u Elvia nee Psaila, mwielda Birzebbugia u residenti Santa Lucija, bin-numru tal-karta ta' l-identita' 0637734M, **Josephine Farrugia**, xebba, bint Peter Farrugia u Elvia nee Psaila, mwielda Valletta u residenti Sliema, bin-numru tal-karta ta' l-identita' 0476237M, **Joseph Psaila**, fin-negozju, bin Aristide u Marianne nee Cirigottis, mwieled Sliema u residenti Sliema, bin-numru tal-karta ta' l-identita' 41449(M), **Darryn Portelli**, guvni u sales and marketing manager, bin Godwin u Valerie nee Hunt, mwieled San Giljan u residenti Sliema, bin-numru tal-karta ta' l-identita' 416776(M)

vs

Il-Gvern ta' Malta u
Thomas Anastasi Pace, bin il-mejtin

540/09
€ 2795.20

Crutt

299

11

Joseph Anastasi u Mary nce Pace, mwieled l-Belt Valletta u residenti Londra Inghilterra, bin-numru tal-passaport Ingiliz 028953484

Cedola ta depozitu u fidi ta cens

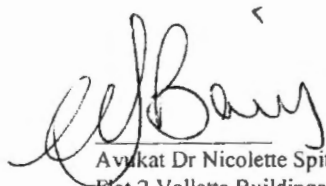
Jesponu bir-rispett:

Illi b'diversi kuntratti oneruzi u anke b'wirt id-depozitarji akkwistaw l-propjeta msemmija ossia l-blokk gia msemmi "Saint Mary" illum imsemmi "Ta' Xmajjar Apartments" bin-numru ghoxrin (20) u blokk imsemmi "Saint Joseph" enumerat 22 fi Triq Guze' Howard street Sliema liema cens jithallas in kwantu ghas-somma ta' tlieta u sebghin euro u sebgha u tletin centezmu (€73.37) lill-intimat Joint Office bhala l-aventi kawza ta' Celine la Vierge li mietet Knighton, l-Inghilterra fis-sbatax ta' Dicembru tas-sena elf disa mija tnejn u disghin (17.12.1992) u dana skond l-ahhar testament Ingiliz taghha datat it-tlettax ta' Marzu tas-sena elf disa mija wiehed u disghin (13.3.1991) fejn halliet bhala l-eredi taghha lis-Societa Missjunarja ta' San Pawl u ghaldaqstant bhala l-aventi kawza tal-istess Societa' lill-istess Gvern ta' Malta u kwantu ghal sitta u sittin euro disgha u tletin centezmi (€66.39) lill-intimat Thomas Anastasi Pace f'ismu proprio u jekk ikun il-kaz ghan-nom tal-eredi u d-dixxendenti ohra ta' Inez Galea.

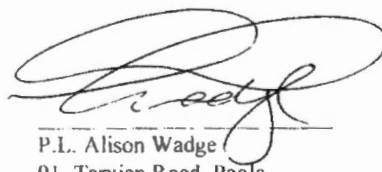
Illi kull esponent jixtieq jipprevalixxi ruhu mill-fakolta' lilu moghtija bl-artikolu 1501 tal-Kodici Civili biex jifdi is-sehem tieghu proporzjonali mill-fuq imsemmi cens in kwantu tolqot il-propjeta' tieghu partikolari li tiffirma parti minn dawn iz-zewg blokk izda ghal iskopijiet ta' din ic-cedola u versu l-intimati tali redenzjoni qedgha issir solidament bejniethom ghae-cens kollhu;

Illi fin-nuqqas ta' xi klawnsola specifika fil-kuntratt originali fl-atti tan-Nutar Joseph Gatt datat is-sittax ta' Dicembru tas-sena elf disa mija tmienja u tletin (16.12.1938), fejn ic-cens gie impost, ic-cens qieghead jigi mifdi b'rata ta' 5% u ghalhekk ic-cens kapitalizzat jammonta ghas-somma ta' €2,795.20 li jithallas in kwantu ghas-somma ta' €1,467.40 lill-intimat Gvern ta' Malta u in kwantughas-somma ta' €1,327.80 lill-imsemmi Thomas Anastasi Pace.

Ghaldaqstant l-esponenti sabiex jifdu l-imsemmi cens perpetwu gravanti l-fond indikat jadixxu din l-Onorabbli Qorti u taht l-Awtorita' taghha jiddepozitaw, kif qeghdin effettivament jiddepozitaw, is-somma ta' €2,795.20 fidwa ta' l-istess cens sabiex l-istess somma tigi liberament zbankata mill-intimati Gvern ta' Malta u Thomas Anastasi Pace ghal dan l-iskop, wara li jithallew d-debiti rcevuti.



Avukat Dr Nicolette Spiteri Bailey
Flat 2 Valletta Buildings, South Street, Valletta



P.L. Alison Wadge
91, Tarxien Road, Paola

Depozitanti: all C/o Sapiano and Associates, Flat 2, Valletta Buildings, Triq Nofsinhar, Valletta
Notifika: "Harruba" 58, Triq A Schembri, Kappara, SGN4233
28, Cochrane Close, London NW8 7NS Inghilterra
Gvern ta' Malta, Auberge de Baviere, Valletta
Direttur tar-Registru Pubbliku: West Street, Valletta (zewg kopji)

04.07.2009

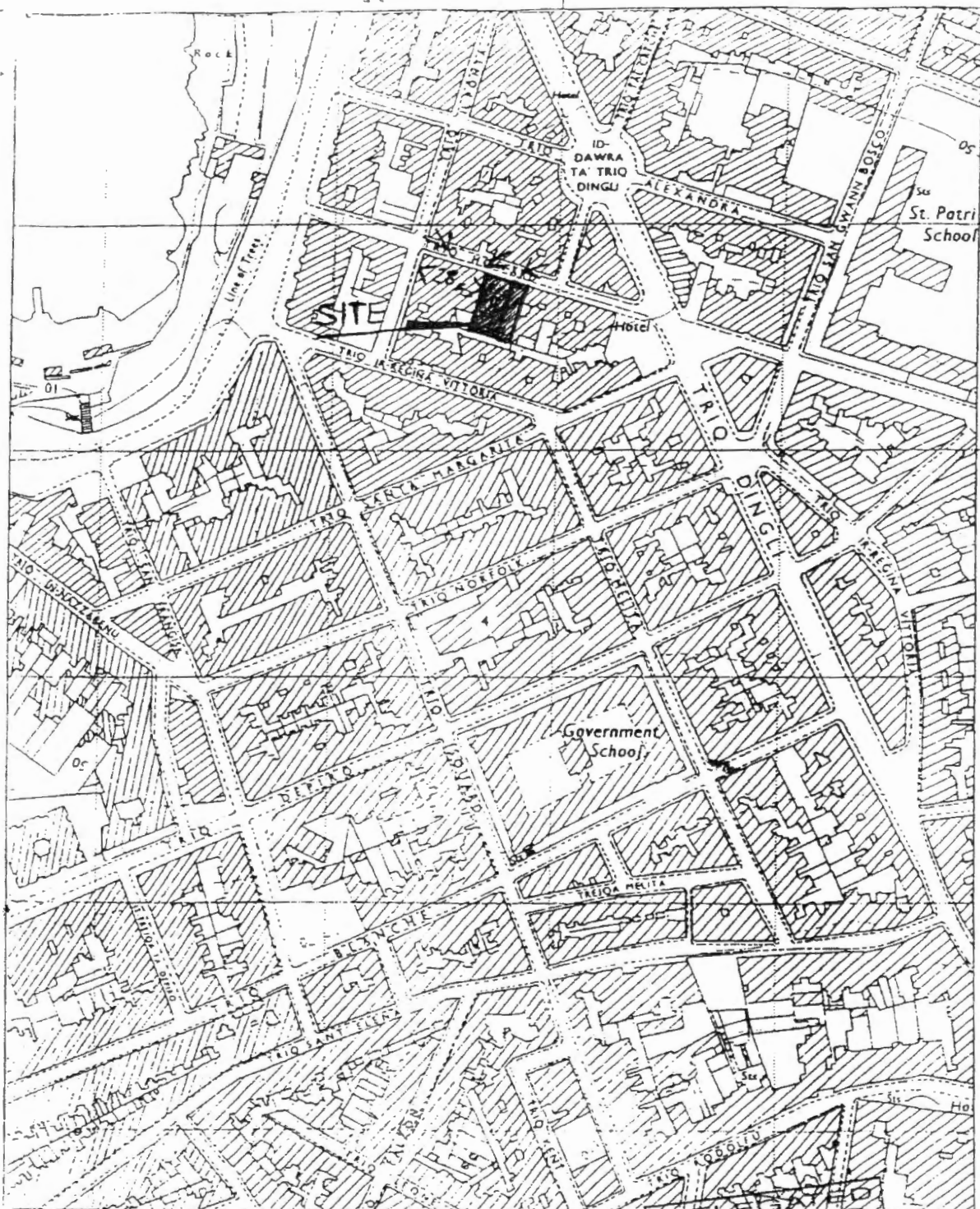
LA Wadge
dok

Rosa Marie
Dir. Registru
Courts of Justice



299

iii



Survey Sheet No. 3676
 Scheme No. -
 Locality SLIEMA



DELEGATED APPROVED
25 AUG 1997
 Peter Cefar
 Team Manager

JOB	Flats + Garage Howard Str, Sliema
DRAWING	Site Plan
CLIENT	Mr. Sepano
JOB REF	10552
DRG. No.	R

No.	REVISION	IN	DATE
GODWIN ZAMMIT + ASSOCIATES Architects + Civil Engineers 8, Goldfields House, Birkirkara By-pass Birkirkara BKR 06, Malta Tel: 498604 Fax: 483510			
SCALES 1:500		DRAWN CHECKED DATE	

GZA

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RECEIVED

12 MAY 2009

K. Gre
Domi

20114

The twenty eight of November
of the year two thousand
and eight (28.11.2008)

Doctor Georg Sapiano, son of the late Alfred and Rose nee' Flynn, born in Attard and residing at Madliena, with identity card numbered 71568(M) and his wife **Audrey Sapiano**, daughter of John Baptist Ellul and Angela nee' Fenech, born in Attard, Malta and residing at Madliena, with identity card numbered 182272(M) sold and transferred to **Martin Sapiano**, events manager, son of Joseph Raymond Sapiano and Dorothy Anne nee Bonello, born in Sliema and residing at Sliema, with identity card numbered 158362(M, an undivided half of the penthouse, internally numbered thirteen (13) forming part of a block today numbered twenty (20) previously having the number one hundred and thirty (130) named "Ta Xmajjar Apartments" in Guze Howard street Sliema, with an undivided share of the common parts of the block subject to an annual and perpetual groundrent of six euro and sixty four cents. This sale was made and accepted for the global sale price of ninety three thousand one hundred and seventy five euro (€93,175) and under the conditions mentioned in the deed. In virtue of the same deed **Gee Erre Limited, (C-14100)** sold and transferred to **Martin Sapiano**, events manager, son of Joseph Raymond Sapiano and Dorothy Anne nee Bonello, born in Sliema and residing at Sliema, with identity card numbered 158362(M, the full ownership of an airspace, which airspace overlies the penthouse from the eighty fifth (85) course up to the ninety seventh (97) course calculated from the elevated basement level, that is the airspace directly above the said penthouse, up to one storey bounded this airspace North with the said street, East with Saint Joseph Flats, numbered one hundred and twenty nine, property of unknown third parties and West with Mount Carmel Flats, property of unknown third parties. The sale was made and accepted for the global sale price of five thousand eight hundred euro (€5,800)

RECEIVED

19 DEC 2008

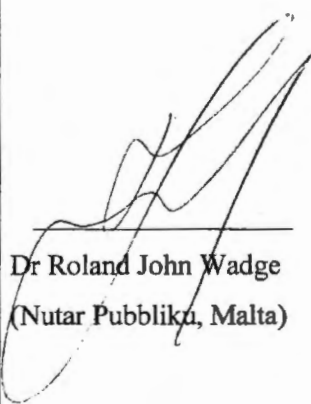
Dr Roland John Wadge
(Notary Public, Malta)

H. J. Wadge
97/12/08

14090

Is-sebgha u ghoxrin
ta' Awissu tas-sena elfejn
u tmienja (27.8.2008)

Testment magħmul minn Audrey Sapiano, mart Dottor Georg, bint John Baptist Ellul u Angela nee Fenech, mwiela Attard u residenti l-Madliena, bin-numru tal-karta ta' l-identita' 182272(M)


Dr Roland John Wadge
(Nutar Pubbliku, Malta)

RECEIVED
11 SEP 2008



182272
821
9

No Remarks**Order 241527 Front Page 4 / 7**

Name **GEORG SAPIANO**
Spouse
Father **ALFRED SAPIANO**
Mother **ROSE FLYNN**

ID Card

Birthplace **ATTARD**

Date Of Birth

Liabilities From 04/01/2012 To 25/09/2017 Malta & Gozo Group Reference **Hospitality International Limited 869B**
Transfers From 04/01/2012 To 25/09/2017 Malta & Gozo
Fidi From 04/01/2012 To 25/09/2017 Malta & Gozo

Search Results

Note Type	Note Year	Note Num.	V D/P D/M I
H	2012	16224	
H	2012	16225	
GPP	2013	126	
I	2012	14975	
I	2012	14977	
I	2013	275	V

16224

Nota ghal iskrizzjoni ta: Hypothec Numru Progressiv

Rimarki (Ghall-uzu ufficjali):

Kreditur: Bank of Valletta p.l.c.

Debituri: **Doctor of Laws Georg Sapiano**, son of the late Alfred Sapiano and of Rose Marie sive Rose nee' Flynn, born in Attard and residing at Madliena, limits of Swieqi, holder of identity card number 71568M and his wife **Audrey Sapiano**, daughter of John Baptist Ellul and Angela nee' Fenech, born in Attard and residing at Madliena, limits of Swieqi, holder of identity card number 182272M

Kreditu: The sum of five hundred thousand euro (€500,000) granted on loan to be used for the debtor's business commitments. It was agreed that the loan shall bear interest at the rate stipulated in the sanction letter. The said interest is to be reckoned on the outstanding balance of loan from time to time, in accordance with recognised banking practice. Unless otherwise agreed, the loan shall be repaid over a period of twelve (12) years or any extension thereof. These conditions and others as per deed in my records dated the first of November of the year two thousand and twelve (01.11.2012)

Handwritten notes: 77.6k, Ad, S

Kawza ta' Preferenza: (i) a **general hypothec** for the sum of five hundred thousand euro (€500,000) and interest thereon and charges in connection therewith on all the debtors' respective and common property in general present and future; and (ii) a **special hypothec** for the sum of five hundred thousand euro (€500,000) and interest thereon and charges in connection therewith on the apartment internally numbered ten (10) formerly referred to as being internally numbered nine (9) and before that referred to as being internally numbered six (6) and which apartment occupies the fifth floor of the block known as 'Forth Mansions Block C', and which block is hereinafter referred to as the 'Block ' and which Block in turn forms part of the larger building named "Forth Mansions" in Ta' Xbiex Seafront, Ta' Xbiex, together with its *pro indiviso* share of the Block's common parts, and which Block has its own independent entrance, and is without official number and unnamed and is bounded on the south by Ta' Xbiex Sea Front, on the north by a projected road that shall be a prolongation of Triq l-Imradd and on the

Illum20.....

Director

Dr Roland John Wadge
Nutar Pubbliku, Malta

Handwritten signatures and scribbles

Nota ghal iskrizzjoni ta: Hypothec Numru Progressiv 016224

Rimarki (Ghall-uzu ufficjali):

Kreditur:

Debituri:

Kreditu:

Kawza ta' Preferenza:, the east by property of Seaview Marina Real Estate Limited, or more correct boundaries. The said common parts of the Block include the covered passage, the outside lobby, the main entrance, hall, garbage room, concierge/janitor's room with kitchenette and shower, stairs, landings, two lift shafts, two lifts and stairwell of the Block as well as the passages which interconnect the Block with the garage complex; the internal shafts of the Block, save as otherwise stated in the two deeds in the Records of Notary Doctor Pierre Attard of the twenty first day of March of the year two thousand and five (21. 03. 2005) and of the twelfth day of July of the year two thousand and six (12. 07. 2006) respectively, the external walls of the Block and of the commercial premises, provided these shall be considered to constitute part of the block common parts only for the purposes of the Condominium Act, Chapter three hundred and ninety eight (398) of the Laws of Malta, the sharing of costs and the protection of the décor of the building but shall otherwise be owned *pro diviso* as an integral part of the Apartment or of the Commercial Premises of which they form part; the drainage systems, communal plumbing and electrical systems and all other common parts mentioned in paragraph (c) of article five (5) of the Condominium Act; but does not include the common dividing walls with neighbouring tenements and any part of the property underlying or overlying the Block even if such part underlies or overlies the Block common parts. The Block common parts are subject to the perpetual servitudes mentioned hereunder in favour of each and every apartment which shall at any time form part of the Block (including any future developments which may be added to the block) (the Dominant Tenements) consisting of:

- i. the perpetual right of pedestrian passage and access at all times from Ta' Xbiex Sea Front to all the apartments which may at any time form part of the Block and to the Garage Complex and vice versa;
- ii. the perpetual right to use the Block common parts for the purpose they are intended, which right of use is transferable to third parties together with each one of the apartments;

Il-Ministru20.....
Director Dr Roland John Wadge

Nutar Pubbliku, Malta 16224
Nota ghal iskrizzjoni ta: Hypothec Numru Progressiv

Rimarki (Ghall-uzu ufficjali):

Kreditur:

Debituri:

Kreditu:

Kawza ta' Preferenza:

iii. the right to open doors from the apartments onto the Block common parts as is necessitated from their physical position in the Block;

iv. the right to pass any and all common or separate services, pipes, drains and wiring, provided that all services are installed as required by standard building practice and in the locations made available for this purpose;

v. the right to interconnect the garage complex with the Block common parts in the places shown on a plan annexed to a deed in the records of Notary Pierre Attard of the twelfth day of July of the year two thousand and six (12.7.2006);

which servitudes and rights of use mentioned in this Clause shall be enjoyed in common between all the Condomini from time to time in the block as subject to the provisions set out in the abovementioned deed in the records of Notary Pierre Attard and other terms, restrictions and conditions mentioned in the said deed.

The said property is otherwise free and unencumbered and free from any ground-rents, burdens, other servitudes, any other rights of whatever type or nature, whether real or personal, in favour of third parties, law-suits and any litigation whatsoever, and as subject to all those terms and conditions mentioned in the two abovementioned deeds in the records of Notary Pierre Attard. The aforementioned apartment, hereinafter referred to as 'the Apartment', belongs jointly to the Customers and is being herein specially hypothecated by the Customers in favour of the Bank, which accepts, with all its rights and appurtenances, including any and all improvements effected thereto.

Illum20.....

Director

Dr Roland John Wadge
Nutar Pubbliku, Malta

NOTA TA' REFERENZA

Referenza Nru.

TITOLU

Cancellation

7670

H.11,897/2010

H.16224/2012

H.16225/2012

By a deed in my records of the twelfth (12th.) day of November of the year two thousand and eighteen (2018) the Creditor "**Bank of Valletta p.l.c.**" gave its consent to the total cancellation of the following Notes of Hypothec and/or Privilege inscribed in its favour in the Public Registry, Malta, at Volume I numbers eleven thousand eight hundred and ninety seven of the year two thousand and ten (I.11897/2010), sixteen thousand two hundred and twenty four of the year two thousand and twelve (I.16224/2012), and sixteen thousand two hundred and twenty five (I.16225/2012) against **Doctor of Laws Georg Sapiano**, son of the late Alfred Sapiano and of Rose nee' Flynn, born in Attard on the 20th January 1968 and residing at Ta' Xbiex, holder of Identity Card number 71568(M) and his wife **Audrey Sapiano**, a housewife, daughter of John Baptist Ellul and Angela nee' Fenech, born in Attard on the 21st April 1972 and residing at Ta' Xbiex, holder of Identity Card number 74858(M)

Illum

ta'

2018

27 NOV 2018

Direttur

Firma tal-Persuna li tapplika
ghall-Iskrizzjoni.

Not. Dr. Philip Lanfranco LL.D.

RC / 7670 / 2018

16225

Nota għal iskrizzjoni ta: Hypothec Numru Progressiv

Remarks (for
official use only):

Kreditur: Bank of Valletta p.l.c.

Debitur: **Doctor of Laws Georg Sapiano**, son of the late Alfred Sapiano and of Rose Marie sive Rose nee Flynn, born in Attard and residing at Madliena, limits of Swieqi, holder of identity card number 71568M and his wife **Audrey Sapiano**, daughter of John Baptist Ellul and Angela nee Fenech, born in Attard and residing at Madliena, limits of Swieqi, holder of identity card number 182272M,

Kreditu: The sum of two hundred and fifty thousand euro (€250,000) given on overdraft and general banking facilities to the debtors and interests accrued thereon. Interest at rates not exceeding the maximum rate allowed by law shall be due by the debtors on their daily debit balances, in accordance with recognized Banking practice; the said rate of interest may be varied on the occurrence of any one of the conditions mentioned in the deed. The Bank shall be entitled at any time to call upon the debtors to settle their indebtedness with the Bank, and to pay the balance due in their current account; a simple request in writing to be deemed good and sufficient notice for the debtors to implement their engagements forthwith. The debtors undertook in favour of the Bank not to grant any further hypothecary charges over the above described property, even if these are to rank after the charges registered in favour of the Bank; and not to lease or allow third parties to use the above-mentioned property under any title whatsoever, without the Bank's prior written consent. And this together with other conditions mentioned in a deed in my records of the first of November of the year two thousand and twelve (1.11.2012)

Kawza ta' Preferenza: **General hypothec** over all the property of the debtors in general, present and future and a **Special Hypothec** over:-

the apartment internally numbered ten (10), formerly referred to as internally numbered nine (9) and before that as internally numbered six (6), and which apartment occupies the fifth floor of block known as 'Forth Mansions Block C' and which block is hereinafter referred to as the 'Block' and which Block in turn forms part of the larger building named "Forth Mansions" in Ta' Xbiex Seafront, Ta' Xbiex, together with its *pro indiviso* share of the Block's common parts and which Block has its own independent entrance, and is without official number and unnamed and is bounded on the south by Ta' Xbiex Sea Front, on the north by a projected road that shall be a prolongation of Triq l-Imradd and on the east by property of Seaview Marina Real Estate Limited, or more correct boundaries.

The said common parts of the Block include the covered passage, the outside lobby, the main entrance, hall, garbage room, concierge/janitor's room with kitchenette and shower, stairs, landings, two lift shafts, two lifts and stairwell of the Block as well as the passages which interconnect the Block with the garage complex; the internal shafts of the Block, save as otherwise stated in the two deeds in the Records of Notary Doctor Pierre Attard of the twenty first day of March of the year two thousand and five (21. 03. 2005) and of the twelfth day of July of the year two thousand and six (12. 07. 2006) respectively, the external walls of the Block and of the commercial premises, provided these shall be considered to constitute part of the Block common parts only for the purposes of the Condominium Act, Chapter three hundred and ninety eight (398) of the Laws of Malta, the sharing of costs and the protection of the décor of the building but shall otherwise be owned *pro indiviso* as an integral part of the apartment or of the Commercial Premises of which they

(cont)

Illum 20.....

Direttur

Dr Roland John Wadge
(Notary Public, Malta)

Order 241527

H / 16225 / 2012

016225

Nota għal iskrizzjoni ta: Numru Progressiv

Remarks (for official use only):

Kreditur:

Debitur:

Kreditu:

Kawza ta' Preferenza: (cont) form part; the drainage systems, communal plumbing and electrical systems and all other common parts mentioned in paragraph (c) of article five (5) of the Condominium Act; but does not include the common dividing walls with neighbouring tenements and any part of the property underlying or overlying the Block even if such part underlies or overlies the Block common parts.

The Block common parts are subject to the perpetual servitudes mentioned hereunder in favour of each and every apartment which shall at any time form part of the Block (including any future developments which may be added to the Block) (the Dominant Tenements) consisting of:

- i. the perpetual right of pedestrian passage and access at all times from Ta' Xbiex Sea Front to all the apartments which may at any time form part of the Block and to the Garage Complex and vice versa;
- ii. the perpetual right to use the Block common parts for the purpose they are intended, which right of use is transferable to third parties together with each one of the apartments;
- iii. the right to open doors from the apartments onto the Block common parts as is necessitated from their physical position in the Block;
- iv. the right to pass any and all common or separate services, pipes, drains and wiring, provided that all services are installed as required by standard building practice and in the locations made available for this purpose;
- v. the right to interconnect the garage complex with the Block common parts in the places shown on a plan annexed to a deed in the records of Notary Pierre Attard dated the twelfth day of July of the year two thousand and six (12.7.2006);

which servitudes and rights of use mentioned in this Clause shall be enjoyed in common between all the Condomini from time to time in the Block as subject to the provisions set out in the abovementioned deed in the records of Notary Pierre Attard and other terms, restrictions and conditions mentioned in the said deed.

The said apartment internally numbered ten (10) forming part of the said Block is hereinafter referred to as the 'Apartment' and the Apartment is otherwise free and unencumbered and free from any ground-rents, burdens, other servitudes, and any other rights of whatever type or nature, whether real or personal, in favour of third parties, and as subject to all those terms and conditions mentioned in the two abovementioned deeds in the records of Notary Pierre Attard. The Apartment belongs jointly to the Customers and is being herein specially hypothecated by the Customers in favour of the Bank, which accepts, with all its rights and appurtenances, including any and all improvements effected thereto.

Ilum 20.....

Direttur

Dr Roland John Wadge
(Notary Public, Malta)

NOTA TA' REFERENZA

Referenza Nru.

TITOLU

Cancellation

7670

H.11,897/2010

H.16224/2012

H.16225/2012

By a deed in my records of the twelfth (12th.) day of November of the year two thousand and eighteen (2018) the Creditor "**Bank of Valletta p.l.c.**" gave its consent to the total cancellation of the following Notes of Hypothec and/or Privilege inscribed in its favour in the Public Registry, Malta, at Volume I numbers eleven thousand eight hundred and ninety seven of the year two thousand and ten (I.11897/2010), sixteen thousand two hundred and twenty four of the year two thousand and twelve (I.16224/2012), and sixteen thousand two hundred and twenty five (I.16225/2012) against **Doctor of Laws Georg Sapiano**, son of the late Alfred Sapiano and of Rose nee' Flynn, born in Attard on the 20th January 1968 and residing at Ta' Xbiex, holder of Identity Card number 71568(M) and his wife **Audrey Sapiano**, a housewife, daughter of John Baptist Ellul and Angela nee' Fenech, born in Attard on the 21st April 1972 and residing at Ta' Xbiex, holder of Identity Card number 74858(M)

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Not. Dr. Philip Lanfranco LL.D.

RC / 7670 / 2018

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The twenty ninth day of August of the year two thousand and twelve.

The Parties

"Marina Wharf Limited", registration number letter "C" three three zero three seven (C33037) (in the deed and hereinafter referred to as **"Marina"**); **"Seaview Marina Real Estate Limited"**, registration number letter "C" three one six two two (C31622) (in the deed and hereinafter referred to as **"Seaview Marina"**); **Doctor of Laws Georg Sapiano**, an advocate, son of the late Alfred Sapiano and of Rose née Flynn, born in Attard and residing at Madliena (I.D.71568M) and his wife **Audrey Sapiano**, daughter of John Baptist Ellul and Angela née Fenech, born in Attard and residing at Madliena (I.D.182272M) (in the deed and hereinafter collectively referred to as the **"Spouses Sapiano"**); and **Allegra Limited** registration number letter C two nine five two two (C29522) (in the deed and hereinafter referred to as **"Allegra"**), in which company Castello Trading Company Limited registration number letter "C" one three three eight nine (C13389) is amalgamated.

Definitions

"Block of Apartments" or **"Block"** means the block of apartments, without official number, known as "Forth Mansions Block C", with its own independent unnumbered entrance which abuts onto the private pavement/driveway contiguous to the public pavement of Ta' Xbiex Sea Front, in Ta' Xbiex Sea Front, Ta' Xbiex; which block of apartments in part overlies the Commercial Premises and in part overlies the Garage Complex and is bounded on the south by Ta' Xbiex Sea Front, on the north by Triq l-Imradd and on the east by Forth Mansions Block B property of Seaview Marina or of its successors in title.

"Brittania" means Brittania Property Developments Limited a limited liability company registered in Malta with registration number letter C three one eight three zero (C31830).

"Building" means the building without number, known as Forth Mansions, in Ta' Xbiex Sea Front, Ta' Xbiex constructed on the Site, bounded on the south by Ta' Xbiex Sea Front, on the north by Triq l-Imradd and on the east by property of Seaview Marina, or more correct boundaries consisting of the Block of Apartments and the Commercial Premises and that part of the Garage Complex built on the Site.

"Building Permits" means the Full Development Permits issued by the Malta Environment and Planning Authority (MEPA) and all

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other permits issued by the relevant competent authorities for the construction of the Building.

"Commercial Premises" means the ground-floor tenement, without official door number and unnamed, with its own independent entrance and porch / pavement in Ta' Xbiex Sea Front, Ta' Xbiex, which tenement is situated on the Ground Floor on the left hand side of the entrance to the Block of Apartments when one faces the Block from Ta' Xbiex Sea Front, underlies part of the Block of Apartments, is bounded on the south Ta' Xbiex Sea Front, on the north by part of the Garage Complex and on the east by the common entrance of the Block, or more correct boundaries.

"Garage Complex" means the complex of car parking spaces/ garages with two entrances on Ta' Xbiex Sea Front, Ta' Xbiex, one entrance leads to the lower level of the Garage Complex and the other entrance leads to the upper level of the Garage Complex, which complex is constructed in part on the Site and in part on adjacent land property of Seaview Marina and consists of two levels namely the Lower Level and the Upper Level, underlies part of the Block of Apartments and part of the adjacent blocks of apartments property of Seaview Marina or its successors in title, and is bounded on the south in part by Ta' Xbiex Sea Front, in part by the Commercial Premises, in part by the Block of Apartments and in part by property of Seaview Marina, on the north by Triq L-Imradd and on the west by property of Cold Stores Developments Limited or its successors in title.

"Site" means:

- (a) the "L" shaped portion of land measuring approximately four hundred and thirty one square metres (431sq.m.) with frontage on Ta' Xbiex Sea Front, Ta' Xbiex, bounded on the south in part by Ta' Xbiex Sea Front and in part by the hereunder described portion of land property of Britannia or of its successors in title, on the north by Triq L-Imradd and on the east in part by hereunder described portion of land property of Britannia or of its successors in title and in part by property of Seaview Marina, or more correct boundaries, shown outlined in red on the plan annexed as a document marked with the letter A to a deed in my Records of the twenty fifth day of August of the year two thousand and eight (25/8/2008) (in the deed referred to as the **"Marina Site"**; and
- (b) the portion of land measuring approximately two hundred sixty four square metres (264sq.m.) with frontage on Ta' Xbiex Sea Front, Ta' Xbiex, bounded on the south by Ta' Xbiex Sea Front and on the north and on the west by the land described in paragraph (a) above, shown outlined in blue on the plan annexed as a document marked with the letter A to a deed in my Records of the twenty fifth

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day of August of the year two thousand and eight (25/8/2008) (in the deed referred to as the "**Brittania Site**").

"**Spouses Delia**" means Doctor of Laws Adrian Delia, an advocate, son of Andrew Delia and of Alice née Anastasi, born in Saint Julians and residing at Siggiewi (I.D.299369M) and his wife Doctor of Laws Nicole Vella De Fremeaux, an advocate, daughter of Peter Vella De Fremeaux and of Madeleine née Miller, born in Saint Julians and residing at Siggiewi (I.D.431472M).

Interpretation

"**Ground Floor**" means the floor in the Building at street level being the lowest floor of the Building, also referred to as **Level Zero (0)** or the "**Lower Level**" comprising the entrance and lobby of the Block of Apartments, the Commercial Premises and the Lower Level of that part of the Garage Complex constructed on the Marina Site and the Brittania Site; the overlying floor is referred to as "**First Floor**" or "**Level One (1)**" or the "**Upper Level**" and the overlying floors are sequentially referred to as the Second Floor, Third Floor, Fourth Floor and so on.

"**Garage**" is a generic term used to include a lock-up garage or a parking space in the Garage Complex and the term "**Garages**" shall be construed accordingly.

Recitals

(A) By virtue of a deed in my Records of the first day of September of the year two thousand and four (1/9/2004) (in the deed referred to as the "**First Deed**") Marina sold to the Spouses Delia, who purchased and acquired:

i. the divided portion of the Marina Site shown outlined in red on the plan annexed to the First Deed as a document marked "C", consisting of the airspace, intended for the construction of the apartment internally numbered three (3) occupying the Second Floor (as this term is interpreted in the First Deed) of the Block of Apartments (as this term is defined in the First Deed) shown outlined in red on the plan annexed to the First Deed as a document marked with the letter "C", which airspace is the level occupied by the Second Floor of the Building (as this term is defined in the First Deed) (excluding the area which shall be occupied by the stairwell and lift shaft of the Block of Apartments and the internal shafts) and extends approximately from twenty three and a half courses from street level measured from Ta' Xbiex Seafront up to thirty five and a half courses from street level also measured from Ta' Xbiex Seafront leaving a clear headroom of eleven courses, having a superficial area of approximately three hundred and eighty seven square metres

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(387sq.m.) which area includes the superficial area of the terraces of the aforesaid apartment but does not include the superficial area of common parts of the Block of Apartments situated on the same floor; and

ii. the divided portion of the Marina Site shown outlined in blue on the plan annexed to the First Deed as a document marked with the letter "D", consisting of the airspace intended for the construction of the parking spaces situated on the Lower Level of the Garage Complex shown outlined in blue on the aforesaid plan annexed to the First Deed as a document marked with the letter "D", measuring approximately eight square metres (8sq.m.) and bounded on the south by the common drive way in the Garage Complex, on the north by the foundations underlying Triq L-Imradd and on the east by another parking space property of Marina; which divided portion extends from three courses below street level measured from Ta' Xbiex Seafront up to five courses above street level also measured from Ta' Xbiex Seafront, leaving a clear headroom of two metres.

(B) By virtue of a deed in my Records of the twenty first day of March of the year two thousand and five (21/03/2005) (in the deed referred to as the "Second Deed") the Marina sold to the Spouses Sapiano, who purchased and acquired:

i. the divided portion of the Marina Site shown outlined in red on the plans annexed to the Second Deed as documents marked with the letters "C" and "D" respectively, consisting of the airspace, intended for the construction of the apartment internally numbered six (6) occupying the Fifth Floor (as this term is interpreted in the Second Deed) of the Block of Apartments (as this term is defined in the Second Deed) shown outlined in red on the plans annexed to the Second Deed as documents marked with the letters "C" and "D" respectively, which airspace is the level occupied by the Fifth Floor of the Building (as this term is defined in the Second Deed) (excluding the area which shall be occupied by the stairwell and lift shaft of the Block of Apartments and the internal shafts) and extends approximately from fifty nine and a half courses from street level measured from Ta' Xbiex Seafront up to seventy one and a half courses from street level also measured from Ta' Xbiex Seafront leaving a clear headroom of eleven courses, having a superficial area of approximately three hundred and eighty seven square metres (387sq.m.) which area includes the superficial area of the terraces of the aforesaid apartment but does not include the superficial area of common parts of the Block of Apartments situated on the same floor; and

ii. the divided portion of the Marina Site shown outlined in blue on the plan annexed to the Second Deed as a document marked with

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the letter "D", consisting of the airspace intended for the construction the two adjacent parking spaces situated on the Lower Level of the Garage Complex shown outlined in blue on the aforesaid plan annexed to the Second Deed as a document marked with the letter "D", measuring approximately sixteen square metres (16sq.m.) and bounded on the north by the common drive way in the Garage Complex, on the south by the foundations underlying the Commercial Premises and on the east by another parking space property of Marina; which divided portion extends from three courses below street level measured from Ta' Xbiex Seafront up to five courses above street level also measured from Ta' Xbiex Seafront, leaving a clear headroom of two metres.

(C) By virtue of a deed in my Records of the twelfth day of July of the year two thousand and six (12/7/2006) (in the deed referred to as the "Third Deed"), Marina, the Spouses Sapiano, the Spouses Delia and Brittania made various exchanges of divided portions of their respective properties as detailed in the Third Deed and Marina, the Spouses Sapiano, the Spouses Delia, Brittania and also Seaview Marina entered into agreements amounting to an arrangement whereby:

i the Parties and Brittania agreed to construct on their respective portions of land one Garage Complex (as this term is defined on the deed) in accordance with the Building Permits so that on completion Seaview Marina will be the *pro diviso* owner of the Garages constructed on its land, Marina will be the *pro diviso* owner of the Garages constructed on its land, the Spouses Sapiano shall be the *pro diviso* owners of the Garages constructed on their land, Spouses Delia shall be the *pro diviso* owners of a Garage constructed on their land and Brittania shall be the *pro diviso* owner of the Garages constructed on its land, the common parts of the Garage Complex constructed on the land owned by Seaview Marina will be owned by Seaview Marina and the common parts of the Garage Complex constructed on the land owned by Marina will be owned by Marina, provided that the aforesaid common parts shall be for the common use of all the Garages in the Garage Complex under the terms and conditions set out in Third Deed, the Condominium Rules, the Regulations and subject to the servitudes as stated in the Third Deed.

ii. the Parties (excluding Seaview Marina) and Brittania agreed to construct on their respective sites the Block of Apartments and the Commercial Complex (as these terms are defined in the deed) in accordance with the Building Permits consisting of: (a) the apartments (including the Commercial Complex constructed on the Marina Site) (the Marina Apartments), (b) the apartments constructed on the Brittania Site (the Brittania Apartments), (c) the common parts of the Block constructed in part on the Marina Site

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and in part on the Britannia Site; and (d) the roofs and airspace overlying the Block Common Parts, the Marina Apartments and the Britannia Apartments;

so that on completion:

- i. Marina shall be the *pro diviso* owner of the Marina Apartments (excluding the Sapiano Property and the Delia Property), of the Commercial Premises and of the underlying land and overlying roofs and airspace of all the property built on the Marina Site;
 - ii. the Spouses Sapiano shall be the *pro diviso* owners of the apartment constructed on the Sapiano Property;
 - iii. the Spouses Delia shall be the *pro diviso* owners of the apartment constructed on the Delia Property;
 - iv. Britannia shall be the *pro diviso* owners of the Britannia Apartments and of the roofs and airspace overlying parts of the Building built on the Britannia Site;
 - v. the Block Common Parts (as this term is defined in the Third Deed) shall be owned *pro indiviso* as to one half (1/2) undivided share by Britannia and as to one half (1/2) undivided share by Marina, the Spouses Sapiano and the Spouses Delia *pro rata* between them in relation to the number of Marina Apartments which shall exist from time to time in the Block, and shall be for the common use of all the apartments in the Block under the terms and conditions set out or referred to in the Third Deed;
 - vi. Marina and Britannia shall own in equal shares between them the roof and airspace overlying the stair-hood of the Block;
 - vii. the Block of Apartments and the Commercial Complex shall have, save as otherwise expressly reserved in the Third Deed, one common uniform façade and the Block of Apartments shall have a common entrance.
- (D) On the First Deed and the Second Deed, it was agreed that when the Building shall be constructed in accordance with the plans approved together with the Building Permits and in the event that it resulted that when constructed the apartments and / or the parking spaces which the Spouses Sapiano and the Spouses Delia were obliged to construct in their respective airspaces occupy parts of the Site not sold on the First Deed to the Spouses Delia or on the Second Deed to the Spouses Sapiano or if the airspaces sold to either the Spouses Delia or the Spouses Sapiano are occupied by parts of the Building which are not the apartments and / or the parking spaces which the Spouses Sapiano and the Spouses Delia were obliged to

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construct, either one of the parties shall have the right to demand of the other party to appear on a notarial deed to make any amendments to the relative deed which may be necessary to adjust the property transferred by virtue of the relative deed.

(E) Subsequent to the publication of the First Deed and the Second Deed and pursuant to the Third Deed various adjustments, changes and alterations were made to the original plans of the Building and the Building was eventually constructed in accordance with the plans approved with the Building Permits and as a result:

i. the apartment in the Block of Apartments which is owned by the Spouses Delia has been constructed in the airspace sold to the Spouses Delia by virtue of the First Deed and has the same superficial area, configuration and dimensions as contemplated in the First Deed but is now internally numbered four (4) and not three (3) as indicated in the First Deed;

ii. the apartment in the Block of Apartments which is owned by the Spouses Sapiano has been constructed in the airspace intended for the apartment sold to the Spouses Sapiano by virtue of the Second Deed and has the same superficial area, configuration and dimensions as contemplated in the Second Deed but is now internally numbered ten (10) and not six (6) as indicated in the Second Deed and not nine (9) as indicated in the Third Deed;

iii. the airspace sold to the Spouses Sapiano by virtue of the Second Deed for the purpose of constructing therein the two adjacent parking spaces situated on the Lower Level of the Garage Complex shown outlined in blue on the plan annexed to the Second Deed as a document marked with the letter "D", was in fact inadvertently occupied by Marina and used to construct two adjacent parking spaces which it had promised to sell to Allegra and consequently the Spouses Sapiano were dispossessed of their airspace intended for the parking spaces and do not have a Garage in the Garage Complex.

(F) By virtue of a deed in my Records of the twenty fifth day of August of the year two thousand and eight (in the deed referred to as the "Fourth Deed"), Marina sold to Castello Trading Company Limited (which company is now amalgamated in Allegra Limited):

i. the Commercial Complex; and

ii. the parking space situated on the Lower Level of the Garage Complex, shown outlined in green on the plan annexed as a document marked with the letter A to the Fourth Deed, measuring approximately eight square metres (8sq.m.), bounded on the north by the common drive way in the Garage Complex, on the south by

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the Commercial Premises and on the east by property of Marina; which parking space is in fact constructed on part of the airspace intended for the parking spaces sold to the Spouses Sapiano by virtue of the Second Deed.

(G) The Parties wished to compromise between them the disputes which have arisen as a result of the circumstances mentioned in these Recitals and have agreed to appear on the deed to compromise as follows:

The First Part

1.1 Marina and the Spouses Sapiano agreed, confirmed and declared that the apartment in the Block of Apartments owned by the Spouses Sapiano is constructed in the airspace (intended for the apartment) sold to the Spouses Sapiano by virtue of the Second Deed and has the same superficial area, configuration and dimensions as contemplated in the Second Deed and is now internally numbered ten (10) and not six (6) as indicated in the Second Deed and not nine (9) as indicated in the Third Deed.

1.2 Marina and the Spouses Sapiano agreed that the Spouses Sapiano have been deprived of their quiet enjoyment of, and have been *de facto* evicted from, the divided portion of the Marina Site shown outlined in blue on the plan annexed to the Second Deed as a document marked with the letter "D", consisting of the airspace intended for the construction the two adjacent parking spaces situated on the Lower Level of the Garage Complex shown outlined in blue on the aforesaid plan annexed to the Second Deed as a document marked with the letter "D", measuring approximately sixteen square metres (16sq.m.) and bounded on the north by the common drive way in the Garage Complex, on the south by the foundations underlying the Commercial Premises and on the east by another parking space property of Marina; which divided portion extends from three courses below street level measured from Ta' Xbiex Seafront up to five courses above street level also measured from Ta' Xbiex Seafront, leaving a clear headroom of two metres, which divided portion was sold by Marina to the Spouses Sapiano by virtue of the Second Deed. In view of the above and in order to avoid further disputes between them, Marina and the Spouses Sapiano dissolved and rescinded by virtue of the deed, for all purposes of law, the sale of the divided portion of the Marina Site described in this clause 1.2 (one point two) made by virtue of the Second Deed and the aforesaid divided portion of the Marina Site reverted to Marina as owner and the Spouses Sapiano declared that they have no further rights or claims thereon;

1.3 Save for the dissolution and rescission made by virtue of clause 1.2 (one point two) above, Marina and the Spouses Sapiano

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otherwise ratified and confirmed the Second Deed and in particular they ratified and confirmed the sale of the divided portion of the Marina Site shown outlined in red on the plans annexed to the Second Deed as documents marked with the letters "C" and "D" respectively, consisting of the airspace, intended for the construction of the apartment internally numbered six (6) (which has since been re-numbered ten (10)) made by virtue of the Second Deed and agreed and declared that without prejudice or limitation to the warranties given by Marina to the Spouses Sapiano on the Second Deed (except to the extent that these refer to or concern the airspace intended for the parking spaces) they do not have any other claims or pretences against each other arising from the Second Deed.

1.4 Marina and the Spouses Sapiano declared that the real value of the airspace (intended for the parking spaces) described in clause 1.2 (one point two) of the deed, as sold by Marina to the Spouses Sapiano by virtue of the Second Deed and as reverting to Marina by virtue of the deed is twelve thousand euro (EUR12,000).

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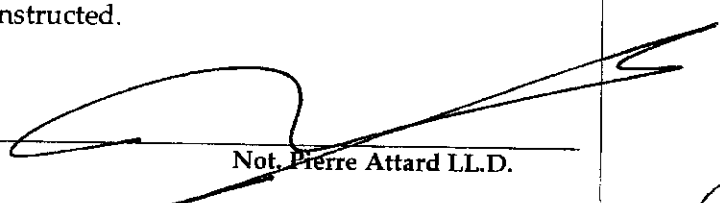
The Second Part

2.1 Marina, the Spouses Sapiano and Allegra agreed that:

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- (a) by virtue of the Fourth Deed, Marina sold to Castello Trading Company Limited (which company is now amalgamated in Allegra Limited) the parking space situated on the Lower Level of the Garage Complex, shown outlined in green on the plan annexed as a document marked with the letter A to the Fourth Deed, measuring approximately eight square metres (8sq.m.), bounded on the north by the common drive way in the Garage Complex, on the south by the Commercial Premises and on the east by property of Marina;
- (b) the parking space sold to Castello Trading Company Limited is in fact constructed on part of the airspace (intended for parking spaces) sold to the Spouses Sapiano by virtue of the Second Deed;
- (c) the sale of the airspace (intended for parking spaces) sold to the Spouses Sapiano by virtue of the Second Deed has been dissolved and rescinded by virtue of the First Part of the deed;
- (d) for all intents and purposes of law, Marina and Allegra ratified the sale of the parking space sold to Castello Trading Company Limited by virtue of the Fourth Deed;
- (e) the Spouses Sapiano declared that they have no rights or claims against Allegra in respect of the aforesaid car space or the airspace in which it is constructed.

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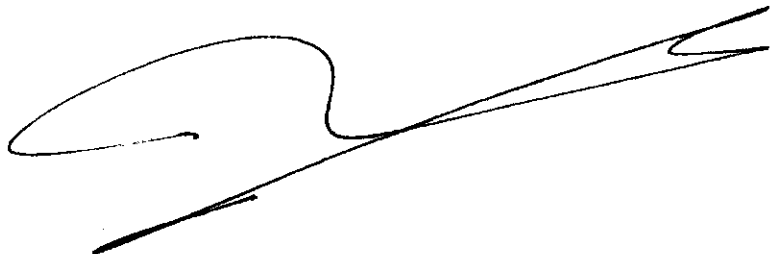
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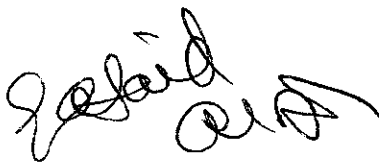
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2.2 Marina, the Spouses Sapiano and Allegra agreed that the ratification and disclaimer made by virtue of the Second Part of the deed were made for no payment in cash or in kind and that the only consideration is to clarify any ambiguities and to avoid disputes between them.

And this under all the other terms and conditions stipulated in the deed.



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NOT. Dr. E.A. SAID

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The twenty ninth day of August of
the year two thousand and twelve.

The Parties.

"Seaview Marina Real Estate Limited", registration number letter "C" three one six two two (C31622) (in the deed and hereinafter referred to as the "Vendor"); "Marina Wharf Limited", registration number letter "C" three three zero three seven (C33037) (in the deed and hereinafter referred to as the "Marina"); and **Doctor of Laws Georg Sapiano**, an advocate, son of the late Alfred Sapiano and of Rose née Flynn, born in Attard and residing at Madliena (I.D.71568M) and his wife **Audrey Sapiano**, daughter of John Baptist Ellul and Angela née Fenech, born in Attard and residing at Madliena (I.D.182272M) (in the deed and hereinafter collectively referred to as the "Purchasers").

Definitions.

"Building" means the building without number known as Forth Mansions in Ta' Xbiex Sea Front, Ta' Xbiex, bounded on the south by Ta' Xbiex Sea Front, on the north by Triq l-Imradd, on the east by the external staircase which separates the Building from Whitehall Mansions property of Middlesea Valletta Life Assurance Co. Limited and on the west by property of Cold Stores Property Development Limited or their successors in title; which building consists of:

(a) the two blocks of apartments respectively known as Forth Mansions Block A and Forth Mansions Block B which share a common foyer, other common areas and a common unnumbered entrance which abuts onto a portico and passageway contiguous to Ta' Xbiex Sea Front, Ta' Xbiex and a commercial premises situated on the First Floor of the Building and accessible from two unnumbered entrances which abut onto the above mentioned portico, which blocks of apartments are together bounded on the south by Ta' Xbiex Sea Front, on the north by Triq l-Imradd, on the east by the external staircase which separates the Building from Whitehall Mansions property of Middlesea Valletta Life Assurance Co. Limited and on the west by the block of apartments described in the next paragraph; which blocks of apartments and commercial premises overlie part of the Garage Complex;

(b) the block of apartments known as Forth Mansions Block C", with its own independent unnumbered entrance which abuts onto the private pavement/driveway contiguous to the public pavement of Ta' Xbiex Sea Front, in Ta' Xbiex Sea Front, Ta' Xbiex; which block of apartments in part overlies a commercial premises which has its own independent unnumbered entrance which abuts onto the pavement/driveway contiguous to the public pavement of Ta' Xbiex

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Sea Front, bounded on the south by Ta' Xbiex Sea Front, on the north by Triq l-Imradd and on the east by property described in paragraph (a) above; which block of apartments overlies part of the Garage Complex; and

(c) the Garage Complex, namely the Ground Floor Garage Complex and the First Floor Garage Complex hereunder described.

"Condominium Act" means the Condominium Act, Chapter 398 (three nine eight) of the Laws of Malta, and the terms **"Condominium"** and **"Condominus"** have the same meaning specified in the same Act.

"Condominium Rules" means the rules adopted at a meeting of the Condomini in accordance with the provisions of the Condominium Act relating to the administration of the Garage Complex and the apportionment of expenses relating to common parts in the Garage Complex.

"First Floor Garage Complex" means the garage complex at First Floor level (at times also referred to as Level One (1) or Upper Level) forming part of the Building having its own unnumbered independent entrance on Ta' Xbiex Sea Front; which Garage Complex comprises car parking spaces and lock-up garages and is bounded on the north by Triq l-Imradd, on the south by Ta' Xbiex Sea Front and on the west by property of Cold Stores Property Development Limited or their successors in title.

"First Floor Garage Complex Common Parts" means the main entrance, ramp and driveway of the First Floor Garage Complex and all services, installations, plant, equipment, electrical and plumbing systems and meters of the First Floor Garage Complex but does not include the land on which the Building is constructed except in so far as this land is required to render a service to the Building, any part overlying the First Floor Garage Complex, any part which constitutes part of the overlying buildings.

"Forth Mansions" means the Building.

"Garage Complex" means the Ground Floor Garage Complex and the First Floor Garage Complex collectively.

"Ground Floor Garage Complex" means the garage complex at Ground Floor level (at times also referred to as Level Zero (0) or Lower Level) forming part of the Building having its own unnumbered independent entrance on Ta' Xbiex Sea Front; which garage complex comprises car parking spaces and lock-up garages and is bounded on the north by Triq l-Imradd, on the south by Ta' Xbiex Sea Front and on the west by property of Cold Stores Property

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Development Limited or their successors in title; which garage complex is shown on the plan annexed to the deed as a document marked "P1".

"Ground Floor Garage Complex Common Parts" means the main entrance, ramp and driveway of the Ground Floor Garage Complex and all services, installations, plant, equipment, electrical and plumbing systems and meters of the Ground Floor Garage Complex but does not include the land on which the Building is constructed except in so far as this land is required to render a service to the Building, any part overlying the Ground Floor Garage Complex and any part which constitutes part of the overlying buildings.

"Pro Rata" means:

- i. in relation to the Ground Floor Garage Complex, the division by the number of car parking spaces / garages owned *pro diviso* which exist at any time in the Ground Floor Garage Complex, irrespective of the superficial area of the respective units.
- ii. in relation to the First Floor Garage Complex, the division by the number of car parking spaces / garages owned *pro diviso* which exist at any time in the First Floor Garage Complex, irrespective of the superficial area of the respective units.

Interpretation

"Ground Floor" means the floor in the Building at street level being the lowest floor of the Building, also referred to as **Level Zero (0)** or the **"Lower Level"**; the overlying floor is referred to as **"First Floor"** or **"Level One (1)"** or the **"Upper Level"**.

1. By virtue of the deed, the Vendor sold and transferred to the Purchasers, who together accepted, purchased and acquired in equal share between them the two car parking spaces internally numbered L twenty two (L22) and L twenty three (L23) (in the deed and hereinafter referred to as the **"Garage"**), which car parking spaces are situated in the Ground Floor Garage Complex; the Garage is shown outlined in red and marked L22 and L23 on the plan annexed to the deed as document marked "P1" and is bounded on the north by the common drive way of the Ground Floor Garage Complex, on the south by Forth Mansions Block B and on the east by the garage numbered L twenty four (L24) in the Ground Floor Garage Complex property of the Vendor or of its successors in title and on the west by a common corridor property of the Vendor; with all its rights and appurtenances, free and unencumbered and with immediate vacant possession in favour of the Purchasers, and under the other terms and conditions contained in the deed.

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2. The Vendor and the Purchasers agreed that the sale was also made under the following terms and conditions:

2.1 The Parties agreed that the Garage was sold and purchased with all its rights and appurtenances and *tale quale* in the "as is" state and condition as seen and inspected by the respective purchasers.

2.2 The Garage is free and unencumbered and as such is free from any burdens, ground-rents, servitudes or easements (save for those apparent or *in situ* or arising from the physical position of the properties in relation to the remainder of the Building and save as otherwise stated on the deed), hypothecs, privileges, charges and cautions, any third party rights whether real or personal and of whatever type or nature, requisition orders, possession and use, expropriation and any rights in favour of the Government or any other public authority and enforcement orders.

2.3 The Garage enjoys a perpetual servitude consisting of the right of use in perpetuity and transferable to third parties of the Ground Floor Garage Complex Common Parts. The right of use includes the right of uninterrupted vehicular and pedestrian passage and access at all times and without limitation to and from Ta' Xbiex Sea Front through the ramps, driveways and passages of the Ground Floor Garage Complex laid out for the purpose; which servitude was constituted on the deed by the Vendor and Marina (each one in respect of the parts which it owns) on the ramps, driveways and passages of the Ground Floor Garage Complex for the advantage of the Garage, and the consideration for which is included in the price. These servitudes are not exclusive to the Garage and are shared with the other garages/car parking spaces in the Ground Floor Garage Complex and shall not be construed in any way to limit the rights of the Vendor or Marina to grant similar servitudes and / or other similar personal or real rights over any of the common parts owned by them in favour of any other part of the Garage Complex (including any developments which have been, or in future may be, added to the Garage Complex) or in favour of any owner or occupier of such properties.

2.4 The Vendor and Marina for themselves and their successors in title reserved the right to extend all common parts of the Garage Complex to adjoining sites and the owners of garages / car parking spaces in the adjoining sites shall have the right of use by way of perpetual servitude of the common parts of the Garage Complex including the ramps and common driveways which abut onto Ta' Xbiex Seafront from where the Garage Complex is accessible. No compensation or other payments shall be due to the Purchasers and / or their successors in title in this respect. The Purchasers accepted and to the extent that their consent is required, gave their consent to

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the performance of these rights by the Vendor and the Marina or their successors.

2.5 The Garage Complex and the garages / car parking spaces therein including the Garage (*as servient tenements*) are subject to the perpetual passive servitudes in favour of the properties overlying the Garage Complex (*as dominant tenements*) which result from their physical position in relation to each other, including the servitude consisting of the right of passage and installation of drains and drainage pipes, pipes, cables, wiring and any other services which may be required for the benefit of the dominant tenements or any part thereof, provided that all services are installed as required by standard building practice and do not effect the use and enjoyment of the garages for the purpose for which they are intended.

2.6 For the purposes of the Condominium Act, the Ground Floor Garage Complex and the First Floor Garage Complex shall, unless otherwise agreed by the condomini thereof, each constitute a condominium which is separate and distinct from the other and from the remainder of the Building. The costs necessary for the preservation, maintenance, replacement, ordinary and extraordinary repairs, for the enjoyment of the common parts of the Ground Floor Garage Complex, for the rendering of services in the common interest and for the alterations agreed upon by the owners of units therein shall be borne Pro Rata between the condomini of the Ground Floor Garage Complex. The costs necessary for the preservation, maintenance, replacement, ordinary and extraordinary repairs, for the enjoyment of the common parts of the First Floor Garage Complex, for the rendering of services in the common interest and for the alterations agreed upon by the owners of units therein shall be borne Pro Rata between the condomini of the First Floor Garage Complex.

2.7 The Purchasers undertook to abide by the Condominium Rules and by the regulations contained in the schedule annexed to the deed as a document marked with the letter A to the extent that these apply to the Garage and / or to the Ground Floor Garage Complex.

2.8 The Purchasers shall neither pay nor receive any compensation for party walls.

; - and this in consideration of the total price of twenty two thousand euro (EUR22,000) and under all the other terms and conditions stipulated in the deed. ~~There are no further details in the deed~~

regarding the car spaces.

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X

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12 SEP 2012

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Order 241527

1 / 14977 / 2012. Dr. E.A. SAID

No Remarks**Order 241528 Front Page 5 / 7**

Name **AUDREY SAPIANO**
Spouse **GEORG SAPIANO**
Father **JOHN BAPTIST ELLUL**
Mother **ANGELA FENECH**

ID Card

Birthplace **ATTARD**

Date Of Birth

Liabilities From 04/01/2012 To 25/09/2017 Malta & Gozo Group Reference **Hospitality International
Limited 869B**
Transfers From 04/01/2012 To 25/09/2017 Malta & Gozo
Fidi From 04/01/2012 To 25/09/2017 Malta & Gozo

Search Results

Note	Note	Note	V	D/P	D/M	I
Type	Year	Num.				

H	2012	16224	V			
H	2012	16225	V			
I	2012	14975	V			
I	2012	14977	V			

No Remarks**Order 241529 Front Page 6 / 7**Name **AUDREY BAPTIST ELLUL**

Spouse

Father **JOHN BAPTIST ELLUL**Mother **ANGELA FENECH**

ID Card

Birthplace **ATTARD**

Date Of Birth

Liabilities From 01/01/1987 To 25/09/2017 Malta & Gozo Group Reference **Hospitality International**

Transfers From 01/01/1987 To 25/09/2017 Malta & Gozo

Limited 869B

Fidi From 01/01/1987 To 25/09/2017 Malta & Gozo

Search Results**Search has no results.**

No Remarks

Order 783261 Front Page 2 / 3

Name **AUDREY SAPIANO**
Spouse **GEORG SAPIANO**
Father **JOHN BAPTIST ELLUL**
Mother **ANGELA FENECH**

ID Card

Birthplace **ATTARD**

Date Of Birth

Liabilities From 25/09/2017 To 23/04/2020 Malta & Gozo Group Reference **Luigi Sapiano**

Transfers From 25/09/2017 To 23/04/2020 Malta & Gozo

Fidi From 25/09/2017 To 23/04/2020 Malta & Gozo

Search Results

Note Note Note V D/P D/M I

Type Year Num.

GPP 2018 23094

I 2018 1447

I 2018 29163

No Remarks

Order 898396 Front Page 2 / 4

Name **AUDREY SAPIANO**
Spouse **GEORG SAPIANO**
Father **JOHN BAPTIST ELLUL**
Mother **ANGELA FENECH**

ID Card

Birthplace **ATTARD**

Date Of Birth

Liabilities From 23/04/2020 To 27/11/2020 Malta & Gozo Group Reference **Luigi Sapiano**

Transfers From 23/04/2020 To 27/11/2020 Malta & Gozo

Fidi From 23/04/2020 To 27/11/2020 Malta & Gozo

Search Results

Search has no results.



001447

Il-hdax ta' Jannar tas-sena elfejn u tmintax (11.1.2018)

Att ta' Immissjoni fil-Pussess u Dikjarazzjoni ta' Trasferiment Causa Mortis magħmula mill-eredi **John Baptist Ellul**, pensjonant, bin il-mejtin Michael u Jane nee Darmanin imwieled il-Gzira fl-01/10/1946 u residenti lbragg, detentur tal-Karta tal-identita' numru 817346M; **Angela Ellul**, mart l-imsemmi John Baptist Ellul, pensjonanta, bint il-mejtin Angelo Fenech u Crocefissa nee Bugeja imwiela Had-Dingli fis-26/09/1942 u residenti lbragg, detentrici tal-Karta tal-identita' numru 586242M u **Audrey – Jane sive Audrey Sapiano**, mart Georg, mara tad-dar, bint John Baptist Ellul u Angela nee' Fenech, imwiela H'Attard fil-21/04/1972 u residenti, Ta' Xbiex, detentrici tal-Karta tal-identita' numru 182272M; u mil-legatarju **Dottor Paul Cachia**, avukat, bin guvni ta' Paul u Louise Anne née Montebello, imwieled San Giljan fit-08/02/1980 u residenti San Giljan, detentur tal-karta tal-identita' bin-numru 99480(M); illi permezz tieghu ddikjaraw illi fid-dsatax ta' Awwissu tas-sena elfejn u sbatax (19.08.2017) f'Chelsea, Londra, fl-Ingilterra, mietet **Dottor Charisse Ellul**, avukat, bint xebba ta' John Baptist u Angela nee' Fenech, imwiela San Giljan fil-15/01/1979 u kienet toqghod San Giljan, u li kellha l-karta tal-identita' numru 129779(M).

Iddikjaraw ukoll illi permezz tat- testament tagħha fl-atti tieghi fis-sebgha u ghoxrin ta' Novembru tas-sena elfejn u sittax (27.11.2016) **Charisse Ellul** ghamlet id-disposizzjonijiet segwenti:

(1) Halliet b'titolu ta' legat in piena propjeta' lill-kompurenti Dottor Paul Cachia is-sehem tagħha ta' nofs (1/2) indiviz tad-dar, bl-arja libera tagħha, bin-numru tnejn u hamsin (52) li huwa l-bieb principali u li ghandha ukoll bieb iehor bla numru, fi Triq Mamo, Haz-Zebbug, Malta bil-gnien anness ma' l-istess dar u retropost ghaliha u liema gnien ghandu bieb bla numru fuq Triq Mamo (peress illi l-istess triq ghandha zewg (2) ferghat u tghaddi kemm fuq quddiem tad-dar u retropost ghaliha) u bil-garage anness ma' l-istess dar u retropost ghaliha liema garage ghandu bieb bla numru fuq Triq Mamo (fuq il-fergha tal-imsemmi triq fejn hemm l-imsemmi bieb tal-gnien), ukoll bl-arja tieghu, libera u franka, bid-drittijiet u l-pertinenzi kollha tagħha. Dottor Charisse Ellul akkwisat in-nofs (1/2) indiviz ta' din id-dar permezz ta' att fl-



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atti tieghi tad-disgha u ghoxrin ta' April tas-sena elfejn u hmistax (29.04.2015).

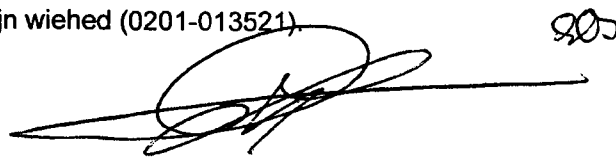
(2) Halliet ukoll b'titolu ta' legat lill-komparenti Dottor Paul Cachia ir-rikavat kollu mill-life insurance policy ma' HSBC Life Assurance (Malta) Limited bin-numru zero tnejn zero wiehed zero wiehed tlieta hamsa tnejn wiehed (0201-013521).

(3) Innominat eredi universali taghha lill-verrieta taghha skond il-ligi ossia lil missierha, ommha u ohtha li huma 'l fuq imsemmija John Baptist Ellul, Angela Ellul u Audrey Sapiano.

Iddikjaraw ukoll illi fid-data tal-mewt taghha **Charisse Ellul** kellha in-nofs (1/2) indiviz tad-dar, bl-arja libera taghha, bin-numru tnejn u hamsin (52) li huwa l-bieb principali u li ghandha ukoll bieb iehor bla numru, fi Triq Mamo, Haz-Zebbug, Malta bil-gnien anness ma' l-istess dar u retropost ghaliha u liema gnien ghandu bieb bla numru fuq Triq Mamo (peress illi l-istess triq ghandha zewg (2) ferghat u tghaddi kemm fuq quddiem tad-dar u retropost ghaliha) u bil-garage anness ma' l-istess dar u retropost ghaliha liema garage ghandu bieb bla numru fuq Triq Mamo (fuq il-fergha tal-imsemmija triq fejn hemm l-imsemmi bieb tal-gnien), ukoll bl-arja tieghu.

Fi-ewwel parti tal-att l-eredi John Baptist Ellul, Angela Ellul u Audrey Sapiano immitew lil-legatarju Dottor Paul Cachia fil-pussess tan-nofs (1/2) indiviz tad-dar, bl-arja libera taghha, bin-numru tnejn u hamsin (52) li huwa l-bieb principali u li ghandha ukoll bieb iehor bla numru, fi Triq Mamo, Haz-Zebbug, Malta bil-gnien anness ma' l-istess dar u retropost ghaliha u liema gnien ghandu bieb bla numru fuq Triq Mamo (peress illi l-istess triq ghandha zewg (2) ferghat u tghaddi kemm fuq quddiem tad-dar u retropost ghaliha) u bil-garage anness ma' l-istess dar u retropost ghaliha liema garage ghandu bieb bla numru fuq Triq Mamo (fuq il-fergha tal-imsemmija triq fejn hemm l-imsemmi bieb tal-gnien), ukoll bl-arja tieghu.

L-Eredi imittew ukoll lil-legatarju fil-pussess ta' kull beneficcju dovut taht il-life insurance policy ma' HSBC Life Assurance (Malta) Limited bin-numru zero tnejn zero wiehed zero wiehed tlieta hamsa tnejn wiehed (0201-013521).



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€ 6.40
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€ 2.60

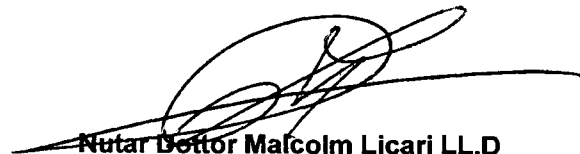
1447

Fit-tieni parti tal-att Dottor Paul Cachia aghmel id-dikjarazzjoni ta' trasferiment tal-immobbli li huwa akkwista b'titolu ta' legat minghand Dottor Charisse Ellul.

Paul Cachia iddikjara, għall-finijiet tal-Artiklu tlieta u tletin (33), tal-Att numru sbatax (17), tas-sena elf disa' mija tlieta u disghin (1993), illi d-decujus Dottor Charisse Ellul kellha l-imsemmija proprjeta' immobiljari fid-data tal- mewt taghha: in-nofs (1/2) indiviz tad-dar, bl-arja libera taghha, bin-numru tnejn u hamsin (52) li huwa l-bieb principali u li ghandha ukoll bieb iehor bla numru, fi Triq Mamo, Haz-Zebbug, Malta bil-gnien anness ma' l-istess dar u retropost ghaliha u liema gnien ghandu bieb bla numru fuq Triq Mamo (peress illi l-istess triq ghandha zewg (2) ferghat u tghaddi kemm fuq quddiem tad-dar u retropost ghaliha) u bil-garage anness ma' l-istess dar u retropost ghaliha liema garage ghandu bieb bla numru fuq Triq Mamo (fuq il-fergha tal-imsemmija triq fejn hemm l-imsemmi bieb tal-gnien), ukoll bl-arja tieghu, liema proprjeta' hija murija fuq is-site plan annessa mal-att w immarkata dokument bl-ittra "E", bid-drittijiet u l-pertinenzi kollha taghha. Dan is-sehem ta' nofs (1/2) indiviz ta' din id-dar gie stmat ghal valur ta' tlett mitt elf Euro (€300,000) skond stima tal-Perit Eve Degiorgio, annessa mal-att w immarkata bhala dokument ittra "F".

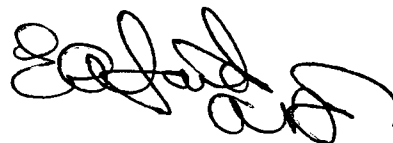
€ 6. KD

AD



Notar Dottor Malcolm Licari LL.D

22 JAN 2018



NOT. Dr. E.A. SAID

29163

The twelfth (12th.) day of November of the year two thousand and eighteen (2018);

Doctor of Laws Georg Sapiano, son of the late Alfred Sapiano and of Rose nee' Flynn, born in Attard on the 20th January 1968 and residing at Ta' Xbiex, holder of Identity Card number 71568(M) and his wife **Audrey Sapiano**, a housewife, daughter of John Baptist Ellul and Angela nee' Fenech, born in Attard on the 21st April 1972 and residing at Ta' Xbiex, holder of Identity Card number ~~182272~~ (M) – hereinafter jointly and severally between them referred to as '**the Vendors**', and **Heinrich Koerling**, retired, son of Theodor and of Maria nee' Schwermer, born in Altenburen, Germany on the 16th July 1957 and residing at Ta' Xbiex, holder of German Identity Card number L4YM3XP84 and Maltese Income Tax number 666417612, holder of Maltese Identity card number 0166236(A) – hereinafter referred to as '**the Purchaser**'.

After having agreed that in the deed and in the schedules annexed thereto, unless otherwise expressly stated or the contrary intention appears, the following capitalised terms shall have the following meanings respectively assigned to them:

"Title Deed" of Vendors shall mean:

- Deed in the records of Notary Doctor Pierre Attard of the twenty first (21st) day of March of the year two thousand and five (2005);
- Deed in the records of Notary Doctor Pierre Attard dated the twelfth (12th) day of July of the year two thousand and six (2006);
- Two deeds in the records of Notary Doctor Pierre Attard both dated the twenty-ninth (29th) day of August of the year two thousand and twelve (2012).

"Parties" shall mean the Vendors and the Purchaser.

"Seaview Marina" shall mean the Developers and Prior owner of the Property – hereinafter referred to as **"The Developer"**.

"Site" shall mean the "L" shaped portion of land measuring approximately four hundred and thirty one square metres (431sq.m.) with frontage on Ta' Xbiex Sea Front, Ta' Xbiex, bounded on the south in part by Ta' Xbiex Seafront and in part by property of Big Ben Properties or the Gauci Family and of the Migneco family, on the north by a projected road that shall be a prolongation of Triq l-Imradd and on the east in part by property of Big Ben Properties or the Gauci Family and of the Migneco family and in part by property of Seaview Marina, or more correct boundaries, shown outlined in red on the plan annexed to the title deed as Document B; which site comprises the site currently occupied by the store numbered eighty six (86) Ta' Xbiex Wharf, Ta' Xbiex, formerly in the limits of Msida, including the yard at the back of the said store, and the undeveloped land consisting of (i) a divided portion measuring approximately forty square metres (40sq.m.) bounded on the south by the yard of the aforesaid warehouse number eighty six (86), on the north by the aforesaid projected road that shall be a prolongation of Triq l-Imradd and on the east by the divided

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portion of land hereunder described and (ii) a divided portion measuring approximately seventy nine square metres (79 sq.m.), known as Plot F, bounded on the north by the aforesaid projected road that shall be a prolongation of Triq l-Imradd, on the south by property of Big Ben Properties or the Gauci Family and of the Migneco family and on the west in part by the aforesaid warehouse number eighty six (86) and in part by the divided portion of land described above.

"Plans" shall mean the Floor Plan of the Apartment and the plan of the Parking Space plan annexed to the deed and marked documents 'A' and 'B' respectively.

"Building" means the building without number known as Forth Mansions in Ta' Xbiex Sea Front, Ta' Xbiex, bounded on the south by Ta' Xbiex Sea Front, on the north by Triq l-Imradd, on the east by the external staircase which separates the Building from Whitehall Mansions property of Middlesea Valletta Life Assurance Co. Limited and on the west by property of Cold Stores Property Development Limited or their successors in title; which building consists of:

The Two Blocks of Apartments, respectively known as Forth Mansions Block A and Forth Mansions Block B, which share a common foyer, other common areas and a common unnumbered entrance which abuts onto a portico and passageway contiguous to Ta' Xbiex Sea Front, Ta' Xbiex and a commercial premises situated on the First Floor of the Building and accessible from two unnumbered entrances which abut onto the abovementioned portico, which blocks of apartments are together bounded on the south by Ta' Xbiex Sea Front, on the north by Triq l-Imradd, on the east by the external staircase which separates the Building from Whitehall Mansions property of Middlesea Valletta Life Assurance Co. Limited and on the west by the block of apartments described in the next paragraph; which blocks of apartments and commercial premises overlie part of the Garage Complex;

The Block of Apartments known as Forth Mansions Block "C", with its own independent unnumbered entrance which abuts onto the private pavement/driveway contiguous to the public pavement of Ta' Xbiex Sea Front, in Ta' Xbiex Sea Front, Ta' Xbiex; which block of apartments in part overlies a commercial premises which has its own independent unnumbered entrance which abuts onto the pavement/driveway contiguous to the public pavement of Ta' Xbiex Sea Front, bounded on the south by Ta Xbiex Sea Front, on the north by Triq l-Imradd and on the east by property described in paragraph (a) above; which block of apartments overlies part of the Garage Complex; and

The Garage Complex, namely the Ground Floor Garage Complex and the First Floor Garage Complex hereunder described.

"Condominium Act" means the Condominium Act, Chapter 398 (three nine eight) of the Laws of Malta, and the terms "Condominium" and "Condominus" have the same meaning specified in the same Act.

"Condominium Rules" means the rules adopted at a meeting of the Condomini in accordance with the provisions of the Condominium Act relating to the

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administration of the Garage Complex and the apportionment of expenses relating to common parts in the Garage Complex.

"First Floor Garage Complex" means the garage complex at First Floor Level (at times also referred to as Level One (1) or Upper Level) forming part of the Building having its own unnumbered independent entrance on Ta' Xbiex Sea Front; which Garage Complex comprises car parking spaces and lock-up garages and is bounded on the north by Triq l-Imradd, on the south by Ta' Xbiex Sea Front and on the west by property of Cold Stores Property Development Limited or their successors in title.

"First Floor Garage Complex Common Parts" means the main entrance, ramp and driveway of the First Floor Garage Complex and all services, installations, plant, equipment, electrical and plumbing systems and meters of the First Floor Garage Complex but does not include the land on which the Building is constructed except in so far as this land is required to render a service to the Building, any part overlying the First Floor Garage Complex, any part which constitutes part of the overlying buildings.

"Forth Mansions" means the Building.

"Garage Complex" means the Ground Floor Garage Complex and the First Floor Garage Complex collectively.

"Ground Floor Garage Complex" means the garage complex at Ground Floor level (at times also referred to as Level Zero (0) or Lower Level) forming part of the Building having its own unnumbered independent entrance on Ta' Xbiex Sea Front; which garage complex comprises car parking spaces and lock-up garages and is bounded on the north by Triq l-Imradd, on the south by Ta' Xbiex Sea Front and on the west by property of Cold Stores Property Development Limited or their successors in title.

"Ground Floor Garage Complex Common Parts" means the main entrance, ramp and driveway of the Ground Floor Garage Complex and all services, installations, plant, equipment, electrical and plumbing systems and meters of the Ground Floor Garage Complex but does not include the land on which the Building is constructed except in so far as this land is required to render a service to the Building, any part overlying the Ground Floor Garage Complex and any part which constitutes part of the overlying buildings.

"Commercial Premises" shall mean the tenement without official door number occupying part of the Ground Floor of the Building, with its own independent entrance in the front terrace of the Block of Apartments, in Ta' Xbiex Sea Front, Ta' Xbiex, which is planned to be constructed on the Site as part of the Building, in accordance with the Building Permit, substantially as shown on the Plans, and which, when completed, shall underlie part of the Block of Apartments and shall be bounded on the South by Ta' Xbiex Seafront, on the north by the Garage Complex, and on the east by the Common Parts of the Block, or more correct boundaries.



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“the Apartment” shall mean the apartment internally numbered ten (10) occupying the Fifth Floor of the Block letter ‘C’ of Apartments shown outlined in yellow on the plan annexed to the deed as Document ‘A’ and is bounded on the south in part by Ta’ Xbiex Seafront and in part by property of Big Ben Properties or the Gauci Family and of the Migneco family, on the north by a projected road that shall be a prolongation of Triq l-Imradd and on the east in part by property of Big Ben Properties or the Gauci Family and of the Migneco family, in part by property of Seaview Marina and in part by the Common Parts of the Block.

“the two (2) Parking Spaces” shall mean the parking spaces situated on the Lower Level of the Garage Complex and unofficially numbered L twenty-two (L22) and L twenty three (L23) shown coloured in yellow on the plan annexed to the deed as Document B, and bounded on the north by the common drive way of the Ground Floor Garage Complex, on the south by Forth Mansions Block B and on the east by the garage numbered L twenty-four (L24), in the Ground Floor Garage Complex property of the Developer or its successors in title and on the west by a narrow common corridor property of Seaview Marina Real Estate Limited.

“Common Parts of the Block” shall mean:

- i. the outside terrace, the main entrance door and the main entrance of the Block;
 - ii. the stairs, landings, lift shaft and lift in the common stairwell of the Block which extends from the Garage Complex up to the Penthouse Level in the Block;
 - iii. the door which communicates the Block of Apartments and the Garage Complex;
 - iv. the internal shafts (save as otherwise stated in this deed);
 - v. the lift room;
 - vi. the drainage system, communal plumbing and electrical systems and all other common parts mentioned in paragraph (c) of article five (5) of the Condominium Act;
- but does not include the land on which the Building is constructed, the common dividing walls with neighbouring tenements and the roof and airspace of the Building.

“Pro Rata” means:

- a) in relation to the Common Parts of the Block the division of one by the number of apartments and penthouses (Units) which at any time shall exist in the Block of Apartments irrespective of the superficial area of the respective Units; and
- b) in relation to the Ground Floor Garage Complex, the division by the number of car parking spaces/garages owned *pro diviso* which exist at any time in the Ground Floor Garage Complex, irrespective of the superficial area of the respective units;
- c) in relation to the First Floor Garage Complex, the division by the number of car parking spaces/garages owned *pro diviso* which exist at any time in the First Floor Garage Complex, irrespective of the superficial area of the respective units.

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"Administrator" shall mean the person appointed as such in accordance with article fifteen (15) of the Condominium Act.

"Building Permit" shall mean the Full Development Permit which shall be issued by the Malta Environment and Planning Authority (MEPA) and all other permits which shall be issued by the relevant competent authorities and which are required for the construction of the Building.

"Architect" shall mean Architect Paul Camilleri or such other architect appointed from time to time by the Vendor for the construction and/or development of the Building.

And in virtue of the deed, the Vendors jointly and severally between themselves sold, transferred and conveyed unto the Purchaser, who accepted, purchased and acquired:-

The Apartment internally numbered ten (10), formerly referred to as being internally numbered nine (9) and before that referred to as being numbered six (6) and which apartment occupies the fifth floor of the block known as 'Forth Mansions Block C' and which Block forms part of the larger building named "Forth Mansions" in Ta' Xbiex Seafront, Ta' Xbiex, together with its pro indiviso share of the Block's common parts, shown outlined in yellow on the plan annexed to the deed and marked Document 'A', in the deed referred to as 'The Apartment' with all its respective rights and appurtenances, free and unencumbered.

The entrance hall to the building, the stairwell and the staircase, the two (2) lift shafts and two (2) lifts are shared in common with the adjoining Block of apartments presently built on the site formerly occupied by the warehouse numbered eighty-seven (87) in Ta' Xbiex Seafront (at times referred to as Ta' Xbiex Wharf).

The Apartment enjoys a perpetual servitude consisting of the right of use in perpetuity and transferable to third parties of the Block Common Parts which perpetual servitude was constituted on the Title Deed in favour of the said apartment, for the advantage of the Apartment, and the consideration for which is included in the Price. The Purchaser, as owner of the said apartment, shall therefore have the right of use of all the Block common parts which include the entrance, entrance hall, staircase, stairwell, drains and drainage system, the two (2) lift shafts and the two (2) lifts, landings, and in general such other parts and services of the said Block 'C' designed for the common use and utility of the owners and occupiers of the apartments within the Block. The said servitude shall not be exclusive to the Purchaser but shall be shared with the other owners/occupiers of the said apartments in Block 'C'.

The Apartment was transferred together with the Pro Rata *pro indiviso* share of the Block Common Parts, which common parts shall be enjoyed in co-ownership with the owners of the other units which may exist at any time in the Block and

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may not be transferred separately from the Property owned pro diviso in the Block.

The said apartment was sold in a finished state and fully furnished.

The two car **Parking Spaces** internally numbered L twenty-two (L22) and L twenty three (L23) which car parking spaces are situated in the Ground Floor Garage Complex (in the deed referred to as the "Parking Space"); as shown outlined and crossed in yellow on the plan annexed to the deed as document marked "B" and are bounded on the north by the common drive way of the Ground Floor Garage Complex, on the south by Forth Mansions Block B and on the east by the garage numbered L twenty-four (L24) property of the Developer or their successors in title and on the west by a narrow common corridor property of Seaview Marina Real Estate Limited; with all their rights and appurtenances, free and unencumbered and with immediate vacant possession in favour of the Purchaser.

The said two Parking Spaces form part of a complex of garages and parking spaces underlying the building and includes the right of access to the said car parking spaces from the unnumbered communal entrance to the garage complex, which abuts onto the said Ta' Xbiex Seafront (Marina Wharf) as well as a right of access from the communal internal passages leading to the car spaces and to the garages in the garage complex.

The two Parking Spaces enjoy a perpetual servitude consisting of the right of use in perpetuity and transferable to third parties of the Ground Floor Garage Complex Common Parts. The right of use includes the right of uninterrupted vehicular and pedestrian passage and access at all times and without limitation to and from Ta' Xbiex Sea Front through the ramps, driveways and passages of the Ground Floor Garage Complex laid out for the purpose; which perpetual servitude was constituted on the title deed of the Vendors, in favour of the said Parking Space on the ramps, driveways and passages of the Ground Floor Garage Complex for the advantage of the Parking Space. These servitudes are not exclusive to the Garage and are shared with the other garages/car parking spaces in the Ground Floor Garage Complex and shall not be construed in any way to limit the rights of The Developer or its successors in title, to grant similar servitudes and/or other similar personal or real rights over any of the common parts owned by them in favour of any other part of the Garage Complex (including any developments which have been, or in future may be, added to the Garage Complex) or in favour of any owner or occupier of such properties.

The said two Parking Spaces were sold in a finished state and in their state and condition.

the above described Apartment and two Parking Spaces are hereinafter together referred to as '**the Property**'.

The said Property was transferred as free and unencumbered from any other ground rents, burdens, servitudes (save for those apparent or *in situ* or arising from the physical position of the properties in relation to the remainder of the

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Building and save as otherwise stated on the deed), hypothecs, privileges, charges and cautions, any third party rights whether real and personal and of whatever type or nature, requisition orders, possession and use, expropriation and any rights in favour of the Government or any other public authority and enforcement orders and with immediate vacant possession.

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This sale was made and accepted in consideration of the global price of **one million and eight hundred thousand Euro (€1,800,000)**

€1983.45

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Other Conditions that regulate the Property

- 1) The sale of the Apartment includes the ownership of the section of the airspace of the internal shafts and back yard of Block C at the level of the Apartment, subject to the servitudes enjoyed by each owner of the other apartments in the said block and those necessary to serve the owners of apartments that may eventually be constructed on the same block. Similarly, the Apartment shall enjoy the same servitudes over the airspace of the yards and shafts belonging, to third parties.
- 2) The Apartment shall enjoy all the active servitudes and shall be subject to all the passive servitudes, in relation to the remainder of the Building, which result from its physical position in the Building in relation to the remainder of the Building and which are necessary for the proper enjoyment of the properties in the Building.
- 3) Subject to the provisions of clause seven (7) below, the Apartments in the Block shall have the right to install, maintain and retain on the roof which at any time (including after future developments) shall be the highest roof of the building: (i) together with the other apartments / penthouse in the said block a communal satellite dish antenna and a communal television aerial; and (ii) one (1) water tank of a maximum capacity of one thousand (1000) litres (per apartment); (iii) the equipment required for one V.R.V. air-conditioning system(per apartment); in the place and in the manner to be indicated by The Developer which right was constituted on the title deed by The Developer, with the acceptance of the Vendors.
- 4) The Developer as owners of the roof and airspace shall have the right for further development including the construction of further storeys provided that this development is made in accordance with the relative permits. The Owners of the other apartments in the block or their successors in title shall not have the right of use of the said roof or any part thereof except as stated herein. Should The Developer or his successors in title carry out any further development The Developer and his successors in title undertake to remove the objects and equipment of the Apartment from the present roof and to place and install them onto the new roof at the his expense. Furthermore should The Developer construct further floors it undertakes to complete the works in all respects on such floors, including common areas leading to such floors within nine (9) months from the commencement of such works. During the period when the works are being carried out the main services will remain operational. The Developer undertook to impose this condition on future owner/owners of the roofs and airspace of the Building.
- 5) The Common Parts of the Block as well as the constructions made therein (the servient tenement) shall be subject to the perpetual passive servitudes in

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favour of the remainder of the Building (including any future developments which may be added to the Block) (the dominant tenement) consisting of: (i) the opening of apertures from the apartments/penthouses onto the Common Parts as is necessitated from their physical position in the Building in relation to the remainder of the Building for the proper enjoyment of the properties in the Building; (ii) the opening of the entrance, substantially as shown on the Plans, from the Commercial Premises and the Garage Complex onto the Common Parts; (iii) the right of passage at all times and without limitation from Ta' Xbiex Sea Front to the apartments/penthouses in the Block, the Commercial Premises and the Garage Complex and *vice versa*; and (iv) the right of passage of any and all common or separate services, pipes, drains and wiring to service the remainder of the Building, provided that all services are installed as required by standard building practice.

6) The Garage Complex and the garages/ car parking spaces therein (*as servient tenements*) are subject to the perpetual passive servitudes in favour of the properties overlying the Garage Complex (*as dominant tenements*) which result from their physical position in relation to each other, including the servitude consisting of the right of passage and installation of drains and drainage pipes, pipes, cables, wiring and any other services which may be required for the benefit of the dominant tenements or any part thereof, provided that all services are installed as required by standard building practice and do not effect the use and enjoyment of the garages and the parking spaces for the purpose they are intended.

7) The Developer or its successors in title reserved the right to extend all common parts of the Garage Complex to adjoining sites and the owners of garages / car parking spaces in the adjoining sites shall have the right of use by way of perpetual servitude of the common parts of the Garage Complex including the ramps and common driveways which abut onto Ta' Xbiex Seafront from where the Garage Complex is accessible. No compensation or other payments shall be due to the Purchaser or his successors in title in this respect. The Purchaser accepts and to the extent that his consent is required hereby gives his consent to the performance of these rights by The Developer or their successors.

8) The Parties acknowledge that the Block of Apartments and the Garage Complex shall constitute separate and distinct *condomini* in terms of the Act and the Common Parts of the Block and the Common Parts of the Garage Complex respectively constitute the common parts of the said *condominia* in terms of the Act and that the Commercial Premises shall not form part of any one of the said *condominii*.

9) For the purposes of the Condominium Act, the Ground Floor Garage Complex and the First Floor Garage Complex shall, unless otherwise agreed by the *condomini* thereof, each constitute a condominium which is separate and distinct from the other and from the remainder of the Building. The costs necessary for the preservation, maintenance, replacement, ordinary and extraordinary repairs, for the enjoyment of the common parts of the Ground Floor Garage Complex, for the rendering of services in the common interest and for the alterations agreed upon by the owners of units therein shall be borne pro rata between the *condomini* of the Ground Floor Garage Complex. The costs necessary for the preservation, maintenance, replacement, ordinary and extraordinary repairs, for the enjoyment of the

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common parts of the First Floor Garage Complex, for the rendering of services in the common interest and for the alterations agreed upon by the owners of units therein shall be borne pro rata between the condomini of the First Floor Garage Complex. The costs necessary for the preservation, maintenance, replacement, ordinary and extraordinary repairs, for the enjoyment of the Block Common Parts for the rendering of services in the common interest and for the alterations agreed upon by the owners of units therein shall be borne Pro Rata between the condomini of Block A, Block B and Block C.

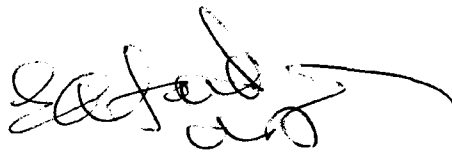
10) The Purchaser bound himself to become a member of the Owners Association of the Block and of the Ground Floor Garage Complex and to pay his pro rata share of the expenses incurred for the maintenances and repairs of the Ground Floor Garage Complex Common Parts.

11) The Parking Spaces are to be used solely for the parking of private vehicles and for personal storage. No animals may be kept in the Parking Spaces and similarly no explosive material may be kept therein.

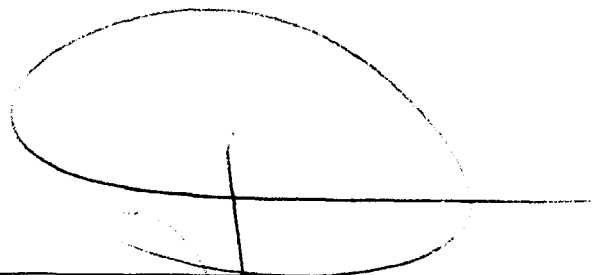
12) The Purchaser shall not pay nor shall he receive any compensation for party walls.

13) The Developer undertook to impose all the terms and conditions relating to the development and use of the common parts, the time limit for the internal finishing of the apartments and other similar provisions on all the other purchasers of apartments and garages in the Building.

11 DEC 2018



11 DEC 2018



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No Remarks

Order 783262 Front Page 3 / 3

Name **GEORG SAPIANO**

Spouse

Father **ALFRED SAPIANO**

Mother **ROSE FLYNN**

ID Card

Birthplace **ATTARD**

Date Of Birth

Liabilities From 25/09/2017 To 23/04/2020 Malta & Gozo Group Reference **Luigi Sapiano**

Transfers From 25/09/2017 To 23/04/2020 Malta & Gozo

Fidi From 25/09/2017 To 23/04/2020 Malta & Gozo

Search Results

Note Note Note V D/P D/M I

Type Year Num.

GPP 2017 21788

GPP 2018 23094 V

I 2017 27505

I 2018 29163 V

No Remarks

Order 898397 Front Page 3 / 4

Name **GEORG SAPIANO**
Spouse
Father **ALFRED SAPIANO**
Mother **ROSE FLYNN**

ID Card Birthplace **ATTARD** Date Of Birth
Liabilities From 23/04/2020 To 27/11/2020 Malta & Gozo Group Reference **Luigi Sapiano**
Transfers From 23/04/2020 To 27/11/2020 Malta & Gozo
Fidi From 23/04/2020 To 27/11/2020 Malta & Gozo

Search Results

Search has no results.



27505

Wiehed u tletin ta'
Ottubru tas-sena elfejn u
sbatax (31.10.2017)

Bejgh maghmul minn Dottor Georg Sapiano, direttur, bin il-mejjet Alfred u Rose nee Flynn, imwieled Attard u residenti Madliena, limiti tas-Swieqi, karta tal-identita numru 71568(M) lill-Nicolette Spiteri Bailey, avukata, bint Anthony Cassar u Maria nee Pace, mwielda San Giljan u residenti Zebbug, Malta, bin-numru tal-karta ta' l-identita' 512878(M) u zewgha Michael Spiteri Bailey, awditur, bin Lawrence u Rita nee Grech, mwielel San Giljan u residenti Zebbug, Malta, bin-numru tal-karta ta' l-identita' 316179(M), solidament bejniethom ta' Sest (1/6) indiviz tal-fond bin-numru mija sebgha u hamsin (157) Triq Marina, Pieta', bl-arja taghha. Mill-bqija l-imsemmija propjeta qed tinbiegh soggetta ghal u tgawdi mis-servituijiet rizultanti mill-posizzjoni taghha, bil-pussess battal, u bhala mill-bqija libera u franka bid-drittijiet u l-pertinenzi kollha taghha. Din il-propjeta taqa f'Land Registration Area obligatorja u hija registrata b'titolu enumerat erbgha sebgha zero zero zero wiehed sitta tmienja (47000168)

Dan il-bejgh sar u gie accettat bil-prezz ta' mija u ghoxrin elf Euro taht kundizzjonijiet ohra msemmija fl-att.



Dr Roland J Wadge
(Nutar Pubbliku, Malta)